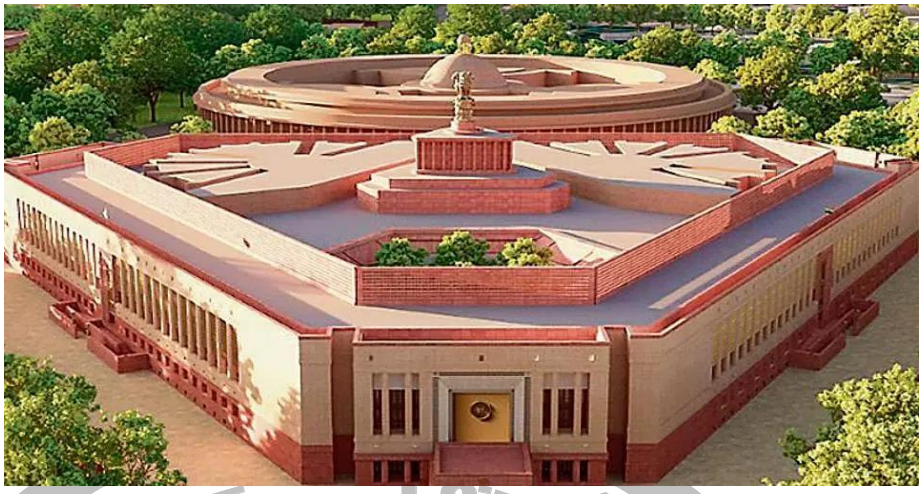

INDIAN POLITY

NOTES

Compiled

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PART - I

- CONSTITUTIONAL DEVELOPMENT
- FRAMING THE CONSTITUTION
- SOURCES & FEATURES
- THE PREAMBLE
- THE UNION & IT'S TEROTORY
- CITIZENSHIP
- FUNDAMENTAL RIGHTS
- DPSP
- FUNDAMENTAL DUTIES
- UNION EXICUTIVE – PRESIDENT & PM
- STATE EXICUTIVE – GOV. & CM

Sources : PIB, The Hindu, Indian Express, Legal Service India, IPleder

CONSTITUTIONAL DEVELOPMENT

THE REGULATING ACT, 1773

The Regulating Act of 1773 was the first direct interference of the Home Government in the Company's affairs which brought the major changes in the Company's administration.

NEED

After the Treaty of Allahabad in 1765 Diarchy was imposed in Bengal by Robert Clive. This system created so many complication in the administration of Bengal.

- Nizamat rights were given to Company.
- Nawab acted as an agent of the company.
- Due to financial crisis the company had demanded a loan of one million pounds from the Home Government in the year 1772.
- The Company acted like a ruling body.
- People of Bengal were perished due to severe famine.
- Employees of Company involved in corruption.
- There was no centralized authority to control the presidencies of Bengal, Madras, and Bombay .

The British Parliament passed two bills presented by Prime Minister Lord North in 1772 after the recommendation of secret committee. The second bill was known as Regulating Act 1773.

OBJECTIVES

- To control and regulate the affairs of the Company
- To provide a Central Administration System
- To control the corruption practices by
  - Prohibiting the servants of the company from engaging in private trade
  - Prohibiting the servants of the company from accepting bribes, gifts, and presents from the people
- To sort out the issues of the Diarchy

FEATURES

- The office of the Governor of Bengal was re-designated as the Office of the Governor -General of Bengal.
- Lord Warren Hastings was the first Governor - General of Bengal.
- The Executive Council of four members was created to assist the Governor-General.
- John Clavering, George Monson, Richard Barwell & Philip Francis were the members.
- The tenure of the members was five years.
- Crown had right to appoint them or remove them.
- The term of directors was increased from one year to four years and provision was made for electing one fourth of the directors every year in rotation.
- Voting power of the shareholders were restricted to those who held stock worth 1000 Pounds or more in the company.
- The Governors of Bombay and Madras were made subordinate to the Governor General of Bengal.
- In the year 1774, Supreme Court was established at Fort William Calcutta with one Chief Justice and three other judges.
- The first Chief Justice of the court was Sir Elijah Impey.
- Three judges were John Hyde, Robert Chambers & Stephen Caesar.
- The authority of these judges was like those of King's Bench in England.
- The salary of the Chief Justice was fixed at 8000 sterling a year, and of three judges 6000 sterling each.
- All the revenue related issues were presented before the revenue department of home government.

IMPACTS

- It brought a significant changes in the structure of judiciary in India.
- It changed the Constitution of Court of Directors.
- The political and administrative functions of the company were recognized.
- The act laid down the foundation of the Central Administration in the country.

DEMERITS

- The Governor-General had no veto power.
- The Governor-General was made answerable to the Directors and was held responsible for all the acts related to the administration in India.
- The council Governor-General became the puppet of the council.
- There was a lot of confusion between the jurisdiction of the Supreme Court and that of the Council of the Governor-General.
- It was failed to control the corruption.
- The act failed to address the concerns of the Indian natives.

- There was a lot of confusion in relationship between the Governor-General and Governors of Presidency.
- Reflected at the time of first Anglo-Maratha war.
- Serious issues with the administration
- Nand Kumar case in which he was hanged.

REFORMS

THE ACT OF SETTLEMENT OF 1781

- Also known as Declaratory Act, 1781.
- Touchet Committee was setup to enquiry the administration of Bengal Presidency in 1777.

FEATURES

- The Supreme court's jurisdiction became limited to only Calcutta.
- The servants of the company were exempted from the jurisdiction of the Supreme Court.
- The Supreme court had no jurisdiction in the revenue matters.
- The Appellate jurisdiction shifted in the hands of the Governor-General and Council.
- The Mohammedan law should be applied on the Muslims and the Hindu law applied to Hindus.
- It was the first attempt to separate the executive from the judiciary.
- This act made the position of the council very strong.

PITT'S INDIA ACT, 1784

- A Bill was presented by the coalition government led by Fox to remove the defects of the Regulating Act in 1783, but the House of Lords rejected the Bill.
- The new government of Younger Pitt modified the bill, which was passed as an Act in 1784.

FEATURES

- The Board of Control was setup consisting of maximum six parliamentarians headed by a senior cabinet member to direct and control the company's affairs.
- The Court of Directors was setup.
- The Governor General's council shall consist of three members one of whom shall be the commander-in-chief of the King's army in India.
- The Governor General shall have given two votes (one his own and another casting vote).
- All civilians and military officers must provide a full inventory of their property in India and in Britain within two months of their joining their posts to the Court of Directors.
- Prohibited the receiving gifts, rewards or cash from the Indians.
- The government must establish permanent judicial and administrative systems for the governance.

CHARTER ACT OF 1793

- The Company's commercial privileges were extended for a further period of twenty years.
- The Governor-General was given the power to appoint a Vice-President to act in his place during his absence from Bengal, from amongst the civilian members of his Council.
- All members of the Board of Control were to be paid their salaries from the Indian revenues.
- Lord Cornwallis was given special power at the time of his appointment, to override his Council.
- When the Governor-General would be present in Bombay or Madras, he was to supersede the local Governor as the head of the administration during the period of his stay there.

CHARTER ACT OF 1813

CAUSE

- The English traders wanted to compensate their loss due to the Continental System of Napoleon Bonaparte by sharing the Indian Trade.
- Due to the Industrial revolution the production was also increased in Britain. Therefore the British trader demanded the British government to permit them for trade with India.

- The Company was deprived of its commercial monopoly.
- Laid down 'The Undoubted Sovereignty of the Crown'.
- The East India Company was allowed to enjoy the monopoly of China trade and trade in tea.
- A sum of rupees one lakh annually was provided for the improvement of Education. (First step towards the principle of State responsibility for education.)
- Appointment of a BISHOP whose headquarter was in CALCUTTA.
- India was to be open to the Christian missionaries.

CHARTER ACT OF 1833

CAUSE

- Starting of Machine Age in Britain.
- The Whigs government accepted the Laissez Faire policy.

- It gave another lease of life for twenty years to the East India Company.
- The Company's commercial privileges were all abolished now it worked as a political organisation.
- The President of the Board of Control became Minister for Indian affairs.
- The Council got full powers regarding revenue.
  - A single budget was prepared by the Governor General for the country.
- The Governor-General of Bengal was now made the Governor-General of India.
  - Lord WILLIAM BENTINCK was the first governor general of British India.

- It enlarged the Executive Council of the Governor-General by adding to it a fourth member as a Law Member.
  - Lord MACAULAY was the first Law Member.
  - A Law Commission was formed to codify the Indian Laws.
- The Governor-General's Government was known as the 'Government of India'.
- It removed the distinction between Indian and European.
  - No one would be disqualified for any place in the Company's service by reason of his religion, place of birth, descent, or colour.
- It permitted the Government to abolish the slavery.
- British citizens were permitted to purchase land in India.

CHARTER ACT OF 1853

- No specific time was allotted to the Company to retain its powers and authority in India.
- The number of the Directors of the Court of Directors was reduced from 24 to 18 of whom 6 were to be nominated by the Crown.
- The Salary of the members of Board of Control, its Secretary and other officers would be fixed by the British Government and paid by the Company's funds.
- MACAULAY COMMITTEE was setup to give effect to the scheme of appointment of civil servant through competition.
- Law member was now made a full member of the Governor-General's Executive Council.
- The Governor-General's Executive Council's membership was enlarged by inclusion of six members.
- The Governor-General was empowered to appoint two civil servants to his Council.
- It created a functioning Legislative Council.

GOVERNMENT OF INDIA ACT 1858

Indian alliance were defeated by the East India Company force in the 1857 Revolution. The British government decided to make Indian territory which was controlled by the East India Company as the colony of the Britain. Therefore the Act was passed in 1858 in British Parliament also known as Queens declaration.

- At that time QUEEN VICTORIA ruled over the British Empire.

- Lord PALMERSTON introduced the bill for the Better Government of India in February, 1858.
  - His Ministry was thrown out.
- The Act was passed under DISRAELI ministry and received royal assent on August 2, 1858.
- The Britain Indian territories were now governed by the British Queen.
- It established the control of British Parliament over Indian affairs.
- Secretary of State for India assisted by a Council of **15** members.
  - 8 were to be appointed by the Crown and 7 were elected by the Court of Directors.

- At least **50** per cent of the members of the Council must have served in India for not less than 10 years.

- The Secretary of State for India was empowered with all powers, exercised by the Court of Directors and the Board of control.
  - The first Secretary of State for India was Lord STANLEY.
- The representative of the British government in India was the Governor-General and Viceroy (both the same person to avoid conflict).
  - First Governor-General and Viceroy of India was Lord CANNING.
- The Governor General Executive Council had **6-12** members , of which at least half could be Indian or English.
- It ended the doctrine of lapse.
- The act was called the Magna Carta.

After the Queen's declaration of 1858, India became the colony of Britain and governed by the British Parliament. Therefore all the Acts related to India were passed by the British government and known as Government of India Act.

INDIAN COUNCIL ACT, 1861

THE EXECUTIVE COUNCIL OF THE GOVERNOR-GENERAL

- Strengthened by the addition of not less than **6** and not more than **12** members nominated by the Governor-General for the purposes of legislation.
  - Not less than half of the additional members were to be Non-Officials and they were to hold office for two years.
- Addition of a FIFTH member to the Executive Council of the Viceroy.
  - He was required to bea jurist rather than a technical lawyer.
- The function of the Council was strictly limited to Legislation.
- No law could be made which infringed the authority of the Home Government.
- Governor-General was given the power of veto.

POWERS OF THE GOVERNOR-GENERAL

- Empowered to issue ORDINANCES in case of emergency.
  - These ordinances were to remain in force for SIX months unless they were dissolved or repealed by the ordinance or law.
- Empowered to delegate special business to individual members of the Executive Council.
  - PORTFOLIOS system was started by Lord CANNING.
- Empowered to make rules and regulations for the conduct of the business of the Executive Council.
- Empowered to create new provinces, divide or alter the limits of any province.

THE GOVERNMENTS OF BOMBAY AND MADRAS

- Not less than four and not more than 8 additional members at the Executive Council for purposes of legislation.
- These additional members were to hold office for two years.
- The consent of the Governor-General was made necessary for all legislations
- Nominating the Advocate General.

OTHER FACTS

- No distinction was made between the central and provincial subjects.
- The non-official members of the Council were nominated by the Viceroy and not elected by the people.
  - These non-official members were either the Indian Princes or their Diwans, big Zamindars or retired officials. First three Indians nominated in Council -
    - SIR DINKAR RAO, MAHARAJA PATIYALA, RAJA OF BANARAS

IMPACT

- Beginning in Representative Institutions
- Enabled the Governor-General to associate the people.
- Laid the foundation of legislative devolution which ultimately led to the grant of provincial autonomy to the provinces in 1937. (G.N.Singh)

SOME OTHER ACTS OF 1861

INDIAN CIVIL SERVICES ACT

- Certain posts under the Government of India were to be reserved for persons who had been a resident of India for 7 years or more.
- Validated a number of irregular appointments.
- All appointments were now to be reported to the Secretary of State and unless Secretary of State approves within twelve months, were declared void.

INDIAN HIGH COURT ACT

- Authorize the Crown to create High Courts in India.
- The jurisdiction and powers exercised by the Supreme Courts of Calcutta and the Sadar Adalats was transferred to the High Courts.
- The High Courts of Calcutta, Madras and Bombay were established.
  - Each High Court was to consist of a Chief Justice and NOT more than **15** regular judges.
  - The chief Justice and minimum of ONE THIRD regular judges had to be Barristers and minimum ONE THIRD regular judges were to be from the Civil Service.
  - All Judges were the be in the office on the pleasure of the Crown.
  - The High Courts had an Original as well as an Appellate Jurisdiction.

- Calcutta High Court was the first High Court and SIR BARNES PEACOCK was its first Chief Justice.
- Justice SUMBOO NATH PANDIT was the first Indian Judge of the Calcutta High Court.

INDIAN ARMY ACT

- All the regular cavalry regiments of the Bengal Army had mutinied.
- Cavalry was now organized on the Silladar System, except for the three regiments of the Madras Army.
- The promotion of Indians was now determined by merit.

JONATHAN PEEL COMMISSION

- The Native Army should be composed of different nationalities and castes.
- To divide regiments into class companies.
  - Led to the theory of Martial Races of India.
- The proportion of Indian to British soldiers in India should not be greater than three to one.
- Soldiers should be enlisted for general service.

INDIAN COUNCIL ACT, 1892

- Laid down the foundation of the Representative Government.
- Indians were authorised to discuss the annual financial statement with some restrictions.
- Indians were authorised to address questions on the of matters public interest.
  - A previous notice of 6 days needed.
  - No supplementary questions asked.
- The number of additional members in the Council was to be not less than **10** and not more than **16**.
- In the case of Madras and Bombay it is not less than **8** and not more than **20**.
- The maximum number - Bengal - **20** North- Western Province & Oudh **15**.
- Government agreed to Allow Elections in India.

INDIAN COUNCIL ACT, 1909

(Minto-Morely Reforms)

The Indian Council act 1909 was the response and reaction of the political condition prevailing in India after the partition of Bengal. The Indians had lost faith in the British government.

- So to counter the growing reaction of the Nationalist British government felt the need of the reform.
- It was also enacted to attack Hindu Muslim Unity.

❖ Lord Minto and Lord John Morley, were the Viceroy and Secretary of State of British India respectively.

FEATURES

- Lord Minto appointed Satyendra P Sinha as the first Indian member of the Viceroy's Executive Council.
- Two Indians were nominated to the Council of the Secretary of State for Indian affairs.
- The Imperial Legislative Council shall consist of 37 officials and 23 non officials.
  - Out of the 37 officials, 28 were nominated by the Governor- General and the rest were to be ex-officio members.
  - Out of the 23 non-official members, 5 were to be nominated by the Governor-General and the rest were to be elected.
- The Act did not provide for any official majority in the Provincial Legislative Councils.
  - The majority of the members were to be non officials.
  - Some of the non-officials were to be nominated by the Governor.
- The members were elected INDIRECTLY.
  - The local bodies elected an electoral college who would elect members of the provincial legislative councils.
  - These elected members would elect the members of the Central legislative council.
  - The elected members were from the local bodies, the Chambers of Commerce, Landlords, Universities, Traders' communities and Muslims.
- Every number was given the right to move any resolution grant to local Governments proposed or mentioned in the financial statement.
- The Council was not permitted to discuss expenditure on interest of debt, expenditure and State Railways.
- The members were given the right to ask question and supplementary questions.
- The act provides for Separate electorates for the Muslims.
  - Some seats were reserved for Muslims and only Muslims could vote there.

The act did not full fill the aspirations of Indians. They had lost faith in British government.

- Indian were not allowed to vote on budget.
- It was an attempt to divide Indian among religion lines.
- Indian were demanding adult suffrage but it was not fulfilled.

According to Sri Ram Sharma, "The constitutional autocracy that it set up was bound to find its autocratic side challenged by its constitutionalism, and an answer had to be found for that challenge. Autocracy was likely to go overboard."

According to Lord Morley, these reforms are as "the opening of a very important chapter in the history of relations of Great Britain and India" and "the turning over a fresh leaf in the history of British responsibility to India".

The reforms of 1909 gave to the people of the country a shadow rather than substance.

The British government wanted to suppress the emergence of nationalists because they became increasingly vocal and adopted a stronger tone while demanding representation of Indians in government. The extremist also aimed to undermine the foundations of the British rule.

Therefore the British termed the prevailing political situation in the country as the Indian Unrest. Lord Minto denounced the extremists but felt it was imperative to engage with the moderates and provide some political concessions which came to be packaged as the Morley-Minto reforms.

The reforms of 1909 afforded no answer and could afford no answer to the Indian political problem. Lord Morley made it clear that colonial self-government was not suitable for India, and he was against introduction of parliamentary or responsible government in India.

- ⇒ The introduction of separate electorates on the basis of religion was viewed as divisive. In Indian politics, this system ushered in an era of unabashed communalism. This had serious consequences which impacted the nation's unity and the freedom struggle.
- ⇒ It also disappointed in term of limited franchise and unreasonable qualifications required to stand for elections.
- ⇒ The 'constitutional' reforms were, in fact, aimed at dividing the nationalist ranks by confusing the Moderates and at checking the growth of unity among Indians through the obnoxious instrument of separate electorates.
- ⇒ Although the Provincial Councils had a non-official majority, the outcome was irrelevant because the non-official majority was invalidated by the election of nominated members.
- ⇒ Members were able to discuss the budget, but they were unable to make any significant changes to it. They could ask questions but not compel the executives to respond to the resolutions, which were more like recommendations to the government.
- ⇒ Morley-Minto Reform diverted attention away from political and economic difficulties that afflicted all Indians, Hindu and Muslim alike.
- ⇒ It did not bring any significant change in the power of the councils. The autocratic form of government which came up after the revolt of 1857 remained unchanged.

It was instituted to placate the moderates and appeasement to the disseminate Muslims from National Movement by granting them separate electorate. The people had demanded self-government but what they were given was 'benevolent despotism'.

INDIAN COUNCIL ACT, 1919

(MONTAGU-CHELMSFORD REFORMS)

The act was based on the recommendations of a report by Edwin Montagu(Secretary of State for India) and Lord Chelmsford(Viceroy).

It was a step in to introduce Responsible Government system in India as an integral part of Empire.

DIARCHY IN PROVINCIAL GOVERNMENT

- Classification of the central and provincial subjects.
- The provincial subjects were divided into two groups-

  (a)Reserved (b)Transferred.
- Reserved subjects - justice, police, revenue.
  - The governor was in charge of the reserved list along with his executive councillors.
- Transferred subjects - public health, public works, education etc.
  - The ministers were in charge of subjects under the transferred list.

EXECUTIVE IN PROVINCE

- The ministers were responsible to the people who elected them through the legislature.
- These ministers were nominated from among the elected members of the legislative council.
- The executive councillors were not responsible to the legislature unlike the ministers.
- 70% of the members were elected in provincial legislative assemblies.
- There were communal and class electorates.
- Some women could also vote.

CENTRAL GOVERNMENT

- A bicameral legislature was set up with two houses –
  - (a)Legislative Assembly (Lok Sabha) (b) Council of State (Rajya Sabha).
- **LEGISLATIVE ASSEMBLY** included 145 members among them –
  - 41 were nominated (26 official and 15 non- official)
  - 104 were elected (General, Muslims, Europeans, Londlords, representatives of India community, and Sikhs)
  - The nominated members were nominated by the Governor-general from Anglo-Indians and Indian Christians.
  - The members had a tenure of 3 years.
- **COUNCIL OF STATE** included 60 male members
  - 27 nominated which consisted of official, non- official members.
  - 33 elected, it included General, Muslims, Europeans, Sikh.
  - Only 25% of the budget was subject to vote.
  - The members had a tenure of 5 years.

EXECUTIVE

- The chief executive authority was the Governor-General.
- Out of the 6 members of the Viceroy's executive council, 3 were to be Indian members.
- The governor-general could issue ordinances.
- Governor-General could also enact a bill without the legislature's consent.
- Governor-General could disallow any question, adjournment motion or debate in the house.

VOTING RIGHT

- Franchise was restricted and there was no universal adult suffrage.
- Voters should have paid land revenue of Rs.3000 or have property with rental value or have taxable income.
- Voters should possess previous experience in the legislative council.
- Voters should be members of a university senate.
- Voters should hold certain offices in the local bodies.
- Voters should hold some specific titles.

INDIAN COUNCIL

- It had at least 8 and a maximum of 12 members.
- The members had a tenure of 5 years.
- Half of the members should have ten years of experience in public service in India.
- There were to be 3 Indian members in the Council.

OTHER

- The act provided the establishment of a public service commission in India.
- The act also provided that after 10 years, a statutory commission would be set up to study the working of the government.
- The act also created an office of the High Commissioner for India in London.

DRAWBACKS

- At the centre, the legislature had no control over the Governor-general and his executive council.
- Allocation of seats were based on Importance of provinces. (Punjab - military same as Bombay commercial)
- The voting right was very limited which did not extend to the common man.
- The provincial ministers had no control over finances and over bureaucrats.
- Division of subjects was not satisfactory at the Centre.

MAHATMA GANDHI said that these reforms were only a method of further draining India of her wealth and of prolonging her servitude.

B.G. TILAK said that the Montford reforms as "Unworthy and disappointing- a sunless dawn".

SUBASH CHANDRA BOSE viewed that the government India Act 1919 forged fresh fetters for the people.

ANNIE BESANT termed the Act as 'unworthy of England to offer and India to accept'.

SIMON COMMISSION

- The Indian Statutory commission {Simon commission} was appointed in 1927 by Conservative government to evaluate the Montesquieu Chelmsford reform.
- It was headed by Sir John Simon and seven other members.

- Lord Birkenhead, the Secretary of State for India was responsible for setting up the Commission.
- The Congress Party decided to boycott the Commission at their session at Madras in 1927 because no Indian was on the committee.
- The Commission's report was published in 1930.

RECOMMENDATIONS

- To abolish the Diarchy in provinces.
- Withhold the separate communal electorates..
- Extension of responsible government in provinces
- Creation of Indian federation of British India and Princely states.

IMPACT

- The Indian National Congress decided not to cooperate with the Commission at Madras session in 1927.
- An All Parties Conference met in February 1928 to appoint a Subcommittee under the Chairmanship of Motilal Nehru to draft a memorandum.
- Simon Go Back was started .
- Jawaharlal Nehru, Vallabhbhai Patel and Subhas Chandra Bose emerged as the Young Turk leader.
- The British government convened three round table conferences.
- A White Paper on Constitutional Reforms' was submitted for the consideration of Joint Select Committee of the British Parliament.
- The recommendations of this committee were incorporated in the next Government of India Act of 1935.

NEHRU REPORT, 1928

- An All Parties Conference met in February 1928 to appoint a Subcommittee under the Chairmanship of Motilal Nehru to draft a memorandum.
- The subcommittee was setup to draft the Constitution on 19 May 1928.
  - Motilal Nehru (Chairman), Sir Ali Imam, Tej Bahadur Sapru and Subash Chandra Bose. M.R. Jayakar and Annie Besant joined the Committee later.
  - Jawaharlal Nehru was appointed the secretary to the Committee.

FEATURES

- CLAIMED
  - Dominion status for India.
  - Rejection of separate electorates.
  - Nineteen fundamental rights
  - Responsible government at the Centre as well as in provinces.
  - The House of Representatives(500 member) to have a tenure of 5 years.

- A 200-member Senate to be elected by provincial councils have a tenure of 7 years.
- The central government to be headed by a governor-general, appointed by the British Government.
- The Governor-General will act on the advice of the Executive Council. It shall be collectively responsible to the parliament.
- Muslims should be given one-fourth representation in the Central Legislature.
- Sindh should be separated from Mumbai.

Nehru report cemented the Gulf between Congress and Muslim League.

It was drafted in the background of increasing divergences between Congress and Muslim league on one hand and imposition of constitutional scheme by Britishers through Simon commission. Amid these challenges Nehru Report tried to cement the relations between Congress and Muslim league and present a unified front against Britishers through these following measures-

⇒ The Nehru report recommended reservation of seats for Muslims only in provinces where they were in a minority.

⇒ The report proposed to abolish separate electorate to discard reservation for seats for Muslim majority in the Punjab and Bengal and to reject the principal of weightage for Muslim minorities, this was a reversal of the Lucknow Pact.

⇒ It asked for a similar reservation for Hindus in North western frontier province.

⇒ Nehru Report also recommended to ensure full protection to cultural and religious rights of Muslims, which was done to ensure muslims minority in the country that their rights will be protected.

⇒ Sindh and Karnataka shall be separate any further recognition of proposed report was good but not practical. The joint and mixed concept was practically unacceptable for the Muslim League.

⇒ Jinnah demanded that the residual powers to be vested with the provinces.

DELHI PROPOSALS

- Drafted in the Muslim League session in Delhi December 1927.
  - Four proposals were accepted in the Madras session of the Congress (Dec. 1927).
    - ✓ Representation to Muslims in Punjab and Bengal in proportion to their population.
    - ✓ Formation of three new Muslim majority provinces— Sindh, Baluchistan and North-West Frontier Province.

DELHI MANIFESTO

- Drafted by the prominent national leaders on the purpose of the Round Table Conference on November 2, 1929.
- The basic principle of dominion status should be immediately accepted.
- The Congress should have majority representation at the conference

- Viceroy Irwin promised a Round Table Conference when the Simon Commission submitted its report but he rejected these demands on December 23, 1929.

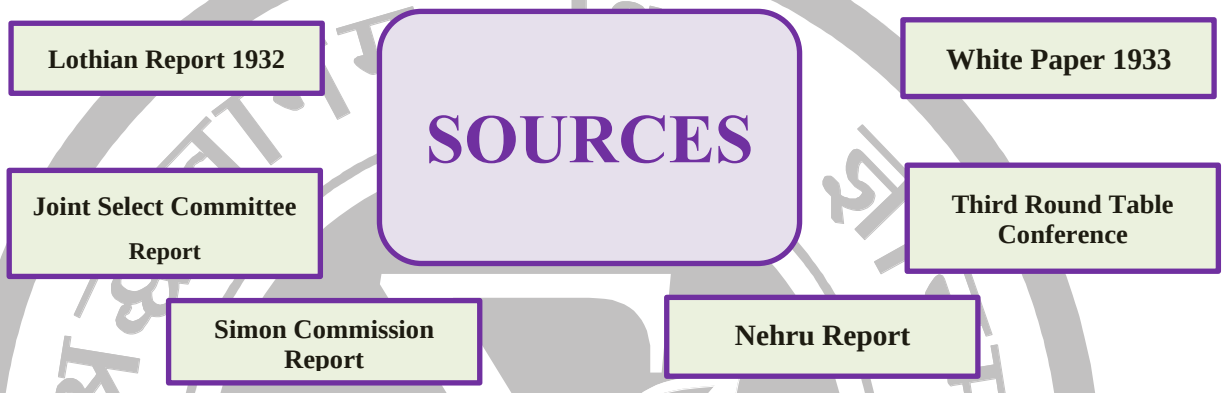
GOVERNMENT OF INDIA ACT, 1935

{Lengthiest Acts - contained 321 sections and 10 schedules}

The Simon Commission report was discussed at Round table conference and a White paper was introduced in British Parliament.

A joint committee of both the houses of the Parliament was formed under the Chairmanship of Lord Linlithgow.

The report of the joint committee suggested to introduce the Government of India Act 1935.



FEATURES

DYARCHY AT CENTRE

- Adopted at the central level
  - ✓ RESERVED SUBJECTS administered by the Governor-General on the advice of the Executive Council.
    - Executive Council could not exceed its limit of three members.
  - ✓ TRANSFERRED SUBJECTS administered on the advice of ministers and the number of ministers could not exceed 10.

DIVISION OF SUBJECTS

- FEDERAL LIST - **59** Subjects - Army, Currency, Post, External Affairs
- PROVINCIAL LIST - **54** Subjects - Land Revenue, Irrigation, Agriculture, Public Order
- CONCURRENT LIST - **26** Subjects

✓ Provincial autonomy

✓ Residual power was vested in Governor-General

✓ A Finance Bill could not be placed in the Central Legislature unless the Governor-General gives his assent or his consent.

ALL INDIA FEDERATION

- Comprise British India Provinces and Princely States.
- Discretion power to the State whet to join the federation.

FEDERAL LEGISLATURE

Governor-General + Council of States + Federal Assembly

- Meet at least once in a year.
- Summoned, Adjourned or Dissolved by the Governor-General.

COUNCIL OF STATES

- ✓ Representatives from British India(156) as well as Princely States(104).
- ✓ Could not be dissolved.
- ✓ One-third members of the council will retire as per the provision.

FEDERAL ASSEMBLY

- ✓ Could dissolve only after the completion period of the five years.
- ✓ Representatives from British India(250) as well as Princely States(125).

FEDERAL COURT

- To resolve disputes arising between two states or between state and federal government.
- Interpretator of the Constitution
- The appeal could be made to the Privy Council.
- The court was introduced after two years in 1937.

OTHER FEATURES

- The Indian Council (1858) was abolished.
- Establishment of the Reserve Bank of India.
- Creation of two new states -SINDH and ORISSA.
- BURMA was separated from India.
  - ✓ LORD DUNDAS was the first person to become Secretary of State of both the colonies India and Burma.
- Expenses of ADEN was separated from India.
- Federal railway authority was setup.

IMPORTANCE

- The act mainly focused to fulfill the National Aspirations.
- Giving more freedom to British India for better governance in the form of Provincial Autonomy.
- Separate electorates for women.
- Protection of minorities

- Proposed to form the federal government that allowed princes to participate in political affairs of India.
- To make the Governor General Pivot of the constitution to settle if there were any disputes among the people.
- It leads to the Relationship of a Dominion Status
- Constitution of India was the residue of the legacy started by the Government of India Act, 1935.

CRITISISM

- The provision of act nowhere close to the Indian aspiration because Congress demanding complete Independence at the time but there was no trace of independence in this act.
- The concept of Provincial autonomy was fake because real power is still in British government.
- Governor general still enjoys the Veto power.
- The Congress strongly opposed the introduction of the Dyarchy at centre because it failed at the Provincial level.
- Congress wanted all Native state must compulsory join the Indian Federation but the act gave freedom to Native state to decide where they wanted to be part of the Federation.
- Congress was against the system of separate electorate
- It only showed the dominion of the British Government over the Indians.

JAWAHARLAL NEHRU said that the act for Indians seems like- Driving a car with all breaks but with no engine.

M . A. JINNAH said that the act was like a rotten fruit.

The act for Indians seems like- Driving a car with all breaks but with no engine.

While criticizing the Government of India Act 1935 Jawaharlal Nehru said the above statement. It was the lengthiest Act that was made before the year 1935. It proposed many salient features such as the creation of All India Federation, Provincial Autonomy, provision for safeguards and reservation, etc. These features were important for the Britishers but Indian politicians were not happy with these features.

⇒ The provision of the Act of 1935 were nowhere close to the Indian aspiration because Congress demanding complete Independence at the time but there was no trace of independence in this act .

⇒ Concept of provincial autonomy was farce because real power where still in the hand of British government.

⇒ Governor and Governor General enjoy veto power.

- ⇒ The Congress strongly opposed the introduction of dyarchy at the centre because it failed at provincial level.
- ⇒ Congress wanted all Native States must compulsorily join the Indian Federation but the act gave freedom to native States to decide whether they wanted to be part of the Federation or not.
- ⇒ Congress wanted representative of native States in proposed federation should be elected by the public but act proposed their nomination by the native States.
- ⇒ Providing separate electorate to Hindus, Muslims, Sikhs, etc, later on, turned out to be the tools for disintegrating India. Hence, this Act, in reality, did not help in curbing out the difficulties that had arisen in the Government of India Act, 1919.
- ⇒ It was a rigid one. It could not be amended or modified by any Indian legislature, either it was Federal or Provincial Legislature. In the eyes of the people, this represented a disregard for the wishes of the people and the new Act did not make any amendments to this situation which was a pressing issue for the citizens.
- ⇒ It only showed the dominion of the British Government over the Indians only for their benefit.

Therefore, the Act was unable to provide the people with what it had proposed and had instead provided the people with changes that they considered unnecessary while the real concerns of the people were ignored by the British who aimed at expressing their dominance over the Indians and India through this Act.

SIGMA ACADEMY

FRAMING THE CONSTITUTION

CABINET MISSION PLAN 1946

- The Cabinet Mission Plan (May 16, 1946) contained proposals regarding the constitutional future of India.
- Members - Lord Penthick Lawrence(Secretary of State for India), Sir Stafford Cripps(President of the Board of Trade) and A.V Alexander(First Lord of Admiralty).
- The Mission arrived on 24th March, 1946.
- The congress was represented by Jawaharlal Lal Nehru, Valabhai Patel, Abdul Kalam Azad and Ghaffar Khan.
- Muslim League was represented by M.A. Jinnah, Liaquat Ali Khan, Nawab Ismail and Sardar Abdul Rab Nishtar.

OBJECTIVE

- To formulate a Constitution-making body {Constituent Assembly}.
- To form the Interim government.

FEATURES

- There should be Union of India-
  - ✓ British India and Native States
  - ✓ Deal with the subjects of Communication, Defence and Foreign Affairs
  - ✓ Have power to raise finance required for the subjects.
- There should be three groups of provinces.
  - ✓ Group A, consisting of six Hindu majority provinces; Bombay, Madras, United provinces, Central provinces and Bihar.
  - ✓ Group B, consisting of Punjab, Sindh, NWFP and Baluchistan.
  - ✓ Group C, Bengal and Assam.

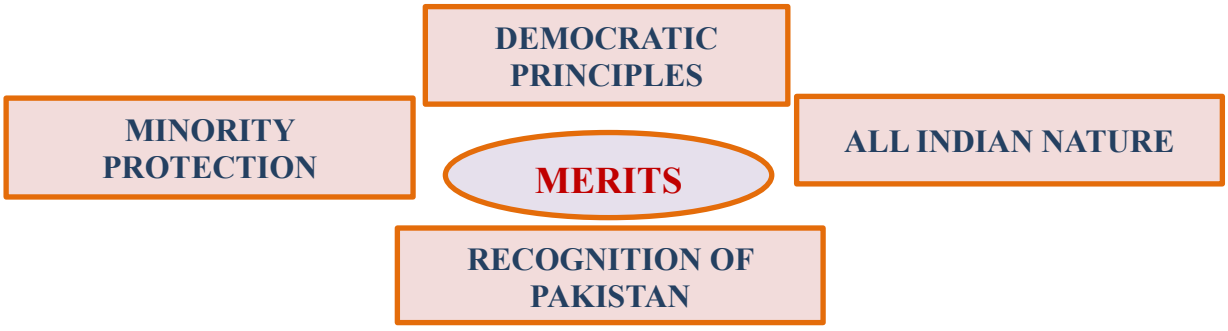
- The Union should have an Executive and a Legislature constituted from British Indian and States' representatives.
- All subjects other than the Union and Residuary should vested in the Provinces.
- To allot to each province a total number of seats proportional to its population, roughly in the ratio of one to a million.
- Representation by adult suffrage.

INTERIM GOVERNMENT

- The interim government of India was formed on September 2, 1946 from the newly elected Constituent Assembly.
- The members of the interim government also include the Viceroy and Commander-in-Chief of Britain

MEMBERS OF INTERIM GOVERNMENT

Viceroy and Governor-General of India: The Viscount Wavell
Commander-in-Chief: Sir Claude Auchinleck (Britain)
Vice President of the Executive Council: Jawaharlal Nehru (INC)
Home Affairs, Information and Broadcasting: Vallabhbhai Patel (INC)
Agriculture and Food: Rajendra Prasad (INC)
Commerce: Ibrahim Ismail Chundrigar (All-India Muslim League)
Education and Arts: C. Rajagopalachari (INC)
Defence: Baldev Singh (INC)
Finance: Liquat Ali Khan (All-India Muslim league)
Health: Ghazanfar Ali Khan (All-India Muslim League)
Industries and Supplies: C. Rajagopalachari (INC)
Labour: Jagjivan Ram (INC)
Law: Jogendra Nath Mandal (All-India Muslim League)
Posts and Air: Abdur Rab Nishtar (All-India Muslim League)
Railways and Communications: Asaf Ali (INC)
Work, Mines and Power: C.H. Bhabha (INC)



DEMERIT

- ✓ Groupings of provinces on the basis of Hindu-Muslim majority.
- ✓ Defective Method of Drafting Constitutions
- ✓ Other Minorities were ignored.
- ✓ Jinnah geared to agitate for Pakistan and urged (Direct Action day on 16 August 1946).
- ✓ Sikhs rejected the scheme

Gandhi ji said, The mission had brought something of which they had every reason to be proud.

CONSTITUENT ASSEMBLY

BACKGROUND

- Mahatma Gandhi had indicated in 1922 that constitution of India would be drafted by the Indians.
- Annie Besant called the meeting of the members of central legislative council to discuss about framing the constitution of India.
- National Demand resolution was introduced by Motilal Nehru on 8 February 1924.
- M N Roy proposed the idea of a constituent assembly in 1934.
- The Congress Party put the official demand of constituent assembly in 1936 in Lucknow session.
- The British accepted the demand of constituent assembly in the August Offer.

COMPOSITION

- Chosen by indirect election by the members of the Provincial Legislative Assemblies.
  - ✓ 292 members were elected through the Provincial Legislative Assemblies.
  - ✓ 93 members represented the Indian Princely States.
  - ✓ 4 members represented the Chief Commissioners' Provinces.
  - ✓ Initially, the number of members was 389.
  - ✓ After partition, the number came down to 299.
    - ➢ 229 were from the British provinces and 70 were nominated from the princely states.

FACTS

- On December 9, 1946, Dr. Sachchidananda Sinha was elected as the first temporary chairman.
- On December 11, 1946, Dr. Rajendra Prasad was elected as the President.

- Harendra Coomar Mookerjee was elected as the Vice President.
- BN Rau was elected as the constitutional advisor.
- On December 13,1946, Jawaharlal Nehru moved the 'Objective Resolution'.
  - ✓ This resolution was unanimously adopted on 22 January 1947 and it became the Preamble.
- On August 29, 1947, the Constituent Assembly set up a Drafting Committee.

Chairman – Dr. BR Ambedkar

Members:

N Gopalaswamy Ayyangar Mohammed Saadullah

Alladi Krishna swami Ayyar KM Munshi

BL Mittar substituted by N Madhava Rao following his resignation on health issues

Dr. DP Khaitan (died in 1948 and was substituted by TT Krishnamachari)

- On February 21, 1948, the Draft of the Constitution was presented.
  - ✓ First Reading was held between Nov 4, 1948 – Nov 9, 1948.
  - ✓ Second Reading was held between Nov 15, 1948 – Oct 17, 1949.
  - ✓ Third Reading was held between Nov 14, 1949 – Nov 26, 1949.
- The Constituent Assembly met for a total number of 165 days between 1946 and 1950.
- The Constituent Assembly discussed the text of the Constitution for 101 days.
- Approximately 36 lakh words were spoken during Assembly debates.
- 15 women were a part of the Constituent Assembly, of which 10 participated in debates.
  - ✓ G. Durgabai, Begum Aizaz Rasul, Renuka Ray, Purnima Banerji, Dakshayani Velayudhan, Annie Mascarene, Sarojini Naidu, Hansa Mehta, Vijayalakshmi Pandit, Ammu Swaminathan
  - ✓ Hansa Mehta and Renuka Ray participated in debates on justice for women in India.
  - ✓ G. Durgabai spoke extensively on the judiciary during the debates.
- The time is taken by the assembly - 2 years, 11 months and 18 days.
- Money spent in framing the constitution: was Rs.64 lakhs.
- The Constituent Assembly adopted the national flag on July 22, 1947.
- The Constituent Assembly ratified India's membership of the Commonwealth in May 1949.
- The Constituent Assembly adopted the national anthem on January 24, 1950.
- The Constituent Assembly adopted the national song on January 24, 1950.
- The Constituent Assembly elected Dr. Rajendra Prasad as the first President of India on January 24, 1950.
- The members signed the Constitution of India on 24 January, 1950.

- There were total eleven sessions.

CRITICISM

- Not a representative body.
- Members were not elected by adult franchise.
- Not a sovereign body.
- Dominated by the Congress Party.
- Language was complicated.

❖ According to Gandhi ji , Constituent Assembly is the real mirror of the Indian brain.

❖ According to Gandhi ji , Constituent Assembly would remove the communal unrest.

Constituent Assembly is the real mirror of the Indian brain.

Communal harmony and mutual brotherhood is the basic concept of Indian culture. By reaching the last phase of the freedom movement, this concept started taking its original form. The demand of Muslim League for seprate nation and Hindu Muslim riots distracted Gandhiji. Gandhiji accepted Cabinet Mission with pleasure and said that Constituent Assembly would protect the basic concepts of Indian culture and would be organized in such a way that it would reflect the whole of India.

For Gandhi, a Constituent Assembly would not just produce a Constitution indigenous to the country and truly and fully representing the will of the people, but would also solve the communal problem. All communities would be represented in the Assembly in their exact proportion. Therefore the Constituent Assembly was also known as Mini-India because it represented all the major religions and sections of Indian society.

The Constituent Assembly recognised that unless safeguards were created, minorities would never be able to gain parity with the majority and basic features of the Constitution and its commitment to a plural and democratic polity would remain mere lip-service.

Gandhi seemed convinced that the setting up of a Constituent Assembly was the only way out and urged Indian leaders to work towards this goal and steer the freedom movement in this direction.

STATE	NO. OF MEMBERS
Madras	49
Bombay	21
West Bengal	19
United Provinces	55
East Punjab	12
Bihar	36
C.P. and Berar	17
Assam	8
Orissa	9
Delhi	1
Ajmer-Merwara	1
Coorg	1

INDIAN STATES-70

MAX – Mysore(7) –Travancore(6)

NAME OF THE COMMITTEE	CHAIRMAN
Committee on the Rules of Procedure	Rajendra Prasad
Steering Committee	Rajendra Prasad
Finance and Staff Committee	Rajendra Prasad
Ad hoc Committee on National Flag	Rajendra Prasad
House Committee	B. Pattabhi Sitaramayya
Order of Business Committee	K.M. Munsi
States Committee	Jawaharlal Nehru
Advisory Committee Fundamental Rights, Minorities and Tribal and Excluded Areas	Vallabhbhai Patel
Minorities Sub-Committee	H.C. Mookherjee
Fundamental Rights Sub-Committee	J.B. Kripalani
Union Powers Committee	Jawaharlal Nehru
Union Constitution Committee	Jawaharlal Nehru

SIGMA ACADEMY

SOURCES

&

FEATURES

Dr. B.R. Ambedkar call the Indian Constitution a Bag of Borrowing.

GOVERNMENT OF INDIA ACT, 1935

- FEDERAL SCHEME
- JUDICIARY
- EMERGENCY PROVISIONS
- OFFICE OF GOVERNOR
- PUBLIC SERVICE COMMISSIONS

BRITAIN

- PARLIAMENTARY GOVERNMENT
- PARLIAMENTARY PRIVILEGES
- BICAMERALISM
- CABINET SYSTEM
- SINGLE CITIZENSHIP
- LEGISLATIVE PROCEDURE
- RULE OF LAW
- PREROGATIVE WRITS

IRELAND

- DIRECTIVE PRINCIPLES OF STATE POLICY
- METHOD OF ELECTION OF THE PRESIDENT
- NOMINATION OF MEMBERS TO RAJYA SABHA

UNITED STATES OF AMERICA

- JUDICIAL REVIEW
- PREAMBLE
- REMOVAL OF JUDGES
- IMPEACHMENT OF THE PRESIDENT
- INDEPENDENT JUDICIARY
- FUNCTIONS OF PRESIDENT & VICE-PRESIDENT

CANADA

- APPOINTMENT OF STATE GOVERNORS BY THE CENTRE
- ADVISORY JURISDICTION OF THE SUPREME COURT
- FEDERATION WITH A STRONG CENTRE
- RESIDUARY POWERS

AUSTRALIA

- COMMERCE AND INTERCOURSE
- CONCURRENT LIST
- JOINT SITTING OF THE TWO HOUSES

RUSSIA

- THE IDEAL OF JUSTICE
- FUNDAMENTAL DUTIES

FRANCE

- REPUBLIC
- EQUALITY
- LIBERTY
- FRATERNITY

WEIMAR CONSTITUTION OF GERMANY

- SUSPENSION OF FUNDAMENTAL RIGHTS DURING EMERGENCY

SOUTH AFRICA

- PROCEDURE FOR AMENDMENT
- ELECTION OF MEMBERS OF RAJYA SABHA

JAPAN

- PROCEDURE ESTABLISHED BY LAW

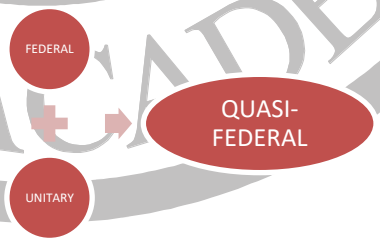
FEATURES

- Drawn from different sources
- World's Longest Constitution
- Written Constitution
- More Flexible than Rigid
- Union of States
- Federal System with Unitary Bias
- Parliamentary Form of Government
- Fundamental Rights and Constitutional Remedies
- Fundamental Duties
- Directive Principles of State Policy

- Independent Judiciary
- Universal Adult Suffrage
- Rule of Law
- Single Citizenship
- Emergency Provisions
- Social Equality
- Special Provisions relating to Scheduled Castes and Scheduled Tribes
- Secular State
- Special Provisions for Minorities
- Official Languages

QUASI-FEDERAL NATURE OF INDIAN CONSTITUTION

"The Indian federation is an example of co-operative federalism. India has created a strong central government; it has not made the state government weak". - Granville Austin

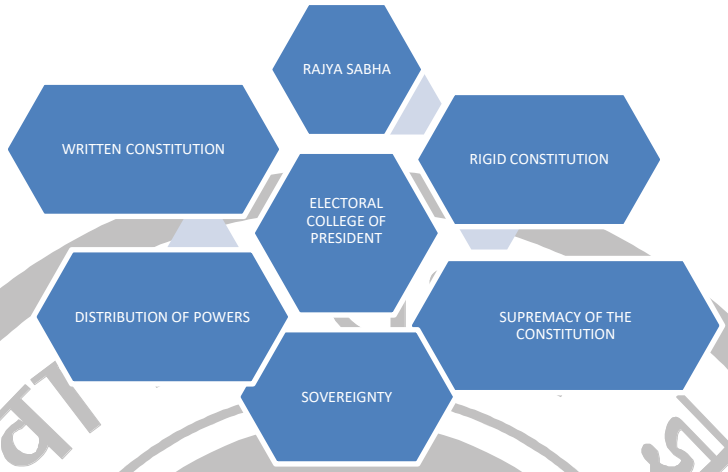


FEDERAL

K.C. Wheare defines federal government as, an association of states, which has been formed for certain common purposes, but in which the member states retain a large measure of their original independence.

A federal Constitution envisages a demarcation of governmental functions and powers between the Centre and the regions by the sanction of the Constitution, which is a written document.

- A written constitution is mandatory.
  - ⇒ Federal system cannot exist without a written constitution.
  - ⇒ UK does not have a written constitution and so it is not a federal country.



.Rigidity in amendment is a distinctive feature of a federal constitution.

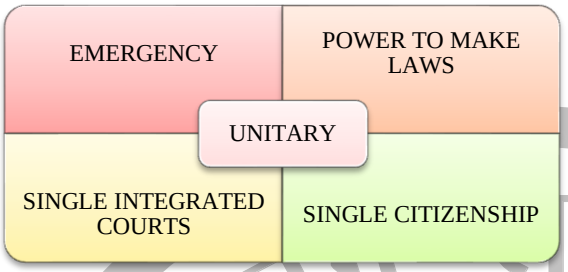
- ⇒ It cannot be amended by the national legislature unilaterally without the participation of the states.
- ⇒ In United States, which is a perfect example of classical federalism, no part of the constitution can be amended without the ratification of at least 3/4th of the individual States.
- ⇒ Supreme court held in Kihoto Hollohan vs Zachilhu & Ors that Doctrine of Severability must be applied.

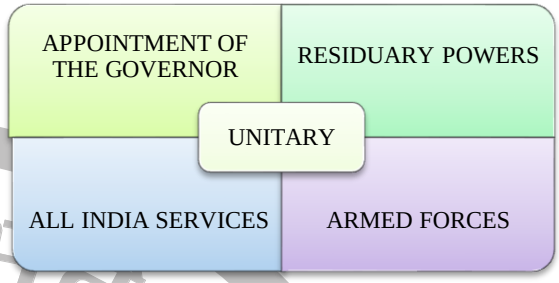
- Constitution is suprema lex (supreme law of land) in India.
  - ⇒ Every type of power (legislative, administrative or judicial), irrespective of it being at the centre or the state level is controlled by the Constitution.
  - ⇒ Article 13(2) states that the State shall not make any law which takes away or abridges any of the rights guaranteed under Part III of the Constitution.
  - ⇒ All laws enacted both at the Centre and the State level ought to be in line with the Constitutiona scheme.
  - ⇒ Doctrine of Severability.
- The pivotal point of a federal constitution is division of powers between the centre and the states.
  - ⇒ Under the constitution, there is a three-fold distribution of legislative powers between the Union and the states, made by the three Lists in the seventh schedule of the constitution.
- Both the centre and the state governments derive their powers from the constitution.
  - ⇒ The sovereign power rests with the body that can amend the constitution.
- The members of Rajya Sabha are elected by the members of state assembly.

UNITARY

A unitary state is a sovereign state governed as one single unit in which the central government is supreme and any administrative divisions (sub national units) exercise only powers that the central government chooses to delegate.

The Constitution provides Central Government with supreme powers and concentrates administrative and financial powers completely in its hands.





- Article 1 which provides that India i.e. Bharat, shall be a Union of States.
  - ⇒ The word 'Federation' is nowhere to been mentioned in the Constitution.
- Article 2 and 3 of the Constitution, give the power to the Parliament to redraw the political map of India; to create and abolish the states, change the boundaries of the States or even change their names and this can be achieved by simple legislation by way of simple majority in the Parliament and the Constitution only provides for consultation by the Centre of the concerned State.
- Central government is duty bound under Article 355 to ensure that there is no failure of constitutional machinery in the State and the states are protected from internal disturbance and external aggression and war.
- The Central government has power under Article 356 to impose Presidential rule and it is the duty of the governor who has to make a report to the Centre about the failure of constitutional machinery of the State for political or any other reasons.
- Appointment of the Governors of various States is done by the Centre. Governor is the constitutional head of the State and at the same time he is also the representative of the Centre.
- Governor unlike President enjoys some discretionary powers.
  - ⇒ Governor can withhold a bill for the consideration of the President.
  - ⇒ The Sarkaria Commission made certain recommendations regarding the Governors.
  - ⇒ In Rameshwar Prasad v Union of India, popularly known as Bihar Assembly Dissolution Case where SC raised questions as to the impartiality of the Governor.
  - ⇒ In B.P. Singhal v Union of India, SC held that a Governor cannot be removed by the Central government on the grounds that he is not in sync with the policies of the Central government or the ideology of ruling party.
- Appointment on Key Positions such as the Chief Election Commissioner, the Comptroller and Auditor General are made by the Union Government and All India Services such as IAS and IPS have been created which are kept under the control of the Union.

- Only the Centre has the power to impose emergency under Articles 352, 356 and 360. Emergency under Article 352 can be imposed only when the nation is threatened by external aggression or armed rebellion.
  - ⇒ The Supreme Court held in S.R. Bommai case laid down guidelines for the implementation of Article 356.
- Article 249 gives the Parliament the power to make laws under the State list. Such law can also be legislated at a special request of a group of states. Also during President's Rule in a state all the bills pending in the dissolved and the State
- Indians have only one citizenship unlike the citizens of the United States of America. The Armed Forces can be deployed in the States at the Centre's will without the consultation of the State Government.
  - ⇒ AFSPA – Armed Forces Special Powers Act.
- Residuary Powers (Article 248) allows the Centre to make laws on subjects not mentioned in List II This is enjoyed by the Centre only.
- In India we have Unified Judiciary with the Supreme Court at the apex as opposed to the federal system having a dual system of courts.
  - ⇒ The Supreme Court occupies the highest place in our unitary judicial system.
- Representation in the Legislature, which is equal in case of a true federation such as United States, is not applicable in case of Indian States.
  - ⇒ Representation of States in Rajya Sabha is not equal.

CONCLUSION

- The Supreme Court held in Kuldip Nair v Union of India that a particular kind of federalism or a US type of model may not be part of the basic structure of Indian Constitution.
  - ⇒ The Indian Federalism is unique in nature and is tailored according to the specific needs of the country.
  - ⇒ Federalism is a basic feature of the Constitution of India in which the Union of India is permanent and indestructible.
- According to KC Wheare, in practice, the Constitution of India is quasi-federal in nature and not strictly federal.
- In S.R. Bommai v Union of India, Justice Ahmadi opined that the essence of federation is the existence of distribution of power between the Union and the States.
  - ⇒ It can help us conclude that the Constitution of India is more 'quasi federal' than 'federal' or 'unitary'.
- Former Chief Justice Beg, called the Constitution of India as 'amphibian'.
- The Supreme Court held in Shamsher Singh v. State of Punjab, that the constitution was 'more unitary than federal.

THE

PREAMBLE

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a

SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure

to all its citizens:

JUSTICE, social, economic and political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity;

and to promote among them all

FRATERNITY assuring the dignity of the individual and the unity and integrity of

the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do

HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION

HISTORY

⇒ The Preamble to the Indian constitution is based on "Objective Resolution" of Nehru. Jawaharlal Nehru introduced an objective resolution on December 13, 1946, and it was adopted by Constituent assembly on 22 January 1947.

⇒ The drafting committee felt that the Preamble should be restricted to defining the essential features of the new state and its basic socio-political objectives.

⇒ The committee adopted the expression Sovereign Democratic Republic in place of Sovereign Independent Republic as used in the Objective Resolution,.

⇒ The committee added the word Fraternity which was not present in the Objective Resolution.

⇒ The committee tried to embody in the Preamble the spirit and as far as possible, the language of Objective Resolution.

⇒ The Preamble was drafted by B. N. Rau in his memorandum of May 30, 1947.

⇒ The preamble page, along with other pages of the original Constitution of India, was designed and decorated solely by renowned painter Beohar Rammanohar Sinha of Jabalpur.

PART OF THE CONSTITUTION

BERUBERI CASE

⇒ The Preamble is a key to open the mind of the makers but nevertheless the Preamble is not a part of the Constitution.

KESAVANANDA BHARATI CASE

⇒ The Preamble is a part of the Constitution and, therefore, is amendable under Article 368.

UNION GOVERNMENT V. LIC OF INDIA

⇒ The Preamble is an integral part of the Constitution.

AMENDMENT

⇒ After Kesavananda Bharati v. State of Kerala, 1973 verdict. Socialist, Secular, and Integrity were added to the preamble by the 42nd Amendment Act, 1976.

AIMS & ASPIRATIONS

A Preamble is a declaration made by the legislature of the reasons for the passage of the statute and is helpful in the interpretation of any ambiguities within the statute to which it is prefixed.

⇒ Chief Justice Subba Rao in Golak Nath v. State of Punjab had held that "The preamble to an Act sets out the main objectives which the legislation is intended to achieve".

⇒ According to K.M.Munshi , Preamble is the key of the Constitution.

⇒ According to A.Barker, Preamble is the key words of his book.

Preamble is the soul of the Constitution, Justice Hidayatulla

The silent features of the Constitution have advanced directly and by implication from these objectives which flow from the Preamble. Preamble as such is broadly acknowledged as the core or soul and spirit of

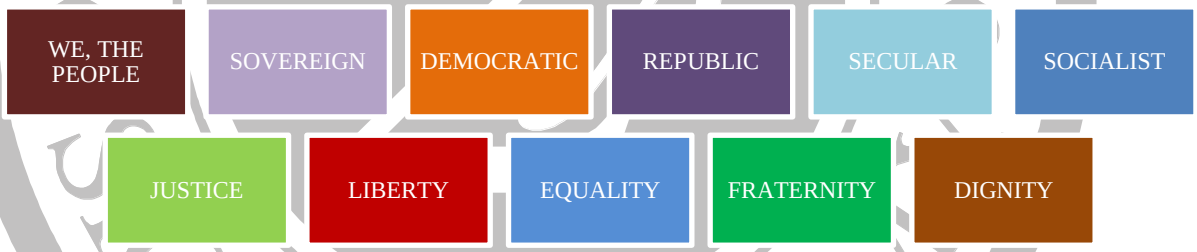
the constitution. Supreme Court held in Minerva Mills case that it is special because the edifice of our Constitution is built upon the concepts crystallised in the Preamble.

It is not a mere solemn resolution, it is something more than a resolution. It is declaration, it is a firm resolve, it is a pledge and an understanding. It is not a spirit of narrow legal wording but a majestic expression of constitutional morality, constitutional polity and constitutional culture.

- ⇒ It records the points and desires of the individuals of India which have been converted into the different provisions of the constitution. It declares India to be a Sovereign Socialist Secular Democratic Republic committed to Justice, Equality and Liberty for the people.
- ⇒ The Preamble does not grant substantive rights and is not enforceable in the courts, but various Indian courts have engaged with the Preamble and have treated it as guiding light in the interpretation of the Constitution.
- ⇒ The opening and last sentences of the Preamble: "We, the people…adopt enact and give to ourselves this Constitution" signifies the power that is vested in the hands of the people.

Chief justice Subbarao stated that the Preamble to an act sets out the primary objective with the enactment is proposed to accomplish. Supreme Court held in Smt. Indira Gandhi case that Preamble is the source of any basic feature of the Constitution of India thus ensuring that it is revered, honoured and admired widely by people and Governments at large.

KEY WORDS



WE, THE PEOPLE OF INDIA

- ⇒ Declares in unambiguous terms that the Constitution has been adopted, enacted and given to themselves by the people of India.
- ⇒ It emphasizes the sovereignty of the people.
- ⇒ It is the people of India who are the authors of the constitution.
- ⇒ Jawahar Lal Nehru in the constituent assembly stated that the word 'People' indicated that the constitution was not created by the States, nor by the people of the several States but by the people of India.
- ⇒ We, the people if India means in other words, we, the citizens of India, whether voters or non-voters.
- ⇒ It also emphasizes the concept of popular sovereignty as laid down by Rousseau.

- ✓ All the power emanates from the people and the political system will be accountable and responsible to the people.

SOVEREIGN

⇒ Sovereignty denotes supreme and ultimate power.

⇒ Sovereignty means the independent authority of a state.

⇒ Sovereign is a reflection of the spirit of independence attained after centuries of subordination to foreign rule.

⇒ In the republican form of governments sovereignty is vested to the elected representatives of the people.

⇒ According to D.D Basu, the word 'sovereign' is taken from Article 5 of the constitution of Ireland.

⇒ The external sovereignty of India means that it can acquire foreign territory and also cede any part of the Indian territory, subject to limitations(if any) imposed by the constitution.

⇒ Internal sovereignty relates to internal and domestic affairs and is divided into four organs, namely, the executive, the legislature, the judiciary and the administrative.

COMMONWEALTH OF NATIONS ISSUE

Pandit Nehru declared that India will continue –

"her full membership of the Commonwealth of Nations and her acceptance of the King as the symbol of the free association of the independent nations and as such the Head of the Commonwealth".

Her membership of the Commonwealth of Nations and that of the United Nations Organization do not affect her sovereignty to any extent. It is merely a voluntary association of India and it is open to India to cut off this association at her will, and that it has no constitutional significance

SOCIALIST

⇒ Added by the Constitution (42nd Amendment) Act, 1976.

⇒ Swarn Singh explained that by the word 'socialism' nothing more was meant than what was explained at the Awadi session of Congress, which is short aimed at a 'mixed economy'.

⇒ Means a political-economic system which advocates the state's ownership of the means of production, distribution, and exchange.

⇒ According to Professor M.C Jain, socialism has interspersed in the provision of the constitution remarks that preambular reference was intended ushering in a socio-economic revolution.

⇒ Signifies that the ownership & control of the material resources of the community are distributed as best to subserve the common good & decentralization of material resources of wealth.

⇒ P.M Bakshi understands socialism in the context of social justice.

⇒ The Supreme court held in D.S Nakara v. Union of India that

- ✓ "The basic framework of socialism is to provide a decent standard of life to the working people and especially provide security from cradle to grave."

⇒ The Supreme court held in Samatha v. State of Andhra Pradesh that

✓ The word Socialist used in the Preamble must be read from the goals, Article 14, 15, 16, 17, 21, 23, 38, 39, 46 and all other cognate Articles sought to establish, i.e. to reduce inequalities in income and status and to provide equality of opportunities and facilities.

⇒ D.D. Basu regards that the Supreme Court has gone a step further toward social justice.

⇒ It does not mean total exclusion of private enterprise and complete state ownership of material resources of the nation.

SECULAR

⇒ The word secular was dropped from the preamble but the Indian constitution has always been secular.

⇒ Added by the Constitution (42nd Amendment) Act, 1976.

⇒ The word secular traces its origin from West in the context of the Christian religion.

⇒ In Indian context , the state does not recognize any religion as a state religion and that it treats all religions equally.

⇒ The Supreme court held in S.R.Bommai case that secularism forms the basic structure of the Indian Constitution.

⇒ The Supreme court held in Aruna Roy v. Union of India that secularism has a positive meaning that is developing, understanding and respect towards different religions.

⇒ The Supreme court held in I.R Coelho v. State of Tamil Nadu that secularism is a matter of conclusion to be drawn from various Articles conferring Fundamental Rights.

⇒ When India is said to be a secular State, it does not mean that that we exalt irreligion.

⇒ Article 27 describes the nature of Indian secularism.

✓ Article 27 provides that no person shall be compelled to pay any taxes, the proceeds whereof are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination.

⇒ The Supreme Court held the view that a religious institution has freedom to manage its own affairs in matters of religion.

⇒ In the DPSP, the Articles of 38, 39, 39A, 41 & 46 based on the doctrine of Parens Patriae, promote secularism in all of its form.

⇒ It was the cornerstone of an egalitarian and forward-looking society which our constitution endeavored to establish.

DEMOCRATIC

⇒ The term Democracy is derived from the Greek words DEMOS which means people and KRATOS which means authority.

⇒ Lincoln defined democracy as: Government of the people, by the people, for the people.

⇒ The Supreme court held in Mohan Lal v. District Magistrate, Rai Bareilly case that Democracy is a concept, a political philosophy, an ideal practiced by many nations culturally advanced and politically mature by resorting to governance by representatives of the people elected directly or indirectly.

⇒ Democracy may be a direct or indirect democracy.

- ✓ In a direct democracy, every people exercise the power of the government, like Switzerland.
- ✓ In an indirect democracy, the people elect their representatives who carry on the administration of the government directly like India.

REPUBLIC

⇒ According to Montesquieu, a republican government is that in which a body, or only a part of people, is possessed of the supreme power.

⇒ A republic means a form of government in which the head of the state is an elected(direct or indirect) person and not a heredity monarch.

⇒ The Constitution of India is adopted and given to themselves by the People.

⇒ In India, the ultimate power resides in the body of the people exercised via universal adult suffrage.

⇒ The president of India who is the executive head of the state is elected by the people (indirectly).

JUSTICE

Social, Economic and Political

⇒ Justice is considered to be the primary goal of a welfare state and its very existence rests on the parameters of justice.

⇒ Social justice means the abolition of all sorts of inequities.

⇒ To achieve the ideal of social justice, the directives principle for the state policy lays down in Part IV of the constitution.

⇒ The Supreme court held in Air India Statutory Corporation v. United labour Union case that the aim of social justice was to attain a substantial degree of social, economic and political equality which was the legitimate expectation and constitutional goal.

⇒ The economic justice means equal pay for equal work, that every person should get his just dues for his labor irrespective of his caste, sex or social status.

⇒ Political justice means the absence of any unreasonable or arbitrary distinction among men in political matters.

LIBERTY

Liberty Of Thought, Expression, Belief, Faith and Worship

⇒ Liberty is Essential to the development of the individuals and the nation.

⇒ Liberty is the power of doing what is allowed by law.

⇒ Liberty does not mean mere absence of restraint of domination.

⇒ It is not abstract or absolute freedom.

⇒ It is regulated freedom.

⇒ Liberty is confined and controlled by law, whether common law or statute.

⇒ Part III of the constitution(Article-19,21,25 to28) is related to Liberty.

⇒ The Supreme court held in Kartar Singh case that in order, to sustain democracy, liberty is not to degenerate into license.

EQUALITY

⇒ Rights carry no meaning if they cannot be enjoyed equally by all members of the community.

⇒ Equality of status and opportunity is secured to the people of India by abolishing all distinctions and discriminations by the state between citizen.

⇒ Article 15,16,17,18 are related to equality.

⇒ The principle of equality of law means not the same law should apply to everyone, but that a law should deal alike with all in one class.

⇒ Equality of treatment under equal circumstances.

FRATERNITY

⇒ Fraternity means the spirit of brotherhood, a feeling that all people are children of the same soil, the same motherland.

⇒ A democratic system will function in a healthy manner only if there is a spirit of brotherhood, oneness among the people of the land.

⇒ The fraternity is not possible unless the dignity of each individual is preserved and mutually respected.

⇒ The Supreme Court held that fraternity means a sense of common brotherhood of all Indians.

DIGNITY

⇒ Dignity of the individuals is to be maintained for the promotion of fraternity.

⇒ The preamble assures the dignity of each and every individual by securing to each individual equal fundamental rights and by laying down a number of directives for the state.

⇒ The Supreme Court has read the preamble with article 21 to come to the conclusion that the right to dignity is a fundamental right.

THE UNION

&

IT'S TEROTORY

1. (1) India, that is Bharat, shall be a Union of States.

(2) The States and the territories thereof shall be as specified in the First Schedule.

(3) The territory of India shall comprise—

(a) the territories of the States;

(b) the Union territories specified in the First Schedule; and

(c) such other territories as may be acquired.

2. Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit.

2A. Sikkim to be associated with the Union. Rep. by the Constitution (Thirty-sixth Amendment) Act, 1975, s. 5 (w.e.f. 26-4-1975).

3. Parliament may by law—

(a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;

(b) increase the area of any State;

(c) diminish the area of any State;

(d) alter the boundaries of any State;

(e) alter the name of any State:

Provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the area, boundaries or name of any of the States , the Bill has been referred by the President to the Legislature of that State for expressing its views thereon within such period as may be specified in the reference or within such further period as the President may allow and the period so specified or allowed has expired.

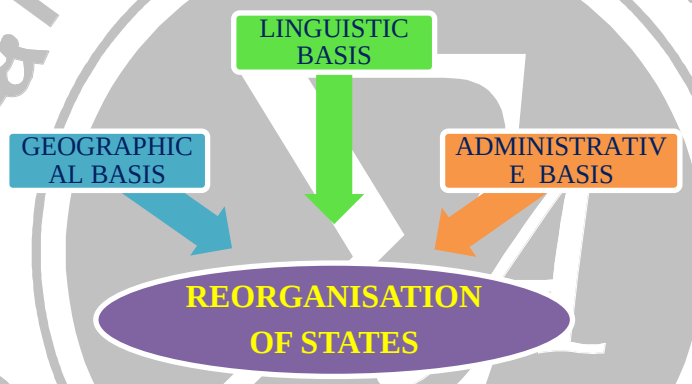
4. (1) Any law referred to in article 2 or article 3 shall contain such provisions for the amendment of the First Schedule and the Fourth Schedule as may be necessary to give effect to the provisions of the law and

may also contain such supplemental, incidental and consequential provisions (including provisions as to representation in Parliament and in the Legislature or Legislatures of the State or States affected by such law) as Parliament may
deem necessary.

(2) No such law as aforesaid shall be deemed to be an amendment of this Constitution for the purposes of article 368.

The 100th Amendment of the Indian Constitution passed in 2015, established the exchange of some territories between Bangladesh and India. It approved the 1974 Land Boundary Agreement (and its 2011 protocol), which resulted in the exchange of enclaves and the retention of property.

Thereby, the 2015 LBA addresses the unsettled issues stemming from the approximately 6.1-kilometre-long land boundary in three sectors: Daikhata-56 (West Bengal), Muhuri River–Belonia (Tripura), and Lathitila–Dumabari (Assam); exchange of enclaves; and adverse possessions, which were first acknowledged in the 2011 Protocol.



DHAR COMMISSION

⇒ Setup in 1948.

⇒ S K Dhar was a judge of the Allahabad High Court.

⇒ The members were Jagat Narain, Panna Lai and B.C. Bannerji,

⇒ Rejected the demand of political organization of the country along linguistic lines that it would do immense harm to national unity.

⇒ The commission gave more importance to historical, geographical and economic considerations.

⇒ The commission favoured reorganization on the basis of –

- ✓ Geographical contiguity and absence of pockets and corridors.
- ✓ Financial self-sufficiency.
- ✓ Administrative convenience.
- ✓ Capacity for future development.

JVP COMMITTEE

⇒ Setup in December, 1948.

⇒ Jawaharlal Nehru, Vallabh bhai Patel and Pattabhi Sitaramayya were the members.

⇒ The committee dismissed the idea of reorganization on a linguistic basis.

⇒ Nehru said that cultural, geographic and economic factors as well as language must be taken into account.

Wanchoo Commission, and Justice L.S. Misra Commission were related to the formation of the Andhra State.

⇒ The first linguistic state of Andhra Pradesh was createdon October 1, 1953 with its capital at Kurnool.

FAZL ALI COMMISSION

⇒ Setup on December 22, 1953.

⇒ Fazl Ali was the chairperson and two members were K M Panikkar and HN Kunzru.

⇒ It recommended the reorganization of the whole country into sixteen states and three centrally administered areas.

⇒ States Reorganization Act 1956 was passed.

⇒ It divided the country into 14 states and 6 union territories.

✓ STATES - Andhra Pradesh, Assam, Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh and West Bengal.

✓ UNION TERRITORIES - Andaman and Nicobar Islands, Delhi, Himachal Pradesh, Laccadive, Minicoy and Amindivi Islands, Manipur and Tripura.

❖ In 1960 Maharashtra and Gujarat were created by bifurcating the state of Bombay.

❖ In 1963, the state of Nagaland was formed.

❖ In 1966, the Parliament passed the Punjab Reorganization Act on the recommendation of the Shah Commission.

❖ Punjab and Haryana states were formed.

❖ Chandigarh was made a Union Territory.

❖ In 1969, the state of Meghalaya was created out of the state of Assam.

❖ In 1971, the Union Territories of Himachal Pradesh, Tripura and Manipur was given status of a full-fledged state states.

❖ In 1975, Sikkim was admitted as a state of the Indian Union and made a full-fledged state.

❖ In 1987 Mizoram became the 23rd state.

❖ In February 1987 Arunachal Pradesh became the 24th state.

❖ In May 1987 Goa became the 25th state.

❖ Chhattisgarh, Jharkhand and Uttarakhand were created in November 2000.

❖ Sri Krishna Committee report was related to formation of Telangana.

❖ Telangana was officially formed on 2 June 2014.

- The Jammu and Kashmir Reorganisation Act, 2019 divided the state into two separate UTs; one is Union Territory of Jammu and Kashmir with legislative assembly and the other is Union Territory of Ladakh without Legislative Assembly.
- The Dadra and Nagar Haveli and Daman and Diu (Merger of Union Territories) Bill, 2019 made them single Union Territory.

REORGANIZATION OF INDIA ON LINGUISTIC BASIS

⇒ The demand for linguistic states was emerged for the first time in 1874 when Sylhet was transferred from Bengal to Assam.

⇒ Bal Gangadhar Tilak was the first leader to support the idea of linguistic basis.

⇒ Deshbandhu C, R. Das declared in 1922 that provinces should be demarcated on the linguistic basis.

⇒ Simon Commission supported linguistic redistribution of the provinces.

⇒ Madras session(1927) of All India Csongress Committee supported linguistic redistribution of the provinces.

⇒ After Government of India Act 1935, the provinces of Orissa and Sind were created in 1936 on linguistic basis.

⇒ Pattabhi Sitaramayya raised the demand of creation of states on linguistic basis.

Gandhi said, Linguistic redistribution should not militate against the organic unity of India. Autonomy does not and should not mean disruption.

B. R. Ambedkar said, The formation of linguistic states, although essential, cannot be decided by any sort of hooliganism. Nor it must be solved in a manner that will serve party interest. It must be solved by cold blooded reasoning.

MERITS

⇒ The vernacular languages could flourish.

⇒ Ensure larger participation of the local people.

⇒ Decision to form linguistic states helped to tackle volatile situation.

DEMERITS

⇒ Encouraged a feeling of regionalism.

⇒ Hindered economic cooperation

If the political leaders of our country had turned a blind eye to the demand of language groups for separate states, we might have had "one language, but 14 or 15 nations.

The demand for linguistic states was emerged for the first time in 1874 when Sylhet was transferred from Bengal to Assam. Bal Gangadhar Tilak was the first leader to support the idea of linguistic basis. At the time of independence the grouping of states was done on the basis

of political and historical considerations rather than on linguistic. In 1953, the government was forced to create a separate state of Andhra Pradesh for Telugu-speaking people.

K M Munshi opposed the linguistic reorganisation proposal saying that the political ambition of a linguistic group can only be satisfied by the exclusion and discrimination of other linguistic group within the area.

- It strengthened political narrative of certain sections that allowed them to propagate regionalism, linguistic chauvinism and Sons of the soil doctrine.
- Linguistic minorities have been considered alien and their rights are being suppressed.
- Small language and ethnic groups of North East India will also demand for separate States without having economic resources which threat to India's integrity.

As Krishna Menon rightly said, We will Balkanize India if we further dismember the state instead of creating large units.

Therefore Sarkaria commission recommended to create the states on the basis of Administrative units and ban on Political parties and other organisations trying to promote Linguism.

SIGMA ACADEMY

CITIZENSHIP

PART II - Article 5 to 11

1. Every person who has domicile in the territory of India and **(ARTICLE 5)**

Who was born in the territory of India; **or** either of whose parents was born in the territory of India; **or** who has been ordinarily resident in the territory of India for not less than five years immediately preceding such commencement; shall be a citizen of India.

2. Persons who migrated to India from Pakistan before 19 July, 1948 and since then have been ordinarily residing in India. **(ARTICLE 6)**

3. Persons who migrate to India from Pakistan on or after 19 July, 1948 but got themselves, duly registered as citizen with a competent officer.

4. Persons who migrated to Pakistan after 1st March, 1947 but returned to India under a permit for resettlement. **(ARTICLE 7)**

5. Any person who or either of whose parents or any of whose grandparents was born in India.

6. Rights of citizenship of certain persons of Indian origin residing outside India. **(ARTICLE 8)**

7. Parliament to regulate the right of citizenship by law. **(ARTICLE 11)**

ACQUISITION OF INDIAN CITIZENSHIPTHE CITIZENSHIP ACT 1955

BY BIRTH

Any person born in India, on or after 26th January 1950 but prior to the commencement of the 1986 Act on 1st July 1987, is a citizen of India if either of his parent was a citizen of India at the time of the birth.

- Further, those born in India on or after 3rd December 2004 are considered citizens of India only if both their parents are citizens of India or if one parent is a citizen of India and the other not an illegal migrant at the time of their birth.

BY DESCENT

Person born outside India on or after 26th January 1950 but before 10th December 1992 are citizen of India by descent if their father was a citizen of India at the time of their birth.

Persons born outside India on or after 10th December 1992 are considered as citizen of India if either of their parents is a citizen of India at the time of their birth.

- From 3rd December 2004 onwards, person born outside India shall not be considered citizens of India unless their birth is registered at an Indian consulate within one year with the permission of the central government.

BY REGISTRATION

Any person, who is not a citizen by virtue of the Constitution or the provisions of the Citizenship Act and belongs to any of the following categories, can apply for registration as a citizen.

However, he must have resided in India for at least seven years immediately before making an application for registration as a citizen.

- A person of India origin who is ordinarily in India for seven years before making application for registration. (throughout the period of twelve months immediately before making application and for six years in the aggregate in the eight years preceding the twelve months).

A person of Indian origin who is ordinarily resident in any country or place outside undivided Indian;

- A person who is married to a citizen of India and is ordinarily resident in India for seven years before making an application for registration;
- Minor children of persons who are citizens of India;
- A person of full age and capacity whose parents are registered as citizen of India.
- A person of full age and capacity who, or either of his parents, was earlier citizen of independent India, and has been residing in India for one years immediately before making an application for registration;

BY NATURALIZATION

A foreigner, on application for naturalization to a competent authority appointed by the State, can acquire Indian citizenship provided he satisfies certain conditions like having normal resided for at least twelve years in India in a period of 14 years before making an application.

BY INCORPORATION OF TERRITORY

If any new territory becomes a part of India, the Government of India, the Government of India shall notify the persons of that territory to be citizens of India.

TERMINATION OF INDIAN CITIZENSHIP

RENUNCIATION

⇒ If any citizen of India who is also a national of another country renounces his Indian citizenship through a declaration in the prescribed manner, he ceases to be an Indian citizen. **(ARTICLE 9)**

⇒ When a male person ceases to be a citizen of India, every minor child of his also ceases to be a citizen of India. However, such a child may within one year after attaining full age become an Indian citizen by making a declaration of his intention to resume Indian citizen-ship.

TERMINATION

⇒ Indian citizenship can be terminated if a citizen knowingly or voluntarily adopts the citizenship of any foreign country.

DEPRIVATION

⇒ The government of India can deprive a person of his citizenship in some cases. But this is not applicable for all citizens.

⇒ It is applicable only in the case of citizens who have acquired the citizenship by registration, naturalisation or only by Article 5 Clause (c)

PERSON OF INDIAN ORIGIN (PIO) CARDS & OVERSEAS CITIZENSHIP OF INDIA (OCI) CARDS

- ⇒ A NON-RESIDENT INDIAN (NRI) is a citizen of India who has temporarily emigrated to another country for six months.
- ⇒ PIOs and OCI card holders are not citizens but people who want to stay connected and involved with India more closely.
- ❖ The PIO card was first implemented in 2002 as a benefit to foreign nationals who could establish at least a third generation tie to Indian origin.
- ❖ The OCI card was implemented in 2005, carried more benefits than the PIO card, and is valid for the holder's lifetime.

In 2015, the PIO scheme was withdrawn and was merged with the OCI.

BENEFITS OF PIO

- ⇒ A PIO card holder doesn't need a visa to visit India.
- ⇒ The holder also doesn't require a student or employment visa to acquire employment or academic opportunities in India.
- ⇒ The holder was exempted from registering at the foreigner regional registration office (FRRO) during the duration of stay in India.
- ⇒ The holder also enjoys parity with NRIs in concern to economic, financial and educational matters like property transfer or acquisition, holding, disposal, investment, admission of children in educational institutions under general category quota for NRIs.
- ⇒ Separate immigration counters are provided at all International airports.

ADDITIONAL BENEFITS OF OCI

- ⇒ Apart from the benefits of PIO, the OCI can attain Indian citizenship and then live in India for a period of one year including short breaks, if they remain an OCI for 5 years.
- ⇒ An OCI cards holder can open special bank accounts in India just like NRIs and make investments.
- ⇒ They can also buy non-farm property and exercise ownership rights.
- ⇒ They apply for a driver's license and PAN card.
- ⇒ They get same economic, financial and educational benefits like NRIs and they can also adopt children.

Both OCI and PIO cannot vote, hold a government job or purchase agricultural or farm land. They also cannot run for public office or travel to restricted areas without permission.

STATUS OF CAA, NRC & NPR

The Citizenship (Amendment) Act, 2019 aims

⇒ to facilitate grant of citizenship to migrants belonging to Hindu, Sikh, Buddhist, Jain, Parsi or Christian community from Pakistan, Bangladesh and Afghanistan who entered into India on or before the 31.12.2014,

⇒ and who have been exempted by the Central Government by or under clause (c) of sub-section (2) of section 3 of the Passport (Entry into India) Act, 1920 or

⇒ from the application of the provisions of the Foreigners Act, 1946 or any rule or order made thereunder.

❖ The Citizenship (Amendment) Act, 2019 has been notified on 12.12.2019 and has come into force w.e.f. 10.01.2020.

Further, Government decided to update the National Population Register (NPR) under the Citizenship Act, 1955 along with the first phase of Census, 2021.

⇒ The demographic and other particulars of each family and individual were to be updated/collected during the exercise of updation of NPR.

⇒ No document is to be collected during this exercise. However, due to outbreak of Covid-19, the updation of NPR and other related field activities have been postponed.

According to the Home Ministry, a "usual resident of the country" is one who has been residing in a local area for at least the last six months or intends to stay in a particular location for the next six months.

⇒ NPR is not a citizenship enumeration drive, as it would record even a foreign national staying in a locality for more than six months.

❖ This makes NPR different from the NRC, which includes only Indian citizens while seeking to identify and exclude non-citizens.

The NPR is being prepared under provisions of the Citizenship Act, 1955 and the Citizenship (Registration of Citizens and issue of National Identity Cards) Rules, 2003.

⇒ It is mandatory for every "usual resident of India" to register in the NPR.

❖ Only Assam will not be included (as per a notification by the Registrar General of India in August), given the recently completed NRC in that state.

NPR will be conducted in conjunction with the house-listing phase, the first phase of the Census, by the Office of Registrar General of India (RGI) for Census 2021.

⇒ It is conducted at the local, sub-district, district, state and national levels.

⇒ The RGI has already begun a pilot project in 1,200 villages and 40 towns and cities through 5,218 enumeration blocks where it is collecting various data from people.

The data for NPR was first collected in 2010 along with the house-listing phase of Census 2011. In 2015, this data was updated by conducting door-to-door surveys.

FUNDAMENTAL RIGHTS

Part III

ARTICLE – 12 TO 35

⇒ Some of rights that are recognized by the state and enshrined in the constitution are called fundamental rights.

⇒ The Fundamental Rights are defined as the basic human freedoms which every individual has a right to enjoy for a proper and harmonious development of personality.

⇒ The Indian National Congress at its Bombay session in August 1918 demanded the inclusion of declaration of rights of the people of India as the British citizens in the new Government of India Act. The Declaration Included amongst other things guarantees in regard to equality before the law, protection in respect to liberty, life and property, freedom of speech and press and right of association.

⇒ The Common Wealth of India Bill finalized by the National Convention of 1925 embodied a specific declaration of rights.

⇒ The resolution passed by Indian National Congress in 1927 at its Madras Session lay down that the declaration of Fundamental Rights should be the basis of future Constitution of India.

⇒ The Nehru Committee observed that the first care should be to have Fundamental Rights guaranteed in such a manner which will not permit its withdrawal under any circumstances.

⇒ The Indian National Congress at its Karachi session in 1931 again demanded for a written guarantee for Fundamental Rights in any future Constitutional setup in India.

⇒ The memorandum of the National trade Union Federation submitted to the joint committee on Indian constitution reforms (1932–33), the memorandum submitted by M. Venkatarangaiah to the Sapru committee and the Sapru committee proposals provided for various fundamental rights that the people of free India should get.

⇒ The advisory committee in turn constituted on Feb27, 1947 five sub-committees which would deal with fundamental rights.

SOURCES

⇒ These rights were born of the philosophical speculation by the jurists of ancient Rome.

⇒ Accords of 1188 entered into between King Alfonso IX and the cortes of leon, the Magna Carta of 1215.

⇒ Declaration of the Rights of Man and of the Citizen by the The French National Assembly.

⇒ Bill of rights of the United States of America.

OBJECTIVES

⇒ The Supreme court held in Menaka Gandhi v/s Union of India that these fundamental rights represent and basic value cherished by the people of this country since the Vedic times and they are calculated to protect the dignity of the individual and create conditions in which every human being can develop his personality to the fullest extent.

⇒ The aim behind having a declaration of fundamental rights is to make inviolable certain elementary rights appertaining to the individual and to keep them unaffected by the shifting majorities in the legislatures.

⇒ It is to preserve certain basic human rights against interference the state.

⇒ These rights are basic to a democratic polity.

⇒ It not only ensure the inviolability of certain essential rights against political vicissitudes but also to impress upon the people the fact of their having reached a new level of national existence.

⇒ The guarantee of certain basic human rights is an indispensable requirement of a free society.

FEATURES

⇒ These rights have been declared as sacrosanct, inalienable and inviolable.

⇒ It is mandatory for state to provide fundamental rights.

⇒ The state can impose reasonable restrictions on these rights, thus making them qualified and not absolute.

⇒ These fundamental rights are defended and guaranteed by the Supreme Court of India.

⇒ These rights can be suspended during the operation of a National Emergency except the rights defined under Article 20 and 21.

⇒ The application of these rights can be restricted or abrogated by the parliament (Article 33), rights of armed forces, police forces, intelligence agencies, etc. can be restricted by this Article.

⇒ Fundamental Rights may be amended with out affecting the basic features (Keshawanand Bharti case).

⇒ Fundamental Rights strengthen the secular fabric of the Indian State.

⇒ Fundamental Rights protect the interest of minorities.

⇒ Fundamental Rights give Judiciary clear criteria as to how the regulation of relations between the citizens and the government will take place.

⇒ Fundamental Rights empower the young children of our nation as they are granted the right to receive free education up to the age of 14. (Article 21A)

⇒ Fundamental Rights form a defensive wall of individual liberty.

CRITICISM

The chapter dealing with the fundamental rights should be renamed as 'Limitations on Fundamental Rights' or 'Fundamental Rights and Limitations Thereon'. Jaspat Roy Kapoor

⇒ FR are subjected to innumerable exceptions, restrictions, qualifications, and explanations.

⇒ It makes no provision for important social and economic rights like the right to social security, right to work, right to employment and so on.

⇒ The various phrases and words used in the chapter like 'public order, 'minorities', 'reasonable restriction', 'public interest and so on are not clearly defined.

⇒ The language is very complicated and beyond the comprehension of the common man. The Constitution of India a 'paradise for lawyers'(Jennings).

⇒ They are not sacrosanct or immutable as the Parliament can curtail or abolish them.

⇒ The suspension of their enforcement during the operation of National Emergency is another blot on the efficacy of these rights.

⇒ The judicial process hinders the common man from getting his rights enforced through the courts.

⇒ The provision for preventive detention (Article 22) takes away the spirit and substance of the fundamental rights.

⇒ They are based on no consistent philosophy(Jennings). This creates difficulty for the Court in interpreting the rights.

⇒ It is undeniable that they have generally proven useful in protecting the rights of the political opponents of the government against the might of the State.

In spite of the above criticism and shortcomings, the Fundamental Rights are significant as they constitute the bedrock of democratic system and serve as a formidable bulwark of individual liberty.

FUNDAMENTAL RIGHTS ARE NOT ABSOLUTE

Our constitution grants some fundamental rights with one hand and takeaway with the other.

Fundamental rights are essential for the existence and moral development of the people. Yet reasonable restrictions can be imposed in the larger interest of the society.

While article 14 prohibits class legislation yet doctrine of Reasonable Classification is permitted to treat differently placed people differently (State of Bombay v Balsara).

⇒ The classification must be made on an intelligible differentiating factor and have a reasonable nexus with the object. (Das J. in State of W.B. v Anwar Ali Sarkar).

Article 19 grants the several freedom such as right to speech and expression, but it can be restricted by law under respective conditions mentioned in the clause 2.

⇒ The reasonability of the restriction should be judged from the aspect of the general public's interest (Mohd. Hanif Quershi v State of Bihar)

Right to Life (Article 21)is limited by the procedure established by law.

Article 25 provides for equal right to profess, practice, and propagate any religion.

⇒ Creation of hatred among groups while practising religion, which can have possible ramifications over public order as well as health, was held to be outside the scope of freedom of religion (Subhash Desai v Sharad J. Rao)

Similar conditions restrict the freedom to manage religious affairs under Article 26 as well.

Therefore Fundamental rights are restricted by conditions which aim to balance the individual freedom and rights to the necessity of public good and welfare.

- ⇒ But any law passed by the state or action that result in an infringement of the rights will be subjected to judicial review.

Originally the constitution provided for seven Fundamental rights -

- ⇒ Right to Equality (Article 14 to 18),
- ⇒ Right to Freedom (Article 19 to 22),
- ⇒ Right against exploitation (Article 23 and 24),
- ⇒ Right to freedom of religion (Article 25 to 28),
- ⇒ Cultural and Educational rights (Article 29 to 30),
- ⇒ Right to property (Article 31),
- ⇒ Right to Constitutional remedies (Article 32).

The right to property was removed from the list of fundamental rights by the 44th Amendment Act of 1978.

ARTICLE 12

In this Part, unless the context otherwise requires, "the State" includes the Government and Parliament of India and the Government and the Legislature of each of the States and all local or other authorities within the territory of India or under the control of the Government of India.

R.D Shetty v. Airport Authority of India was a watershed moment, as it established the 5-Point test to see if a body is a state agency or instrumentality -

- ⇒ The state's financial resources are the primary source of funding, as the government owns all of the company's stock.
- ⇒ State control that is deep and pervasive.
- ⇒ The functional character is inherently governmental, implying that its functions are of public importance or have a governmental character.
- ⇒ A government department has been transferred to a private company.
- ⇒ Has monopoly status conferred or protected by the government.

The Apex Court reaffirmed and ruled in Rupa Ashok Hurra v. Ashok Hurra that no judicial proceeding could be said to violate any of the Fundamental rights, and that it is a settled legal position that superior courts of justice did not fall within the ambit of 'state' or' other authorities' under Article 12.

The definition in Article 12 is only for the purposes of applying the provisions of Part III.

- ⇒ It cannot be applied to any provision outside of Part III.

ARTICLE 13

(1) All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void.

(2) The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void.

(3) In this article, unless the context otherwise requires,—

(a) "law" includes any Ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law;

(b) "laws in force" includes laws passed or made by a Legislature or other competent authority in the territory of India before the commencement of this Constitution and not previously repealed, notwithstanding that any such law or any part thereof may not be then in operation either at all or in,particular areas.

1[(4) Nothing in this article shall apply to any amendment of this Constitution made under article 368.]

- ⇒ Article 13 gives liberty to the citizens of India and protects it from being infringed by the state.
- ⇒ Article 13 provides for the remedy if their fundamental right is violated.
- ⇒ The Article 13 not only asserts the supremacy of the Indian Constitution but also makes way for judicial review.
- ⇒ Article 13(1) of the Constitution relating to the fundamental Rights have no retrospective effect.

The Supreme Court held in Keshavan Madhava Menon v. State of Bombay that the article did not have the effect of rendering the laws, which existed on the date of the commencement of the Constitution, void abinitio for all purposes if they were inconsistent with the fundamental rights.

ARTICLE 13 OF THE CONSTITUTION ENVISAGES THE SUPREMACY OF THE CONSTITUTION.

Article 13 defines what a law is and states that laws which are in violation of fundamental rights are not laws. The Indian constitution is supreme.

- ⇒ It means all law must be in accordance with the provision of the constitution. Parliament, while passing legislation must act in strict adherence to the specific mandates of the constitution.

Supremacy of the Constitution means Parliament, while passing a legislation must act in strict adherence to the specific mandates of the constitution.

- ⇒ The Article 13 not only asserts the supremacy of the Indian Constitution but also makes way for judicial review.
  - ❖ This legislation creates scope for reviewing pre-constitutional and existing laws.
  - ❖ It has no retrospective effect.
  - ❖ All inconsistent existing law becomes void only from the commencement of the constitution.
- ⇒ The concept of voidness has eventually come to consider as one of relatively void.
- ⇒ It was raised that whether a law which takes away the fundamental right would be void.

In Keshavananda Bharati case, Supreme Court overruled the decision of Golak Nath case and held that all provision of constitution including fundamental right can be amended but the basic structure would not be amended.

DOCTRINE OF SEVERABILITY

The doctrine of Severability says that is if a part of any law is inconsistent then the rest of the part will remain valid. It applies to both pre and post-constitutional law.

⇒ It is also known as doctrine of separability.

⇒ According to the clauses of Article 13, a law is void only "to the extent of the inconsistency or contravention"with the relevant Fundamental Right.

⇒ It means that an Act may not be void as a whole; only a part of it may be void and if that part is severable from the rest which is valid, then the rest may continue to stand and remain operative.

⇒ If both the valid and invalid part are so closely mix up with each other that it cannot be separated then the whole law or act will be held invalid.

⇒ The Supreme court held in Gopalan v. State of Madras case that

- ❖ In case of repugnancyto the Constitution, only the repugnant provision of the impugned (रद्द) Act will be void and not the whole of it, and every attempt should be made to save as much as possible of the act.

⇒ In R.M.D.C. v. Union of India judgment completely observed Doctrine of severability.

- ❖ If the valid and invalid provisions are so inextricably mixed up that they cannot be separated from one another, then the invalidity of a portion must result in the invalidity of the Act in its entirety.
- ❖ On the other hand, if they are so distinct and separate that after striking out what is invalid, what remains is in itself a complete code independent of the rest, then it will be upheld notwithstanding that the rest has become unenforceable.

DOCTRINE OF ECLIPSE

⇒ The inconsistent laws though becomes out of whack but not completely dead.

⇒ It is eclipsed by the fundamental rights and can again be alive through some constitutional amendments.

⇒ The Supreme Court held in Bhikaji Narain Dhakras v. State of Madhya Pradesh that –

- ❖ The true position is that the impugned law became, for the time being, eclipsed by the fundamental right. The effect of the Constitution Act, 1951 was to remove the shadow and to make the impugned act free from all blemish.

⇒ The Supreme Court held in Deep Chand v. State of Uttar Pradesh that –

- ❖ Only the pre-constitutional law can be brought to life whereas the post-constitutional law which infringes fundamental right is void from its dawn.

THE AMENDABILITY OF THE INDIAN CONSTITUTION

The constitution of India is extremely flexible because the constitution would not only aid the country to grow but it would also grow alongside it. Thus, the government can amend(Article 368) the constitution depending on various issues brought up.

The Supreme Court held in Shankari Prasad case that –

the power to amend the Constitution, including Fundamental Rights is contained in Article 368. It was also held that an Amendment is not a law within the meaning of Article 13(2). Article 13(2) states that the State shall not make any law which takes away or abridges the rights conferred by this Part.

The Supreme Court held in Golaknath v. State of Punjab case that –

⇒ Parliament had no power to amend part 3 of the Constitution so as to abridge or take away any of the Fundamental Rights.

⇒ An amendment is a law under Article 13(2) of the Constitution of India and if it violates any fundamental right, it may be declared void.

Keshavananda Bharati case established the Basic Structure Doctrine of the constitution and considered the constitutionality of amendments. Chief Justice Sikri indicated that Basic structure is:

⇒ The supremacy of Constitution

⇒ The republican and democratic forms of government

⇒ The secular character of Constitution

⇒ Maintenance of separation of power

⇒ The federal character of the Constitution

In essence Parliament's power to amend the Constitution is not absolute and the Supreme Court is the final arbiter over and interpreter of all constitutional amendments.

⇒ Parliament has the power to amend the Constitution under Article 368 and nothing of Article 13 shall apply to any amendment made under article 368.

⇒ An amendment should not be against the Basic Structure.

⇒ The Apex Court with the power of Judicial Review can strikedown any such laws/amendments as null and void as Judicial Review is a part of Basic Structure.

⇒ The Basic Structure doctrine applies only to the Constitutionality of amendments and not to ordinary Acts of Parliament.

Justices Shelat and Grover added another three-

⇒ The mandate to build a welfare state contained in part IV.

⇒ Maintenance of the unity and integrity of India.

⇒ The sovereignty of the country

Supreme Court held in Minerva Mills v. Union of India struck down clauses (4) and (5) of Article 368 inserted by the 42nd amendment because clauses were based on the destruction of Basic Structure.

Supreme Court held in S. P. Sampath Kumar v. Union Of India that Article 323A and Administrative Tribunals Act was valid as it has not excluded Judicial Review under Article 32 and 136.

- Parliament has limited powers to amend the constitution.
- Parliament cannot increase its amending power by amending Art. 368.
- fundamental rights may be amended by the parliament, but not all of them.

- Some other provisions in the Constitution may be equally important. If they form the basic structure they are unamendable.
- Parliament cannot damage or destroy the basic features of the Constitution.
- All laws and constitutional amendments are now subject to judicial review.

ARTICLE 14

The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.

⇒ Democracy can only thrive and flourish where the individuals in the society are treated equally and without discrimination.

⇒ The Right to equality means the absence of legal discrimination only on grounds of caste, race, religion, sex, and place of birth and ensures equal rights to all citizens.

⇒ It is both a positive equality as well as a negative right.

- Negative Right > Prohibits unequal treatment
- Positive Right > Demands to be treated equally

Article 14 lays down the general principles of equality before the law or the equal protection of laws and prohibits unreasonable discrimination between the persons.

⇒ Equal protection of laws is a more positive concept implying equality of treatment in the equal circumstances.

The Doctrine of Equality before law is a necessary corollary of Rule of Law which pervades the Indian constitution. The underlying object of Article 14 is to secure all persons, citizens or non-citizens, the equality of status and opportunity referrers Preamble to our constitution.

The Supreme Court held in Sri Srinivasa Theatre v. Govt. of Tamil Nadu case that the equality before the law is a dynamic concept having many facets.

⇒ There shall be no privileged person or class and that none shall be above law.

⇒ The obligation upon the State to bring about, through the machinery of law, an equal society or, equality before the law can be predicated meaningfully only in equal society.

Equality Before Law Connotes

⇒ The absence of any special privileges in favour of any person.

⇒ Absence of arbitrary power means no man can be punished except for a breach of law.

⇒ The equal subjection of all persons to the ordinary law of the land administered by ordinary law courts.

⇒ No person (whether rich or poor, high or low, official or non-official) is above the law.

According to Dr. Jennings, The right to sue and be sued, to prosecute and to be prosecuted for the same kind of action should be same for all citizens of full age and understanding without distinctions of race, religion, wealth, social status or political influence.

The Supreme Court held that the Rule of Law as embodied in Article-14 is a Basic Feature of the constitution. Hence, it cannot be destroyed even by an amendment.

⇒ The rule of law embodied in Article 14 is the " Basic feature" of the Indian constitution.

⇒ The Rule of law has been given by Prof. Dicey.

⇒ It means that no man is above the law, all are equal in eye of law.

⇒ The concept of rule of law come from Magnacarta.

⇒ The Constitution is the supreme Law of the land and all laws passed by the legislature must be consistent with the provisions of the Constitution.

The rule of equality before law is not absolute and there are Constitutional and other exceptions to it.

There are some exception to the rule of equality such as -

⇒ Art. 14 may be suspended during that period of emergency(Art. 359).

⇒ President and Governors enjoy immunity from criminal and civil proceedings until certain conditions are fulfilled (Art. 361).

⇒ Members of Parliament and of State Legislature are not liable in respect of anything done or said within the House (Arts. 105 and 194).

⇒ Foreign Diplomats are immune from the jurisdiction of Courts.

⇒ Art. 31 C forms an exception by excluding some laws from the purview of Art. 14.

EQUAL PROTECTION OF LAW

⇒ The equal protection of law is taken from USA.

⇒ The equal protection of law guaranteed by article 14 does not mean that all laws must be general in character.

⇒ It does not mean that every law must have universal application for, all person are not, by nature, attainment or circumstances in the same position.

⇒ An equal law should be applied with an equal hand to all persons who are the equals.

⇒ The legislature must possess the power to group persons, objects and transactions with a view to attaining specific aims.

⇒ A reasonable classification is not permitted but necessary if society is to progress.

- ❖ Article 15(3) Nothing in this article shall prevent the State from making any special provision for women and children.
- ❖ Article 15 (4) Nothing in this article or in clause (2) of article 29 shall prevent the State from making any special provision for the advancement of any socially and educationally
- ❖ backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.]
- ❖ Article 15(5) Nothing in this article or in sub-clause (g) of clause (1) of article 19 shall prevent the State from making any special provision, by law, for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes in so far as such special provisions relate to their admission to educational institutions including

private educational institutions, whether aided or unaided by the State, other than the minority educational.

- Article 16(3) Nothing in this article shall prevent Parliament from making any law prescribing, in regard to a class or classes of employment or appointment to an office 1[under the Government of, or any local or other authority within, a State or Union territory, any requirement as to residence within that State or Union territory] prior to such employment or appointment.
- Article 16 (4) Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State.
- Article 16 (4A) Nothing in this article shall prevent the State from making any provision for reservation 3[in matters of promotion, with consequential seniority, to any class] or classes of posts in the services under the State in favour of the Scheduled Castes and the Scheduled Tribes which, in the opinion of the State, are not adequately represented in the services under the State.]
- Article 17. "Untouchability" is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of "Untouchability" shall be an offence punishable in accordance with law.
- Article 39. (d) that there is equal pay for equal work for both men and women.
- Article 39.(e) that the health and strength of workers, men and women, and the tender age of children are not abused and that citizens are not forced by economic necessity to enter avocations unsuited to their age or Strength.
- Article39(f) that children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that childhood and youth are protected against exploitation and against moral and material abandonment.]
- Article 39A. The State shall secure that the operation of the legal system promotes justice, on a basis of equal opportunity, and shall, in particular, provide free legal aid, by suitable legislation or schemes or in any other way, to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.]
- Article 41. The State shall, within the limits of its economic capacity and development, make effective provision for securing the right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement, and in other cases of undeserved want.
- Article 45. The State shall endeavour to provide early childhood care and education for all children until they complete the age of six years.
- Article 46. The State shall promote with special care the educational and economic interests of the weaker sections of the people, and, in particular, of the Scheduled Castes

- and the Scheduled Tribes, and shall protect them from social injustice and all forms of exploitation.
- Article 243 (2) Not less than one-third of the total number of seats reserved under clause (1) shall be reserved for women belonging to the Scheduled Castes or, as the case may be, the Scheduled Tribes.
- Article 243(3) Not less than one-third (including the number of seats reserved for women belonging to the Scheduled Castes and the Scheduled Tribes) of the total number of seats to be filled by direct election in every Panchayat shall be reserved for women and such seats may be allotted by rotation to different constituencies in a Panchayat.
- Special seating arrangement for women in buses, trains, metros trains is not unconstitutional.
- It was held by court that reservation of some seats for women in college.
- According to section 497 of Indian penal code, audultery is consider as offence when it committed by men , not consider offence if committed by women thus women cannot be Prosecuted for abetters.
- Section 437 of cr.p.c., 1973 restricts the release of an accused person a capital offence on Bail except women, children under age of 16 years or ill or infirm persons.
- Various sections of IPC like – 498A etc.
- Various commissions

ARTICLE 15

(1) The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.

(2) No citizen shall, on grounds only of religion, race, caste, sex, place of birth or any of them, be subject to any disability, liability, restriction or condition with regard to—

(a) access to shops, public restaurants, hotels and places of public entertainment; or

(b) the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public.

(3) Nothing in this article shall prevent the State from making any special provision for women and children.

(4) Nothing in this article or in clause (2) of article 29 shall prevent the State from making any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.

- Added by the Constitution (First Amendment) Act, 1951

(5) Nothing in this article or in sub-clause (g) of clause (1) of article 19 shall prevent the State from making any special provision, by law, for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes in so far as such

special provisions relate to their admission to educational institutions including private educational institutions, whether aided or unaided by the State, other than the minority educational institutionsreferred to in clause (1) of article 30.

- Added by the Constitution Ninety-third Amendment) Act, 2005

(6) Nothing in this article shall prevent the State from making any special provision for the advancement of the Economically Weaker Sections (EWSs)

- Added by the Constitution One Hundred and Third Amendment Act, 2019

Article 15 of Indian Constitution uphold the spirit of a secular nation and create a society based on equality.

Article 15 is the protector of the oppressed and a shield against discriminationI it has helped Indian society stand tall and proud in the face of enormous diversity, sexism, racism. Clause (1) of Article 15 prohibits the State from discriminating between the citizens of India on any of the following grounds:

(a) religion (b) race (c) caste (d) sex (e) place of birth.

⇒ In Nain Sukh Das the Court held unconstitutional a law that provided elections based on separate electorates for members of different religious communities.

The incorporation of Article 15(3) anchored under the unique concept of 'protective discrimination', symbolizes constitutional recognition of deeply entrenched discrimination of women prevailing in Indian society.

⇒ The Apex Court has upheld laws that treat women more favorably than men', and has also interpreted 'ambiguous laws' via pro-women stances, thus validating the concept 'protective discrimination.

On the basis of equal protection of law Clause (4) was added by 1st amendment in 1951 for reservation for SCs and STs and other backward classes to benefit them academically, socially and economically.

Clause (5) of Article 15 was introduced during the Ninety-Third Amendment Act in 2005.

⇒ The Supreme Court has held in Ashok Kumar case that 27 per cent reservation to OBC candidates is constitutional and not violative of Articles 14 and 15.

Clause (6) of Article 15 added by 103rd Amendment Act is related to economically weaker sections of the society.

Article 15 has always gone out of its way to help those who are actually in need. It serves as a foundation for all the legislature needs to establish provisions to foster societal peace. The number of incidences of atrocities committed against the poor has drastically decreased.

ARTICLE 16

(1) There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State.

(2) No citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State.

(3) Nothing in this article shall prevent Parliament from making any law prescribing, in regard to a class or classes of employment or appointment to an office

(4) Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State.

(4A) Added by the Constitution Seventy-seventh Amendment) Act, 1995

Nothing in this article shall prevent the State from making any provision for reservation 3[in matters of promotion, with consequential seniority, to any class Eighty-fifth Amendment) Act, 2001,] or classes of posts in the services under the State in favour of the Scheduled Castes and the Scheduled Tribes which, in the opinion of the State, are not adequately represented in the services under the State.

(4B) Added by the Constitution Eighty-first AmendmentAct, 2000

Nothing in this article shall prevent the State from considering any unfilled vacancies of a year which are reserved for being filled up in that year in accordance with any provision for reservation made under clause (4) or clause (4A) as a separate class of vacancies to be filled up in any succeeding year or years and such class of vacancies shall not be considered together with the vacancies of the year in which they are being filled up for determining the ceiling of fifty per cent. reservation on total number of vacancies of that year.

(5) Nothing in this article shall affect the operation of any law which provides that the incumbent of an office in connection with the affairs of any religious or denominational institution or any member of the governing body thereof shall be a person professing a particular religion or belonging to a particular denomination.

(6) Added by the Constitution One Hundred and Third Amendment Act, 2019

This enables the State to provide the benefits of reservation on preferential basis to the Economically Weaker Sections (EWSs) in civil posts and services in the Government of India and admission in Educational Institutions.

ARTICLE 17

Untouchability is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of "Untouchability" shall be an offence punishable in accordance with law.

ARTICLE 18

(1) No title, not being a military or academic distinction, shall be conferred by the State.

(2) No citizen of India shall accept any title from any foreign State.

(3) No person who is not a citizen of India shall, while he holds any office of profit or trust under the State, accept without the consent of the President any title from any foreign State.

(4) No person holding any office of profit or trust under the State shall, without the consent of the President, accept any present, emolument, or office of any kind from or under any foreign State.

RIGHT TO FREEDOM

ARTICLE 19

(1) All citizens shall have the right—

(a) to freedom of speech and expression;

(b) to assemble peaceably and without arms;

(c) to form associations or unions or co-operative societies(Ninety-seventh Amendment) Act, 2011)

(d) to move freely throughout the territory of India;

(e) to reside and settle in any part of the territory of India; 2[and]

3* * * * *

(g) to practise any profession, or to carry on any occupation, trade or business.

(2) Added by the Constitution First Amendment) Act, 1951

Nothing in sub-clause (a) of clause (1) shall affect the operation of any existing law, or prevent the State from making any law, in so far as such law imposes reasonable restrictions on the exercise of the right conferred by the said sub-clause in the interests of [the sovereignty and integrity of India, Sixteenth Amendment) Act, 1963] the security of the State, friendly relations with foreign States, public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence.

(3) Nothing in sub-clause (b) of the said clause shall affect the operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, in the interests of the sovereignty and integrity of India or public order, reasonable restrictions on the exercise of the right conferred by the said sub-clause.

(4) Nothing in sub-clause (c) of the said clause shall affect the operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, in the interests of the sovereignty and integrity of India or public order or morality, reasonable restrictions on the exercise of the right conferred by the said sub-clause.

(5) Nothing in sub-clauses (d) and (e)] of the said clause shall affect the operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, reasonable restrictions on the exercise of any of the rights conferred by the said sub-clauses either in the interests of the general public or for the protection of the interests of any Scheduled Tribe.

(6) Nothing in sub-clause (g) of the said clause shall affect the operation of any existing law in so far as it imposes, or prevent the State from making any law imposing, in the interests of the general public, reasonable restrictions on the exercise of the right conferred by the said sub-clause, and, in particular, nothing in the said sub-clause shall affect the operation of any existing law in so far as it relates to, or prevent the State from making any law relating to,—

(i) the professional or technical qualifications necessary for practising any profession or carrying on any occupation, trade or business, or

(ii) the carrying on by the State, or by a corporation owned or controlled by the State, of any trade, business, industry or service, whether to the exclusion, complete or partial, of citizens or otherwise].

THE FREEDOM OF SPEECH THAT IT IS THE MOTHER OF ALL OTHER LIBERTIES.

Mahatma Gandhi said that the democracy cannot evolve unless one is willing to listen to the other side.

A human being conveys his opinions, emotions, and feelings to others through speech and expression; hence, it is a natural right that an individual acquires at birth.

- ⇒ It helps an individual, to attain self-fulfilment
- ⇒ It assists in the discovery of truth
- ⇒ It strengthens the capacity of and individual in participating in decision making
- ⇒ It provides a mechanism by which it would be possible to establish a reasonable balance between stability and social change.

Freedom of speech and expression is established by Article 19(1)(a) of the Constitution, which states that all people of India have a right to free speech and expression. The theory underlying this Article can be found in the Preamble to the Indian Constitution, which states, "Where a solemn resolve is made to secure to all its citizens, their liberty of thought and expression."

- ⇒ The right to free speech and expression is the bedrock of democratic government because freedom is essential for the democratic process to operate effectively.
- ⇒ It is regarded as the first condition of democracy. It has a favorite place in the freedom hierarchy, assisting and protecting all other freedoms.

Freedom of speech may be described as a concept under which individuals have to have the liberty to hold and convey ideas by oral language and writing, symbolic gestures or pictures, on any medium and a variety of subjects, from politics to religion, economy to history, beyond fear of censorship or retribution.

- ⇒ The Supreme Court held that these rights are great and basic rights which are recognised and guaranteed as the natural rights and inherent in the status of a citizen in a free country.

ELEMENTS

- ⇒ Available only to a citizen of India.
- ⇒ Express one's views and opinions at any issue through any medium.
- ⇒ Express one's views through any communicable medium or visible representation.
- ⇒ This expression implies also on publication and thus the freedom of press is included.
- ⇒ Free propagation of ideas is secured by freedom of circulation.
- ⇒ Includes liberty to propagate not one's views only but also to propagate or publish the views of other people.
- ⇒ Not absolute and it allows Government to frame laws to impose reasonable.

PURPOSE

- ⇒ Helps an individual to attain self-fulfilment.
- ⇒ Helps in the discovery of truth.
- ⇒ Helps individual in participating in decision-making.
- ⇒ to establish a reasonable balance between stability and social change.
- ⇒ All members of society would be able to form their own beliefs.
- ⇒ All members of society would be able to communicate their views freely to others.

The reasonable restrictions on freedom of speech and expression

It has been realised that freedoms cannot be guaranteed in absolute terms because absolute power results in tyranny, absolute freedoms lead to ruin and anarchy. It is difficult to give an exact definition of the word 'reasonable' describe in Article 19(2). The Supreme Court, in several cases, has laid down the following guidelines for determining the reasonableness of restrictions:

- ⇒ It is the Courts and not the Legislature that will decide whether a restriction is reasonable or not.
- ⇒ Restriction must not be arbitrary, unbridled and excessive.
- ⇒ There is no fixed standard for reasonableness.
- ⇒ The restriction must be reasonable from both substantive as well as procedural standpoint.
- ⇒ The test of reasonability must be objective.
- ⇒ There must be a direct and proximate nexus or a reasonable connection between the restriction imposed and the object sought to be achieved and must not be excessive.

Article 19(2) specifies the grounds to which reasonable restrictions can be imposed -

- ⇒ Security of State
- ⇒ Friendly relations with Foreign States
- ⇒ Public Order
- ⇒ Decency or Morality
- ⇒ Contempt of Court
- ⇒ Defamation
- ⇒ Sovereignty and Integrity of India

PRESS

- ⇒ The Supreme Court declaring freedom of press as a part of freedom of speech and expression in Romesh Thappar v. State of Madras (1950).
- ⇒ Supreme Court has said that the words "freedom of speech and expression" must be broadly constructed to include the freedom to circulate one's views by words of mouth or in writing or through audiovisual instrumentalities.
- ⇒ Supreme Court held in Indian Express v. Union of India,(1985) case that the Press plays a very significant role in the democratic machinery.

- Freedom of Press includes freedom of publication, freedom of circulation and freedom against pre-censorship.

ELECTRONIC MEDIA

⇒ A citizen has fundamental right to use the best means of imparting and receiving communication and as such have an access to telecasting for the purpose.

⇒ The Supreme Court held that the government has no monopoly on electronic media and a citizen has under Art. 19(1)(a) a right to telecast and broadcast to the viewers/listeners through electronic media television and radio any important event.

⇒ The government can impose restrictions on such a right only on grounds specified in clause (2) of Art. 19 and not on any other ground.

COMMERCIAL ADVERTISEMENTS

⇒ The Supreme court held that commercial speech (advertisement) is a part of the freedom of speech and expression.

⇒ The Supreme court however made it clear that the government could regulate the commercial advertisements, which are deceptive, unfair, misleading and untruthful.

⇒ In a democratic economy, free flow of commercial information is indispensable.

RIGHT TO INFORMATION

⇒ Freedom of speech and expression includes right to impart and receive information which includes freedom to hold opinions.

⇒ The right to know, 'receive and impart information has been recognized within the right to freedom of speech and expression.

⇒ The right to know has, however, not yet extended to the extent of invalidating Section 5 of the Official Secrets Act, 1923 which prohibits disclosure of certain official documents.

TELEPHONE TAPPING

⇒ Telephone tapping violates Art. 19(1)(a) unless it comes within grounds of restriction under Art. 19(2).

⇒ Under the guidelines laid down by the Court, the Home Secretary of the center and state governments can only issue an order for telephone tapping.

RIGHT TO CRITICIZE

⇒ Open criticism of government policies and operations is not a ground for restricting expression.

⇒ In democracy, it is not necessary that everyone should sing the same song.

BEYOND NATIONAL BOUNDARIES

⇒ The Supreme Court held in Menka Gandhi v. Union of India case that the freedom of speech and expression is not confined to National boundaries.

ARTICLE 20

(1) No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence.

- ❖ No ex-post-facto law

(2) No person shall be prosecuted and punished for the same offence more than once.

- ❖ No double jeopardy

(3) No person accused of any offence shall be compelled to be a witness against himself.

- ❖ No self-incrimination

⇒ Article 20 is the cornerstone of the Indian Constitution because it can't be put aside even during an emergency.

⇒ Article 20 of the Indian Constitution reflects protection of convicted persons from excess of Legislation, Judiciary and Executive actions respectively.

⇒ Article 20 forms the bedrock of the Indian Constitution and guarantees basic human rights to the convicted and accused people.

⇒ Article 20 is so much important for the discharge of democratic values.

⇒ These protections are available to all the people i.e. Indians as well as foreigners.

DOCTRINE		
EX-POST FACTO LAW	DOUBLE JEOPARDY	PROHIBITION AGAINST SELF-INCRIMINATION

EX-POST FACTO LAW

In 1928 Jawaharlal Nehru committee suggested about the Ex Post Facto laws.

Ex-post facto word was taken from Latin which means after the action.

Article 11, paragraph 2 of the Universal Declaration of Human Rights provides that no person be held guilty of any criminal law that did not exist at the time of offence nor suffer any penalty heavier than what existed at the time of offense.

⇒ Therefore In 1949 Constitution of India was rectified and provisions u/a 20(1) were inserted in the Indian Constitution.

⇒ Countries like England don't prohibit this law whereas USA, India etc. prohibit this law.

As per Indian laws, Art. 20(1) of the Indian Constitution says ex post facto laws are prohibited i.e. no retrospective effect of accused criminal acts.

⇒ The aim is to maintain law and order; to protect intentional or illegal detention.

⇒ Accused can use this right during conviction or sentence but not a trial.

⇒ Protection is available to both citizens and foreigners for criminal cases.

The 1st part of Article 20(1), in a literal sense, means the violation of any such law for which a person is convicted must be in existence when the act is committed. It follows therefore that a person cannot be convicted for an act, which was not an offence under the law in force when that act was committed.

The Supreme Court held in Kedar Nath v. State of West Bengal case that, whenever an act is declared as a criminal offence and/or provides penalty for same by the legislature, it is always prospective in nature and can't be implemented retrospectively to uphold what is being said under Article 20(1).

The 2nd part of Article 20(1), in a literal sense, means punishment which was in force when the offence was committed will be applicable and there will be no retrospective operation.

The Supreme Court held that the enhanced punishment could not be applicable to the act committed by the accused.

⇒ In Indian constitution, no absolute right is given to its citizens therefore Art 20(1) subject to certain restrictions.

- ❖ Article 20(1) implies convicted and offence words which make it clear that the article has no application to preventive detention. It imposes restriction against conviction/ punishment etc. but not against detention.
- ❖ In case of civil liberties or civil proceedings, Art 20(1) shall not be applicable.
- ❖ If any person is behind bars and there is any amendment in existing law or enactment of the law which says that you can acquit any person who is in custody after demanding security. In such case, Article 20(1) shall not be prohibited.
- ❖ If the accused committed an offence which was recognised in law when committed but later repealed, in such matters the court can redress the case applying those repealed statutory provisions.

⇒ Art 20(1) is a blessing for all those innocent people who have no idea that their act might become illegal in the coming future because if they knew about it they might have not committed it.

⇒ It is a benefit because if there will be retrospective applicability then the situation in custody and jail might be worse and there will be more burdens on the judiciary.

Article 20(1) safeguard the spirit of the constitution alive, provided with various judicial pronouncements provided justice to the victims and the prospective victims.

DOUBLE JEOPARDY

⇒ It established maxim of the English Common law, Nemo debet bis vexari, meaning that a man must not be put twice in peril for the same offence.

⇒ The Doctrine of Double Jeopardy originates from American jurisprudence of punishment.

⇒ It means that 'no person can be prosecuted and punished twice for the same offence in subsequent proceedings.

⇒ Article 20 (2)which reads that no one could be convicted and punished more than once for the same offence involving the same set of facts guarantees against the multiple convictions and Double jeopardy.

The Supreme Court held in Venkataraman v Union of India that if a person has been prosecuted and punished in a previous proceeding of an offence, he cannot be prosecuted and punished for the same offence again in subsequent proceedings.

⇒ The Supreme Court established that this provision deals exclusively with Judicial punishments.

⇒ The Supreme Court observed that departmental proceedings are independent of trial by a judicial court or tribunal.

⇒ A government servant who has been punished for an offence in a Court of law may be subjected to departmental proceedings for the same offence or conversely.

⇒ Redues the risk of wrongful conviction.

⇒ Minimizes the distress and travel during trial

⇒ Prevents from harassment.

⇒ Prevents the arbitary action against the state.

⇒ Protects the human rights.

PROHIBITION AGAINST SELF-INCRIMINATION

⇒ The expression self-incrimination means "conveying information based upon personal knowledge of the person giving information involving himself to be the prime part taken in the offence."

⇒ Article 20 (3) is taken from the American Constitution.

⇒ Article 20 (3) describes that no one could be forced to utter and provide such information or evidence orally or by documentary means which could be used against himself during the further trial procedure.

⇒ Article 20 (3) is based on the common law maxim nemo tenetur prodere accussare seipsum, which means that "no man is bound to accuse himself".

⇒ The Supreme Court held in M. P. Sharma v. Satish Chandra thatthe term Witness includes both, Oral and documentary evidence.

⇒ The medical examination done during the course of a trial is permissible.

⇒ Exception to this lies under section 91 of CrPC which gives authority to a court or an officer to issue an order demanding documents that were under the possession of the accused.

⇒ Exception to this lies under section 161(2) of CrPC which says that while being examined by the authorities, a person is bound to answer all the questions truly excepting those which have a propensity to be used against the person himself later during trial.

ARTICLE 21

⇒ No person shall be deprived of his life or personal liberty except according to procedure established by law.

Justice P. Bhagwati had said that Article 21 'embodies a constitutional value of supreme importance in a democratic society'.

⇒ It is the most organic and progressive provision in our living Constitution.

Article 21 starts with negative word but the word No has been used in relation to the word deprived. The object of the fundamental right under Article 21 is to prevent encroachment upon personal liberty and deprivation of life except according to procedure established by law. So it is provided against state only. If an act of private individual amounts to encroachment upon the personal liberty or deprivation of life of other person, a case the remedy for aggrieved person would be either under Article 226 of the constitution or under general law.

⇒ Right to Life means the right to lead meaningful, complete and dignified life.

⇒ It does not have restricted meaning, something more than surviving or animal existence.

Procedure established by Law means the law enacted by the State.

The Apex Court itself provided the list of some of the rights covered under Article 21 -

(1) The right to go abroad.
(2) The right to privacy.
(3) The right against solitary confinement.
(4) The right against hand cuffing.
(5) The right against delayed execution.
(6) The right to shelter.
(7) The right against custodial death.
(8) The right against public hanging.
(9) Doctors assistance

⇒ It was observed in Unni Krishnans case that Article 21 is the heart of Fundamental Rights and it has extended the Scope of Article 21 by observing that the life includes the education as well as, as the right to education flows from the right to life.

As a result of expansion of the scope of Article 21, the Public Interest Litigations in respect of children in jail being entitled to special protection, health hazards due to pollution and harmful drugs, housing for beggars, immediate medical aid to injured persons, starvation deaths, the right to know, the right to open trial, inhuman conditions in aftercare home have found place under it.

The Apex Court also included many of the non-justifiable Directive Principles-

(a) Right to pollution free water and air.
(b) Protection of under-trial.
(c) Right of every child to a full development.
(d) Protection of cultural heritage.

⇒ The Apex Court in the case of S.S. Ahuwalia v. Union of India and others it was held that in the expanded meaning attributed to Article 21 of the Constitution, it is the duty of the State to create a climate where members of the society belonging to different faiths, caste and creed live together and, therefore, the State has a duty to protect their life, liberty, dignity and worth of an individual which should not be jeopardized or endangered.

⇒ The Apex Court led a great importance on reasonableness and rationality of the provision and it is pointed out that in the name of undue stress on Fundamental Rights and Individual Liberty, the ideals of social and economic justice cannot be given a go-by.

NATURAL JUSTICE

- Principle of Natural Justice is derived from the word Jus Natural of the Roman law and it is closely related to Common law and moral principles.
- Natural justice simply means to make a sensible and reasonable decision making procedure on a particular issue.
- Natural justice includes the concept of fairness, basic moral principles and various different kinds of biases
- The Supreme court held in M.S.Gill v. Chief Election Commissioner that the concept of fairness should be in every action whether it is judicial, quasi-judicial, administrative and or quasi-administrative work.
- The Supreme court held in Province of Bombay v. K. Adwani that natural justice will be applicable on statutory as it is a basic principle of Natural justice which leads to fairness and justice.

PURPOSE

⇒ To provide equal opportunity

⇒ To protect the fundamental rights

⇒ To fulfil the loopholes of the law

⇒ Concept of fairness

⇒ Basic features of the constitution

RULES

⇒ Nemo Judex In Causa Sua

⇒ Audi Alteram Partem

⇒ Reasoned Decision

NEMO JUDEX IN CAUSA SUA

⇒ No one ought to be the judge in his or her case, says this principle.

⇒ It sets a procedure for a fair hearing based on the proposition that justice should not only be done but should seem to be done.

⇒ it leads to rule of biases.

⇒ Bias means an act which leads to unfair activity whether in a conscious or unconscious stage in relation to the party or a particular case.

AUDI ALTERAM PARTEM

⇒ The literal meaning of this rule is that both parties should be given a fair chance to present themselves with their relevant points and a fair trial should be conducted.

⇒ It is also known as a rule of fair hearing.

⇒ Its mean is not to penalize anyone without any valid and reasonable ground.

REASONED DECISION

⇒ When a decision is given by a judicial body it is necessary for it to give reason along with the decision stating all the consequences which led to that decision.

⇒ With this principle, the judiciary can no longer take arbitrary decisions and act fairly.

⇒ In Maneka Gandhi v. Union of India case the Supreme Court opined that Art 14 is an authority for the proposition that the principles of natural justice are an integral part of the guarantee of equality.

⇒ In Cantonment Board, Dinapore v. Taramani case the Supreme Court observed audi alteram partum is a part of Art. 14 of the Constitution.

⇒ Article 22 (1) and (2) confers four following fundamental rights upon a person who has been arrested -

- ❖ Right to be informed, as soon as may be, of the grounds for such arrest. (Madhu Limaye case)
- ❖ Right to consult and to be defended by a legal practitioner of his choice. (Nandini Satpathy case)
- ❖ Right to be produced before the nearest magistrate within twenty-four hours of his arrest excluding the time necessary for the journey from the place of arrest to the Court of Magistrate.
- ❖ Right not to be detained in custody beyond the period of twenty four hours without the authority of the Magistrate. (Nandlal Bajaj case)

Article 32 and 226 of the constitution provides for constitutional remedies for violation of fundamental Rights and other legal rights respectively remedies.

Article 227 of the constitution says that the High Court may in exercise of its power of superintendence issue direction, Order or writ in cases where it felt that there is violation of principles of natural justice accordingly it is one of the constitutional provisions framed in the spirit of principles of natural justice.

Art 311 deals with Dismissal, removal, or reduction in rank of persons employed in civil capacities under the Union or a State, though Art. 310 of the constitution adapts 'doctrine of Pleasure' Art 311 constitution provides sufficient safeguards against misuse of such power.

With the introduction of concept of substantive and procedural due process in Article 21, all that fairness which is included in the principles of natural justice can be read into Art. 21. The violation of principles of natural justice results in arbitrariness; therefore, violation of natural justice is a violation of Equality clause of Art. 14.

DUE PROCESS

- ⇒ The origin of due process is often traced back to the Magna Carta, a 13th-century document.
- ⇒ Due Process law makes sure that the person enjoys his liberty and live a life of dignity and is not deprived of his property.
- ⇒ Due process is a requirement that legal matters be resolved according to established rules and principles, and that individuals be treated fairly.
- ⇒ Due process applies to both civil and criminal matters.

PROCEDURAL DUE PROCESS

- ⇒ When a person is been convicted and there is a possibility to deprive him of his life or property or liberty but in that case, the individual should understand the process as to why he has to go through this.
- ⇒ It is important to give him a notice.
- ⇒ A reasonable time should be given to him to make his defence.
- ⇒ The proceedings should be made to be understood by him.

SUBSTANTIVE DUE PROCESS

- ⇒ It prohibits the judiciary to punish an individual for any wrong that affects fundamental right until and unless there is an obligation on the part of the judiciary to do so which should be communicated.
- ⇒ The right included in this is freedom of speech and expression, freedom of assembly, freedom of religion.
- ⇒ It has interpreted the Procedure established by law in Art.21 to be equivalent of the 'due process of law.
- ⇒ The Supreme Court of India in A.K. Goplan v. Union of India, held that Article 21 is complete code, procedure established by law need not comply with the principle of natural justice and reasonableness under Article 19.
- ⇒ Justice Bhagawati observed that "A law depriving a person of personal liberty and prescribing a procedure for that purpose within the meaning of Article 21 has to stand a test of one or more of the fundamental rights conferred under Article 19 which may be applicable in a given situation.
- ⇒ In India due process concept can be perceived under the theory of basic structure, doctrine of non-arbitrariness under Article 14 and 'just, fair and reasonable' requirement of Article 21. Even Articles 19 (2) to (6), 20, and 22 also insulate the content of due process in the Indian legal system.

ARTICLE 21A

⇒ Added by the Constitution Eighty-sixth Amendment) Act, 2002

⇒ The State shall provide free and compulsory education to all children of the age of six tofourteen years in such manner as the State may, by law, determine.

ARTICLE 22

(1) No person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest nor shall he be denied the right to consult, and to be defended by, a legal practitioner of his choice.

(2) Every person who is arrested and detained in custody shall be produced before the nearest magistrate within a period of twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the magistrate and no such person shall be detained in custody beyond the said period without the authority of a magistrate.

(3) Nothing in clauses (1) and (2) shall apply—

(a) to any person who for the time being is an enemy alien; or

(b) to any person who is arrested or detained under any law providing for preventive detention.

(4) No law providing for preventive detention shall authorise the detention of a person for a longer period than three months unless—

(a) an Advisory Board consisting of persons who are, or have been, or are qualified to be appointed as, Judges of a High Court has reported before the expiration of the said period of three months that there is in its opinion sufficient cause for such detention :

Provided that nothing in this sub-clause shall authorise the detention of any person beyond the aximum period prescribed by any law made by Parliament under sub-clause (b) of clause (7); or (b) such person is detained in accordance with the provisions of any law made by Parliament under subclauses (a) and (b) of clause (7).

(6) Nothing in clause (5) shall require the authority making any such order as is referred to in that clause to disclose facts which such authority considers to be against the public interest to disclose.

(7) Parliament may by law prescribe—

(a) the circumstances under which, and the class or classes of cases in which, a person may be detained for a period longer than three months under any law providing for preventive

detention without obtaining the opinion of an Advisory Board in accordance with the provisions of sub-clause (a) of clause (4);

(b) the maximum period for which any person may in any class or classes of cases be detained under any law providing for preventive detention; and

(c) the procedure to be followed by an Advisory Board in an inquiry under [sub-clause (a) of clause(4)].

PREVENTIVE DETENTION

⇒ It is an anticipatory measure and does not relate to an offence while criminal proceedings are to punish a person for an offence committed by him (SC - Alijan Mja case)

⇒ The object of Preventive Detention is not to Punish but to intercept to prevent the Detenu from doing something prejudicial to the State. The satisfaction of the concerned authority is a subjective satisfaction in such a manner. (SC - Ankul Chandra Pradhan case)

Article 22 provides that the Detenu under the preventive detention law shall have the right to have his representative against his detention reviewed by an advisory board.

⇒ If the advisory board reports that the detention is not justified, the Detenu must be released forthwith.

⇒ If the advisory board reports that the detention is justified, the Government may fix the period for detention.

⇒ The advisory board may conclude its proceedings expeditiously and must express its opinion within the time prescribed by law.

⇒ Failure to do that makes the detention invalid.

The Supreme Court held that Article 22(7) (a) was an exception to Article 22 (4).

⇒ Thus Article 22(7) (a) could be made use of only in exception to and ordinary cases.

The principle of Audi Alteram Partem which states that no one should be condemned unheard.

⇒ A person whose right or interests are disputed or controverted him must be given a reasonable opportunity to defend – it reasonably defends the victims of unlawful preventive detention.

National Human Rights Commission has laid down several measures and directives –

⇒ Detailed recording of facts leading to satisfaction of authority conveying the grounds of detention to the Detenu.

⇒ People should be sensitized about various personal liberties.

⇒ In case there is unlawful detention, need to have provision for interim relief/compensation.

⇒ Psychological help to prisoners.

⇒ The NHRC has conducted a workshop on four thematic sessions covering detention in prisons and police custody, preventive detention.

Unlawful Activities Prevention Act (UAPA) impinges on the personal liberty of citizens of India.

Montesquieu, the revered French jurist, had said, “every punishment which does not arise from absolute necessity is tyrannical”. Criminal law should, in fact, be used ultima rat-io-—a last resort—and only for the “most reprehensible wrongs”.

The Unlawful Activities Prevention Act (UAPA) is India's anti-terror law. it authorises the government to ban unlawful organisations and terrorist organisations and penalises membership of such organisations. The problems begin with the definitional clause itself like –

⇒ Disclaiming" or questioning the territorial integrity of India.

⇒ Membership clauses.

The Act fails entirely to define what "membership" entails.

⇒ Despite the verdict of the Supreme Court, therefore, the wide and vague provisions of the UAPA allow governments great and virtually unbridled power to arrest people under boundlessly manipulable justifications.

⇒ It is very difficult for judges to grant bail in UAPA cases, by effectively barring the grant of bail as long as a prima facie case exists against the accused.

⇒ Section 43D(5) and the long pace of trials in India effectively means that the moment UAPA is mentioned in the police charge-sheet, anyone accused in that case is, for all practical purposes, sentenced to many years in jail without trial.

⇒ UAPA compels courts to look only at the police version, discount the defence's arguments and, on that basis, decide whether or not to grant bail.

⇒ UAPA, have largely been used against petty offenders, trade union leaders, political dissenters, civil rights activists, elderly citizens and even children.

The UAPA and sundry other 'terror' laws are instruments to terrorise citizens. They impinge on ideals of rule of law. The best response to terrorism need not necessarily be a mirror image of the act of terrorism itself.

RIGHT AGAINST EXPLOITATION

ARTICLE 23

(1) Traffic in human beings and begar and other similar forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law.

(2) Nothing in this article shall prevent the State from imposing compulsory service for public purposes, and in imposing such service the State shall not make any discrimination on grounds only of religion, race, caste or class or any of them.

ARTICLE 24

No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment.

Child Labour (Prohibition and Regulation) Amendment Act, 2016

An Act to prohibit the engagement of children in all occupations and to prohibit the engagement of adolescents in hazardous occupations and processes and the matters connected therewith or incidental thereto.

⇒ Provide stricter punishments for employers who violate the Act.

⇒ Make the employer employing any child or adolescent in contravention of the Act cognizable.

⇒ Allows the government to bar the employment of adolescents that are working in any hazardous conditions.

Child Labour (Prohibition and Regulation) Amendment Rules, 2017

⇒ Clarifies on issues related to helping in family and family enterprises and definition of family with respect to the child.

⇒ The child shall not perform any tasks during school hours and between 7 p.m. and 8 a.m.

⇒ Provides for safeguards of artists which have been permitted to work under the Act, in terms of hours of work and working conditions.

⇒ No child shall be allowed to work for more than 5 times a day, and for not more than 3 hours without rest.

RIGHT TO FREEDOM OF RELIGION

ARTICLE 25

(1) Subject to public order, morality and health and to the other provisions of this Part, all persons are equally entitled to freedom of conscience and the right freely to profess, practise and propagate religion.

(2) Nothing in this article shall affect the operation of any existing law or prevent the State from making any law—

(a) regulating or restricting any economic, financial, political or other secular activity which may be associated with religious practice;

(b) providing for social welfare and reform or the throwing open of Hindu religious institutions of a public character to all classes and sections of Hindus.

ARTICLE 26

Subject to public order, morality and health, every religious denomination or any section thereof shall have the right—

(a) to establish and maintain institutions for religious and charitable purposes;

(b) to manage its own affairs in matters of religion;

(c) to own and acquire movable and immovable property; and

(d) to administer such property in accordance with law.

ARTICLE 27

No person shall be compelled to pay any taxes, the proceeds of which are specifically appropriated in payment of expenses for the promotion or maintenance of any particular religion or religious denomination.

ARTICLE 28

(1) No religious instruction shall be provided in any educational institution wholly maintained out of State funds.

(2) Nothing in clause (1) shall apply to an educational institution which is administered by the State but has been established under any endowment or trust which requires that religious instruction shall be imparted in such institution.

(3) No person attending any educational institution recognised by the State or receiving aid out of State funds shall be required to take part in any religious instruction that may be imparted in such institution or to attend any religious worship that may be conducted in such institution or in any premises attached thereto unless such person or, if such person is a minor, his guardian has given his consent thereto.

In Narasu Appa Mali case the Bombay High Court held that personal laws are outside the purview of Article 13 and hence, the courts have no jurisdiction to interfere with personal laws.

DOCTRINE OF ESSENTIALITY

The doctrine of essentiality is a doctrine evolved by the courts to protect only those religious practices which are essential and integral to that particular religion. (Supreme Court -Shirur Mutt case)

⇒ The right to freedom of religion not only protects the beliefs and ideas of a religion but also protects the rituals and practices integral to a religion.

⇒ Religion finds its basis in the system of doctrines regarded by those who profess that religion, but it will not be correct to say religion is nothing but a doctrine or belief.

Whenever an issue pertaining to religious practices arises, the court will have to go to the holy script of that particular religion and ascertain what the holy book interprets it as.

The courts will be able to amend the alleged religious practice only if it can be ascertained from the holy books that the alleged practice does not constitute to be an essential or integral religious practice.

Justice Chandrachud stated that the Right to Religious freedom is to be exercised without encroaching upon other fundamental rights.

⇒ If the claim of exclusion of women from entry into temples is founded in the religious texts, it would violate the Constitutional values of liberty, equality and dignity.

Religious practices can be practiced freely but not at the cost of an individual's Fundamental Rights. Fundamental Rights were the most citizen part of the Indian Constitution. It is the basic requirement that every citizen of this country needs to live with dignity and respect. (B.R Ambedkar)

Ideal of secularism changed since independence.

"India has a great heritage and it is a model for religious harmony where people of different religions live peacefully and in harmony." -Dalai Lama

While the constituent assembly members agreed on the nature of the Indian state adhering to secular principles, the word 'secular' was dropped from the preamble but the Indian constitution has always been secular. With the 42nd Amendment of the Constitution of India enacted in 1976, the Preamble to the Constitution asserted that India is a secular nation.

⇒ In S.R.Bommai case the Supreme Court has ruled that secularism forms the basic structure of the Indian Constitution.

The secularism is embedded in our constitutional values. It is not mutual exclusion, rather it is principled distance, a complex idea that allows state to be distant from all religions so that it can intervene or abstain from interference, depending upon which of these two would better promote liberty, equality and social justice.

After the 1990s India has been unsuccessfully struggling for a secular society with a neoliberal state that practically destroyed the legitimacy of any kind of shared ethos, supplanting it with an aggressive market-oriented competitive ethic.

⇒ Party-political secularism, born around 40 years ago, is a nefarious doctrine practised by all political parties, including by so-called 'secular forces'.

- ✓ This secularism has dispelled all values from the core idea and replaced them with opportunism.
- ✓ Indifferent to freedom and equality-based religious reform, it has removed critical from the term 'critical
  respect' and bizarrely interpreted 'respect' to mean cutting deals with aggressive or orthodox sections of religious groups.

The constitutional secularism is swallowed up by this party-political secularism, with not a little help from the Opposition, media and judiciary.

CULTURAL AND EDUCATIONAL RIGHTS

ARTICLE 29

(1) Any section of the citizens residing in the territory of India or any part thereof having a distinct language, script or culture of its own shall have the right to conserve the same.

(2) No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, language or any of them.

ARTICLE 30

(1) All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.

(1A) In making any law providing for the compulsory acquisition of any property of an educational institution established and administered by a minority, referred to in clause (1), the State shall ensure that the amount fixed by or determined under such law for the

acquisition of such property is such as would not restrict or abrogate the right guaranteed under that clause.

(2) The State shall not, in granting aid to educational institutions, discriminate against any educational institution on the ground that it is under the management of a minority, whether based on religion or language.

ARTICLE 31

[Compulsory acquisition of property.] Rep. by the Constitution (Forty-fourth Amendment) Act, 1978, s. 6 (w.e.f. 20-6-1979).

ARTICLE 31A Added by the Constitution First Amendment Act, 1951

(1) Notwithstanding anything contained in article 13, no law providing for—

(a) the acquisition by the State of any estate or of any rights therein or the extinguishment or modification of any such rights, or

(b) the taking over of the management of any property by the State for a limited period either in the public interest or in order to secure the proper management of the property, or

(c) the amalgamation of two or more corporations either in the public interest or in order to secure the proper management of any of the corporations, or

(d) the extinguishment or modification of any rights of managing agents, secretaries and treasurers, managing directors, directors or managers of corporations, or of any voting rights of shareholders thereof, or

(e) the extinguishment or modification of any rights accruing by virtue of any agreement, lease or licence for the purpose of searching for, or winning, any mineral or mineral oil, or the premature termination or cancellation of any such agreement, lease or licence,

shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of the rights conferred by article 14 or article 19 :

Provided that where such law is a law made by the Legislature of a State, the provisions of this article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent:

Provided further that where any law makes any provision for the acquisition by the State of any estate and where any land comprised therein is held by a person under his personal cultivation, it shall not be lawful for the State to acquire any portion of such land as is within the ceiling limit applicable to him under any law for the time being in force or any building or structure standing thereon or appurtenant thereto, unless the law relating

to the acquisition of such land, building or structure, provides for payment of compensation at a rate which shall not be less than the market value thereof.

(2) In this article,—

(a) the expression "estate" shall, in relation to any local area, have the same meaning as that

expression or its local equivalent has in the existing law relating to land tenures in force in that area and shall also include—

(i) any jagir, inam or muafi or other similar grant and in the States of 4[Tamil Nadu] and Kerala, any janmam right;

(ii) any land held under ryotwari settlement;

(iii) any land held or let for purposes of agriculture or for purposes ancillary thereto,

including waste land, forest land, land for pasture or sites of buildings and other structures occupied by cultivators of land, agricultural labourers and village artisans;

(b) the expression "rights", in relation to an estate, shall include any rights vesting in a proprietor, sub proprietor, under-proprietor, tenure-holder, 1[raiyat, under-raiyat] or other intermediary and any rights or privileges in respect of land revenue.

ARTICLE 31 B Added by the Constitution First Amendment Act, 1951

Without prejudice to the generality of the provisions contained in article 31A, none of the Acts and Regulations specified in the Ninth Schedule nor any of the provisions thereof shall be deemed to be void, or ever to have become void, on the ground that such Act, Regulation or provision is inconsistent with, or takes away or abridges any of the rights conferred by, any provisions of this Part, and notwithstanding any judgment, decree or order of any court or Tribunal to the contrary, each of the said Acts and Regulations shall, subject to the power of any competent Legislature to repeal or amend it, continue in force.

ARTICLE 31 C Added by the Constitution Twenty-fifth Amendment Act, 1971

Notwithstanding anything contained in article 13, no law giving effect to the policy of the State towards securing 4[all or any of the principles laid down in Part IV] shall be deemed to be void on the ground that it is inconsistent with, or takes away or abridges any of

the rights conferred by 5[article 14 or article 19]; and no law containing a declaration that it is for giving effect to such policy shall be called in question in any court on the ground

that it does not give effect to such policy:

Provided that where such law is made by the Legislature of a State, the provisions of this article shall not apply thereto unless such law, having been reserved for the consideration of the President, has received his assent.

ARTICLE 31 D Repaled by the Constitution Forty-third Amendment) Act, 1977

Saving of laws in respect of anti-national activities.

RIGHT TO CONSTITUTIONAL REMEDIES

ARTICLE 32

(1) The right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part is guaranteed.

(2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of *habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the* enforcement of any of the rights conferred by this Part.

(3) Without prejudice to the powers conferred on the Supreme Court by clauses (1) and (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).

(4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.

ARTICLE 32

(1) The right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part is guaranteed.

(2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part.

(3) Without prejudice to the powers conferred on the Supreme Court by clauses (1) and (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).

(4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.

- ✓ Article 32 makes the Supreme Court the safeguard .
- ✓ Writs issue power goes under the original jurisdiction of the Supreme Court.

- ✓ Article 32 can be used only to get a remedy for fundamental rights
- ✓ Privilege to move to Supreme Court can't be suspended with the exception under article 359.

Writ is writing; an instrument in writing, as a deed, bond, contract, etc.

HABEAS CORPUS

⇒ Literally means to produce the body.

⇒ Writ of habeas corpus is a bulwark of personal liberty.

⇒ A person illegally detained in confinement without legal proceedings is entitled to seek the remedy of habeas corpus.

⇒ It is available as a remedy in all cases of wrongful deprivation of personal liberty.

⇒ It is not issued where the person who is detained or against whom the writ is issued is not within the jurisdiction of the Court.

⇒ It is not issued to save the release of a person who has been imprisoned by a Court for a criminal charge.

⇒ Supreme Court held in ADM Jabalpur v. Shivakant Shukla case that the writ of Habeas

⇒ Corpus cannot be suspended even during the emergency.

⇒ The 44th Amendment, 1978, has provided that Article 21, relating to personal liberty cannot be suspended even during an emergency.

MANDAMUS

⇒ It is used for enforcement of various rights of the public.

⇒ It compels the public statutory authorities to discharge their duties.

⇒ The rule of Locus Standi is strictly followed in while issuing writ of mandamus.

⇒ It will be granted if the duty is in nature of public duty.

⇒ The Supreme Court held that mandamus might under certain circumstances lie against a private individual if it is established that he has colluded with a public authority.

⇒ The writ of Mandamus is not issued for anticipatory injury.

⇒ In India, mandamus will lie not only against officers who are bound to do a public duty but also against the Government itself (Article 226 & 361).

⇒ It will not lie upon the President and the Governor of a State in their personal capacities.

⇒ It does not lie against a private individual or body.

⇒ It will not lie against an inferior or ministerial officer who is bound to obey the orders of his superiors.

⇒ It will not lie against the State legislature to prevent from considering enacting a law alleged to be violative of constitutional provisions.

⇒ The Supreme Court held that in relation to Fundamental Rights the availability of alternative remedy cannot be an absolute bar for the issue of writ though the fact may be taken into consideration.

PROHIBITION

⇒ A writ of prohibition is issued to a lower court or a body to stop acting beyond its powers.

⇒ Prohibition writ is based on 'Prevention is better than cure'.

⇒ The writ of prohibition can be issued on infraction of Fundamental Rights..

⇒ The writ of prohibition can be issued on violation of the principles of natural justice.

⇒ The writ of prohibition can be issued on absence or Excess of jurisdiction.

⇒ The Supreme Court held that where an inferior tribunal is shown to have seized jurisdiction which does not belong to it than that consideration is irrelevant and the writ of Prohibition has to be issued as a right.

QUO WARRANTO

⇒ The meaning of writ of Quo Warranto is by what warrant.

⇒ It is issued to inquire about the legality of a claim by a person or authority to act in a public office, which he or she is not entitled to.

⇒ It is used to try the civil right to a public post.

⇒ A petition for the writ of Quo Warranto can be filed by any person though he is not an aggrieved person.

⇒ The writ of quo warranto cannot lie against an office of a private nature.

CERTIORARI

⇒ The writ of certiorari issued to quash a decision after the decision is taken by a lower tribunal while prohibition is issuable before the proceedings are completed.

⇒ The writ of certiorari is preventive as well as curative in nature.

⇒ The writ of certiorari is issued in violation of the principles of Natural Justice.

⇒ The writ of certiorari is issued in opposition to the procedure established by law.

⇒ The constitution bench of Supreme Court held that certiorari maybe and is generally granted when a court has acted (i) without jurisdiction or (ii) in excess of its jurisdiction.

⇒ The Supreme Court held that Certiorari is always available against inferior courts and not against equal or higher court.

The right to constitutional remedy was considered by Dr. Bhim Rao Ambedkar as the heart and soul of the constitution.

"One of the defining principles of Common Law is "Ubi Jus, Ibi Remedium". This maxim means "where there is a right, there is a remedy".

⇒ The Supreme Court is responsible for the administration of justice and also acts as the guardian of the constitution and the protector of fundamental rights.

"The Supreme Court would not be constrained to fold its hands in despair and plead its inability to help the citizen who has come before it for judicial redress but would have the power to issue any direction, order or writ.." Justice P.N. Bhagwati

The Supreme Court held that "there is no doubt that if a citizen of India is deterred in any case from approaching this Court in exercise of his right under Article 32 of the Constitution of India would amount to serious and direct interference in the administration of justice in the country".

⇒ Article 32 stands for the equitable principle of natural justice.

⇒ The writs allow Public Interest Litigations to be recorded for the larger interest of the public.

⇒ The Writs are one of the first essentials of constitutional democracy.

However, there are some conditions under which the Supreme Court may refuse to grant the remedy -

Res Judicata

⇒ Res Judicata is applicable on a writ petition filed under Article 32. However, Habeas Corpus is an exception to this principle but it can't be filed on the same facts more than once.

Inordinate Delay In Filing Petition

⇒ The Court may refuse to grant relief when there is an inordinate delaying filing the petition without reasonable explanations.

Malicious Petition

⇒ If a petition is malicious and if it is so found out, it may be liable to be dismissed.

Misrepresentation or Suppression of Material facts

⇒ The Petition can be dismissed at any stage, if the petitioner is found to have a misrepresentation of material facts.

Existence of adequate alternative remedy

⇒ The existence of an alternate remedy is not an absolute Rule of Law and there can be valid exceptions. 32.

DIFFERENCE BETWEEN ARTICLE 32 & ARTICLE 226

⇒ Article 32 can be invoked only for the enforcement of Fundamental Rights whereas Article 226 can be invoked not only for the enforcement of Fundamental Rights but for 'any other purpose' as well.

⇒ Article 32 can also be suspended during emergency Period while The President of India cannot suspend Article 226 during the period of Emergency.

⇒ Power to issue writs under Article 32 is mandatory for the Supreme court whereas High court has discretionary power to issue writs under Article 226.

⇒ The order passed by the Supreme court under Article 32 will always supersede the order passed by the High courts under Article 226.

ARTICLE 32 A Added by the Constitution Forty-second Amendment) Act, 1976

⇒ Constitutional validity of State laws not to be considered in proceedings under article 32.

⇒ Repaled by the Constitution Forty-third Amendment) Act, 1977

ARTICLE 33 Added by the Constitution Fiftieth Amendment Act, 1984

⇒ Parliament may, by law, determine to what extent any of the rights conferred by this Part shall, in their application to,—

- ❖ the members of the Armed Forces; or
- ❖ the members of the Forces charged with the maintenance of public order; or
- ❖ persons employed in any bureau or other organisation established by the State for purposes of intelligence or counter intelligence; or
- ❖ persons employed in, or in connection with, the telecommunication systems set up for the purposes of any Force, bureau or organisation referred to in clauses (a) to (c), be restricted or abrogated so as to ensure the proper discharge of their duties and the maintenance of discipline among them.

ARTICLE 34

⇒ Notwithstanding anything in the foregoing provisions of this Part, Parliament may by law indemnify any person in the service of the Union or of a State or any other person in respect of any act done by him in connection with the maintenance or restoration of order in any area within the territory of India where martial law was in force or validate any sentence passed,

⇒ punishment inflicted, forfeiture ordered or other act done under martial law in such area.

ARTICLE 35

⇒ Notwithstanding anything in this Constitution,—

⇒ Parliament shall have, and the Legislature of a State shall not have, power to make laws—

⇒ with respect to any of the matters which under clause (3) of article 16, clause (3) of

⇒ article 32, article 33 and article 34 may be provided for by law made by Parliament; and

⇒ (ii) for prescribing punishment for those acts which are declared to be offences under this Part; and Parliament shall, as soon as may be after the commencement of this Constitution, make laws for prescribing punishment for the acts referred

⇒ to in sub-clause (ii); any law in force immediately before the commencement of this Constitution in the territory of India with respect to any of the matters referred to in sub-clause (i) of clause (a) or providing for punishment for any act referred to in sub-clause (ii) of that clause shall, subject to the terms thereof and to any adaptations and modifications that may be made therein under article 372, continue in force until altered or repealed or amended by Parliament.

PART IV

DIRECTIVE PRINCIPLES OF STATE POLICY

(ARTICLE 36 TO 51)

THE KERNEL OF THE INDIAN CONSTITUTION

⇒ The concept behind the DPSP is not only establishing political democracy but also social and economic democracy in the state.

⇒ According to Dr B R Ambedkar, these principles are 'novel features' of the Constitution.

⇒ The source of the concept of DPSP is the Spanish Constitution from which it came in the Irish Constitution.

⇒ The Government of India Act also had some instructions related to this concept which became an important source of DPSP at that time.

⇒ Sapru Report of 1945 divided fundamental rights into justifiable and non-justifiable rights.

⇒ Non-justifiable rights were included in part IV of the Constitution of India as Directive Principles of State Policy.

⇒ The expression "Justice – Social, economic and political" that is mentioned in the preamble, is the ultimate aim of the DPSP.

FEATURES

SOCIALIST PRINCIPLES

⇒ Its ultimate aim is to provide social and economic justice to all its citizens so that the state can fulfil the criteria required for a welfare state.

⇒ Article 38, Article 39, Article 39 A, Article 41, Article 42, Article 43, Article 43 A and Article 47.

ARTICLE 38

(1)The State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic and political, shall inform all the institutions of the national life.

(2) The State shall, in particular, strive to minimise the inequalities in income, and endeavour to eliminate inequalities in status, facilities and opportunities, not only amongst individuals but also amongst groups of people residing in different areas or engaged in different vocations.

- Talks about Social, Political and Economic Justice.

ARTICLE 39

The State shall, in particular, direct its policy towards securing—

(a) that the citizens, men and women equally, have the right to an adequate means of livelihood;

(b) that the ownership and control of the material resources of the community are so distributed as best to sub serve the common good;

(c) that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment;

(d) that there is equal pay for equal work for both men and women;

(e) that the health and strength of workers, men and women, and the tender age of children are not abused and that citizens are not forced by economic necessity to enter avocations unsuited to their age or strength;

(f) that children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that childhood and youth are protected against exploitation and against moral and material abandonment.

- Certain principles of policy to be followed by the State.

ARTICLE 39A

The State shall secure that the operation of the legal system promotes justice, on a basis of equal opportunity, and shall, in particular, provide free legal aid, by suitable legislation or schemes or in any other way, to ensure that opportunities for securing justice are not denied to any citizen by reason of economic or other disabilities.

- Equal justice and free legal aid.

ARTICLE 41

The State shall, within the limits of its economic capacity and development, make effective provision for securing the right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement, and in other cases of undeserved want.

- Talks about Welfare Government.

ARTICLE 42

The State shall make provision for securing just and humane conditions of work and for maternity relief.

ARTICLE 43

The State shall endeavour to secure, by suitable legislation or economic organisation or in any other way, to all workers, agricultural, industrial or otherwise, work, a living wage, conditions of work ensuring a decent standard of life and full enjoyment of leisure and social and cultural opportunities

and, in particular, the State shall endeavour to promote cottage industries on an individual or co-operative basis in rural areas.

ARTICLE 43 A

The State shall take steps, by suitable legislation or in any other way, to secure the participation of workers in the management of undertakings, establishments or other organisations engaged in any industry.

ARTICLE 47

The State shall regard the raising of the level of nutrition and the standard of living of its people and the improvement of public health as among its primary duties and, in particular, the State shall endeavour to bring about prohibition of the consumption except for medicinal purposes of intoxicating drinks and of drugs which are injurious to health.

GANDHIAN PRINCIPLES

Gandhian thinking promotes a non-violent social order. Swaraj (Self-rule), Sarvodaya (welfare for all) and swavlamban (self-reliance) are the basic principles of Gandhian thought. His philosophy and actions guided not only our freedom movement but also the framing of the Indian Constitution. The following Directive Principles, in particular, reflect Gandhian thought:

⇒ The state shall promote the educational and economic interests of the weaker sections of the society and in particular the interests of the scheduled castes and scheduled tribes. (Article 46)

⇒ The state shall take steps to organize the village panchayats. These panchayats should be given such powers and authority as may be necessary to enable them to function as units of self-government. (Article 40)

⇒ The state shall make efforts to prevent the consumption of alcoholic drinks and other harmful drugs. (Article 47)

⇒ The state shall try to promote cottage industries in rural areas. (Article 43)

⇒ The State shall endeavour to promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies. (Article 43 B)

⇒ The State shall endeavour to organise agriculture and animal husbandry on modern and scientific lines and shall, in particular, take steps for preserving and improving the breeds, and prohibiting the slaughter, of cows and calves and other milch and draught cattle. (Article 48)

LIBERAL-INTELLECTUAL PRINCIPLES

- These principles follow the 'Liberalism' ideology.
- Article 44, Article 45, Article 48, Article 48 A, Article 49, Article 50 and Article 51.

ARTICLE 44

The State shall endeavour to secure for the citizens a uniform civil code throughout the territory of India.

ARTICLE 45

The State shall endeavour to provide early childhood care and education for all children until they complete the age of SIX years.

- Free and compulsory education for the children until they are 14 years old.

ARTICLE 48 A

The State shall endeavour to protect and improve the environment and to safeguard the forests and wild life of the country.

ARTICLE 49

It shall be the obligation of the State to protect every monument or place or object of artistic or historic interest, 2[declared by or under law made by Parliament] to be of national importance, from spoliation, disfigurement, destruction, removal, disposal or export, as the case may be.

ARTICLE 50

The State shall take steps to separate the judiciary from the executive in the public services of the State.

ARTICLE 51

The State shall endeavour to—

(a) promote international peace and security;

(b) maintain just and honourable relations between nations;

(c) foster respect for international law and treaty obligations in the dealings of organised peoples with one another; and

(d) encourage settlement of international disputes by arbitration.

AMENDMENT

42nd Amendment

- Article 39(f), Article 39 A, Article 43 A, Article 48 A

44th Amendment

- Article 38(2)

86th Amendment

- Changed the subject of Article 45

97th Amendment

- Article 43(B)

SIGNIFICANCE

⇒ DPSP are based on Vox Populi (voice of the people).

⇒ DPSP makes a responsibility of the State to develop the welfare state.

⇒ DPSP helps the government to make policies and laws for the purpose of securing justice and welfare in the State.

⇒ DPSP are supplementary to Fundamental Rights which offers political rights and other freedoms.

⇒ DPSP ensures that every Government will follow the set of principles in the form of DPSP while formulating its laws.

⇒ DPSP are positive directions for the State to secure social and economic justice.

⇒ DPSP provide useful information to the courts in interpreting the provisions in the Constitution

CRITICAL ANALYSIS

Non- justiciable and abstract Directive Principles which may be safely ignored by the legislator…do not enhance the true prestige of a written constitution." M. Anantnarayan

Many critics have called these Directive Principles of State Policy as not better than 'New Year Greetings'. Even the rationale of inserting such high sounding promises has been questioned. It has been asserted that Directives are in the form of holy wishes having no legal sanction behind them.

⇒ These principles are unenforceable directives, these principles do not carry any weight. Their violation or non-realization cannot be challenged in any court.

⇒ The Constitution does not make them justiciable and neither fixes the time-limit within which these are to be secured. T. Shah describe it as a cheque payable by the bank at its convenience.

⇒ These Directives are neither properly classified nor logically arranged. The declaration mixes up relatively unimportant issues with the most vital economic and social questions.

⇒ The formulation of the Directive Principles of State Policy can hardly be considered inspiring. It is both vague and repetitive.

⇒ Directive principles are designed to serve as pious promises for creating an impression about the just and useful exercise of the power of the state. They aim to secure support by making promises and not through action.

⇒ The critics criticize Part IV also for the fact that most of the Directive Principles incorporated in it are based on age-old and foreign philosophical foundations which essentially the foundations of Fabian Socialism.

⇒ Some directives can only be successfully executed in a utopian society. They are therefore not ideal.

⇒ Gaining support through these vague moral promises and not through appropriate firm actions makes it useless.

However, despite the various criticisms, the importance and significance of the Directive Principle of State Policy cannot be undermined.

Being a part of the Constitution, Directive Principles represent not the temporary will of the majority, but the deliberate wisdom of the nation expressed through the Constituent Assembly. (Chief Justice Kania)

DPSP & FR

F R	DPSP
❖Present in Part III	❖ Present in Part IV
❖Essential rights	❖Guidelines to state
❖Legally enforceable	❖ Not enforceable
❖ Individual welfare	❖ Public welfare
❖Negative	❖ Positive
❖Political democracy	❖Social and economic democracy
❖Courts can enforce the right against the Government	❖Do not take away any legislative power from the appropriate legislature
❖Contravention of any fundamental rights can be rescinded by the court.	❖Courts cannot declare any law as void on the ground that it contravenes any DPSP

⇒ The Supreme Court held in State of Madras v. Champakam case that the Fundamental rights are superior to the DPSP and the Fundamental Rights under Part III prevails over DPSP in case of any conflict between them.

⇒ The Supreme Court held in Golaknath case that the provisions mentioned under Part III cannot be undermined just to implement the provisions given under Part IV.

⇒ The Supreme Court held in Minerva Mills case that –

⇒ It restored Article 31C to its pre-1976 position. A law would be protected by Article 31C only in the case if it has been made to implement the Article 39 (b) and Article39 (c) of the DPSP and not any of the other directive included in Part IV.

⇒ There is a fine balance in the Constitution between the DPSP and the Fundamental Rights, which should be adhered by the Courts without placing any of them as superior.

⇒ The Supreme Court held in Unnikrshanan case that the Fundamental Rights and Directive Principles are not exclusive but complementary to each other. The Court said that the Fundamental Rights are the ways through which the goals given in Part IV can be achieved.

FUNDAMENTAL DUTIES

PART IVA

ARTICLE 51 A

Added by the Constitution (Forty-second Amendment) Act, 1976

Gandhi said, Begin with a Charter of Duties of man, and, I promise, the rights will follow as spring follows winter.

⇒ Rights and duties are two sides of the same coin.

⇒ Gandhi ji said that the true source of right is duty.

⇒ "Gandhian Constitution For Free India", by Shri S.N. Aggrawal has a full Chapter on Fundamental Rights and Duties.

⇒ A suggestion to define the duties of the citizen was mooted by Dr. Rajendra Prasad in constituent assembly.

⇒ Article 29 (1) of Universal Declaration of Human Rights (1948), stated that Everyone has duties to the community in which halone the free and full development of his personality is possible.

⇒ Shri H.R.Gokhale, exhorted the legal community to consider the possibility of introducing a Chapter on Fundamental Duties in the Indian Constitution.

⇒ Government appointed the Swaran Singh Committee.

⇒ The Swaran Singh Committee recommended inclusion of the following eight Fundamental Duties for incorporation into the Constitution.

⇒ The duties proposed by the Committee were to be obligatory in nature.

⇒ The duties were not made enforceable in a Court of Law.

⇒ The objects and reasons of the Fundamental duties was intended to achieve the objective of socio-economic revolution, which end poverty and ignorance and disease and inequality of opportunity.

⇒ Shri H.R.Gokhale described the Chapter as "by far the most fundamental and very important for the purpose of every generation, the present as well as the future".

⇒ The Fundamental Duties contain noble principles.

⇒ The Fundamental Duties is obligatory on the part of every citizen who seeks the enforcement of his Fundamental Rights not to violate the Fundamental Rights of any other person.

⇒ Our Constitution was notable for highlighting Directive Principles along with Fundamental Rights. Neither can bear flower and fruit without performance of the duties".

ARTICLE 51A

It shall be the duty of every citizen of India—

(a) to abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem;

(b) to cherish and follow the noble ideals which inspired our national struggle for freedom;

(c) to uphold and protect the sovereignty, unity and integrity of India;

(d) to defend the country and render national service when called upon to do so;

(e) to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women;

(f) to value and preserve the rich heritage of our composite culture;

(g) to protect and improve the natural environment including forests, lakes, rivers and wild life, and to have compassion for living creatures;

(h) to develop the scientific temper, humanism and the spirit of inquiry and reform;

(i) to safeguard public property and to abjure violence;

(j) to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavour and achievement;

(k) who is a parent or guardian to provide opportunities for education to his child or, as the case may be, ward between the age of six and fourteen years. Added by the Constitution Eighty-sixth Amendment Act, 2002

SIGMA ACADEMY

PRESIDENT

PART V

There shall be a President of India. (Article 52)

ARTICLE 53

(1) The executive power of the Union shall be vested in the President and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution.

(2) Without prejudice to the generality of the foregoing provision, the supreme command of the Defence Forces of the Union shall be vested in the President and the exercise thereof shall be regulated by law.

(3) Nothing in this article shall—

(a) be deemed to transfer to the President any functions conferred by any existing law on the Government of any State or other authority; or

(b) prevent Parliament from conferring by law functions on authorities other than the President.

AS A TITULAR HEAD

The real position of the President of India is clouded with different suspects as a mere figure head, titular head, rubber stamp or golden zero.

⇒ The President is the head of the State, not of the Government.

⇒ Article 53 clearly states that "the executive power of the Union shall be vested in the President which means that the Parliament has the power to confer only the functions of the President on any other authorities and not the powers.

⇒ Does not have the Presidential form of Government.

⇒ British tradition still prevails in our constitution.

⇒ The last but not the least is that the President is Constitutionally bound to act on the advise of the Council of Ministers and has few discretionary powers, he/she is referred to as the titular head of the State.

The Constitution 42nd Amendment Act, 1976 provided in article 74 that "there shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President who shall, in the exercise of his functions, act in accordance with such advice." That is how the rubber stamp-theory gained currency.

By the Constitution (Forty-fourth Amendment) Act, 1978 provided that the President may require the Council of Ministers to reconsider such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered after such reconsideration.

DISCRETIONARY POWERS

The President is the De Jure head of the state therefore it is his responsibility to preserve, protect and defend the Constitution of India. He is not a ceremonial head so all important decisions are taken in the name of the President, though most of these will be based on the binding advice given by Council of Ministers.

⇒ The President is at his discretion to give his assent, or withhold his assent for an indefinite period or return the Bill to the House for reconsideration (except in case of a money bill). The power of pocket veto (article 111) was used by former President Giani Zail Singh in 1986 when he refused to grant assent to the Post Office (Amendment) Bill.

⇒ Article 78 of the Constitution empowers the President to seek information regarding the affairs of the Union Government from the Prime Minister.

⇒ When no political party or a coalition of parties assumes a majority in the Lok Sabha post general elections, he may exercise his discretion in selecting someone who in his opinion will be able to form a stable government.

⇒ The Supreme Court held in Dinesh Chandra case that to argue pleasure could be interpreted in Art.75(2) to mean the President can dismiss any minister at any time, at his will.

⇒ When a Prime Minister in office dies suddenly and there is no successor to replace him, the President has to take charge in the selection and appointment of the next Prime Minister (Rajeev Gandhi by Zail Singh).

⇒ The president wields a major responsibility in taking important administrative decisions in the governance of a caretaker government.

⇒ When a Council of Ministers loses majority in the Lok Sabha, it is the discretion of the President to decide if the house should be dissolved or not.

⇒ According to Article 85, the President enjoys the discretion of summoning and proroguing both the Houses.

The discretionary powers vested with the President empower him with the authority to check the arbitrariness of the executive and wield a substantial amount of control over them thereby protecting the interests of the vast majority in the country and fulfilling the responsibility of a true leader.

IMMUNITIES TO THE PRESIDENT (ARTICLE - 361)

⇒ The actions taken in good faith, in exercise of powers or performance of functions, by the President can not be challenged in any court.

⇒ No civil suit can be instituted against him in any court either in personal capacity or in official capacity.

⇒ The President is not liable for any criminal proceedings in existing matters or in future matter during he holds the office of the President.

⇒ No writ of Mandamus or Quo Warranto can be issued against him.

ELECTION

ARTICLE 54

The President shall be elected by the members of an electoral college consisting of—

(a) the elected members of both Houses of Parliament; and

(b) the elected members of the Legislative Assemblies of the States.

(In this article and in article 55, "State" includes the National Capital Territory of Delhi and the Union territory of Pondicherry, by the Constitution (Seventieth Amendment) Act, 1992).

ARTICLE 55

(1) As far as practicable, there shall be uniformity in the scale of representation of the different States at the election of the President.

(2) For the purpose of securing such uniformity among the States inter se as well as parity between the States as a whole and the Union, the number of votes which each elected member of Parliament and of the Legislative Assembly of each State is entitled to cast at such election shall be determined in the following manner:—

(a) every elected member of the Legislative Assembly of a State shall have as many votes as there are multiples of one thousand in the quotient obtained by dividing the population of the State by the total number of the elected members of the Assembly;

(b) if, after taking the said multiples of one thousand, the remainder is not less than five hundred, then the vote of each member referred to in sub-clause (a) shall be further increased by one;

(c) each elected member of either House of Parliament shall have such number of votes as may be obtained by dividing the total number of votes assigned to the members of the Legislative Assemblies of the States under sub-clauses (a) and

(b) by the total number of the elected members of both Houses of Parliament, fractions exceeding one half being counted as one and other fractions being disregarded.

(3) The election of the President shall be held in accordance with the system of proportional representation by means of the single transferable vote and the voting at such election shall be by secret ballot.

(In this article, the expression "population" means the population as ascertained at the last preceding census of which the relevant figures have been published: Provided that the reference in this Explanation to the last preceding census of which the relevant figures have been published shall, until the relevant figures for the first census taken after the year 1[2026] have been published, be construed as a reference to the 1971 census). (by the Constitution Forty-second Amendment Act, 1976).

ARTICLE 57

A person who holds, or who has held, office as President shall, subject to the other provisions of this Constitution, be eligible for re-election to that office.

ARTICLE 58

(1) No person shall be eligible for election as President unless he—

(a) is a citizen of India,

(b) has completed the age of thirty-five years, and

(c) is qualified for election as a member of the House of the People.

(2) A person shall not be eligible for election as President if he holds any office of profit under the Government of India or the Government of any State or under any local or other authority subject to the control of any of the said Governments.

ARTICLE 59

(1) The President shall not be a member of either House of Parliament or of a House of the Legislature of any State, and if a member of either House of Parliament

or of a House of the Legislature of any State be elected President, he shall be deemed to have vacated his seat in that House on the date on which he enters upon his office as President.

(2) The President shall not hold any other office of profit.

(3) The President shall be entitled without payment of rent to the use of his official residences and shall be also entitled to such emoluments, allowances and privileges as may be determined by Parliament by law and, until provision in that behalf is so made, such emoluments, allowances and privileges as are specified in the Second Schedule.

(4) The emoluments and allowances of the President shall not be diminished during his term of office.

ARTICLE 60

Every President and every person acting as President or discharging the functions of the President shall, before entering upon his office, make and subscribe in the presence of the Chief Justice of India or, in his absence, the senior-most Judge of the Supreme Court available, an oath or affirmation.

"I, A.B., do swear in the name of God solemnly affirm that I will faithfully execute the office of President (or discharge the functions of the President) of India and will to the best of my ability

preserve, protect and defend the Constitution and the law and that I will devote myself to the service and well-being of the people of India".

ARTICLE 62

(1) An election to fill a vacancy caused by the expiration of the term of office of President shall be completed before the expiration of the term.

(2) An election to fill a vacancy in the office of President occurring by reason of his death, resignation or removal, or otherwise shall be held as soon as possible after, and in no case

later than six months from, the date of occurrence of the vacancy; and the person elected to fill the vacancy shall, subject to the provisions of article 56, be entitled to hold office for the full term of five years from the date on which he enters upon his office.

ARTICLE 71 (Thirty-ninth Amendment) Act, 1975)

(1) All doubts and disputes arising out of or in connection with the election of a President or Vice-President shall be inquired into and decided by the Supreme Court whose decision shall be final.

(2) If the election of a person as President or Vice- President is declared void by the Supreme Court, acts done by him in the exercise and performance of the powers and duties of the office of President or Vice-President, as the case may be, on or before the date of the decision of the Supreme Court shall not be invalidated by reason of that declaration.

(3) Subject to the provisions of this Constitution, Parliament may by law regulate any matter relating to or connected with the election of a President or Vice-President.

(4) The election of a person as President or Vice-President shall not be called in question on the ground of the existence of any vacancy for whatever reason among the members of the electoral college electing him.

TENURE

ARTICLE 56

(1) The President shall hold office for a term of five years from the date on which he enters upon his office: Provided that—

(a) the President may, by writing under his hand addressed to the Vice-President, resign his office;

(b) the President may, for violation of the Constitution, be removed from office by impeachment in the manner provided in article 61;

(c) the President shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon his office.

(2) Any resignation addressed to the Vice-President under clause (a) of the proviso to clause (1) shall forthwith be communicated by him to the Speaker of the House of the People.

ARTICLE 61

(1) When a President is to be impeached for violation of the Constitution, the charge shall be preferred by either House of Parliament.

DISTINCTION BETWEEN INDIAN PRESIDENT AND AMERICAN PRESIDENT

Apparently there seems to be much in common between the Presidents of India and USA. Both are elected heads of their respective. But in fact there is nothing in common between the two except their names.

⇒ The President of India is Head of the State, but not the head of Government while the US President is that the head of state and mayor of state.

⇒ US president is more or less directly elected whereas the Indian President is indirectly elected. The advantage of the directly elected head of the government is the stability of the government.

⇒ The Council of Ministers is more powerful than the President while in US the members of the cupboard are chosen by the President and they are called secretaries not Ministers.

⇒ The President of India is sure to accept the recommendation of the Council of Ministers. He has the power to return its advice to the Council of Ministers for reconsideration. But he is bound to accept it, if the same advice is sent back to him after reconsideration by the Council of Ministers. The US President is Boss and Secretaries are his subordinates and he is not sure to stick on the recommendation of the cupboard and have perfect veto.

⇒ Doctrine of Separation of Powers strictly appealed in America. The President is not a member of legislature. It is the responsibility of the Congress to make the laws.

⇒ American President can only be elected twice where as Indian can be chosen multiple times.

⇒ Indian President can only be impeached only for violation of constitution where as the US President can be impeached for misbehaviour too.

Thus it is said that the American President exercises" The largest amount of authority ever wielded by any man in a democracy". The Indian President has no such plenitude of powers in actual fact.

POWERS

- LEGISLATIVE POWER
- JUDICIAL POWER
- FINANCIAL POWER
- MILITARY POWER
- DIPLOMATIC POWER
- CEREMONIAL POWER
- NORMAL POWER

LEGISLATIVE POWER

⇒ POWER TO NOMINATE THE MEMBERS OF THE PARLIAMENT

ARTICLE 80(3) The members to be nominated by the President under sub-clause (a) of clause (1) shall consist of persons having special knowledge or practical experience in respect of such matters as the following, namely:—

Literature, science, art and social service

⇒ POWER TO SUMMON THE SESSION OF THE PARLIAMENT

⇒ POWER TO PROROGUE OR END THE SESSIONS, SENDING A MESSAGE TO THE PARLIAMENT

ARTICLE 85

(1) The President shall from time to time summon each House of Parliament to meet at such time and place as he thinks fit, but **SIX MONTHS** shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session.

(2) The President may from time to time—

(a) prorogue the Houses or either House;

(b) dissolve the House of the People.

ARTICLE 86(1) The President may address either House of Parliament or both Houses assembled together, and for that purpose require the attendance of members.

(2) The President may send messages to either House of Parliament, whether with respect to a Bill then pending in Parliament or otherwise, and a House to which any message is so sent shall with all convenient despatch consider any matter required by the message to be taken

into consideration.

ARTICLE 87(1) At the commencement of the first session after each general election to the House of the People and at the commencement of the first session of each year the President shall address both Houses of Parliament assembled together and inform Parliament of the causes of its summons.

ARTICLE 108 The President calls Joint sitting of both Houses in certain cases.

⇒ POWER TO ASSENT BILLS

ARTICLE 111 When a Bill has been passed by the Houses of Parliament, it shall be presented to the President, and the President shall declare either that he assents to the Bill, or that he withholds assent therefrom:

Provided that the President may, as soon as possible after the presentation to him of a Bill for assent, return the Bill if it is not a **MONEY BILL** to the Houses with a message requesting that

they will reconsider the Bill or any specified provisions thereof and, in particular, will consider the desirability of introducing any such amendments as he may recommend in his message, and when a Bill is so returned, the Houses shall reconsider the Bill accordingly, and if the Bill is passed again by the Houses with or without amendment and presented to

the President for assent, the President shall not with hold assent there from.

⇒ POWER TO PROCLAIM AN ORDINANCE

ARTICLE 123

(1) If at any time, **except when both Houses of Parliament are in session**, the President is satisfied that circumstances exist which render it necessary for him to take immediate action, he may **promulgate such Ordinances** as the circumstances appear to him to require.

(2) An Ordinance promulgated under this article shall have the same force and effect as an Act of Parliament, but every such Ordinance—

(a) shall be laid before both Houses of Parliament and shall cease to operate at the expiration of **six weeks** from the reassembly of Parliament, or, if before the expiration of that period resolutions disapproving it are passed by both Houses, upon the passing of the second of those resolutions; and

(b) may be **withdrawn** at any time by the President.

(3) If and so far as an Ordinance under this article makes any provision which Parliament would not under this Constitution be competent to enact, it shall be void.

- Its life span is 6 months and 6 weeks.

ORDINANCE MAKING POWER IS TO BE USED AS A LAST RESORT

Ordinance is a constitutional fraud. Supreme Court

Article 123 of the Constitution allows the head of executive to promulgate ordinances to deal with situations which require immediate attention.

⇒ Temporary laws which can be issued by the President when Parliament is not in session.

⇒ Issued on the advice of the Union Cabinet.

⇒ To allow governments to take immediate legislative action if circumstances make it necessary to do so.

Ordinances appear to be a loophole that the ruling Governments have found to push laws without bringing much attention or spending time in Parliament and also lack of consensus in Parliament. Exercise of repeated re-promulgation of ordinances by Article 123 is a subversion and perversion of Article 123 itself.

⇒ It is unconstitutional to repromulgate ordinances, unless in exceptional circumstances.(D. C. Wadhwa case)

SAFEGAURD

⇒ When both the Houses of Parliament are not in session. Thus, the power of the President to legislate by ordinance is not a parallel power of legislation.

⇒ They can only be made about subjects on which the Parliament has the power to make laws.

⇒ The circumstances make it necessary for him to take immediate action.

- ❖ The President's satisfaction can be questioned in a court on the ground of mala-fide. (Cooper case)

⇒ An ordinance cannot abridge or take away any of the fundamental rights.

⇒ Must be laid before both the Houses of Parliament when it reassembles.

The sanctity of the Constitution rests on the fact that there be a never-ending tussle amongst the three branches of the government so that the bird of democracy may sing its beautiful song all day. However, this requires constant scrutiny by the branches, and the citizens alike.

JUDICIAL POWER

ARTICLE 72

The pardon power is a part of the Constitutional scheme (Article 72) to repair potential judicial errors. The President has the authority to give pardons, reprieves, respites, or remissions of punishment, as well as to suspend, remit, or commute the sentence of anyone who has been convicted of a crime -

- ❖ Where the punishment or sentence is by a Court Martial.
- ❖ Where the punishment or sentence is for an offense against any law relating to a matter to which the executive power of the Union extends.
- ❖ Where the sentence is a sentence of death.

⇒ Pardon removes both the sentence and the conviction.

⇒ Commutation means to replace the punishment with less severe punishment.

⇒ Remission means the reduction of the amount of sentence without changing its character.

⇒ Respite means awarding a lesser punishment on some special grounds.

⇒ Reprieve means temporary suspension of death sentence.

It is subject to judicial review on the grounds mentioned in Maru Ram case -

⇒ The order has been passed without application of mind.

⇒ The order is mala fide.

⇒ The order has been passed on extraneous or wholly irrelevant considerations.

⇒ Relevant material has been kept out of consideration.

Granting of clemency by the President can be challenged on the following grounds (Epuru Sudhakar case).

Delay by the government in taking a decision about the mercy petition of the death row convicts was in fact a valid ground for commutation of their sentence (Shatrughan Chauhan case).

The Supreme Court held in Dhananjoy Chatterjee alias Dhana v State of West Bengal that the power under Articles 72 and 161 of the Constitution can be exercised by the Central and State Governments, not by the President or Governor on their own. The advice of the appropriate Government binds the Head of the state.

The Supreme Court held in Keher Singh v. Union of India held that the pardoning power is an act which is done under Constitutional scheme. It further said that it should be compared with the American President who acts on his own and not like the crown in the United Kingdom, where it acts on the ministerial advice

ARTICLE 143

(1) If at any time it appears to the President that a question of law or fact has arisen, or is likely to arise, which is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question to that Court for consideration and the Court may, after such hearing as it thinks fit, report to the President its opinion thereon.

FINANCIAL POWER

Introduction of the budget(Article 112), levy of taxes, a power to assent the financial bills, a power to constitute Finance Commission(Article 280), presentation of audit report etc. are some of the financial powers of the President. The contingency fund(Article 267) at his disposal.

MILITARY POWER

The President is the supreme commander-in-chief of the defense force. It is his duty to refrain the state from foreign aggression. He is authorized to extend the foreign relations and to sign the treaties with different sovereign states.

DIPLOMATIC POWER

The negotiation of all treaties and agreements are made in the name of the President. He accredits the ambassadors and envoys to foreign States and accepts the letters of credence of the foreign diplomatic representatives.

NORMAL POWER

⇒ The President appoints the Prime Minister, the Judges of Supreme Court and High Court and the high officials like C.A.G., Election Commissioners, CVC, Member of U.P.S.C, Governors of different states etc.

⇒ The President can remove any minister from the Council of ministers of the Parliament, the Governor of any state, the judges of the Supreme Court, High Courts, Election Commissioners, the members of the U.P.S.C.

EMERGENCY POWERS

NATIONAL EMERGENCY

ARTICLE 352

(1) If the President is satisfied that a grave emergency exists whereby the security of India or of any part of the territory thereof is threatened, whether by war or external aggression or [armed rebellion (by the Constitution (Forty-fourth Amendment) Act, 1978)], he may, by Proclamation, make a declaration to that effect in respect of the **whole** of India or of such **part of the territory** thereof as may be specified in the Proclamation.. (by the Constitution (Forty-second Amendment) Act, 1976)

(3) The President shall not issue a Proclamation under clause (1) or a Proclamation varying such Proclamation unless the decision of the **UNION CABINET** that such a Proclamation may be issued has been communicated to him in **WRITING**.

(4) Every Proclamation issued under this article shall be laid before each House of Parliament and shall, except where it is a Proclamation revoking a previous Proclamation, cease to operate at the expiration of one month unless before the expiration of that period it has been approved by resolution of both Houses of Parliament:

If any such Proclamation is issued at a time when the House of the People has been dissolved, or the dissolution of the House of the People takes place during the period of one month referred to in this clause, and if a resolution approving the Proclamation has been passed by the Council of States, but no resolution with respect to such Proclamation has been passed by the House of the People before the expiration of that period, the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution, unless before the expiration of the said period of thirty days a resolution approving the Proclamation has been also passed by the House of the People.

(5) A Proclamation so approved shall, unless revoked, cease to operate on the expiration of a period of **SIX MONTHS** from the date of the passing of the second of the resolutions approving the Proclamation under clause (4).

(6) For the purposes of clauses (4) and (5), a resolution may be passed by either House of Parliament only by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting.

(7) Notwithstanding anything contained in the foregoing clauses, the President shall revoke a Proclamation issued under clause (1) or a Proclamation varying such Proclamation if the House of the People passes a resolution disapproving, or, as the case may be, disapproving the continuance in force of, such Proclamation.

(8) Where a notice in writing signed by not less than **ONE-TENTH** of the total number of members of the House of the People has been given, of their intention to move a resolution for disapproving.

(a) to the Speaker, if the House is in session; or

(b) to the President, if the House is not in session, a special sitting of the House shall be held within **FOURTEEN DAYS** from the date on which such notice is received by the Speaker, or, as the case may be, by the President, for the purpose of considering such resolution.

⇒ President announces this emergency on the grounds of external aggression of Article 352. China attack on India.

- ❖ Longest period (October 1962- January 1968)

⇒ President announces this emergency on the grounds of external aggression of Article 352 Pakistan attack on India- 3rd December 1971.

⇒ President announces this emergency on the grounds of internal disturbance of Article 352 (25 June 1975- 23 march 1977)

ARTCLE 353

While a Proclamation of Emergency is in operation, then -

(a) notwithstanding anything in this Constitution, the executive power of the Union shall extend to the giving of directions to any State as to the manner in which the executive power thereof is to be exercised.

(b) the power of Parliament to make laws with respect to any matter shall include power to make laws conferring powers and imposing duties, or authorising the conferring of powers and the imposition of duties, upon the Union or officers and authorities of the Union as respects that matter, notwithstanding that it is one which is not enumerated in the Union List.

ARTICLE 354

(1) The President may, while a Proclamation of Emergency is in operation, by order direct that all or any of the provisions of articles 268 to 279 shall for such period, not extending invisions of this Constitution. any case beyond the expiration of the financial year in which such Proclamation ceases to operate, as may be specified in the order, have effect subject to such exceptions or modifications as he thinks fit.

(2) Every order made under clause (1) shall, as soon as may be after it is made, be laid before each House of Parliament.

ARTICLE 355

It shall be the duty of the Union to protect every State against external aggression and internal disturbance and to ensure that the Government of every State is carried on in accordance with the provision of the constitution.

ARTICLE 358

While a Proclamation of Emergency declaring that the security of India or any part of the territory thereof is threatened by war or by external aggression is in operation, nothing in article 19 shall restrict the power of the State as defined in Part III to make any law or to take any executive action which the State would but for the provisions contained in that Part be competent to make or to take, but any law so made shall, to the extent of the incompetency, cease to have effect as soon as the Proclamation ceases to operate, except as respects things done or omitted to be done before the law so ceases to have effect.

ARTICLE 359

(1) Where a Proclamation of Emergency is in operation, the President may by order declare that the right to move any court for the enforcement of such of the rights conferred by Part III (except articles 20 and 21)] as may be mentioned in the order and all proceedings pending in any court for the enforcement of the rights so mentioned shall remain suspended for the period during which the Proclamation is in force or for such shorter period as may be specified in the order.

(1A) While an order made under clause (1) mentioning any of 1[the rights conferred by Part III (except articles 20 and 21)] is in operation, nothing in that Part conferring those rights shall restrict the power of the State as defined in the said Part to make any law or to take any executive action which the State would but for the provisions contained in that Part be competent to make or to take, but any law so made shall, to the extent of the incompetency, cease to have effect as soon as the order aforesaid ceases to operate, except as respects things done or omitted to be done before the law so ceases to have effect:

(2) Nothing in clause (1) shall apply—

(a) to any law which does not contain a recital to the effect that such law is in relation to the Proclamation of Emergency in operation when it is made; or

(b) to any executive action taken otherwise than under a law containing such a recital.]

(1B) Nothing in clause (1A) shall apply—

(a) to any law which does not contain a recital to the effect that such law is in relation to the Proclamation of Emergency in operation when it is made; or

(b) to any executive action taken otherwise than under a law containing such a recital.

(3) Every order made under clause (1) shall, as soon as may be after it is made, be laid before each House of Parliament.

PRESIDENT RULE

ARTICLE 356

(1) If the President, on receipt of a report from the Governor of a State or otherwise, is satisfied that a situation has arisen in which the Government of the State cannot be carried on in accordance with the provisions of this Constitution, the President may by Proclamation—

(a) assume to himself all or any of the functions of the Government of the State and all or any of the powers vested in or exercisable by the Governor or any body or authority in the State other than the Legislature of the State;

(b) declare that the powers of the Legislature of the State shall be exercisable by or under the authority of Parliament;

(c) make such incidental and consequential provisions as appear to the President to be necessary or desirable for giving effect to the objects of the Proclamation, including provisions for suspending in whole or in part the operation of any provisions of this Constitution relating to any body or authority in the State:

Provided that nothing in this clause shall authorise the President to assume to himself any of the powers vested in or exercisable by a High Court, or to suspend in whole or in part the operation of any provision of this Constitution relating to High Courts.

(2) any such Proclamation may be revoked or varied by a subsequent Proclamation.

(3) Every Proclamation under this article shall be laid before each House of Parliament and shall, except where it is a Proclamation revoking a previous Proclamation, cease to operate at the expiration of **TWO MONTHS** unless before the expiration of that period it has been approved by resolutions of both Houses of Parliament.

(4) A Proclamation so approved shall, unless revoked, cease to operate on the expiration of a period of six months from the date of issue of the Proclamation.(no such Proclamation shall in any case remain in force for more than three years).

- ⇒ If the dissolution of the House of the People takes place during any such period of six months and a resolution approving the continuance in force of such Proclamation has been passed by the Council of States.
- ⇒ No resolution with respect to the continuance in force of such Proclamation has been passed by the House of the People during the said period, the Proclamation shall cease to

operate at the expiration of **THIRTY DAYS** from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the continuance in force of the Proclamation has been also passed by the House of the People.

(5) Notwithstanding anything contained in clause (4), a resolution with respect to the continuance in force of a Proclamation approved under clause (3) for any period **beyond the expiration of one year** from the date of issue of such Proclamation shall not be passed by either House of Parliament unless—

The **Election Commission certifies** that the continuance in force of the Proclamation approved under clause (3) during the period specified in such resolution is necessary on account of difficulties in holding general elections to the Legislative Assembly of the State concerned.

Dr. Ambedkar envisaged it to remain a 'dead letter' in the constitution.

A nine-judge Constitution Bench of the court in the Bommai case, which is the reigning authority on the use and misuse of Article 356, had held that political whim or fancy cannot form the basis for the President to proclaim central rule in a State.

The President should exercise the power only after his proclamation (imposing his/her rule) is approved by both Houses of Parliament. Till then the President can only suspend the Legislative Assembly by suspending the provisions of Constitution relating to the Legislative Assembly.

It is not the personal whim, wish, view or opinion of the President de hors the material, but a legitimate inference drawn from the material placed before him which is relevant for the purpose. Such objective material may be available in the report sent to the President by the Governor or otherwise or both from the report and other sources.

⇒ The court had stated that although the sufficiency or otherwise of the material cannot be questioned, the legitimacy of inference drawn from such material is “certainly open to judicial review”.

The proclamation by the President under Article 356 is on the advice of the Council of Ministers tendered under Article 74(1). The judgment had explained that in a multi-party political system, chances are high that the political parties in the Centre and the State concerned may not be the same. Article 356 cannot be used for the purpose of political one-upmanship by the Centre.

That is why the framers of the Constitution had taken pains to specify that President should proclaim central rule in a State only, and only, if a situation arises by which governance of the State is either disabled or prevented from continuing "in accordance with the provisions of the Constitution".

The Sarkaria Commission has also recommended to make appropriate amendment in the article.

In Rameshwar Prasad v. Union of India, the Court reiterated that the Court can revive the Legislative Assembly whether kept in suspended animation or dissolved and restore the dismissed government it strikes down the proclamation issued under article 356.

ARTICLE 357

(1) Where by a Proclamation issued under clause (1) of article 356, it has been declared that the powers of the Legislature of the State shall be exercisable by or under the authority of Parliament.

⇒ For the President to authorise when the House of the People is not in session expenditure from the Consolidated Fund of the State pending the sanction of such expenditure by Parliament.

FINANCIAL EMERGENCY

ARTICLE 360

(1) If the President is satisfied that a situation has arisen whereby the financial stability or credit of India or of any part of the territory thereof is threatened, he may by a Proclamation make a declaration to that effect.

(2) A Proclamation issued under clause (1)—

(a) may be revoked or varied by a subsequent Proclamation;

(b) shall be laid before each House of Parliament;

(c) shall cease to operate at the expiration of **TWO MONTHS**, unless before the expiration of that period it has been approved by resolutions of both Houses of Parliament:

If a resolution approving the Proclamation has been passed by the Council of States, but no resolution with respect to such Proclamation has been passed by the House of the People before the expiration of that period, the Proclamation shall cease to operate at the expiration of **THIRTY DAYS** from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the Proclamation has been also passed by the House of the People.

(3) During the period any such Proclamation as is mentioned in clause (1) is in operation, the executive authority of the Union shall extend to the giving of directions to any State to observe such canons of financial propriety as may be specified in the directions, and to the giving of such other directions as the President may deem necessary and adequate for the purpose.

(4) Notwithstanding anything in this Constitution—

(a) any such direction may include—

(i) a provision requiring the reduction of salaries and allowances of all or any class of persons serving in connection with the affairs of a State;

(ii) a provision requiring all Money Bills or other Bills to which the provisions of article 207 apply to be reserved for the consideration of the President after they are passed by the Legislature of the State;

(b) it shall be competent for the President during the period any Proclamation issued under this article is in operation to issue directions for the reduction of salaries and allowances of all or any class of persons serving in connection with the affairs of the Union including the Judges of the Supreme Court and the High Courts.

श्रद्धावानम् लभते ज्ञानम्
SIGMA ACADEMY

VICE-PRESIDENT

PART V

ARTICLE 63 TO 69

ARTICLE 63

There shall be a Vice-President of India.

ARTICLE 64

The Vice-President to be ex officio Chairman of the Council of States.

ARTICLE 65

The Vice-President to act as President or to discharge his functions during casual vacancies in the office, or during the absence, of President.

ARTICLE 66

(1) The Vice-President shall be elected by the members of an electoral college consisting of the members of both Houses of Parliament] in accordance with the system of proportional representation by means of the single transferable vote and the voting at such election shall be by secret ballot.

(2) The Vice-President shall not be a member of either House of Parliament or of a House of the Legislature of any State, and if a member of either House of Parliament or of a House of the Legislature of any State be elected Vice-President, he shall be deemed to have vacated his seat in that House on the date on which he enters upon his office as Vice-President.

(3) No person shall be eligible for election as Vice-President unless he—

(a) is a citizen of India;

(b) has completed the age of thirty-five years; and

(c) is qualified for election as a member of the Council of States.

(4) A person shall not be eligible for election as Vice-President if he holds any office of profit under the Government of India or the Government of any State or under any local or other authority subject to the control of any of the said Governments.

ARTICLE 67

The Vice-President shall hold office for a term of five years from the date on which he enters upon his office:

Provided that—

(a) a Vice-President may, by writing under his hand addressed to the President, resign his office;

(b) a Vice-President may be removed from his office by a resolution of the Council of States passed by a majority of all the then members of the Council and agreed to by the House of the People; but no resolution for the purpose of this clause shall be moved unless at least fourteen days' notice has been given of the intention to move the resolution;

(c) a Vice-President shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon his office.

ARTICLE 68

(1) An election to fill a vacancy caused by the expiration of the term of office of Vice-President shall be completed before the expiration of the term.

(2) An election to fill a vacancy in the office of Vice-President occurring by reason of his death, resignation or removal, or otherwise shall be held as soon as possible after the occurrence of the vacancy, and the person elected to fill the vacancy shall, subject to the provisions of article 67, be entitled to hold office for the full term of five years from the date on which he enters upon his office.

ARTICLE 69

Every Vice-President shall, before entering upon his office, make and subscribe before the President, or some person appointed in that behalf by him.

VICE-PRESIDENT OF INDIA

- Sarvepalli Radhakrishnan
- Zakir Hussain
- V. V. Giri
- Gopal Swarup Pathak
- B. D. Jatti
- Mohammad Hidayatullah
- R. Venkataraman

- Shankar Dayal Sharma
- K. R. Narayanan
- Krishan Kant
- Gopal Swarup Pathak
- Bhairon Singh Shekhawat
- Mohammad Hamid Ansari
- Venkaiah Naidu
- Jagdeep Dhankhar

PRIMEMINISTER

PRIME MINISTER IS THE REAL CUSTODIAN OF ALL EXECUTIVE AUTHORITY.

ARTICLE 75

(1) The Prime Minister shall be appointed by the President

⇒ President appoints the leader of the majority in the Lok Sabha as the Prime Minister.

⇒ In case no party gets a majority and some parties are even unable to elect a common candidate as their leader, the President can play a real role in the appointment of the Prime Minister.

- The Prime Minister can be from either House of the Parliament.
- The only essential condition is that he must be the adopted or elected leader of majority in the Lok Sabha.
- Any person who is not a member of either House of the Parliament can also becomes a minister or the Prime Minister and e he can remain so for six months, within this period he has to essentially get the membership of either House.
- The Prime Minister holds office during the pleasure of the President.

Lok Sabha can pass a vote of no-confidence against him and in this case the Prime Minister either submits his resignation to the President.

POWERS AND FUNCTIONS

ARTICLE 74

(1) There shall be a Council of Ministers with the Prime Minister at the head to aid and advise the President.

ARTICLE 75

(1) the other Ministers shall be appointed by the President on the advice of the Prime Minister.

(1A) The total number of Ministers, including the Prime Minister, in the Council of Ministers shall not exceed fifteen per cent. of the total number of members of the House of the People.(Ninety-first Amendment) Act, 2003),

(2) The Ministers shall hold office during the pleasure of the President.

(3) The Council of Ministers shall be collectively responsible to the House of the People.

(5) A Minister who for any period of six consecutive months is not a member of either House of Parliament shall at the expiration of that period cease to be a Minister.

ARTICLE 78

It shall be the duty of the Prime Minister—

(a) to communicate to the President all decisions of the Council of Ministers relating to the administration of the affairs of the Union and proposals for legislation;

(b) to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; and

(c) if the President so requires, to submit for the consideration of the Council of Ministers any matter on which a decision has been taken by a Minister but which has not been considered by the Council.

- Allocation of Portfolios
- Link between the President and the Cabinet
- Leader of the Parliament
- Power to get the Parliament Dissolved

POSITION OF THE PRIME MINISTER

The President is the de jure executive and Prime Minister is the de facto executive(real) in the scheme of the parliamentary system of government provided by the constitution. The general accepted theory is that the Prime Minister is just like primus inter pares (first among equals).

⇒ This Constitution concentrates so much power and influence in the hands of the Prime Minister that there is every danger to apprehend that the Prime Minister may become a dictator if he chooses to do so. (K.T. Shah)

Since the Prime Minister stands at the head of the council of ministers, the other ministers cannot function when the Prime Minister resigns or dies.

⇒ The resignation or death of an incumbent Prime Minister automatically dissolves the council of ministers and thereby generates a vacuum.

The Prime Minister has the power to advise the President in favour of a dissolution of the Lok Sabha.

⇒ Means that the members hold their seats in the House at the mercy of the Prime Minister.

The Prime Minister is the leader of the Lower House. In this capacity, he enjoys the following powers -

⇒ He advises the President about summoning and proroguing of the sessions of the Parliament.

⇒ He can recommend the dissolution of the Lok Sabha to President at any time.

⇒ He announces government policies on the floor of the House.

The constitution assigns to the Prime Minister the role of being the chief advisor to the President. All the powers of the President, both the normal powers and the emergency powers, are really the powers of the Prime Minister.

⇒ The President is now bound to act according to the advice of the Council of Ministers headed by the Prime Minister. {Article 74(1)}

Thus, the Prime Minister plays a very significant and highly crucial role in the politico-administrative system of the country. If any functionary under our constitution is to be compared with the US President, he is the Prime Minister and not the president of the Union (Dr. B R Ambedkar).

PRIME MINISTER

Jawaharlal Nehru (1947–64)
Gulzarilal Nanda (1964; 1st time)
Lal Bahadur Shastri (1964–66)
Gulzarilal Nanda (1966; 2nd time)
Indira Gandhi (1966–77; 1st time)
Morarji Desai (1977–79)
Charan Singh (1979–80)
Indira Gandhi (1980–84; 2nd time)
Rajiv Gandhi (1984–89)

V.P. Singh (1989–90)
Chandra Shekhar (1990–91)
P.V. Narasimha Rao (1991–96)
Atal Bihari Vajpayee (1996; 1st time)
H.D. Deve Gowda (1996–97)
Inder K. Gujral (1997–98)
Atal Bihari Vajpayee (1998–2004; 2nd time)
Manmohan Singh (2004–14)
Narendra Modi (2014–)

APPOINTMENT AND COMPOSITION OF MINISTERS

⇒ Appointments of the Prime Minister and the Council of Ministers are done by the President of India.

⇒ In the case of the appointment of the Council of Ministers, the Prime Minister's recommendation holds greater value.

- ❖ They are members of either of the Houses of the Parliament;
- ❖ If they are not members of the Parliament Houses, then within a span of six months he/she must become a member by means of nomination, or election.
  - ❑ The Cabinet Ministers
  - ❑ The Ministers of State – Independent and attached to the Cabinet Ministers
  - ❑ Deputy Ministers
    - ✓ These ministers are restricted from attending Cabinet meetings unless specially invited.
  - ❑ The parliamentary secretaries are considered to be another group of ministers who are attached to the senior group of ministers and function as an assistant to them to discharge parliamentary duties.

OATHS OF OFFICE

⇒ To bear true faith and allegiance to the Constitution of India,

⇒ To uphold the sovereignty and integrity of India,

⇒ To faithfully and conscientiously discharge the duties of his office, and

⇒ To do right to all manner of people in accordance with the Constitution, and the law, without fear or favor, affection or ill will.

The salary of a minister is the same as a member of the Parliament but the sumptuary allowance is differ for the Prime Minister , the Cabinet Minister , for a Minister of State and for a Deputy Minister.

RESPONSIBILITY

⇒ Collective Responsibility refers to ministers owning joint responsibility for their actions to the House of People, the Lok Sabha.

- ❑ The Cabinet Ministers are bound by the Cabinet's decision irrespective of whether the former accept it or not.

⇒ Individual Responsibility means the ministers holding office on the wish of the President, they can be removed by the President whenever he feels the need.

⇒ The ministers are not vested with any kind of Legal Responsibility.

- ❑ The courts are also barred from reviewing the advice given by the Council of Ministers to the President.

DIFFERENCES B/W THE COUNCIL OF MINISTERS AND CABINET

⇒ The Council of Ministers is a much wider body in comparison to the Cabinet.

⇒ The Cabinet is a part of the Council of Ministers.

⇒ The Cabinet is vested with collective functions.

⇒ The Cabinet makes decisions, the Council of Ministers is responsible for implementing the same.

⇒ The Council of Ministers is collectively responsible towards the Lok Sabha, the Cabinet is responsible for enforcing such responsibility on the Council.

COLLECTIVE RESPONSIBILITY IS A MYTH IN INDIAN CABINET SYSTEM.

Collective responsibility is a constitutional convention in Parliamentary systems which means members of the cabinet must publicly support all governmental decisions made in Cabinet, even if they do not privately agree with them. Article 75(3) states that the Council of Ministers shall be collectively responsible to the House of the People.

⇒ Solidarity within the cabinet can strengthen the Prime minister and accelerate policy decisions and interests of that party.

Since Independence, several Prime ministers had difficulty in enforcing collective responsibility and becomes a bigger challenge when there is a coalition government.

⇒ Till now several ministers publicly criticized the government decisions and violated the principle of collective responsibility.

⇒ There have been a number of resignations in the past because of the differences with the Cabinet.

The inability of the Government to function on the basis of collective responsibility will be an important cause of -

⇒ Contradictions and disagreements between cabinet members of the executive branch.

⇒ Loss of practical benefit of being part of a team.

⇒ Loss of party loyalty and personal loyalty to the Prime minister.

⇒ Heavy cost and time-escalation in implementing development projects.

The principle of Collective Responsibility may be regarded as fundamental to the working of the Parliamentary Government.

KITCHEN CABINET

A smaller body of ministers called the 'inner Cabinet' or Kitchen Cabinet, has become the real centre of power. This informal body consists consists of the prime minister and two to four influential colleagues in whom he has faith and with whom he can discuss every problem.

It advises the prime minister on important political and administrative issues and assists him in making crucial decisions. It is composed of not only cabinet ministers but also outsiders like friends and family members of the prime minister.

DEPUTY PRIME MINISTER

The deputy prime minister is not technically a constitutional office, it seldom carries any specific powers.

⇒ The Deputy Prime Minister is appointed by the President.

⇒ The Deputy Prime minister candidate is nominated by the Prime Minister of India. The deputy prime minister of India is a member of the Union council of ministers. This post was inaugurated by Vallabhbhai Patel on 15 August 1947.

⇒ The last Deputy prime minister was L. K. Advani.

⇒ The deputy prime minister is treated as the "first among equals" in the cabinet.

- Sardar Patel: 1947–1950
- Morarji Desai: 1967–1969
- Charan Singh and Jagjivan Ram (jointly): 1979–1979
- Y. B. Chavan: 1979–1980
- Devi Lal: 1989–1990
- Devi Lal: 1990–1991
- LK. Advani: 2002–2004

SIGMA ACADEMY

THE GOVERNOR

&

STATE EXECUTIVE

ARTICLE 153

⇒ There shall be a Governor for each State:

❖ Nothing in this article shall prevent the appointment of the same person as Governor for two or more States.

ARTICLE 154

(1) The executive power of the State shall be vested in the Governor and shall be exercised by him either directly or through officers subordinate to him in accordance with this Constitution.

(2) Nothing in this article shall—

(a) be deemed to transfer to the Governor any functions conferred by any existing law on any other authority; or

(b) prevent Parliament or the Legislature of the State from conferring by law functions on any authority subordinate to the Governor.

ARTICLE 155

⇒ The Governor of a State shall be appointed by the President by warrant under his hand and seal.

ARTICLE 156

(1) The Governor shall hold office during the pleasure of the President.

(2) The Governor may, by writing under his hand addressed to the President, resign his office.

(3) Subject to the foregoing provisions of this article, a Governor shall hold office for a term of five years from the date on which he enters upon his office:

Provided that a Governor shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon his office.

ARTICLE 157

No person shall be eligible for appointment as Governor unless he is a citizen of India and has completed the age of thirty-five years.

ARTICLE 158

(1) The Governor shall not be a member of either House of Parliament or of a House of the Legislature of any State specified in the First Schedule, and if a member of either House of Parliament or of a House of the Legislature of any such State be appointed Governor, he shall be deemed to have vacated his seat in that House on the date on which he enters upon his office as Governor.

(2) The Governor shall not hold any other office of profit.

(3) The Governor shall be entitled without payment of rent to the use of his official residences and shall be also entitled to such emoluments, allowances and privileges as may be determined by Parliament by law and, until provision in that behalf is so made, such emoluments, allowances and privileges as are specified in the Second Schedule.

(3A) Where the same person is appointed as Governor of two or more States, the emoluments and allowances payable to the Governor shall be allocated among the States in such proportion as the President may by order determine.

(4) The emoluments and allowances of the Governor shall not be diminished during his term of office.

ARTICLE 159

Every Governor and every person discharging the functions of the Governor shall, before entering upon his office, make and subscribe in the presence of the Chief Justice of the High Court.

ARTICLE 160

The President may make such provision as he thinks fit for the discharge of the functions of the Governor of a State in any contingency not provided for in this Chapter.

ARTICLE 161

The Governor of a State shall have the power to grant pardons, reprieves, respites or remissions of punishment or to suspend, remit or commute the sentence of any person convicted of any offence against any law Relating to a matter to which the executive power of the State extends.

ARTICLE 171 (5)

The members to be nominated by the Governor under sub-clause (e) of clause (3) shall consist of persons having special knowledge or practical experience in respect of such matters as the following, namely:—

Literature, science, art, co-operative movement and social service

ARTICLE 174

Sessions of the State Legislature, prorogation and dissolution by the Governor.

ARTICLE 175

Right of Governor to address and send messages to the House or Houses.

ARTICLE 176

Special address by the Governor in the House or Houses.

ARTICLE 200

Assent to Bills -

When a Bill has been passed by the Legislative Assembly of a State or, in the case of a State having a Legislative Council, has been passed by both Houses of the Legislature of the State, it shall be presented to the Governor and the Governor shall declare either that he assents to the Bill or that he withholds assent therefrom or that he reserves the Bill for the consideration of the President

ARTICLE 201

Provided that, where the Bill is not a Money Bill, the President may direct the Governor to return the Bill to the House or, as the case may be, the Houses of the Legislature of the State together with such a message as is mentioned in the first proviso to article 200 and, when a Bill is so returned, the House or Houses shall reconsider it accordingly within a period of six months from the date of receipt of such message and, if it is again passed by the House or Houses with or without amendment, it shall be presented again to the President for his consideration.

ARTICLE 202

Annual financial statement.

ARTICLE 213

Power of Governor to promulgate Ordinances during recess of Legislature..

"Has the Governor been acting more of an 'agent of the centre' rather than being the 'constitutional head of state'."

The Rajamannar Committee emphasised that the governor of the state should not consider himself as an agent of the centre but play his role as the constitutional head of the State.

The Position of the Governor is controversial in light of emergence of concept of cooperative federalism. The issue has recently cropped up over controversial role of Governor in post-election scenario in Maharashtra and Karnataka.

Governor is being criticised for being a puppet of central government as agent of centre than being the constitutional head of state.

⇒ Imposition of President's Rule under Article 356 was made to deal with serious situations and to be used as a last resort.

- ✓ Dismissing a State's government having majority in the Assembly
- ✓ Suspending and dissolving the Assembly in a partisan consideration.
- ✓ Not giving a chance to the opposition to form government when electoral verdict is indecisive.
- ✓ Denying opportunity to the opposition to form a government when a ministry resigned in anticipation of a defeat on the floor of the House.

⇒ Many times the Centre sends para-military forces into the States to maintain law and order without consulting the State's Government, and sometimes even against the wishes of the concerned State.

⇒ The power of a Governor to reserve a bill for the assent of the President, is another cause of tension.

⇒ Governors are not shy of revealing their partisan preference. Recently, the Governor of Rajasthan has been charged with the violation of the model code of conduct.

⇒ There have been instances of removal of governors in States with Government change at the centre. Thus governors most of the time due to fear of removal favour political party in centre and work as agent for them.

SUGGESTION

⇒ The appointment of the Governor should be made with the approval of the State Cabinet. (Sarkaria Commission)

⇒ A person retiring from the office of Governor should not be eligible to any other office other than the President and the Vice President of India.

⇒ The Supreme Court should lay down the law on how the Governor ought to act when an election yields a fractured verdict.

⇒ Changes in Article 356 with a view to preventing its easy and frequent use by the Central Government.

In order to enable the Governor to successfully discharge his functions under the constitution, an agreed 'Code of Conduct' approved by the state governments, the central government, the parliament, and the state legislatures should be evolved.

⇒ Sardar Patel stated that keeping in view the dignity of this post, it is necessary that the governor should hold elections on the basis of adult suffrage.

⇒ B.R.Ambedkar asserted that the governor does not have any work to be executes on the basis of discretion or personal decisions and thus the election system will not be profitable in terms of time, convenience and money.

⇒ The "Punchhi commission" recommended that these Articles 355 & 356 be amended. It sought to protect the interests of the States by trying to curb their misuse by the Centre.

⇒ The Sarkaria Commission (1988) recommended that Article 356 should be used in very rare cases when it becomes unavoidable to restore the breakdown of constitutional machinery in the State.

⇒ Supreme Court gave judgement in the Nabam Rebia case (2016) that the exercise of Governor's discretion Article 163 is limited and his choice of action should not be arbitrary or fanciful.

The Constitutional Provisions related to the Governor in calling for a Floor Test.

A floor test is a confidence motion for or against the government in-house. This is done to ensure whether the government in position enjoys the support of the majority legislature. Shivraj Singh Chouhan case 2020 is one of the most prominent and recent case laws regarding a Governor ordering a floor test.

As per Article 174 the Governor can summon the floor test when he feels that the sitting Chief Minister has lost the confidence of the majority. But the Court also added that this exceptional power should be handled with proper care and caution. The Governor is an appointee of the President but does not represent either a political ideology or a political view. Therefore, the Governor is expected to discharge the role of a constitutional statesman.

The Governor's right to ask for a floor test does not end when a State government takes office following elections, but it continues during its term. The Supreme Court has ruled that the Governor's power of trust vote has no bearing on any pending disqualification proceedings before the Speaker.

CHIEF MINISTER

Article 163 of Indian constitution talks about that there should be a chief minister along with council of ministers "to aid and advise the governor in the exercise of his functions". article 163(1) The Chief minister is done by the governor as per Article 164 of Indian constitution.

⇒ Article 164(1) also mentions that the Chief minister and the other ministers shall hold the office during the pleasure of the governor.

❖ provided that in Bihar, Madhya Pradesh, and Orissa, there have to be a Minister in charge responsible for tribal welfare, who may additionally be responsible for enlisted caste and backward class welfare or any other duties.

In the case of B.R. Kapoor case the Supreme Court said that the person convicted of any criminal offence or has been sentenced to punishment of more than 2 years of imprisonment and also is been disqualified by the election commission to contest elections under the Representation of People's Act ; cannot be appointed as the Chief Minister, as it will be violative of Article 164(4).

In Mahabir Prasad Sharma case the High Court said that the exercise of the Governor's pleasure under Article 164(1) is not fettered by any condition or restriction, and the withdrawal of the Governor's pleasure is a matter entirely in the discretion of the Governor.

ARTICLE 164(1)(a)

mentions that a total number of ministers in a state shall not exceed 15% limit of the total number of ministers in the state.

ARTICLE 164(1)(b)

the Act was added by the 91st Amendment, which refers to the disqualification of the Minister of state.

ARTICLE 164(2)

The Council of Ministers is jointly accountable to the Legislative Assembly of the State.

ARTICLE 164(3)

Before the Minister takes office, the Governor shall administer to him the oaths of the concerned office and of secretary based on the forms set out for this purpose in the Third Schedule.

ARTICLE 164(4)

This clause deals with the provision which states that a minister who has not been a member of the state legislature for six consecutive months will cease to be a minister at the end of that period.

ARTICLE 164(5)

The salaries and allowances of the Minister shall be determined by law from time to time by the State Legislature, and until the legislature of the state so determines, shall be as set forth in the Second Schedule.

ARTICLE 167

⇒ It states that it is the duty of the Chief Minister to communicate to the governor of the states about the decisions taken by the council of ministers in relation to the administration of the state affairs and the legislation proposals.

⇒ It is also the duty of the Chief minister, as directed by the Governor to ask the Council to consider the decision of the minister whose decision has not been considered on matter on which that minister has given his opinion.

- The Chief minister can also advice the Governor to prorogue or summon the session of the state legislature.
- The Legislative assembly can be dissolved any time at the CM's recommendation to the Governor.
- All government policies are announced by the Chief minister on the floor of the house. He is the Chairman of the State's Planning Board and also by rotation serves as the Vice-chairman of the concerned zonal council, for the term of one year at a time.
- He is the chief spokesman of the state legislature and is also the member of Prime Minister's Inter State Council and the Governing Council of NITI Aayog.
- He is known as the political head of the services.

THE ATTORNEY-GENERAL FOR INDIA

ARTICLE - 76

&

COMPTROLLER AND AUDITOR-GENERAL OF INDIA

ARTICLE - 148 - 152

THE ATTORNEY-GENERAL FOR INDIA

ARTICLE 76

(1) The President shall appoint a person who is qualified to be appointed a Judge of the Supreme Court to be Attorney-General for India.

(2) It shall be the duty of the Attorney-General to give advice to the Government of India upon such legal matters, and to perform such other duties of a legal character, as may from time to time be referred or assigned to him by the President, and to discharge the functions conferred on him by or under this Constitution or any other law for the time being in force.

(3) In the performance of his duties the Attorney- General shall have right of audience in all courts in the territory of India.

(4) The Attorney-General shall hold office during the pleasure of the President, and shall receive such remuneration as the President may determine.

ARTICLE 88

The Attorney-General of India shall have the right to speak in, and take part in the proceedings of, either House, any joint sitting of the Houses, and any committee of Parliament but shall not by virtue of this article be entitled to vote.

- ⇒ He enjoys all the privileges and immunities that are available to a member of parliament.
- ⇒ Cast decisive vote in President election.
- ⇒ He should not advise or hold a brief against the Government of India.
- ⇒ He should not defend accused persons in criminal cases without the permission of the government of India.

⇒ Assisted by 2 solicitor generals (appointed for 3 yrs) & 4 additional solicitor generals (appointed for 3 yrs), eligible for re-appointment, for a further term not exceeding three years.

"The Attorney-General is the principal legal adviser and lawyer of the Government of India."

The Attorney General ought to be a pivotal institution that helps the government act in accordance with the rule of law. He is appointed by the President under Article 76 of Indian Constitution should be qualified to be appointed a judge of the Supreme Court.

⇒ He assists the government in all its legal matters.

- ❖ Appears in all the cases in the Supreme Court and High Courts in which the Government of India is concerned.

⇒ Gives advice in such legal matters which are assigned to him by the President under Article 143.

⇒ Right to speak and take a part in the proceeding of any house of Parliament and committee of the Parliament without the right to give vote (Article 88).

⇒ Entitled to get all the immunities and privileges as a Member of Parliament.

⇒ Can accept briefs but cannot appear against the Government.

Unlike the Attorney General of the United States, the Attorney General for India does not have any executive authority, but he is a part of the Union executive. Without the permission of the government he should not -

⇒ defend accused persons in criminal cases.

⇒ should not accept an appointment as a director in any company.

COMPTROLLER AND AUDITOR-GENERAL OF INDIA

ARTICLE 148

(1) There shall be a Comptroller and Auditor- General of India who shall be appointed by the President by warrant under his hand and seal and shall only be removed from office in like manner and on the like grounds as a Judge of the Supreme Court.

(2) Every person appointed to be the Comptroller and Auditor-General of India shall, before he enters upon his office, make and subscribe before the President, or

some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.

(3) The salary and other conditions of service of the Comptroller and Auditor-General shall be such as may be determined by Parliament by law and, until they are so determined, shall be as specified in the Second Schedule:

Provided that neither the salary of a Comptroller and Auditor-General nor his rights in respect of leave of absence, pension or age of retirement shall be varied to his disadvantage after his appointment.

(4) The Comptroller and Auditor-General shall not be eligible for further office either under the Government of India or under the Government of any State after he has ceased to hold his office.

(5) Subject to the provisions of this Constitution and of any law made by Parliament, the conditions of service of persons serving in the Indian Audit and Accounts Department and the administrative powers of the Comptroller and Auditor-General shall be such as may be prescribed by rules made by the President after consultation with the Comptroller and Auditor-General.

(6) The administrative expenses of the office of the Comptroller and Auditor-General, including all salaries, allowances and pensions payable to or in respect of the persons serving in that office, shall be charged upon the Consolidated Fund of India.

ARTICLE 149

The Comptroller and Auditor-General shall perform such duties and exercise such powers in relation to the accounts of the Union and of the States and of any other authority or body as may be prescribed by or under any law made by Parliament and, until provision in that behalf is so made, shall perform such duties and exercise such powers in relation to the accounts of the Union and of the States as were conferred on or exercisable by the Auditor-General of India immediately before the commencement of this Constitution in relation to the accounts of the Dominion of India and of the Provinces respectively.

ARTICLE 150

The accounts of the Union and of the States shall be kept in such form as the President may, on the advice of] the Comptroller and Auditor-General of India, prescribe.

ARTICLE 151

(1) The reports of the Comptroller and Auditor- General of India relating to the accounts of the Union shall be submitted to the President, who shall cause them to be laid before each House of Parliament.

(2) The reports of the Comptroller and Auditor- General of India relating to the accounts of a State shall be submitted to the Governor of the State, who shall cause them to be laid before the Legislature of the State.

ARTICLE 152

In this Part, unless the context otherwise requires, the expression "State" does not include the State of Jammu and Kashmir (1958).

- ✓ Office of the Accountant General was established in 1858.
- ✓ Sir Edward Drummond was the first Auditor General.
- ✓ The Auditor General became independent and a statutory body by the Government of India Act 1919.

- ✓ In India, CAG is not a member of the parliament while in Britain; CAG is a member of house of the Commons.
- ✓ CAG audit reports are handed over to the Public Accounts Committee.
- ✓ CAG acts as a philosopher of the Public Accounts Committee of the Parliament.

CAG is called the watch dog of public money.

He is the one man who is going to see that the expenses voted by Parliament are not exceeded, or varied from what has been laid down by Parliament in the Appropriation Act. Dr. B.R Ambedkar

CAG was founded under Article 148 of the Constitution for serving as a watchdog and reveals financial performance and compliance reports of the government.

- ⇒ Its responsibilities include scrutinizing the legitimacy, authenticity, regularity, propriety, economy, efficacy and effectiveness of the government's financial management.
- ⇒ Acts as a guide, friend and philosopher of the Public Accounts Committee.
- ⇒ Audits all expenditure from the Contingency and the Public Account Fund of India as well as of each state.

In the recent times, CAG has faced criticisms for having overreaching mandate than outreach.

- ⇒ CAG has arose the concept of notional loss and judging the actions of Executive at a micro level.
- ⇒ Evaluation methodologies are highly confined to lopsided auditing techniques that judge issue from expenditure angle only.

In fact, CAG is aimed at curbing the pilferage, wastage and unnecessary expenditures of the public account. To maintain its allegiance, it is inevitable for the CAG to be hyperactive in dealing with public finance.

THE ADVOCATE-GENERAL FOR THE STATE

ARTICLE 165

(1) The Governor of each State shall appoint a person who is qualified to be appointed a Judge of a High Court to be Advocate-General for the State.

(2) It shall be the duty of the Advocate-General to give advice to the Government of the State upon such legal matters, and to perform such other duties of a legal character, as may from time to time be referred or assigned to him by the Governor, and to discharge the functions conferred on him by or under this Constitution or any other law for the time being in force.

(3) The Advocate-General shall hold office during the pleasure of the Governor, and shall receive such remuneration as the Governor may determine.

THE UNION TERRITORIES

ARTICLE - 239 - 152

ARTICLE 239

(1) Union territory shall be administered by the President.

(2) The President may appoint the Governor of a State as the administrator of an adjoining Union territory, and where a Governor is so appointed, he shall exercise his functions as such administrator independently of his Council of Ministers.

ARTICLE 239 A

- Add by Constitution (Fourteenth Amendment) Act, 1962

Parliament may by law create for the Union territory of Puducherry which has a Legislature and a Council of Ministers.

ARTICLE 239 A

- Add by Constitution (Sixty-ninth Amendment) Act, 1991

(1) The Union territory of Delhi shall be called the National Capital Territory of Delhi (hereafter in this Part referred to as the National Capital Territory) and the administrator

thereof appointed under article 239 shall be designated as the Lieutenant Governor.

(2) (a) There shall be a Legislative Assembly for the National Capital Territory and the seats in such Assembly shall be filled by members chosen by direct election.

(b) The number of seats reserved for Scheduled Castes and all other matters relating to the functioning of the Legislative Assembly shall be regulated by law made by Parliament.

(c) The provisions of articles 324 to 327 and 329 shall apply in relation to the National Capital Territory, the Legislative Assembly of the National Capital Territory and the members thereof as they apply, in relation to a State, the Legislative Assembly of a State and the members thereof respectively; and any reference in articles 326 and 329 to "appropriate Legislature" shall be deemed to be a reference to Parliament.

3) (a) Subject to the provisions of this Constitution, the Legislative Assembly shall have power to make laws for the whole or any part of the National Capital Territory with respect to any of the matters enumerated in the State List or in the Concurrent List in so far as any such matter is applicable to Union territories except matters with respect to Entries 1, 2 and 18 of the State List and Entries 64, 65 and 66 of that List in so far as they relate to the said Entries 1, 2 and 18.

(b) Nothing in sub-clause (a) shall derogate from the powers of Parliament under this Constitution to make laws with respect to any matter for a Union territory or any part thereof.

(c) If any provision of a law made by the Legislative Assembly with respect to any matter is repugnant to any provision of a law made by Parliament with respect to that matter, whether passed before or after the law made by the Legislative Assembly, or of an earlier law, other than a law made by the Legislative Assembly, then, in either case, the law made by Parliament, or, as the case may be, such earlier law, shall prevail and the law made by the Legislative Assembly shall, to the extent of the repugnancy, be void:

Provided that if any such law made by the Legislative Assembly has been reserved for the consideration of the President and has received his assent, such law shall prevail in the National Capital Territory:

Provided further that nothing in this sub-clause shall prevent Parliament from enacting at any time any law with respect to the same matter including a law adding to, amending, varying or repealing the law so made by the Legislative Assembly.

(4) There shall be a Council of Ministers consisting of not more than ten per cent. of the total number of members in the Legislative Assembly, with the Chief Minister at the head to aid

and advise the Lieutenant Governor in the exercise of his functions in relation to matters with respect to which the Legislative Assembly has power to make laws, except in so far as he is, by or under any law, required to act in his discretion:

Provided that in the case of difference of opinion between the Lieutenant Governor and his Ministers on any matter, the Lieutenant Governor shall refer it to the President for decision and act according to the decision given thereon by the President and pending such decision it shall be competent for the Lieutenant Governor in any case where the matter, in his opinion, is so urgent that it is necessary for him to take immediate action, to take such action or to give such direction in the matter as he deems necessary.

(5) The Chief Minister shall be appointed by the President and the other Ministers shall be appointed by the President on the advice of the Chief Minister and the Ministers shall hold office during the pleasure of the President.

(6) The Council of Ministers shall be collectively responsible to the Legislative Assembly.

(7) (a)] Parliament may, by law, make provisions for giving effect to, or supplementing the provisions contained in the foregoing clauses and for all matters incidental or consequential thereto.

(b) Any such law as is referred to in sub-clause (a) shall not be deemed to be an amendment of this Constitution for the purposes of article 368 notwithstanding that it contains any provision which amends or has the effect of amending, this Constitution.

(8) The provisions of article 239B shall, so far as may be, apply in relation to the National Capital Territory, the Lieutenant Governor and the Legislative Assembly, as they apply in relation to the

Union territory of 3[Puducherry], the administrator and its Legislature, respectively; and any reference in that article to "clause (1) of article 239A" shall be deemed to be a reference to this article or article 239AB, as the case may be.

ARTICLE 239AB

On receipt of a report from the Lieutenant Governor or otherwise,, the President may by order suspend the operation of any provision of article 239AA or of all in the National Capital Territory

ARTICLE 239B

Provided that no such Ordinance shall be promulgated by the administrator except after obtaining instructions from the President in that behalf in Puducherry .

ARTICLE 240

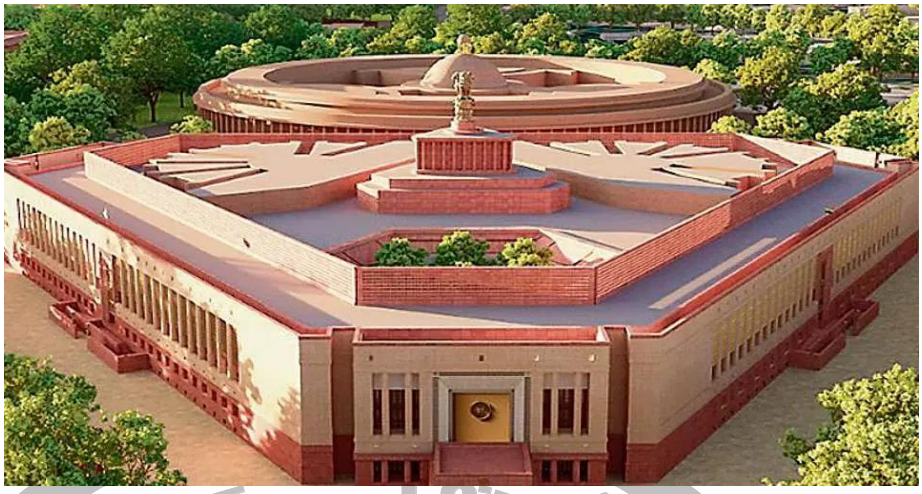
(1) The President may make regulations for the peace, progress and good government of the Union Territory.

ARTICLE 241

(1) Parliament may by law constitute a High Court for a 4[Union territory] or declare any court in any such territory to be a High Court for all or any of the purposes of this Constitution.

- Delhi is the only territory to have a High Court.

SIGMA ACADEMY



INDIAN POLITY

NOTES

Compiled

By

Sanjay Srivastava

PART - II

- PARLIAMENT
- STATE LEGISLATURE
- SUPREME COURT & HIGH COURT
- CENTRE – STATE RELATION
- PANCHAYAT RAJ
- SERVICES UNDER THE UNION AND THE STATES
- ELECTION COMMISSION
- SPECIAL PROVISIONS
- OFFICIAL LANGUAGE
- EXTRA CONSTITUTIONAL BODIES

Sources : PIB, The Hindu, Indian Express, Legal Service India, IPleder

PARLIAMENT

ARTICLE 79

There shall be a Parliament for the Union which shall consist of the President and two Houses to be known respectively as the Council of States and the House of the People.

COMPOSITION OF THE COUNCIL OF STATES

ARTICLE 80

(1)1The Council of States] shall consist of—

(a) twelve members to be nominated by the President in accordance with the provisions of clause (3); and

(b) not more than two hundred and thirty-eight representatives of the States 3and of the Union territories

(2) The allocation of seats in the Council of States to be filled by representatives of the States and of the Union territories shall be in accordance with the provisions in that behalf contained in the Fourth Schedule.

(3) The members to be nominated by the President under sub-clause (a) of clause (1) shall consist of persons having special knowledge or practical experience in respect of such matters as the following, namely:—

Literature, Science, Art and Social Service.

(4) The representatives of each State in the Council of States shall be elected by the elected members of the Legislative Assembly of the State in accordance with the system of proportional representation by means of the single transferable vote.

(5) The representatives of the Union territories in the Council of States shall be chosen in such manner as Parliament may by law prescribe.

COMPOSITION OF THE HOUSE OF THE PEOPLE

ARTICLE 81

(1) Subject to the provisions of article 331 the House of the People shall consist of—

(a) not more than five hundred and thirty members] chosen by direct election from territorial constituencies in the States, and

(b) not more than twenty members to represent the Union territories, chosen in such manner as Parliament may by law provide.

(2) For the purposes of sub-clause (a) of clause (1),—

(a) there shall be allotted to each State a number of seats in the House of the People in such manner that the ratio between that number and the population of the State is, so far as practicable, the same for all States; and

(b) each State shall be divided into territorial constituencies in such manner that the ratio between the population of each constituency and the number of seats allotted to it is, so far as practicable, the same throughout the State:

(3) In this article, the expression "population" means the population as ascertained at the last preceding census of which the relevant figures have been published:

Provided that the reference in this clause to the last preceding census of which the relevant figures have been published shall, until the relevant figures for the first census taken after the year 2026 (Eighty-fourth Amendment) have been published, be construed,—

(i) for the purposes of sub-clause (a) of clause (2) and the proviso to that clause, as a reference to the 1971 census; and

(ii) for the purposes of sub-clause (b) of clause (2) as a reference to the 1[2001] census.

Readjustment after each Census

ARTICLE 82

Upon the completion of each census, the allocation of seats in the House of the People to the States and the division of each State into territorial constituencies shall be readjusted by such authority and in such manner as Parliament may by law determine.

DURATION OF HOUSES OF PARLIAMENT

ARTICLE 83

(1) The Council of States shall not be subject to dissolution, but as nearly as possible one-third of the members thereof shall retire as soon as may be on the expiration of every second year in accordance with the provisions made in that behalf by Parliament by law.

(2) The House of the People, unless sooner dissolved, shall continue for five years from the date appointed for its first meeting and no longer and the expiration of the said period of five years shall operate as a dissolution of the House:

Provided that the said period may, while a Proclamation of Emergency is in operation, be extended by Parliament by law for a period not exceeding one year at a time and not extending in any case beyond a period of six months after the Proclamation has ceased to operate.

QUALIFICATION FOR MEMBERSHIP OF PARLIAMENT

ARTICLE 84

A person shall not be qualified to be chosen to fill a seat in Parliament unless he—

(a) is a citizen of India, and makes and subscribes before some person authorised in that behalf by the Election Commission an oath or affirmation according to the form set out for the purpose in the Third Schedule;

(b) is, in the case of a seat in the Council of States, not less than thirty years of age and, in the case of a seat in the House of the People, not less than twenty-five years of age; and

(c) possesses such other qualifications as may be prescribed in that behalf by or under any law made by Parliament.

SESSIONS OF PARLIAMENT, PROROGATION AND DISSOLUTION

ARTICLE 85

(1) The President shall from time to time summon each House of Parliament to meet at such time and place as he thinks fit, but six months shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session.

(2) The President may from time to time—

(a) prorogue the Houses or either House;

(b) dissolve the House of the People.

RIGHTS OF MINISTERS AND ATTORNEY- GENERAL AS RESPECTS HOUSES

ARTICLE 88

Every Minister and the Attorney-General of India shall have the right to speak in, and otherwise to take part in the proceedings of, either House, any joint sitting of the Houses, and any committee of Parliament of which he may be named a member, but shall not by virtue of this article be entitled to vote.

THE CHAIRMAN AND DEPUTY CHAIRMAN OF THE COUNCIL OF STATES

ARTICLE 89

(1) The Vice-President of India shall be ex officio Chairman of the Council of States.

(2) The Council of States shall, as soon as may be, choose a member of the Council to be Deputy Chairman thereof and, so often as the office of Deputy Chairman becomes vacant, the Council shall choose another member to be Deputy Chairman thereof.

ARTICLE 90

A member holding office as Deputy Chairman of the Council of States—

(a) shall vacate his office if he ceases to be a member of the Council;

(b) may at any time, by writing under his hand addressed to the Chairman, resign his office; and

(c) may be removed from his office by a resolution of the Council passed by a majority of all the then members of the Council:

Provided that no resolution for the purpose of clause (c) shall be moved unless at least fourteen days' notice has been given of the intention to move the resolution.

ARTICLE 91

(1) While the office of Chairman is vacant, or during any period when the Vice-President is acting as, or discharging the functions of, President, the duties of the office shall be performed by the

Deputy Chairman, or, if the office of Deputy Chairman is also vacant, by such member of the Council of States as the President may appoint for the purpose.

(2) During the absence of the Chairman from any sitting of the Council of States the Deputy Chairman, or, if he is also absent, such person as may be determined by the rules of procedure of the Council, or, if no such person is present, such other person as may be determined by the Council, shall act as Chairman.

ARTICLE 92

(1) At any sitting of the Council of States, while any resolution for the removal of the Vice-President from his office is under consideration, the Chairman, or while any resolution for the removal of the Deputy Chairman from his office is under consideration, the Deputy Chairman, shall not, though he is present, preside, and the provisions of clause (2) of article 91 shall apply in relation to every such sitting as they apply in relation to a sitting from which the Chairman, or, as the case may be, the Deputy Chairman, is absent.

(2) The Chairman shall have the right to speak in, and otherwise to take part in the proceedings of, the Council of States while any resolution for the removal of the Vice-President from his office is under consideration in the Council, but, notwithstanding anything in article 100, shall not be entitled to vote at all on such resolution or on any other matter during such proceedings.

THE SPEAKER AND DEPUTY SPEAKER OF THE HOUSE OF THE PEOPLE

ARTICLE 93

The House of the People shall, as soon as may be, choose two members of the House to be respectively Speaker and Deputy Speaker thereof and, so often as the office of Speaker or Deputy Speaker becomes vacant, the House shall choose another member to be Speaker or Deputy Speaker, as the case may be.

ARTICLE 94

A member holding office as Speaker or Deputy Speaker of the House of the People—

(a) shall vacate his office if he ceases to be a member of the House of the People;

(b) may at any time, by writing under his hand addressed, if such member is the Speaker, to the Deputy Speaker, and if such member is the Deputy Speaker, to the Speaker, resign his office; and

(c) may be removed from his office by a resolution of the House of the People passed by a majority of all the then members of the House:

Provided that no resolution for the purpose of clause (c) shall be moved unless at least fourteen days' notice has been given of the intention to move the resolution:

Provided further that, whenever the House of the People is dissolved, the Speaker shall not vacate his office until immediately before the first meeting of the House of the People after the dissolution.

ARTICLE 95

(1) While the office of Speaker is vacant, the duties of the office shall be performed by the Deputy Speaker or, if the office of Deputy Speaker is also vacant, by such member of the House of the People as the President may appoint for the purpose.

(2) During the absence of the Speaker from any sitting of the House of the People the Deputy Speaker or, if he is also absent, such person as may be determined by the rules of procedure of the House, or, if no such person is present, such other person as may be determined by the House, shall act as Speaker.

ARTICLE 96

(1) At any sitting of the House of the People, while any resolution for the removal of the Speaker from his office is under consideration, the Speaker, or while any resolution for the removal of the Deputy Speaker from his office is under consideration, the Deputy Speaker, shall not, though he is present, preside, and the provisions of clause (2) of article 95 shall apply in relation to every such sitting as they apply in relation to a sitting from which the Speaker, or, as the case may be, the Deputy Speaker, is absent.

(2) The Speaker shall have the right to speak in, and otherwise to take part in the proceedings of, the House of the People while any resolution for his removal from office is under consideration in the House and shall, notwithstanding anything in article 100, be entitled to vote only in the first instance on such resolution or on any other matter during such proceedings but not in the case of an equality of votes.

SALARIES AND ALLOWANCES OF THE CHAIRMAN AND DEPUTY CHAIRMAN AND THE SPEAKER AND DEPUTY SPEAKER

ARTICLE 97

There shall be paid to the Chairman and the Deputy Chairman of the Council of States, and to the Speaker and the Deputy Speaker of the House of the People, such salaries and allowances as may be respectively fixed by Parliament by law and, until provision in that behalf is so made, such salaries and allowances as are specified in the Second Schedule.

SECRETARIAT OF PARLIAMENT

ARTICLE 98

(1) Each House of Parliament shall have a separate secretarial staff:

Provided that nothing in this clause shall be construed as preventing the creation of posts common to both Houses of Parliament.

(2) Parliament may by law regulate the recruitment, and the conditions of service of persons appointed, to the secretarial staff of either House of Parliament.

(3) Until provision is made by Parliament under clause (2), the President may, after consultation with the Speaker of the House of the People or the Chairman of the Council

of States, as the case may be, make rules regulating the recruitment, and the conditions of service of persons appointed, to the secretarial staff of the House of the People or the Council of States, and any rules so made shall have effect subject to the provisions of any law made under the said clause.

DISQUALIFICATIONS OF MEMBERS

ARTICLE 101

(1) No person shall be a member of both Houses of Parliament and provision shall be made by Parliament by law for the vacation by a person who is chosen a member of both Houses of his seat in one House or the other.

(2) No person shall be a member both of Parliament and of a House of the Legislature of a State and if a person is chosen a member both of Parliament and of a House of the Legislature of a State, then, at the expiration of such period as may be specified in rules3 made by the President, that person's seat in Parliament shall become vacant, unless he has previously resigned his seat in the Legislature of the State.

(3) If a member of either House of Parliament—

(a) becomes subject to any of the disqualifications mentioned in clause (1) or clause (2) of article 102, or

(b) resigns his seat by writing under his hand addressed to the Chairman or the Speaker, as the case may be, and his resignation is accepted by the Chairman or the Speaker, as the case may be, his seat shall thereupon become vacant:

Provided that in the case of any resignation referred to in sub-clause (b), if from information received or otherwise and after making such inquiry as he thinks fit, the Chairman or the Speaker, as the case may be, is satisfied that such resignation is not voluntary or genuine, he shall not accept such resignation.

(4) If for a period of sixty days a member of either House of Parliament is without permission of the House absent from all meetings thereof, the House may declare his seat vacant:

Provided that in computing the said period of sixty days no account shall be taken of any period during which the House is prorogued or is adjourned for more than four consecutive days.

ARTICLE 102

(1) A person shall be disqualified for being chosen as, and for being, a member of either House of Parliament—

(a) if he holds any office of profit under the Government of India or the Government of any State, other than an office declared by Parliament by law not to disqualify its holder;

(b) if he is of unsound mind and stands so declared by a competent court;

(c) if he is an undischarged insolvent;

(d) if he is not a citizen of India, or has voluntarily acquired the citizenship of a foreign State, or is under any acknowledgment of allegiance or adherence to a foreign State;

(e) if he is so disqualified by or under any law made by Parliament.

(2) A person shall be disqualified for being a member of either House of Parliament if he is so disqualified under the Tenth Schedule.

ARTICLE 103

(1) If any question arises as to whether a member of either House of Parliament has become subject to any of the disqualifications mentioned in clause (1) of article 102, the question shall be referred for the decision of the President and his decision shall be final.

(2) Before giving any decision on any such question, the President shall obtain the opinion of the Election Commission and shall act according to such opinion.

ARTICLE 104

If a person sits or votes as a member of either House of Parliament before he has complied with the requirements of article 99, or when he knows that he is not qualified or that he is disqualified for membership thereof, or that he is prohibited from so doing by the provisions of any law made by Parliament, he shall be liable in respect of each day on which he so sits or votes to a penalty of five hundred rupees to be recovered as a debt due to the Union.

POWERS, PRIVILEGES AND IMMUNITIES OF PARLIAMENT AND ITS MEMBERS

ARTICLE 105

(1) Subject to the provisions of this Constitution and to the rules and standing orders regulating the procedure of Parliament, there shall be freedom of speech in Parliament.

(2) No member of Parliament shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament or any committee thereof, and no person shall be so liable in respect of the publication by or under the authority of either House of Parliament of any report, paper, votes or proceedings.

(3) In other respects, the powers, privileges and immunities of each House of Parliament, and of the members and the committees of each House, shall be such as may from time to time be defined by Parliament by law, and, until so defined, 1[shall be those of that House and of its members and committees immediately before the coming into force of section 15 of the Constitution (Forty-fourth Amendment) Act, 1978].

(4) The provisions of clauses (1), (2) and (3) shall apply in relation to persons who by virtue of this Constitution have the right to speak in, and otherwise to take part in the proceedings of, a House of Parliament or any committee thereof as they apply in relation to members of Parliament.

SALARIES AND ALLOWANCES OF MEMBERS

ARTICLE 106

Members of either House of Parliament shall be entitled to receive such salaries and allowances as may from time to time be determined by Parliament by law and, until provision in that respect is so made, allowances at such rates and upon such conditions as were immediately before the commencement of this Constitution applicable in the case of members of the Constituent Assembly of the Dominion of India.

The role of Rajya Sabha has come under the scanner as an obstructionist house.

The role of the Upper House is merely to delay legislation which might be the outcome of passions of the moment until the passions have subsided. Gopalaswami Ayyangar

Asserting the federal nature of the Indian polity, Rajya Sabha ensures healthy bicameralism not only as a House for second thought but is also a guardian of a State's rights as a House of correction. It provides more opportunities for scrutiny and creates an enabling atmosphere for securing greater executive accountability.

But during the last two decades, we are witnessing intellectuals and academics being replaced by politicians with dubious motives. Rajya Sabha is seeing shouting and slanging matches between political parties.

- ⇒ In the Upper House, where the ruling party does not have a majority, has already cost the exchequer several crores this year.
- ⇒ The Upper House has become a hindrance to the speedy legislative process that the country urgently requires for economic growth and progress.
- ⇒ Rajya Sabha has become a heaven for losers in elections, crony capitalists, compromised journalists and party fundraisers.
- ⇒ Many parties are now using the Rajya Sabha as a backdoor to get members elected, most of whom will not be able to win a Lok Sabha election.

Nevertheless, Rajya Sabha would introduce an element of sobriety and second thought besides lending voice to the constituent units in the legislative scheme of things.

The various ways in which parliament exercises control over the executive.

The Indian system represents a real fusion of the highest executive and legislative authorities. In a parliamentary polity, Parliament embodies the will of the people and it must, therefore be able to oversee the way in which public policy is carried out so as to ensure that it keeps in step with the objectives of socio-economic progress, efficient administration and the aspirations, of the people as a whole. This, in a nutshell, is the rasion d'etre of parliamentary surveillance of administration.

- ⇒ The various procedural devices like the system of parliamentary Committees, Questions, Calling Attention, Half-an-Hour Discussion, etc. constitute very potent instruments for effecting parliamentary surveillance over administrative action.

⇒ Significant occasions for review of administration are also provided by the discussions on the Motion of Thanks on the President's Address, the Budget demands and particular aspects of governmental policy or situations.

⇒ Specific matters may be discussed through motions on matters of urgent public importance, private members' resolutions and other substantive motions.

⇒ Ordinances, proclamation of emergency etc can be done only when parliament ratifies showing the parliamentary oversight on the executive.

⇒ Parliament control over taxes, which cannot be imposed without the consent of the parliament.

⇒ The collective responsibility of the Council of Ministers to the popular House (Loksabha)

⇒ The Parliament's control over the Budget through cut motion.

All these measures make for a system of checks and balances in place thereby preventing the domination of any branch of the government. The makers of our constitution made sure that each arm of power could be held accountable for its actions by the other, by this logic, the executive, is accountable to the legislature for all its actions involving the implementation of laws or policies.

The role of speaker in Parliamentary Democracy.

MN Kaul referred to the speaker as the conscience and guardian of the House. But now a days a Speaker who continues to be a member of the ruling party is like an umpire being appointed by the batting side.

⇒ Several judgments on the anti-defection law have been rendered by the Supreme Court. A common factor that shows up in these rulings is the blatant, partisan conduct of speakers in various state assemblies.

⇒ He is elected to the House on a political party's ticket. In Britain, the Speaker is strictly a non-party man. This healthy convention is not fully established in India. It has the inevitable result of his refusing to allow any debate or discussion that may be essential in national interest but may embarrass the ruling party.

⇒ The stalling of parliamentary proceedings has led to the passing of important bills in several sessions without any discussion. In the 2021 monsoon session, not a single bill was referred to any select committee.

⇒ There are various instances where the Rules vest the Speakers with unbridled powers. This discretionary power comes under criticism when the powers of ED bill was introduced in Lok Sabha as Money Bill.

⇒ The Speaker is not answerable to any person in performing the roles assigned to him. This is in stark contrast with the American system. In the Kihoto Hollohan case, the SC declared that the speaker is subject to judicial review.

The founding fathers of our Constitution had recognised the importance of this Office in our democratic set-up. As per GV Mavalankar, the first Speaker, once a person is elected Speaker, he should rise above parties, above politics. He should belong to all the members or belong to none.

Differences between the Parliamentary system of government in India and the UK.

⇒ The Head of the State in India is elected while in UK the Head of the State enjoys a hereditary position.

⇒ Parliament is not supreme in India and enjoys limited and restricted powers due to a written Constitution, the federal system, judicial review and fundamental rights while in UK the doctrine of the sovereignty of Parliament is followed.

⇒ In India, the prime minister may be a member of any of the two Houses of Parliament while in UK the Prime minister should be a member of the House of Commons.

⇒ Britain has the system of legal responsibility of the minister while India has no such system.

⇒ Shadow cabinet is a unique institution of the British cabinet system. It is formed by the opposition party to balance the ruling cabinet and to prepare its members for future ministerial office while there is no such institution in India.

⇒ In India, anyone can hold the position of Minister at the pleasure of the president, with due qualification as per law, even if he is not a member of both the houses. But he has to get elected within six months to either of the houses while Ministers of Britain are invariably selected among the members of the parliament.

⇒ In India President can ask the Prime Minister to place a subject before the council of ministers if it is not discussed and decided by the Cabinet while in the UK cabinet serves as a unit before the Parliament and Sovereign. Its views are placed by the cabinet as a single whole before the Parliament and Sovereign as if they are views of one man.

⇒ Indian federalism is based on Quasi-federal and works on competitive federalism while all powers of the government are vested in the British Parliament, which is a sovereign body.

PARLIAMENT PROCEDURE

OATH

ARTICLE 99

Every member of either House of Parliament shall, before taking his seat, make and subscribe before the President, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.

VOTING

ARTICLE 100

(1) Save as otherwise provided in this Constitution, all questions at any sitting of either House or joint sitting of the Houses shall be determined by a majority of votes of the members present and voting, other than the Speaker or person acting as Chairman or Speaker.

The Chairman or Speaker, or person acting as such, shall not vote in the first instance, but shall have and exercise a casting vote in the case of an equality of votes.

(2) Either House of Parliament shall have power to act notwithstanding any vacancy in the membership thereof, and any proceedings in Parliament shall be valid notwithstanding that it is discovered subsequently that some person who was not entitled so to do sat or voted or otherwise took part in the proceedings.

QUORUM

ARTICLE 100

(3) Until Parliament by law otherwise provides, the quorum to constitute a meeting of either House of Parliament shall be one-tenth of the total number of members of the House.

(4) If at any time during a meeting of a House there is no quorum, it shall be the duty of the Chairman or Speaker, or person acting as such, either to adjourn the House or to suspend the meeting until there is a quorum.

QUESTION HOUR

⇒ The first hour of every parliamentary sitting is slotted for this. During this time, the members ask questions and the ministers usually give answers. The questions are of three kinds, namely, starred, unstarred and short notice.

⇒ A starred question (distinguished by an asterisk) requires an oral answer and hence supplementary questions can follow.

⇒ An unstarred question, on the other hand, requires a written answer and hence, supplementary questions cannot follow.

⇒ A short notice question is one that is asked by giving a notice of less than ten days. It is answered orally.

RESOLUTION

⇒ Is a motion through which the House expresses its majority opinion on a matter of public interest. Member must give 15 days notice before bringing up such a notice.

MOTION

⇒ A matter of urgent public interest is sought to be discussed in the House.

MOTION OF THANKS

⇒ The President address is followed by a motion of thanks moved in each House.

⇒ Generally, three days are allotted for the discussion on the Motion of Thanks.

⇒ If any of the amendments are put forward and accepted then the Motion of Thanks is

⇒ adopted in the amended form.

⇒ The Motion of Thanks must be passed in the House. Otherwise, it amounts to the defeat of the government.

CALLING ATTENTION MOTION {RULE - 197}

⇒ It is introduced in the Parliament by a member to call the attention of a minister to a matter of urgent public importance, and to seek an authoritative statement from him on that matter.

⇒ Like the zero hour, it is also an Indian innovation in the parliamentary procedure and has been in existence since 1954.

⇒ Unlike the zero hour, it is mentioned in the Rules of Procedure.

PRIVILEGE MOTION

⇒ It is concerned with the breach of parliamentary privileges by a minister.

⇒ It is moved by a member when he feels that a minister has committed a breach of privilege of the House or one or more of its members by withholding facts of a case or by giving wrong or distorted facts.

⇒ Its purpose is to censure the concerned minister.

ADJOURNMENT MOTION

⇒ When there is an urgent matter of public importance then a member may propose that the business of the house be adjourned for discussing that matter.

⇒ This motion can be moved only with the consent of the Speaker.

⇒ Generally such motions are discussed in the afternoon at 4.00 p.m.

⇒ Needed support of 50 members.

⇒ Can't be passed in Rajya Sabha.

SHORT DISCUSSION

⇒ It is also known as two-hour discussion as the time allotted for such a discussion should not exceed two hours.

⇒ The Speaker can allot two days in a week for such discussions. There is neither a formal motion before the house nor voting.

⇒ This device has been in existence since 1953.

SUBSTANTIVE MOTION

⇒ A substantive motion is a self-contained independent proposal submitted for the approval of the House and drafted in such a way as to be capable of expressing a decision of the House, e.g., all resolutions are substantive motions.

SUBSIDIARY MOTION

⇒ It is a motion which depends upon or relates to another motion or follows upon some Proceedings in the House.

⇒ By itself it has no meaning and is not capable of stating the decision of the House without reference to the original motion or proceedings of the House.

⇒ Subsidiary Motions are further divided into:(a) Ancillary Motion (b) Superseding Motion (c) Amendment.

NO-CONFIDENCE MOTION

⇒ This can only be moved in Lok Sabha & the opposition of the house.

⇒ No-confidence motion does not require any specific ground.

⇒ The motion needs the support of 50 members to be admitted.

⇒ If it is passed, the Council of Ministers has to resign.

CENSURE MOTION

⇒ Can be moved against the ruling government or against any minister for the failure to act or seeking disapproval of their policy.

⇒ Moved only in Lok Sabha by the opposition.

⇒ Must specify the charges against the government for which it is moved.

⇒ If a censure motion is passed in the Lok Sabha, the Council of ministers is bound to seek the confidence of the Lok Sabha as early as possible.

MOTIONS AND RESOLUTIONS DIFFERENT FROM EACH OTHER.

Motions and resolutions are procedural devices to raise a discussion in the House on a matter of general public interest. With few exceptions, the process of debate in the House is initiated by a member or Minister by making a motion.

MOTION

Any matter to be decided by the House must be brought in front of the House in the form of a motion. A motion can be moved only with the approval of the presiding officer.

⇒ The motion refers to a proposal that is placed before the meeting, for the purpose of discussion and decision.

⇒ Not recorded in the minutes of the meeting.

⇒ There is no binding.

⇒ Amendments can be made, prior to voting on the motion.

⇒ The motion may be withdrawn by the member who proposes it before the motion is put to vote.

There are 3 kinds of motions – Substantive, Substitute and Subsidiary Motions

RESOLUTIONS

Resolution are used to express opinion of the house. It is a self-contained independent proposal submitted for the approval of the House and drafted in such away as to be capable of expressing a decision of the House.

⇒ Once the motion is passed it turns out as a resolution, i.e. it shows the general opinion of all members.

⇒ It is recorded in the minutes of the meeting.

⇒ There is binding.

⇒ As and when the resolution is passed, it can be amended by passing an amendment resolution.

⇒ Once the resolution is approved, withdrawal is not possible.

POLICY CUT

⇒ That the amount of the demand be reduced to Re.1/-' representing disapproval of the policy underlying the demand. A member giving notice of such a motion shall indicate in precise terms the particulars of the policy which he proposes to discuss. The discussion should be confined to the specific point or points mentioned in the notice and it shall be open to members to advocate an alternative policy.

ECONOMY CUT

⇒ The objective of the motion is to reduce the amount of die expenditure and the form of the motion is "The amount of the demand be reduced by Rupee... (a specified amount)". Such specified amount may be either a lump sum reduction in the demand or omission or reduction of an item in the demand.

TOKEN CUT

⇒ The objective of the motion is to ventilate a specific grievance within the sphere of responsibility of the Government of India and its form is "The amount of the demand be reduced by Rupee100″.

CLOSURE MOTION

⇒ It is a motion moved by a member to cut short the debate on a matter before the House.

⇒ If the motion is approved by the House, debate is stopped forthwith and the matter is put to vote.

- ❖ SIMPLE CLOSURE is one when a member moves that the matter having been sufficiently discussed be now put to vote.
- ❖ In CLOSURE BY COMPARTMENTS the clauses of a bill or a lengthy resolution are grouped into parts before the commencement of the debate.
- ❖ The debate covers the part as a whole and the entire part is put to vote.
- ❖ Under KANGAROO CLOSURE only important clauses are taken up for debate and voting and the intervening clauses are skipped over and taken as passed.
- ❖ Guillotine Closure is one when the undiscussed clauses of a bill or a resolution are also put to vote along with the discussed ones due to want of time.

HALF-AN-HOUR DISCUSSION {RULE – 55}

⇒ It is meant for discussing a matter of sufficient public importance, which has been subjected to a lot of debate and the answer to which needs elucidation on a matter of fact.

⇒ The Speaker can allot three days in a week for such discussions.

⇒ There is no formal motion or voting before the House.

POINT OF ORDER

⇒ A point of order should relate to the interpretation or enforcement of the Rules of the House or such articles of the Constitution that regulate the business of the House and should raise a question that is within the cognizance of the Speaker.

⇒ It is usually raised by an opposition member in order to control the government.

⇒ It is an extraordinary device as it suspends the proceedings before the House.

⇒ No debate is allowed on a point of order.

SPECIAL MENTION

⇒ A matter which is not a point of order or which cannot be raised during question hour, half-an hour discussion, short duration discussion or under adjournment motion, calling attention notice or under any rule of the House can be raised under the special mention in the Rajya Sabha.

⇒ Its equivalent procedural device in the Lok Sabha is known as 'Notice (Mention) Under Rule 377'.

NO-DAY-YET-NAMED-MOTION

⇒ It is a motion that has been admitted by the Speaker but no date has been fixed for its discussion.

⇒ The Speaker, after considering the state of business in the House and in consultation with the leader of the House or on the recommendation of the Business Advisory Committee, allots a day or days or part of a day for the discussion of such a motion.

LAME DUCK SESSION

⇒ It refers to the last session of the existing Lok Sabha, after a new Lok Sabha has been elected.

⇒ Those members of the existing Lok Sabha who could not get re-elected to the new Lok Sabha are called lame-ducks.

SHADOW CABINET

⇒ A Parliament practice prevalent in the UK where senior members of the Opposition cover the areas of responsibility of the actual cabinet.

⇒ They will form the cabinet if their party is elected to the government.

LEADER OF THE OPPOSITION

⇒ The leader of the largest Opposition party having not less than one-tenth seats of the total strength of the House is recognised as the leader of the Opposition in a House.

⇒ The leader of Opposition in both the Houses were accorded statutory recognition in 1977 and are entitled to the salary, allowances and other facilities equivalent to that of a cabinet minister.

⇒ The office of leader of the opposition is not mentioned in the Constitution but in the Parliamentary Statute.

LEADER OF THE HOUSE

⇒ Under the Rules of Lok Sabha, the 'Leader of the House' means the Prime Minister

⇒ Another minister who is a member of Lok Sabha and is nominated by the PM to function as the Leader of the House.

⇒ The office of leader of the house is not mentioned in the Constitution but in the Rules of the House.

WHIP

⇒ Every political party, whether ruling or opposition has its own whip in the Parliament.

⇒ He is appointed by the political party to serve as an assistant floor leader, charged with the responsibility of ensuring the attendance of his party members in large numbers and securing their support in favour of or against a particular issue.

⇒ He regulates and monitors their behaviour in the Parliament and the members are supposed to follow the directives given by the whip.

⇒ The office of 'whip' is mentioned neither in the Indian Constitution nor in the other two statues mentioned above.

⇒ It is based on the conventions of the parliamentary government.

RULE 184

⇒ The procedure for taking up an issue under this Rule is similar to that of Rule 193, with one exception.

⇒ The issue is raised in the form of a motion.

⇒ After the Minister's reply, the House votes on the motion.

RULE 193

⇒ Discussions under this rule do not involve the introduction of a formal motion before the House.

⇒ Hence, no voting takes place after a discussion on the matters considered under this rule.

⇒ The Member who raises the discussion has no right to reply.

⇒ At the end of the discussion, the Minister concerned gives a brief reply.

RULE 377

⇒ After the laying of papers, matters which cannot be raised under the Rules relating to Questions, Short Notice Questions, Calling Attention, Motions, etc. can be raised under Rule 377.

⇒ MPs may raise issues under this Rule, in their individual capacity, with the consent of the Speaker.

⇒ Notice needs to be given before 10 am on the day of the sitting and the text of the notice cannot exceed 250 words.

⇒ Presently 20 MPs are allowed to raise matters under Rule 377 per day.

⇒ The names of the MPs are selected on the basis of the strength of parties in the House.

⇒ A member can raise only one matter under Rule 377 during a week.

BILLS IN PARLIAMENT

ORDINARY BILLS

⇒ Anything under the Union and Concurrent Lists

⇒ Introduced in either House

⇒ Simple majority in each House

MONEY BILLS

⇒ Involving taxation, borrowing, govt funding, payment or withdrawal of money from the Consolidated or Contingency Funds of India

⇒ Introduced only in LS

⇒ Simple majority in LS

⇒ RS can recommend changes but LS has the right to reject them

⇒ RS must return or pass a Bill within 14 days or it is deemed passed

DIFFERENCES BETWEEN ORDINARY AND MONEY BILL

ORDINARY BILL

⇒ Can be introduced in either Lok Sabha or Rajya Sabha.

⇒ Can be introduced by either minister or member.

⇒ Can be introduced without President's recommendation.

⇒ Can be amended/rejected by Rajya Sabha.

⇒ Rajya Sabha can only detain bill for 6 months.

⇒ Does not require certification of speaker when transmitted to Rajya Sabha.

⇒ Sent for President's assent if passed by both houses. In case of deadlock, joint sitting can be summoned.

⇒ Its defeat in Lok Sabha may lead to resignation of the government.

⇒ Can be rejected, approved or returned for reconsideration by the President.

MONEY BILL

⇒ Can only be introduced in Lok Sabha.

⇒ Can be introduced only by the minister.

⇒ Can be introduced only with President's recommendation.

⇒ Rajya Sabha can only return the bill.

⇒ Rajya Sabha can detain bills for max 14 days.

⇒ Requires Speaker's certification.

⇒ Can be sent for president's assent even if approved only by Lok Sabha. No provision for joint sitting.

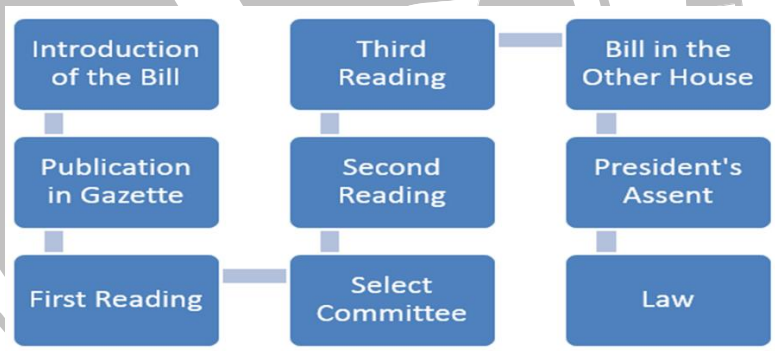
⇒ Defeat in Lok Sabha leads to resignation of the government.

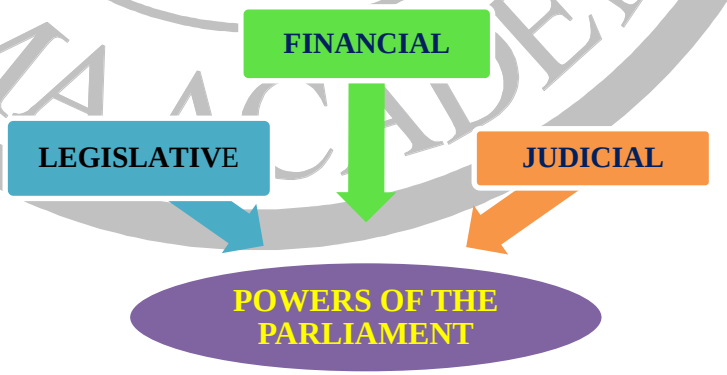
⇒ Can be rejected or approved but cannot be returned by the President.

PUBLIC & PRIVATE MEMBER BILL

	Public Bill		*Private Bill*
1.	It is introduced in the Parliament by a minister.	1.	It is introduced by any member of Parliament other than a minister.
2.	It reflects of the policies of the government (ruling party).	2.	It reflects the stand of opposition party on public matter.
3.	It has greater chance to be approved by the Parliament.	3.	It has lesser chance to be approved by the Parliament.
4.	Its rejection by the House amounts to the exp-ression of want of parliamentary confidence in the government and may lead to its resignation.	4.	Its rejection by the House has no implication on the parliamentary confidence in the government or its resignation.
5.	Its introduction in the House requires seven days' notice.	5.	Its introduction in the House requires one month's notice.
6.	It is drafted by the concerned department in consultation with the law department.	6.	Its drafting is the responsibility of the member concerned.

HOW BILL BECOMES ACT





⇒ A Bill pending in Parliament shall not lapse by reason of the prorogation of the Houses.

⇒ A Bill pending in the Council of States which has not been passed by the House of the People shall not lapse on a dissolution of the House of the People.

⇒ A Bill which is pending in the House of the People, or which having been passed by the House of the People is pending in the Council of States, shall, subject to the provisions of article 108, lapse on a dissolution of the House of the People.

ARTICLE 108

(1) If after a Bill has been passed by one House and transmitted to the other House—

(a) the Bill is rejected by the other House; or

(b) the Houses have finally disagreed as to the amendments to be made in the Bill; or

(c) more than six months elapse from the date of the reception of the Bill by the other House without the Bill being passed by it, the President may, unless the Bill has elapsed by reason of a dissolution of the House of the People, notify to the Houses by message if they are sitting or by public notification if they are not sitting, his intention to summon them to meet in a joint sitting for the purpose of deliberating and voting on the Bill:

Provided that nothing in this clause shall apply to a Money Bill.

(2) In reckoning any such period of six months as is referred to in clause (1), no account shall be taken of any period during which the House referred to in sub-clause (c) of that clause is prorogued or adjourned for more than four consecutive days.

(3) Where the President has under clause (1) notified his intention of summoning the Houses to meet in a joint sitting, neither House shall proceed further with the Bill, but the President may at any time after the date of his notification summon the Houses to meet in a joint sitting for the purpose specified in the notification and, if he does so, the Houses shall meet accordingly.

(4) If at the joint sitting of the two Houses the Bill, with such amendments, if any, as are agreed to in joint sitting, is passed by a majority of the total number of members of both Houses present and voting, it shall be deemed for the purposes of this Constitution to have been passed by both Houses:

Provided that at a joint sitting—

(a) if the Bill, having been passed by one House, has not been passed by the other House with amendments and returned to the House in which it originated, no amendment shall be proposed to the Bill other than such amendments (if any) as are made necessary by the delay in the passage of the Bill;

(b) if the Bill has been so passed and returned, only such amendments as aforesaid shall be proposed to the Bill and such other amendments as are relevant to the matters with respect to which the Houses have not agreed; and the decision of the person presiding as to the amendments which are admissible under this clause shall be final.

(5) A joint sitting may be held under this article and a Bill passed thereat, notwithstanding that a dissolution of the House of the People has intervened since the President notified his intention to summon the Houses to meet therein.

ARTICLE 109

(1) A Money Bill shall not be introduced in the Council of States.

(2) After a Money Bill has been passed by the House of the People it shall be transmitted to the Council of States for its recommendations and the Council of States shall within a period of fourteen days from the date of its receipt of the Bill return the Bill to the House of the People with its recommendations and the House of the People may thereupon either accept or reject all or any of the recommendations of the Council of States.

(3) If the House of the People accepts any of the recommendations of the Council of States, the Money Bill shall be deemed to have been passed by both Houses with the amendments recommended by the Council of States and accepted by the House of the People.

(4) If the House of the People does not accept any of the recommendations of the Council of States, the Money Bill shall be deemed to have been passed by both Houses
in the form in which it was passed by the House of the People without any of the amendments recommended by the Council of States.

(5) If a Money Bill passed by the House of the People and transmitted to the Council of States for its recommendations is not returned to the House of the People within the said period of fourteen days, it shall be deemed to have been passed by both Houses at the
expiration of the said period in the form in which it was passed by the House of the People.

ARTICLE 110

(1) For the purposes of this Chapter, a Bill shall be deemed to be a Money Bill if it contains only provisions dealing with all or any of the following matters, namely:—

(a) the imposition, abolition, remission, alteration or regulation of any tax;

(b) the regulation of the borrowing of money or the giving of any guarantee by the Government of India, or the amendment of the law with respect to any financial obligations undertaken or to be undertaken by the Government of India;

(c) the custody of the Consolidated Fund or the Contingency Fund of India, the payment of moneys into or the withdrawal of moneys from any such fund;

(d) the appropriation of moneys out of the Consolidated Fund of India;

(e) the declaring of any expenditure to be expenditure charged on the Consolidated Fund of India or the increasing of the amount of any such expenditure;

(f) the receipt of money on account of the Consolidated Fund of India or the public account of India or the custody or issue of such money or the audit of the accounts of the Union or of a State; or

(g) any matter incidental to any of the matters specified in sub-clauses (a) to (f).

(2) A Bill shall not be deemed to be a Money Bill by reason only that it provides for the imposition of fines or other pecuniary penalties, or for the demand or payment of fees for licences or fees for services rendered, or by reason that it provides for the imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.

(3) If any question arises whether a Bill is a Money Bill or not, the decision of the Speaker of the House of the People thereon shall be final.

(4) There shall be endorsed on every Money Bill when it is transmitted to the Council of States under article 109, and when it is presented to the President for assent under article 111, the certificate of the Speaker of the House of the People signed by him that it is a Money Bill.

OTHER

⇒ The Parliament has exclusive legislative jurisdiction over 97 subjects in the Union List

⇒ Both the Parliament and the State Legislatures have the right to make law on subjects on Concurrent List.

FINANCIAL POWERS

ARTICLE 112

(1) The President shall in respect of every financial year cause to be laid before both the Houses of Parliament a statement of the estimated receipts and expenditure of the Government of India for that year, in this Part referred to as the "annual financial statement".

(2) The estimates of expenditure embodied in the annual financial statement shall show separately—

(a) the sums required to meet expenditure described by this Constitution as expenditure charged upon the Consolidated Fund of India; and

(b) the sums required to meet other expenditure proposed to be made from the Consolidated Fund of India, and shall distinguish expenditure on revenue account from other expenditure.

(3) The following expenditure shall be expenditure charged on the Consolidated Fund of India—

(a) the emoluments and allowances of the President and other expenditure relating to his office;

(b) the salaries and allowances of the Chairman and the Deputy Chairman of the Council of States and the Speaker and the Deputy Speaker of the House of the People;

(c) debt charges for which the Government of India is liable including interest, sinking fund charges and redemption charges, and other expenditure relating to the raising of loans and the service and redemption of debt;

(d) (i) the salaries, allowances and pensions payable to or in respect of Judges of the Supreme Court;

(ii) the pensions payable to or in respect of Judges of the Federal Court;

(iii) the pensions payable to or in respect of Judges of any High Court which exercises jurisdiction in relation to any area included in the territory of India or which at any time before the commencement of this Constitution exercised jurisdiction in relation to any area included in a Governor's Province of the Dominion of India;

(e) the salary, allowances and pension payable to or in respect of the Comptroller and Auditor-General of India;

(f) any sums required to satisfy any judgment, decree or award of any court or arbitral tribunal;

(g) any other expenditure declared by this Constitution or by Parliament by law to be so charged.

ARTICLE 113

(1) So much of the estimates as relates to expenditure charged upon the Consolidated Fund of India shall not be submitted to the vote of Parliament, but nothing in this clause shall be construed as preventing the discussion in either House of Parliament of any of those estimates.

(2) So much of the said estimates as relates to other expenditure shall be submitted in the form of demands for grants to the House of the People, and the House of the People shall have power to assent, or to refuse to assent, to any demand, or to assent to any demand subject to a reduction of the amount specified therein.

(3) No demand for a grant shall be made except on the recommendation of the President.

ARTICLE 114

(1) As soon as may be after the grants under article 113 have been made by the House of the People, there shall be introduced a Bill to provide for the appropriation out of the Consolidated Fund of India of all moneys required to meet—

(a) the grants so made by the House of the People; and

(b) the expenditure charged on the Consolidated Fund of India but not exceeding in any case the amount shown in the statement previously laid before Parliament.

(2) No amendment shall be proposed to any such Bill in either House of Parliament which will have the effect of varying the amount or altering the destination of any grant so made or of varying the amount of any expenditure charged on the Consolidated Fund of India, and the decision of the person presiding as to whether an amendment is inadmissible under this clause shall be final.

(3) Subject to the provisions of articles 115 and 116, no money shall be withdrawn from the Consolidated Fund of India except under appropriation made by law passed in accordance with the provisions of this article.

ARTICLE 115

(1) The President shall—

(a) if the amount authorised by any law made in accordance with the provisions of article 114 to be expended for a particular service for the current financial year is found to be insufficient for the purposes of that year or when a need has arisen during the current financial year for supplementary or additional expenditure upon some new service not contemplated in the annual financial statement for that year, or

(b) if any money has been spent on any service during a financial year in excess of the amount granted for that service and for that year, cause to be laid before both the Houses of Parliament another statement showing the estimated amount of that expenditure or cause to be presented to the House of the People a demand for such excess, as the case may be.

(2) The provisions of articles 112, 113 and 114 shall have effect in relation to any such statement and expenditure or demand and also to any law to be made authorising the appropriation of moneys out of the Consolidated Fund of India to meet such expenditure or
the grant in respect of such demand as they have effect in relation to the annual financial statement and the expenditure mentioned therein or to a demand for a grant and the law to be made for the authorisation of appropriation of moneys out of the Consolidated Fund of India to meet such expenditure or grant.

ARTICLE 116

(1) Notwithstanding anything in the foregoing provisions of this Chapter, the House of the People shall have power—
(a) to make any grant in advance in respect of the estimated expenditure for a part of any financial prescribed in article 113 for the voting of such grant and the passing of the law in accordance with the provisions of article 114 in relation to that expenditure;
(b) to make a grant for meeting an unexpected demand upon the resources of India when on account of the magnitude or the indefinite character of the service the demand cannot be stated with the details ordinarily given in an annual financial statement;
(c) to make an exceptional grant which forms no part of the current service of any financial year; and Parliament shall have power to authorise by law the withdrawal of moneys from the Consolidated Fund of India for the purposes for which the said grants are made.
(2) The provisions of articles 113 and 114 shall have effect in relation to the making of any grant under clause (1) and to any law to be made under that clause as they have effect in relation to the making of a grant with regard to any expenditure mentioned in the annual financial statement and the law to be made for the authorisation of appropriation of moneys out of the Consolidated Fund of India to meet such expenditure.

ARTICLE 117

(1) A Bill or amendment making provision for any of the matters specified in sub-clauses (a) to (f) of clause (1) of article 110 shall not be introduced or moved except on the recommendation of the President and a Bill making such provision shall not be introduced in the Council of States:
Provided that no recommendation shall be required under this clause for the moving of an amendment making provision for the reduction or abolition of any tax.
(2) A Bill or amendment shall not be deemed to make provision for any of the matters aforesaid by reason only that it provides for the imposition of fines or other pecuniary penalties, or for the demand or payment of fees for licences or fees for services rendered, or by reason that it provides for the imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.

(3) A Bill which, if enacted and brought into operation, would involve expenditure from the Consolidated Fund of India shall not be passed by either House of Parliament unless the President has recommended to that House the consideration of the Bill.

RULES OF PROCEDURE

ARTICLE 118

(1) Each House of Parliament may make rules for regulating, subject to the provisions of this Constitution, its procedure and the conduct of its business.

(2) Until rules are made under clause (1), the rules of procedure and standing orders in force immediately before the commencement of this Constitution with respect to the Legislature of the Dominion of India shall have effect in relation to Parliament subject to such modifications and adaptations as may be made therein by the Chairman of the Council of States or the Speaker of the House of the People, as the case may be.

(3) The President, after consultation with the Chairman of the Council of States and the Speaker of the House of the People, may make rules as to the procedure with respect to joint sittings of, and communications between, the two Houses.

(4) At a joint sitting of the two Houses the Speaker of the House of the People, or in his absence such person as may be determined by rules of procedure made under clause (3), shall preside.

ARTICLE 119

Parliament may, for the purpose of the timely completion of financial business, regulate by law the procedure of, and the conduct of business in, each House of Parliament in relation to any financial matter or to any Bill for the appropriation of moneys out of the Consolidated Fund of India, and, if and so far as any provision of any law so made is inconsistent with any rule made by a House of Parliament under clause (1) of article 118 or with any rule or standing order having effect in relation to Parliament under clause (2) of that article, such provision shall prevail.

ARTICLE 120

(1) Notwithstanding anything in Part XVII, but subject to the provisions of article 348, business in Parliament shall be transacted in Hindi or in English: Provided that the Chairman of the Council of States or Speaker of the House of the People, or person acting as such, as the case may be, may permit any member who cannot adequately express himself in Hindi or in English to address the House in his mother-tongue.

(2) Unless Parliament by law otherwise provides, this article shall, after the expiration of a period of fifteen years from the commencement of this Constitution, have effect as if the words "or in English" were omitted there from.

ARTICLE 121

No discussion shall take place in Parliament with respect to the conduct of any Judge of the Supreme Court or of a High Court in the discharge of his duties except upon a motion for presenting an address to the President praying for the removal of the Judge as hereinafter provided.

ARTICLE 122

(1) The validity of any proceedings in Parliament shall not be called in question on the ground of any alleged irregularity of procedure. (2) No officer or member of Parliament in whom powers are vested by or under this Constitution for regulating procedure or the conduct of business, or for maintaining order, in Parliament shall be subject to the jurisdiction of any court in respect of the exercise by him of those powers.

PARLIAMENTARY COMMITTEES

⇒ Parliamentary Committees act as a mechanism that helps in improving the effectiveness of Parliament.

⇒ Parliamentary Committees were constituted to examine proposed legislation, government policies and expenditure in detail.

⇒ They also examine petitions from the public, check whether rules framed by the government are in consonance with Acts of Parliament, and help manage the administration of Parliament.

TYPES

⇒ Departmentally Related Standing Committees

⇒ Financial committees

⇒ Administrative committees

⇒ Accountability Committees

⇒ Ad Hoc Committees

Departmentally Related Standing Committees (DRSCs)

⇒ DRSCs were constituted in 1993 to assist Parliament in scrutinising funds allocated to Ministries.

⇒ They also examine Bills referred to them by Parliament and analyse other relevant policy issues.

⇒ There are 24 DRSCs that oversee the working of a Ministry or group of Ministries.

⇒ They are composed of 31 members: 21 from Lok Sabha and 10 from Rajya Sabha.

⇒ These DRSCs are constituted for a period of one year.

FINANCIAL COMMITTEES

THE COMMITTEE ON PUBLIC ACCOUNTS (PAC)

⇒ The Committee on Public Accounts is the oldest Parliamentary Committee and was first constituted in 1921.

⇒ The Committee consists of 22 Members, 15 Members are elected by Lok Sabha and 7 Members of the Rajya Sabha are associated with it.

⇒ The Speaker is empowered to appoint the Chairman of the Committee from amongst its Members.

⇒ Analyses accounts on funds sanctioned by Parliament for government expenditure.

⇒ It also examines other accounts laid before Parliament such as reports by the Comptroller and Auditor General (CAG).

⇒ The PAC is entrusted with examining the findings of the CAG audit reports.

⇒ The Committee may also inquire into irregularities in public finance.

⇒ On average, the PAC has made 180 recommendations every year in the past eight years, out of which 80% were accepted by the government.

⇒ To examine the irregularities, the Committee may appoint a sub-committee.

COMMITTEE ON ESTIMATES

⇒ The Estimates Committee is a Committee of Lok Sabha.

⇒ The motion for election of the first Estimates Committee was adopted by the Provisional Parliament on 3rd April, 1950 and the Committee was elected on 10th April 1950.

⇒ The Committee consist of not more than 30 Members from Lok Sabha who shall be elected by the House every year from amongst its members according principle of promotional representation by means of single transferable vote.

⇒ The Speaker is empowered to appoint the Chairman of the Committee from amongst its members.

⇒ It assists Parliament in overseeing pre-budget estimates of the government, and examines whether the proposed expenditure is within the limits of government policy.

⇒ It also reports on administrative reforms needed within Ministries and suggests policies to bring about efficiency in administration.

⇒ Prior to 1993, this Committee carried out the task of examining proposed estimates of expenditure by various ministries.

COMMITTEE ON PUBLIC UNDERTAKINGS

⇒ The Krishna Menon Committee recommended that this committee be formed in 1964.

⇒ This financial committee is made up of 22 people - 15 members are elected from the Lok Sabha and 7 members are elected from the Rajya Sabha.

⇒ The members of the committee are chosen annually by the Parliament from among its members, using the Proportional Representation and the Single Transferable Vote system.

⇒ The chairperson of the committee is appointed by the Speaker of the Lok Sabha.

⇒ The Chairman of the Committee on Public Enterprises is chosen from among the Lok Sabha members.

⇒ Examine public-sector reports and financial statements.

⇒ Examine the CAG and auditor general's reports on public undertakings.

All Government Companies whose Annual Reports are laid before the Houses of Parliament under section 619A (1) of the Companies Act, 1956, as well as statutory Corporations whose names are included in the Fourth Schedule to the Rules of Procedure, are included in the Committee's jurisdiction.

DEPARTMENT STANDING COMMITTEES

⇒ There are a total of 24 Departmental Standing Committees:- 8 under Rajya Sabha and 16 under Lok Sabha.

⇒ They don't consider day-to-day administration

⇒ They generally don't intervene into matters taken up by another departmental standing committees

⇒ Recommendations made them are advisory in nature, hence are not binding on the Parliament

⇒ They work upon the demand for grants of the concerned ministries. They don't propose any cut-motion.

COMMITTEES TO INQUIRE

⇒ Committee on Petitions examines petitions on bills and on matters of general public interest and also entertains representations on matters concerning subjects in the Union List; and Committee of Privileges examines any question of privilege referred to it by the House or Speaker/Chairman.

⇒ The Speaker is empowered to appoint the Chairman of the Committee from amongst its members.

⇒ It assists Parliament in overseeing pre-budget estimates of the government, and examines whether the proposed expenditure is within the limits of government policy.

⇒ It also reports on administrative reforms needed within Ministries and suggests policies to bring about efficiency in administration.

COMMITTEE ON PRIVATE MEMBERS' BILLS AND RESOLUTIONS

⇒ In of the Lok Sabha to classifies and allocates time to Bills introduced by private members.

⇒ The Rajya Sabha does not have such a committee.

⇒ It is the Business Advisory Committee of that House which recommends allocation of time for discussion on stage or stages of private members' bills and resolutions.

OTHER COMMITTEE

⇒ Committee on the Welfare of Scheduled Castes and Scheduled Tribes, on which members from both Houses serve, considers all matters relating to the welfare of Scheduled Castes and Scheduled Tribes which come within the purview of the Union Government and keeps a watch whether constitutional safeguards in respect of these classes are properly implemented.

⇒ Rules Committee considers matters of procedure and conduct of business in the House and recommends amendments or additions to the Rules.

⇒ Committee on Absence of Members from the Sittings of the House of the Lok Sabha considers all applications from members for leave or absence from sittings of the House.

- There is no such Committee in the Rajya Sabha.

⇒ Joint Committee on Salaries and Allowances of Members of Parliament, constituted under the Salary, Allowances and Pension of Members of Parliament Act, 1954.

⇒ Joint Committee on Offices of Profit examines the composition and character of committees.

⇒ Ad hoc Committees may be broadly classified under two heads.

- Select or Joint Committees on Bills which are appointed to consider and report on a particular Bill.

Committees which are constituted from time to time, either by the two Houses on a motion adopted in that behalf or by Speaker/Chairman to inquire into and report on specific subjects.,

These Committees are distinguishable from the other ad hoc committees inasmuch as they are concerned with Bills and the procedure to be followed by them as laid down in the Rules of Procedure and Directions by the Speaker/Chairman.

SIGMA ACADEMY

STATE LEGISLATURE

ARTICLE 168 - 212

ARTICLE 168

(1) For every State there shall be a Legislature which shall consist of the Governor, and—

(a) in the States of Andhra Pradesh, Bihar, Madhya Pradesh, Maharashtra, Karnataka, Tamil Nadu, Telangana and Uttar Pradesh two Houses;

(b) in other States, one House. Where there are two Houses of the Legislature of a State, one shall be known as the Legislative Council and the other as the Legislative Assembly, and where there is only one House, it shall be known as the Legislative Assembly..

ARTICLE 169

(1) Notwithstanding anything in article 168, Parliament may by law provide for the abolition of the Legislative Council of a State having such a Council or for the creation of such a Council in a State having no such Council, if the Legislative Assembly of the State passes a resolution to that effect by a majority of the total membership of the Assembly and by a majority of not less than two-thirds of the members of the Assembly present and voting.

- No such law as aforesaid shall be deemed to be an amendment of this Constitution for the purposes of article 368.

ARTICLE 170

(1) Subject to the provisions of article 333, the Legislative Assembly of each State shall consist of not more than five hundred, and not less than sixty, members chosen by direct election from territorial constituencies in the State.

(2) For the purposes of clause (1), each State shall be divided into territorial constituencies in such manner that the ratio between the population of each constituency and the number of seats allotted to it shall, so far as practicable, be the same throughout the State.

After 2026 census LIKE Parliament.

ARTICLE 171

(1) The total number of members in the Legislative Council of a State having such a Council shall not exceed one-third of the total number of members in the Legislative Assembly of that State:

- Provided that the total number of members in the Legislative Council of a State shall in no case be less than forty.

(2) Until Parliament by law otherwise provides, the composition of the Legislative Council of a State shall be as provided in clause (3).

(3) Of the total number of members of the Legislative Council of a State—

(a) as nearly as may be, one-third shall be elected by electorates consisting of members of municipalities, district boards and such other local authorities in the State as Parliament may by law specify;

(b) as nearly as may be, one-twelfth shall be elected by electorates consisting of persons residing in the State who have been for at least three years graduates of any university in the territory of India or have been for at least three years in possession of qualifications prescribed by or under any law made by Parliament as equivalent to that of a graduate of any such university;

(c) as nearly as may be, one-twelfth shall be elected by electorates consisting of persons who have been for at least three years engaged in teaching in such educational institutions within the State, not lower in standard than that of a secondary school, as may be prescribed by or under any law made by Parliament;

(d) as nearly as may be, one-third shall be elected by the members of the Legislative Assembly of the State from amongst persons who are not members of the Assembly;

(e) the remainder shall be nominated by the Governor clause (5).

(4) The members to be elected under sub-clauses (a), (b) and (c) of clause (3) shall be chosen in such territorial constituencies as may be prescribed by or under any law made by Parliament, and the elections under the said sub-clauses and under sub-clause (d) of the said clause shall be held in accordance with the system of proportional representation by means of the single transferable vote.

(5) The members to be nominated by the Governor under sub-clause (e) of clause (3) shall consist of personshaving special knowledge or practical experience in respect of such matters as the following, namely:—

Literature, science, art, co-operative movement and social service.

ARTICLE 172

(1) The Legislative Assembly: Five Years + One Year (N E)

(2) The Legislative Council of a State shall not be subject to dissolution, but as nearly as possible one-third of the members thereof shall retire as soon as may be on the expiration of every second year.

THE NEED AND IMPORTANCE OF LEGISLATIVE COUNCILS.

The Legislative Council is the upper house of the state. Article 169 provide for creation and abolition of legislative councils in states.

NEED and IMPORTANCE

⇒ Having a second chamber would allow for more debate and sharing of work between the Houses.

⇒ A second House of legislature is considered important to act as a check on hasty actions by the popularly elected House.

⇒ It is argued that second house put a check on autocratic tendencies of the lower chambers.

⇒ Elderly, experienced and sober individuals, cannot-bear the ordeal of electioneering neither campaign nor are they keen to indulge in vicious party politics.

⇒ Upper House consisting of graduates, teachers, outstanding persons in the fields of art, literature, science and social service, check-mate the radicalism of the lower House.

⇒ A unicameral legislature cannot cope with the work and devote fully to the bills brought before it for enactment.

⇒ To formulate better and detailed discussed legislation.

CRITICISM

⇒ Superfluous and Mischievous

⇒ Not an Effective Check

⇒ Vested Interests

⇒ Backdoor Entrance of the Defeated Members

⇒ Expensive Institution

ARTICLE 173

Qualification for membership of the State LegislatureSessions of the State Legislature, prorogation and dissolution

ARTICLE 177

Rights of Ministers and Advocate- General as respects the Houses

ARTICLE 178

The Speaker and Deputy Speaker of the Legislative Assembly

ARTICLE 179

A member holding office as Speaker or Deputy Speaker of an Assembly—

ARTICLE 180

(1) The office of Speaker is vacant

ARTICLE 182

The Legislative Council of every State having such Council shall, as soon as may be, choose two members of the Council to be respectively Chairman and Deputy Chairman.

ARTICLE 183

(b) may at any time by writing under his hand addressed, if such member is the Chairman, to the Deputy Chairman, and if such member is the Deputy Chairman, to the Chairman, resign his office.

(c) may be removed from his office by a resolution of the Council passed by a majority of all the then members of the Council:

Provided that no resolution for the purpose of clause (c) shall be moved unless at least fourteen days' notice has been given of the intention to move the resolution.

ARTICLE 186

There shall be paid to the Speaker and the Deputy Speaker of the Legislative Assembly, and to the Chairman and the Deputy Chairman of the Legislative Council, such salaries and allowances as may be respectively fixed by the Legislature of the State by law and, until provision in that behalf is so made, such salaries and allowances as are specified in the Second Schedule.

ARTICLE 187

Secretariat of State Legislature

ARTICLE 188

188. Every member of the Legislative Assembly or the Legislative Council of a State shall, before taking his seat, make and subscribe before the Governor, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.

Voting in Houses, power of Houses to act notwithstanding vacancies and quorum

ARTICLE 189

Disqualifications of Members

Powers, Privileges and Immunities of State Legislatures and their Members

LIKE PARLIAMENT

ARTICLE 195

Members of the Legislative Assembly and the Legislative Council of a State shall be entitled to receive such salaries and allowances as may from time to time be determined, by the Legislature of the State by law.

ARTICLE 196

(1) Subject to the provisions of articles 198 and 207 with respect to Money Bills and other financial Bills, a Bill may originate in either House of the Legislature of a State which has a Legislative Council.

LIKE PARLIAMENT

ARTICLE 198

(1) A Money Bill shall not be introduced in a Legislative Council.

LIKE PARLIAMENT

ARTICLE 200

⇒ When a Bill has been passed by the Legislative Assembly of a State or, in the case of a State having a Legislative Council, has been passed by both Houses of the Legislature of the State, it shall be presented to the Governor and the Governor shall declare either that he assents to the Bill or that he withholds assent therefrom or that he reserves the Bill for the consideration of the President.

ARTICLE 201

⇒ When a Bill is reserved by a Governor for the consideration of the President, the President shall declare either that he assents to the Bill or that he withholds Assent.

ARTICLE 202

⇒ The Governor shall in respect of every financial year cause to be laid before the House or Houses of the Legislature of the State a statement of the estimated receipts and expenditure of the State for that year, in this Part referred to as the "annual financial statement".

ARTICLE 203

⇒ So much of the estimates relates to Expenditure

⇒ No demand for a grant shall be made except on the recommendation of the Governor.

ARTICLE 204

⇒ The Appropriation Bill

ARTICLE 211

⇒ No discussion shall take place in the Legislature of a State with respect to the conduct of any Judge of the Supreme Court or of a High Court in the discharge of his duties.

श्रद्धावान् लभते ज्ञानम्
SIGMA ACADEMY

SUPREME COURT

&

HIGH COURT

ARTICLE 124

(1) There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than thirty other Judges.

(2) Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal and shall hold office until he attains the age of sixty-five Years.

(a) a Judge may, by writing under his hand addressed to the President, resign his office;

(b) a Judge may be removed from his office in the manner provided in clause (4).

(3) A person shall not be qualified for appointment as a Judge of the Supreme Court unless he is a citizen of India and—

(a) has been for at least five years a Judge of a High Court or of two or more such Courts in succession; or

(b) has been for at least ten years an advocate of a High Court or of two or more such Courts in succession; or

(c) is, in the opinion of the President, a distinguished jurist.

(4) A Judge of the Supreme Court shall not be removed from his office except by an order of the President passed after an address by each House of Parliament supported by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting has been presented to the President in the same session for such removal on the ground of proved misbehaviour or incapacity.

ARTICLE 125

Salaries, etc., of Judges

Chief Justice of India : 2,80,000/- Judges : 2,50,000/-

ARTICLE 126

Appointment of acting Chief Justice by the President.

ARTICLE 127

Appointment of ad hoc Judges.

There should not be a quorum of the Judges of the Supreme Court available to hold or continue any session of the Court.

⇒ By the Chief Justice of India, may with the previous consent of the President.

⇒ After consultation with the Chief Justice of the High Court concerned.

⇒ Duly qualified for appointment as a Judge of the Supreme Court

ARTICLE 128

⇒ Attendance of retired Judges at sittings of the Supreme Court.

⇒ With the previous consent of the President. held the office of a Judge of the Supreme Court.

⇒ Have all the jurisdiction, powers and privileges.

⇒ Entitled to such allowances as the President may by order determine

ARTICLE 130

The Supreme Court shall sit in Delhi or in such other place or places, as the Chief Justice of India may, with the approval of the President, from time to time, appoint.

JURISDICTION OF THE SUPREME COURT

ARTICLE 131

ORIGINAL JURISDICTION

Subject to the provisions of this Constitution, the Supreme Court shall, to the exclusion of any other court, have original jurisdiction in any dispute—

(a) between the Government of India and one or more States; or

(b) between the Government of India and any State or States on one side and one or more other States on the other; or

(c) between two or more States,

ARTICLE 132

APPELLATE JURISDICTION

(1) An appeal shall lie to the Supreme Court from any judgment, decree or final order of a High Court in the territory of India, whether in a civil, criminal orother proceeding, if the High Court certifies under article 134A that the case involves a substantial question of law as to the interpretation of this Constitution.

(3) Where such a certificate is given, any party in the case may appeal to the Supreme Court on the ground that any such question as aforesaid has been wrongly decided.

ARTICLE 133

Appellate jurisdiction of Supreme Court in appeals from High Courts in regard to civil matters.

ARTICLE 134

Appellate jurisdiction of Supreme Court in appeals from High Courts in regard to criminal matters.

(a) has on appeal reversed an order of acquittal of an accused person and sentenced him to death; or

(b) has withdrawn for trial before itself any case from any court subordinate to its authority and has in such trial convicted the accused person and sentenced him to death; or

(c) certifies under article 134A that the case is a fit one for appeal to the Supreme Court

ARTICLE 134 A

Certificate for appeal to the Supreme Court.

ARTICLE 136

The Supreme Court may, in its discretion, grant special leave to appeal from any judgment, decree, determination, sentence or order in any cause or matter passed or made by any court or tribunal in the territory of India.

ARTICLE 137

Review of judgments or orders by the Supreme Court.

ARTICLE 138

(1) the Supreme Court shall have such further jurisdiction and powers with respect to any of the matters in the Union List as Parliament may by law confer.

(2) The Supreme Court shall have such further jurisdiction and powers with respect to any matter as the Government of India and the Government of any State may by special agreement confer, if Parliament by law provides for the exercise of such jurisdiction and powers by the Supreme Court.

ARTICLE 139

Parliament may by law confer on the Supreme Court power to issue directions, orders or writs, including writs in the nature of HABEAS CORPUS, MANDAMUS, PROHIBITION, QUO WARRANTO and CERTIORARI, or any of them, for any purposes other than those mentioned in clause (2) of article 32.

ARTICLE 139 A

(1) Where cases involving the same or substantially the same questions of law are pending before the Supreme Court and one or more High Courts or before two or more High Courts and the Supreme Court is satisfied on its own motion or on an application made by the Attorney-General of India or by a party to any such case that such questions are substantial questions of general importance, the Supreme Court may withdraw the case or cases pending before the High Court or the High Courts and dispose of all the cases itself.

ARTICLE 140

Parliament may by law make provision for conferring upon the Supreme Court such supplemental powers not inconsistent with any of the provisions of this Constitution as may appear to be necessary or desirable for the purpose of enabling the Court more effectively to exercise the jurisdiction conferred upon it by or under this Constitution.

ARTICLE 141

The law declared by the Supreme Court shall be binding on all courts within the territory of India.

ARTICLE 142

Enforcement of decrees and orders of Supreme Court and orders as to discovery, etc.

ARTICLE 143

Power of President to consult Supreme Court.

ARTICLE 144

All authorities, civil and judicial, in the territory of India shall act in aid of the Supreme Court.

ARTICLE 145

RULES OF COURT

(1) Subject to the provisions of any law made by Parliament, the Supreme Court may from time to time, with the approval of the President, make rules for regulating generally the practice and procedure of the Court including—

(a) rules as to the persons practising before the Court;

(b) rules as to the procedure for hearing appeals and other matters pertaining to appeals including the time within which appeals to the Court are to be entered;

(c) rules as to the proceedings in the Court for the enforcement of any of the rights conferred by Part III;

(d) rules as to the entertainment of appeals under sub-clause (c) of clause (1) of article 134;

(e) rules as to the conditions subject to which any judgment pronounced or order made by the Court may be reviewed and the procedure for such review including the time within which applications to the Court for such review are to be entered;

(f) rules as to the costs of and incidental to any proceedings in the Court and as to the fees to be charged in respect of proceedings therein;

(g) rules as to the granting of bail;

(h) rules as to stay of proceedings;

(i) rules providing for the summary determination of any appeal which appears to the Court to be frivolous or vexatious or brought for the purpose of delay;

(j) rules as to the procedure for inquiries referred to in clause (1) of article 317

(2) Subject to the provisions of clause (3), rules made under this article may fix the minimum number of Judges who are to sit for any purpose, and may provide for the powers of single Judges and Division Courts.

(3) The minimum number] of Judges who are to sit for the purpose of deciding any case involving a substantial question of law as to the interpretation of this Constitution or for the purpose of hearing any reference under article 143 shall be five.

(4) No judgment shall be delivered by the Supreme Court save in open Court, and no report shall be made under article 143 save in accordance with an opinion also delivered in open Court.

(5) No judgment and no such opinion shall be delivered by the Supreme Court save with the concurrence of a majority of the Judges present at the hearing of the case

ARTICLE 146

Appointments of officers and servants of the Supreme Court shall be made by the Chief Justice of India or such other Judge or officer of the Court as he may direct.

The administrative expenses of the Supreme Court, including all salaries, allowances and pensions payable to or in respect of the officers and servants of the Court, shall be charged upon the Consolidated Fund of India, and any fees or other moneys taken by the Court shall form part of that Fund.

DOCTRINE OF PITH AND SUBSTANCE

The Doctrine of Pith and Substance is used when legislation approved by one legislature is contested or relied upon by another. According to this principle, the court considers the facts of the case while determining whether a given law applies to a particular issue. If one of the three lists resolves the fundamental problem, involvement with the other lists is viewed as intra vires and is not forbidden.

- ⇒ The statute as a whole,
- ⇒ Its major objects, and
- ⇒ The scope and impact of its provisions.

When determining whether a certain statute applies to a specific issue stated in one list or the other, the courts examine the substance of the enactment. As a result, if the legislation's provisions are inside the Union List, the State List's inadvertent invasion does not make the law unconstitutional.

One must consider the law at issue as a whole, its objectives as well as the scope and impact of its provisions, in order to determine its actual nature. If according to its 'true nature and character', the legislation substantially relates to a topic assigned to the Legislature which has enacted it, then it is not invalid merely because it incidentally trenches or encroaches on matters assigned to another legislature.

THE EFFICIENCY OF THE COLLEGIUM SYSTEM

The Collegium of judges is the Supreme Court's invention. It does not figure in the Constitution. In effect, it is a system under which judges are appointed by an institution comprising judges.

- ⇒ The collegium system is headed by the Chief Justice of India (CJI) and four senior-most judges of the Supreme Court.

Many have faulted the system, not only for its being seen as something unforeseen by the Constitution makers, but also for the way it functions. Opaqueness and a lack of transparency and the scope for nepotism are cited often.

- ⇒ The mystique of the process, the small base from which the selections were made and the secrecy and confidentiality ensured that the process may on occasions, make wrong appointments and, worse still, lend itself to nepotism (Justice Ruma Pal).
- ⇒ Some do not believe in full disclosure of reasons for transfers, as it may make lawyers in the destination court chary of the transferred judge. Embroilment in public controversies and having relatives practising in the same High Court could be common reasons for transfers.

- ⇒ The status of a proposed new memorandum of procedure, to infuse greater accountability, is also unclear.
- ⇒ In respect of appointments, there has been an acknowledgement that the "zone of consideration" must be expanded to avoid criticism that many appointees hail from families of retired judges.
- ⇒ The collegium system structurally tends to favour upper-caste males and is far from being representative of the population for whom it seeks to deliver justice.
- ⇒ The process of judicial appointment is delayed due to delay in recommendations by the collegium for the higher judiciary.
- ⇒ The attempt made to replace it by a 'National Judicial Appointments Commission' was struck down by the court in 2015 on the ground that it posed a threat to the independence of the judiciary.

However, it is time to think of a permanent, independent body to institutionalize the process with adequate safeguards to preserve the judiciary's independence guaranteeing judicial primacy but not judicial exclusivity.

THE JURISDICTION OF THE SUPREME COURT UNDER ARTICLE 142

The Supreme Court said that thinking of the Supreme Court as a "one-stop solution to resolve complicated issues of policy and society" is a reflection of the waning power of discourse and consensus-building.

The Indian constitution believe that every citizen of India must get COMPLETE JUSTICE. Article 142 provides discretionary power to the Supreme Court as it states that the Supreme Court in the exercise of its jurisdiction may pass such decree or make such order as is necessary for doing complete justice in any cause or matter pending before it.

But since the past few years it has become a gigantic part of the Supreme Court which is invoked several times to decide the case and to do the complete justice. Further, there is no specific guideline or rule provided by the law which explains when, where and under which circumstances the Apex Court can invoke the said article to do complete justice.

In Ayodhya case the Supreme Court described–

The phrase 'is necessary for doing complete justice' is of a wide amplitude and encompasses a power of equity which is employed when the strict application of the law is inadequate to produce a just outcome.

Unlike the executive and legislature, Supreme Court cannot be held accountable for its decisions. The Supreme Court did not hear individuals and their particular facts, but only their associations were heard. In the coal block allocation case

- ⇒ The problem of judicial under-reach arises where courts shirk its responsibilities, despite having the jurisdiction, resulting in injustice.
- ⇒ Supreme Court laid down The guidelines to protect a woman from sexual harassment at its workplace.(Vishakha case)

The Supreme Court needs to introspect on whether the use of Article 142 as an independent source of power should be regulated by strict guidelines or it should be referred to a Constitution Bench.

THE HIGH COURTS IN THE STATES

ARTICLE 214

There shall be a High Court for each State.

ARTICLE 215

High Courts to be courts of record.

ARTICLE 216

Every High Court shall consist of a Chief Justice and such other Judges as the President may from time to time deem it necessary to appoint.

ARTICLE 217

Every Judge of a High Court shall be appointed by the President by warrant under his hand and seal the Governor of the State, and, in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of the High Court, and 2[shall hold office, in the case of an additional or acting Judge, as provided in article 224, and in any other case, until he attains the age of sixtytwo years

(a) a Judge may, by writing under his hand addressed to the President, resign his office;

(b) a Judge may be removed from his office by the President in the manner provided in clause (4) of article 124 for the removal of a Judge of the Supreme Court;

(c) the office of a Judge shall be vacated by his being appointed by the President to be a Judge of the Supreme Court or by his being transferred by the President to any other High Court within the territory of India.

(2) A person shall not be qualified for appointment as a Judge of a High Court unless he is a citizen of India and—

(a) has for at least ten years held a judicial office in the territory of India; or

(b) has for at least ten years been an advocate of a High Court or of two or more such Courts in succession.

ARTICLE 219

Every person appointed to be a Judge of a High Court shall, before he enters upon his office, make and subscribe before the Governor of the State, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.

ARTICLE 220

No person who, after the commencement of this Constitution, has held office as a permanent Judge of a High Court shall plead or act in any court or before any authority in India except the Supreme Court and the other High Courts.

ARTICLE 221

Salaries, etc., of Judges.

Chief Justice : 2,50,000/- Judges : 2,25,000/-

ARTICLE 222

The President may transfer a Judge from one High Court to any other High Court.

(2) When a Judge has been or is so transferred, he shall, during the period he serves, as a Judge of the other High Court, be entitled to receive in addition to his salary such compensatory allowance as may be determined by Parliament by law and, until so determined, such compensatory allowance as the President may by order fix.

ARTICLE 223

Appointment of acting Chief Justice of a High Court by the President

ARTICLE 224

Appointment of additional and acting Judges by the President.

No person appointed as an additional or acting Judge of a High Court shall hold office after attaining the age of sixty-two years.

ARTICLE 224 A

Appointment of retired Judges at sittings of High Courts.

ARTICLE 226

Power of High Courts to issue certain writs.

ARTICLE 230

Extension of jurisdiction of High Courts to Union territories.

ARTICLE 231

Establishment of a common High Court for two or more States.

ARTICLE 233

Appointment of district judges.

(1) Appointments of persons to be, and the posting and promotion of, district judges in any State shall be made by the Governor of the State in consultation with the High Court exercising jurisdiction in relation to such State.

(2) A person not already in the service of the Union or of the State shall only be eligible to be appointed a district judge if he has been for not less than seven years an advocate or a pleader and is recommended by the High Court for appointment.

ARTICLE 234

Appointments of persons other than district judges to the judicial service of a State shall be made by the Governor of the State in accordance with rules made by him in that behalf after consultation with the State Public Service Commission and with the High Court exercising jurisdiction in relation to such State.

PANCHAYAT RAJ

When the panchayat raj is established, public opinion will do what violence can never do.

Mahatma Gandhi

HISTORY

- ⇒ The of Panchayati Raj institution existed since the Vedic period. earliest times.
- ⇒ Manusmriti, Arthasastra and the Mahabharata mention about it.
- ⇒ Arthashastra of Kautilya gives a comprehensive account of the system of village administration.
- ⇒ Uttarmerur inscription of Parantaka I gives a comprehensive account of the system of village administration.
- ⇒ Viceroy Lord Mayo's resolution (1870) gave the needed impetus to the development of local institutions.
- ⇒ The Rippon Resolution (May 18, 1882) issued by Lord Rippon which focused on towns, provided for local bodies consisting of a large majority of elected non-official members and it was headed by a chairperson, who was also a non-official member.
- ⇒ The Royal Commission on Decentralisation (1907) under the chairmanship of C.E.H. Hobhouse recognised the importance of panchayats at the village level.
- ⇒ The Montague Chelmsford reforms brought a significant development of village Panchayats.

After the Constitution came into force, Article 40 made a mention of panchayats and Article 246 empowers the state legislature to legislate with respect to any subject relating to local self-government..

ARTICLE 40

The State shall take steps to organise village panchayats and endow them with such powers and authority as may be necessary to enable them to function as units of self-Government

- ⇒ The Community Development Programmes (CDP) had started on the eve of Gandhi Jayanti, the 2nd October, 1952
- ⇒ In 1953, the Nat.ional Extension Service was also introduced as a prologue to CDP.

BALWANT RAI MEHTA COMMITTEE

The National Development Council constituted it in January 1957 to examine the working of the Community Development Programme and the National Extension Service.

- ⇒ An early establishment of elected local bodies and devolution to them of necessary resources, power and authority.

⇒ Panchayats should have special powers to levy a special tax on land revenues and home taxes, etc.

⇒ Its function should cover the development of agriculture in all the aspects, promotion of cottage and local industries, etc.,

⇒ The body must be constituted for five years by means of indirect elections from the village panchayats.

⇒ As a result of this scheme of democratic decentralization was launched at Nagore in Rajasthan on October 2, 1959.

⇒ In Andhra Pradesh, the scheme was introduced on 1st November, 1959.

ASHOK MEHTA COMMITTEE

⇒ To examine and suggest measures to strengthen PRIs.

⇒ Reservation of seats for the weaker sections

⇒ Two seats for women

⇒ Adequate financial resources for the panchayats

⇒ The requirement of Constitutional sanctions

⇒ To extend people's participation in developmental activities.

⇒ Recommended a two-tier Panchayat Raj institutional structure consisting of Zilla Parishad and Mandal Panchayat.

Hanumantha Rao Committee (1983) - G.V.K. Rao Committee (1985) - L.M.Singhvi Committee (1986) - P.K. Thungan Committee (1989) - Harlal Singh Kharra Committee (1990).

The G.V.K.Rao committee suggested that the PRIs should be assigned the work of monitoring, planning and implementation of varied rural development programmes with a Block Development office.

L.M. Singhvi Committee recommended

⇒ The Panchayati Raj Institutions should be constitutionally recognized and protected.

⇒ A new chapter in the constitution should be provided to define their powers and functions and free and fairelection to be conducted through the election commission.

⇒ It also recommended for the appointment of finance commission and all the rural development programmes are entrusted to the Panchayati Raj Institutions.

73rd and 74th Constitutional Amendments were passed by Parliament in December, 1992.

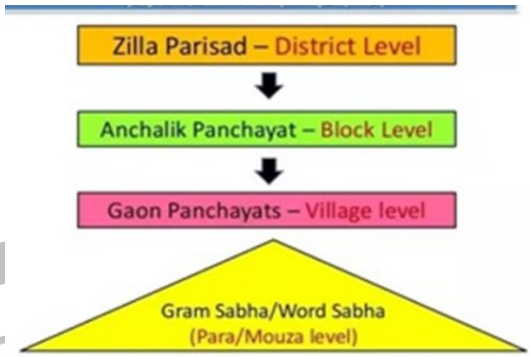
⇒ The Acts came into force as the Constitution (73rd Amendment) Act, 1992 on April 24, 1993 and the Constitution (74th Amendment) Act, 1992 on June 1, 1993.

⇒ The provisions of the amendment include Articles 243, 243A to 243-O which were added as parts of newly inserted Part IX of the Constitution.

SALIENT FEATURES

⇒ Added Part IX titled "The Panchayats" (73rd Amendment) and Part IXA titled "The Municipalities" (74th Amendment).

⇒ Basic units



⇒ Seats at all levels to be filled by direct elections Article 243C (2).

⇒ Seats reserved for Scheduled Castes (SCs) and Scheduled Tribes (STs) and the chairpersons of the Panchayats at all levels also shall be reserved for SCs and STs in proportion to their population. (Article 243D)

⇒ One-third of the total number of seats to be reserved for women. (Article 243D)

⇒ One third of the seats reserved for SCs and STs also reserved for women.

⇒ One-third offices of chairpersons at all levels reserved for women (Article 243D).

⇒ Uniform five year term and elections to constitute new bodies to be completed before the expiry of the term.

⇒ In the event of dissolution, elections compulsorily within six months (Article 243E).

⇒ Independent Election Commission in each State for superintendence, direction and control of the electoral rolls (Article 243K).

⇒ Panchayats to prepare plans for economic development and social justice in respect of subjects as devolved by law to the various levels of Panchayats including the subjects as illustrated in Eleventh Schedule (Article 243G).

⇒ 74th Amendment provides for a District Planning Committee to consolidate the plans prepared by Panchayats and Municipalities (Article 243ZD).

⇒ Budgetary allocation from State Governments, share of revenue of certain taxes, collection and retention of the revenue it raises, Central Government programmes and grants, Union Finance Commission grants (Article 243H).

⇒ Establish a Finance Commission in each State to determine the principles on the basis of which adequate financial resources would be ensured for panchayats and municipalities (Article 243I).

⇒ The Eleventh Scheduled of the Constitution places as many as 29 functions within the purview of the Panchayati Raj bodies.

- ❖ The Panchayat (Extension to Scheduled Areas) Act (PESA) was in acted on 24 December 1996 to enable Tribal Self Rule in these areas.
- ❖ The Act has also been extended the provisions of Panchayats to the tribal areas of nine states that have Fifth Schedule Areas.
- ❖ The nine states with Fifth Schedule areas are Orissa, Gujarat, Jharkhand, Maharashtra, Rajasthan, Andhra Pradesh, Madhya Pradesh, Himachal Pradesh, Chattisgarh.

⇒ Article 243F makes provisions for disqualifications from the membership.

- ❖ As per this article, any person who is qualified to become an MLA is qualified to become a member of the Panchayat.
- ❖ For Panchayat the minimum age prescribed is 21 years.,
- ❖ The disqualification criteria are to be decided by the state legislature by law.

⇒ The main source of income of the panchayat samiti is grants-in-aid and loans from the respective State Governments.

ISSUES

⇒ Lack of adequate funds.

⇒ Suffer from structural deficiencies.

⇒ Lack of manpower in the PRIs,

⇒ Recommendations of State Finance Commissions (SFCs) are generally not taken seriously.

⇒ While women got political representation, the real power was usurped by their husbands.

⇒ The transfer of various governance functions—like the provision of education, health, sanitation, and water was not mandated.

⇒ The power to tax, even for subjects falling within the purview of PRIs, has to be specifically authorized by the state legislature.

⇒ Interference of area MPs and MLAs in the functioning of panchayats

⇒ Widespread illiteracy and ignorance

⇒ Lack of clear setting of agenda in gram sabha, gram samiti meetings and no proper structure.

⇒ No secretarial support and lower levels of technical knowledge which restricted the aggregation of bottom up planning .

CONSTITUTIONALISATION OF PANCHAYATI RAJ PAVED THE WAY FOR GRASS ROOT EMPOWERMENT IN INDIA. IN THIS REGARD DISCUSS THE SALIENT FEATURES OF THE 73RD AMENDMENT ACT, 1992.

"Decentralisation both in the political and economic sphere is absolutely essential if India is to function as the democracy". Gandhi Ji

The 73rd amendment Act, 1992 has given practical shape to the Directive Principles of State Policy by constitutionalizing the local governance through establishment of Panchayati Raj in India, which transformed the representative democracy into a participatory one. Its salient features are:

- ⇒ In every state, the panchayat will be at three levels i.e, village, intermediate and district level.
- ⇒ Village assembly comprises of all registered voters in the area of a panchayat and serves as the foundation of Panchayati Raj. The powers and functions of a Gram Sabha are determined by the respective state legislatures.
- ⇒ All members at all levels are directly elected by people. The chairperson of panchayat at village level is elected as per provisions of the state legislature and chairperson of panchayat at remaining two tiers are elected indirectly by and from amongst elected members.
- ⇒ There is proportionate reservation for SCs and STs at every level of the Panchayati Raj. Also, women are provided with minimum one-third reservations at all the levels of panchayats. The state legislature may also make provisions for reservations of OBCs.
- ⇒ A panchayat is given a five-year term, but it can be dissolved before its completion of the term. A definite timeline is given for holding fresh elections and if a panchayat is dissolved prematurely, then the reconstituted panchayat will hold office only for the remaining period.
- ⇒ The conduct of Panchayati Raj elections is vested in the state election commission consisting of a state election commissioner appointed by the Governor of the state.
- ⇒ The Governor of a state will, after every five years, constitute a finance commission to review the financial position of panchayats.

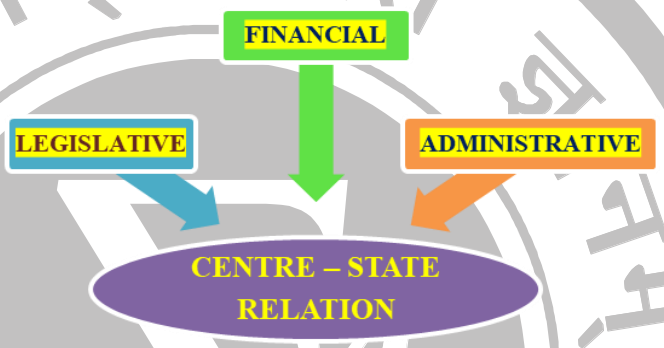
However, the performance of Panchayats has lot left to be desired, especially in light of limited powers and financial autonomy provided to them by the States. A lot can be done to improve the performance of panchayats, including greater financial autonomy, capacity building, infrastructure improvement and less bureaucratic control. To make it truly participatory, the 3Fs (Functions, Funds, And Functionaries) of Panchayati Raj needs to be strengthened.

"In the hierarchical society with highly skewed nature of assets and power distribution, vesting more powers at the village level would only perpetuate the exploitation of the disposed of." Dr Ambedkar

SIGMA ACADEMY

CENTRE – STATE RELATION

PART - XI



ARTICLE 245

(1) Subject to the provisions of this Constitution, Parliament may make laws for the whole or any part of the territory of India, and the Legislature of a State may make laws for the whole or any part of the State.

(2) No law made by Parliament shall be deemed to be invalid on the ground that it would have extraterritorial operation.

ARTICLE 246

(1) Parliament has exclusive power to make laws with respect to any of the matters enumerated in List I (Union List) in the Seventh Schedule.

(2)Parliament and the Legislature of any State also have power to make laws with respect to any of the matters enumerated in List III (Concurrent List) in the Seventh Schedule.

But the Centre has a prior and supreme claim to legislate on current subjects. In case of conflict between the law of the State and Union law on a subject in the Concurrent list, the law of the Parliament prevails.

(3) The Legislature of any State has exclusive power to make laws for such State or any part thereof with respect to any of the matters enumerated in List II (State List) in the Seventh Schedule.

ARTICLE 248

The residuary powers have been granted to the Union contrary to the convention in other federations of the world, where the residuary powers are given to the States.

In case of any conflict, whether a particular matter falls under the residuary power or not is to be decided by the court.

PARLIAMENT'S POWER TO LEGISLATE ON STATE LIST

Though under ordinary circumstances the Central Government does not possess power to legislate on subjects enumerated in the State List, but under certain special conditions the Union Parliament can make laws even on these subjects.

ARTICLE 249

In the NATIONAL INTEREST, if the Rajya Sabha declares by a resolution supported by not less than 2/3 of its members present and voting, that it is necessary or expedient in the national interest that the Parliament should make laws with respect to any matter enumerated in the State List.

After such a resolution is passed, Parliament can make laws for the whole or any part of the territory of India. Such a resolution remains in force for a period of 1 year and can be further extended by one year by means of a subsequent resolution.

(2) A resolution passed under clause (1) shall remain in force for such period not exceeding one year.

ARTICLE 250

Parliament can legislate on the subjects mentioned in the State List when the Proclamation of NATIONAL EMERGENCY is in operation. However, the laws made by the Parliament under this provision shall cease to have effect on the expiration of a period of six months after the Proclamation has ceased to operate, except as respects things done or omitted to be done before the expiry of the said period.

ARTICLE 252

By AGREEMENT BETWEEN STATES , The Parliament can also legislate on a State subject if the legislatures of two or more states resolve that it is lawful of Parliament tomake laws with respect to any matter enumerated in the State List relating to those State. any Act passed by the Parliament shall apply to such states and to any other state which passes such a resolution. The Parliament also reserves the right to amend or repeal any such act.

ARTICLE 253

To IMPLEMENT TREATIES , The Parliament can make law for the whole or any part of the territory of India for implementing any treaty, international agreement or convention with any other country or countries. Any law passed by the Parliament for this purpose cannot be invalidated on the ground that it relates to the subject mentioned in the State list.

OTHER

The President can also authorize the Parliament to exercise the powers of the State legislature during the Proclamation of President's Rule.

The governor can reserve certain types of bills passed by the state legislature for the consideration of the President. The President enjoys absolute veto over them.

The President can direct the states to reserve money bills and other financial bills passed by the state legislature for his consideration during a financial emergency.

Bills on certain matters enumerated in the State List can be introduced in the state legislature only with the previous sanction of the President as imposing restrictions on freedom of trade and commerce.

ADMINISTRATIVE (ARTICLE – 256- 263)

ARTICLE 256

The executive power of every State shall be so exercised as to ensure compliance with the laws made by Parliament and any existing laws which apply in that State, and the executive power of the Union shall extend to the giving of such directions to a state as may appear to the Government of India to be necessary for that purpose.

ARTICLE 257

(1)The executive power of every state shall be so exercised as not to impede or prejudice the exercise of the executive power of the Union, and the executive power of the Union shall extend to giving of such directions to a state.

(2)Maintain means of communication of National or Military importance: The Union Government can give directions to the state with regard to construction and maintenance of the means of communication declared to be of national or military importance.

(3)Union can issue State Governments necessary directions regarding the measures to be taken for the protection of the railways within the jurisdiction of the State.

ARTICLE 258

The President may, with the consent of the Government of a State, entrust either conditionally or unconditionally to that Government or to its officers functions in relation to any matter to which the executive power of the Union extends.

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ARTICLE 261

(1) Full faith and credit shall be given throughout the territory of India to public acts, records and judicial proceedings of the Union and of every State.

(3) Final judgments or orders delivered or passed by civil courts in any part of the territory of India shall be capable of execution anywhere within that territory according to law.

OTHER

Union can direct the State Governments to ensure that the government of a State is carried on in accordance with the provision of the Constitution.

The members of the All India Services are recruited and appointment by the Union Public Service Commission. The members of these services are posted on key posts in the states, but remain loyal to the Union Government.

Union can direct the State Governments to ensure execution of schemes essential for the welfare of the Scheduled Tribes in the States.

The Parliament can enact law authorizing the Central Government to delegate its.

function to the State Governments or its officers irrespective of the consent of such State Government.

Union can direct the State to ensure the development of the Hindi language.

ARTICLE 262

(1) Parliament may by law provide for the adjudication of any dispute or complaint with respect to the use, distribution or control of the waters of, or in, any inter-State river or river valley.

(2) Notwithstanding anything in this Constitution, Parliament may by law provide that neither the Supreme Court nor any other court shall exercise jurisdiction in respect of any such dispute or complaint as is referred to in clause (1).

Water is Entry 17 of the State list and so, states can legislate with respect to rivers.

Entry 56 of the Union List, gives the Central government the power to regulate and develop inter-state rivers and river valleys.

River Board Act, 1956 empowered the Central government to establish Boards for Interstate Rivers and river valleys in consultation with State Governments.

No river board has been created.

Under Inter-State Water Dispute Act, 1956, if a state government or governments approach the Centre for the constitution of a tribunal, the government may form a tribunal after trying to resolve the dispute through consultations.

The tribunal consists of the Chief Justice of India, a sitting judge from the Supreme Court, and two other judges who are from either the SC or a High Court.

THE INTER-STATE RIVER WATER DISPUTES (AMENDMENT) BILL, 2019

⇒ The central government will then set up a DISPUTES RESOLUTION COMMITTEE (DRC) to resolve the dispute amicably.

⇒ The DRC will comprise of a Chairperson, and experts with at least 15 years of experience in relevant sectors.

⇒ These will be nominated by the central government.

⇒ It will also comprise one member from each state (at Joint Secretary level), which is a party to the dispute.

⇒ These members will be nominated by the concerned state government.

⇒ The DRC will seek to resolve the dispute through negotiations, within one year (extendable by 6 months).

⇒ It will then submit its report to the central government.

⇒ If a dispute cannot be settled by the DRC, the central government will refer it to the Inter-State River Water Disputes Tribunal.

⇒ The central government will set up an INTER-STATE RIVER WATER DISPUTES TRIBUNAL, for the adjudication of all water disputes.

⇒ This Tribunal can have multiple benches.

⇒ All five existing tribunals under the 1956 Act would be dissolved.

⇒ The Tribunal will consist of a Chairperson, Vice-Chairperson, 3 judicial members, and 3 expert members.

⇒ They will be appointed by the central government on the recommendation of a Selection Committee.

⇒ The central government may also appoint two experts serving in the Central Water Engineering Service as assessors to advise the Bench in its proceedings.

⇒ The assessor should not be from the state which is a party to the dispute.

⇒ Under the Act, the Tribunal must give its decision within 3 years, which may be extended by 2 years.

⇒ There is no provision for appeal.

INTER- STATE COUNCIL

ARTICLE 263

If at any time it appears to the President that the public interests would be served by the establishment of a Council charged with the duty of—

(a) inquiring into and advising upon disputes which may have arisen between States;

(b) investigating and discussing subjects in which some or all of the States, or the Union and one or more of the States, have a common interest; or

(c) making recommendations upon any such subject and, in particular, recommendations for the better co-ordination of policy and action with respect to that subject,

it shall be lawful for the President by order to establish such a Council, and to define the nature of the duties to be performed by it and its organisation and procedure.

- Prime Minister acts as the chairman of the council.
- Union Ministers of Cabinet rank in the Union
- Council of Ministers nominated by the Prime Minister.
- Chief Ministers of all states.
- Chief Ministers of Union Territories having a Legislative Assembly and Administrators of UTs not having a Legislative Assembly

ZONAL COUNCIL

Zonal Councils are statutory bodies set up under States Reorganization Act, 1956 to foster Inter-State co-operation and co-ordination among the States.

These councils are mandated to give recommendations on any matter of common interest in field of socio-economic planning, Border disputes, Linguistic minorities, Inter-State transport.

There are total five councils were created as per States Reorganization Act 1956.

- Northern Zonal Council: Haryana, Punjab, Rajasthan, Himachal Pradesh, Jammu & Kashmir, National Capital Territory of Delhi (UT) and Chandigarh (UT).
- Central Zonal Council: Chhattisgarh, Madhya Pradesh, Uttarakhand and Uttar Pradesh.
- Eastern Zonal Council: Odisha, West Bengal, Bihar and Jharkhand.
- Western Zonal Council: Goa, Gujarat, Maharashtra and UTs of Daman & Diu and Dadra & Nagar Haveli
- Southern Zonal Council: Karnataka, Andhra Pradesh, Telnagana, Kerala, Tamil Nadu and Puducherry (UT).

All zonal councils are chaired Union Home Minister. Chief Ministers of States as Vice-Chairman of respective zone on rotational basis, each holding office for period of one year at time.

North Eastern Council, set up under North Eastern Council Act, 1972. Assam, Arunachal Pradesh, Manipur, Tripura, Mizoram, Meghalaya, Nagaland and Sikkim are in the Councils.

It is also chaired by Union Home Minister. Minister of Development of North East Region (DoNER) is its Vice Chairman. Governors and Chief Ministers of all these eight North Eastern States are its members.

FINANCIAL RELATIONS (ARTICLE 264 – 300)

ARTICLE 266

CONSOLIDATED FUND OF INDIA

- ⇒ ALL REVENUE RECEIVED FROM DIRECT AND INDIRECT TAXES
- ⇒ ALL LOANS TAKEN BY GOVERNMENT OF INDIA
- ⇒ PRINCIPLE + INTEREST RECEIVED BY GOVERNMENT OF INDIA ON LOANS GIVEN
- ⇒ NEEDS PARLIAMENT'S APPROVAL TO SPEND FROM THIS FUND

PUBLIC ACCOUNTS OF INDIA

- ⇒ Bank savings account of the departments/ministries (for day to day transactions)
- ⇒ National Investment fund (NIF) – Money earned from disinvestment
- ⇒ National Calamity & contingency fund (NCCF) (Under Home ministry) →Now merged with National Disaster Relief Fund (NDRF)
- ⇒ National small savings fund, defense fund, provident fund, Postal insurance etc.
- ⇒ All Cess & Specific purpose surcharges
- ⇒ Government schemes Fund (Ex. MNREGA)
- ⇒ No need of Parliament's approval to spend from this fund

ARTICLE 267

CONTINGENCY FUND OF INDIA

- ⇒ Held by the President of India viz. Rs. 500 cr
- ⇒ Operated by finance Secretary on accounts of President
- ⇒ President can spend cash from this fund for emergency/unforeseen circumstances without the authorization of parliament
- ⇒ Though parliament's approval is needed to again replenish this fund

TAXES

The Parliament has exclusive power to levy taxes on subjects enumerated in the Union List, the state legislature has exclusive power to levy taxes on subjects enumerated in the State List, both can levy taxes on the subjects enumerated in Concurrent List whereas residuary power of taxation lies with Parliament only.

DISTRIBUTION OF THE TAX-REVENUE

- ⇒ Duties Levied by the Union but Collected and Appropriated by the States: Stamp duties on bills of Exchange, etc., and Excise duties on medical and toilet preparations containing alcohol. These taxes don't form the part of the Consolidated Fund of India, but are assigned to that state only.
- ⇒ Service Tax are Levied by the Centre but Collected and Appropriated by the Centre and the States.
- ⇒ Taxes Levied as Well as Collected by the Union, but Assigned to the States:

⇒ These include taxes on the sale and purchase of goods in the course of inter-state trade.

These include taxes on the sale and purchase of goods in the course of inter-state trade or commerce or the taxes on the consignment of goods in the course of inter-state trade or commerce.

⇒ Taxes Levied and Collected by the Union and Distributed between Union and the States: Certain taxes shall be levied as well as collected by the Union, but their proceeds shall be divided between the Union and the States in a certain proportion, in order to effect on equitable division of the financial resources. This category includes all taxes referred in Union List except the duties and taxes referred to in Article 268, 268-A and 269; surcharge on taxes and duties mentioned in Article 271 or any Cess levied for specific purposes.

⇒ Surcharge on certain duties and taxes for purposes of the Union: Parliament may at any time increase any of the duties or taxes referred in those articles by a surcharge for purposes of the Union and the whole proceeds of any such surcharge shall form part the Consolidated Fund of India.

GRANTS-IN-AID

The Constitution provides for Grants-in-aid to the States from the Central resources.

⇒ Statutory Grants grants are given by the Parliament out of the Consolidated Fund of India to such States which are in need of assistance. Different States may be granted different sums. Specific grants are also given to promote the welfare of scheduled tribes in a state or to raise the level of administration of the Scheduled areas therein (Art.275).

⇒ Center provides certain grants to the states on the recommendations of the Planning Commission which are at the discretion of the Union Government. These are given to help the state financially to fulfill plan targets (Art.282).

ARTICLE 292

Borrowing by the Government of India.

ARTICLE 293

Borrowing by States.

ARTICLE 297

Things of value within territorial waters or continental shelf and resources of the exclusive economic zone to vest in the Union.

ARTICLE 298

The executive power of the Union and of each State shall extend to the carrying on of any trade or business and to the acquisition, holding and disposal of property and the making of contracts for any purpose.

ARTICLE 300

The Government of India may sue or be sued by the name of the Union of India and the Government of a State may sue or be sued by the name of the State and may, subject to any provisions which

may be made by Act of Parliament or of the Legislature of such State enacted by virtue of powers conferred by this Constitution, sue or be sued in relation to their respective affairs in the like cases as the Dominion of India and the corresponding Provinces or the corresponding Indian States might have sued or been sued if this Constitution had not been enacted.

FINANCE COMMISSION

Although the Constitution has made an effort to allocate every possible source of revenue either to the Union or the States, but this allocation is quite broad based. For the purpose of allocation of certain sources of revenue, between the Union and the State Governments, the Constitution provides for the establishment of a Finance Commission under Article 280. According to the Constitution, the President of India is authorized to set up a Finance Commission every five years to make recommendation regarding distribution of financial resources between the Union and the States.

Constitution

Finance Commission is to be constituted by the President every 5 years.

The Chairman must be a person having 'experience in public affairs'.

Other four members must be appointed from amongst the following:-

⇒ A High Court Judge or one qualified to be appointed as High Court Judge;

⇒ A person having knowledge of the finances and accounts of the Government;

⇒ A person having work experience in financial matters and administration;

⇒ A person having special knowledge of economics.

FUNCTIONS

⇒ The distribution between the Union and the States of the net proceeds of taxes to be divided between them and the allocation between the States of respective shares of such proceeds;

⇒ The principles which should govern the grants-in-aid of the revenue of the States out of the Consolidated Fund of India.

⇒ The measures needed to augment the Consolidated Fund of a State to supplement the resources of the Panchayats and Municipalities in the State;

⇒ Any other matter referred to the Commission by the President in the interest of sound finance

GOODS AND SERVICES TAX

GST is a comprehensive indirect tax on manufacture, sale, and consumption of goods and services throughout India.

It is a destination-based taxation system

GST would replace respective taxes levied by the central and state governments. 1 July 2017 GST to be applicable across India.

It has been established by the 101st Constitutional Amendment Act.

ARTICLE 246 A

(1)Power to impose GST [New Provisions] Notwithstanding anything contained in articles 246 and 254, Parliament, and, subject to clause (2), the Legislature of every State, have power to make laws with respect to goods and services tax imposed by the Union or by such state

(2)Parliament has exclusive power to make laws with respect to goods and services tax where the supply of goods, or of services, or both takes place in the course of inter-State trade or commerce.

ARTICLE 269 A

GST shall be levied and collected by the Central Government and such tax shall be apportioned between the Union and the States in the manner as may be provided by Parliament by law on the recommendations of GST Council.

Supply of goods, or of services, or both in the course of import into the 7 Supply of goods, or of services, or both in the course of import into the territory of India shall be deemed to be supply in the course of inter-State trade or commerce.

Parliament will formulate the principles for determining the place of supply, and when a supply takes place in the course of inter-State trade or commerce.

The amount apportioned to a State from the tax collected on supplies in the course of inter-state trade or commerce.

Where an amount collected as tax levied in the course of inter-state trade or commerce has been used for payment of the tax levied by a State under article 8 commerce has been used for payment of the tax levied by a State under article 246A. In other words, where IGST is used for payment of SGST.

Where an amount collected as tax levied by a State under article 246A has been used for payment of the tax levied under clause inter-state trade or commerce. When SGST is used for payment of IGST.

ARTICLE 279 A

Provides for constituting a Council called the GOODS AND SERVICES TAX COUNCIL within 60 days from date of commencement of 101st Constitution Amendment Act, 2016.

MEMBERS

(a) the Union Finance Minister as Chairperson;

(b) the Union Minister of State in charge of Revenue or Finance;

(c) the Minister in charge of Finance or Taxation or any other Minister nominated by each State Government.

(d) Vice Chairperson to be chosen among the members.

QUORUM:

⇒ One-half of the total number of Members of the Goods and Services Tax Council.

DECISIONS

⇒ All decisions by a majority of not less than three-fourths of the weighted votes of the members present and voting.

WEIGHTAGE OF VOTES

⇒ Central Government – 1/3rd of the total votes cast

⇒ State Governments – 2/3rd of the total votes cast

RECOMMENDATIONS

⇒ The taxes, cesses and surcharges that may be subsumed.

⇒ The goods and services that may be subjected to or exempted from GST.

⇒ Model Goods and Services Tax Laws, principles of levy, apportionment of Goods and Services Tax levied under Article Article 269A and the principles principles that govern the place of supply.

⇒ The threshold limit of turnover below which goods and services may be exempted.

⇒ Rates, floor rates, band, special rates.

⇒ Special provision with respect to the States of Arunachal Pradesh, Assam, Jammu and Kashmir, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Tripura, Himachal Pradesh and Uttarakhand

⇒ Date on which GST be levied on petroleum crude, HSD, Petrol, natural gas and ATF.

⇒ Any other matter relating to the goods and services tax, as the Council may decide.

ARTICLE 286

Restrictions on the States to impose any tax on the supply of the goods or services or both, where such supply takes place: a. Outside the State b. in the course of the import of the goods into, or export of the goods out of, the territory of India

COOPERATIVE FEDERALISM IS PROMOTING HEALTHY CENTRE STATE RELATIONS.

Federalism is derived from the Latin word foedus, which means agreement' or treaty. Thus, it is a philosophy of political organization that involves a combination of the principles of centralization, non-centralization, and power-sharing. Sardar Patel was strongly an advocate of the federal system and played a crucial role in crafting a federal constitution.

⇒ The Supreme Court held in the S.R. Bommai case, the States are not mere appendages of the Union and the latter should ensure that the powers of the States are not trampled with.

Federal India is no longer a hindrance for better centre-state relations but rather it has given new hope to the mixed efforts of the Centre and states which may be referred to as cooperative federalism. The Indian Constitution already distinguishes the authority of the Centre and the states. The provision for separate lists reduces misunderstanding and disagreement between the Centre and the states. There would be less confusion and more amicable interactions between the Center and the states (Art. 246).

⇒ Replacing the older Planning Commission where only the Union had a say, NITI Aayog boosts the morale of the states and holds them responsible for better decision making since they are now a part of the process.

⇒ In 2017, India adopted a dual-structure GST model wherein both the Centre as well as the states have an important role. Both are empowered to levy and collect taxes.

⇒ States play a crucial role since they can manage the situation and rule the region in accordance with the demands of the population, which will ultimately result in the inclusion of additional groups of people in mainstream society.

⇒ A federal system of government divides authority between the central government and the states, which facilitates efficient administration. Additionally, the states would be better equipped to control the problems associated with it.

This way, a better relation of trust and faith can be witnessed between the Centre and the states.

ARTICLE 246 IS THE CORNERSTONE OF CENTRE STATE LEGISLATIVE RELATIONS.

The essential principles guiding the division of powers between the Central and state governments are outlined in Part XI of Article 246 of the Indian Constitution. The purpose of the Constitution is to grant a constitutionally powerful Centre with sufficient powers, both in terms of scope and nature, to protect and uphold the nation's unity and integrity. The Indian Constitution aims to create three distinct functional areas

⇒ An exclusive area for the Centre;

⇒ An exclusive area for the States; and

⇒ A shared or concurrent area in which the Centre and the States may coexist, subject to the Centre's ultimate supremacy.

✓ The Union was given larger powers relative to US ,due to historical reasons ,partition & to control certain separatist tendencies & for equal development of all regions.

⇒ According to Article 246(1), Parliament has the "exclusive power" to enact laws regarding any item on the Union List. This List includes entries such as the necessity for a uniform law for the entire country. The states have no authority to enact legislation in this area.

⇒ Article 246 (3) gives the states the exclusive power to make laws concerning the items included in the State List. These are issues that allow for local variances and are best handled at the state level from an administrative standpoint, hence, the Centre is barred from legislating on these issues.

This division of powers has helped in clarity of domains & effective exercise by the Union & states while the provision in concurrent lists give flexibility & initiative to either sides for judgement of situation & legislation in issues that have a both a national & local connotation.

PROCLAMATION OF NATIONAL EMERGENCY AFFECTS CENTRE STATE RELATIONS.

The normal fabric of the Centre-state relations undergoes a basic change during national emergency.

⇒ The Centre becomes entitled to give executive directions on any matter. Thus, the state governments are brought under the complete control of the Centre, though they are not suspended.

⇒ The Parliament becomes empowered to make laws on any subject mentioned in the state list. Although the legislative power of state legislature is not suspended.

⇒ President can issue ordinances on the state subject, if the Parliament is not in session.

- ✓ The Constitution becomes unitary than federal.

⇒ The president can modify, reduce or cancel, the constitutional distribution of revenues between the Centre and the states.

- ✓ Such modification continues till the end of the financial year in which the emergency is revoked.

During National emergency time the Centre becomes all powerful. The constitutions become unitary rather than federal without even amending the Constitution. However these powers are a necessary evil to enable central government to meet any abnormal situations effectively.

THE ROLE OF THE FINANCE COMMISSION IN MAINTAINING FISCAL FEDERALISM IN INDIA.

The Finance Commission (Art. 280) is a Constitutionally mandated body that is at the centre of fiscal federalism by performing following functions -

⇒ The distribution between the Union and the States of the net proceeds of taxes which are to be divided between them and the allocation between the States of the respective shares of such proceeds.

⇒ Determination of principles and quantum of grants-in-aid to States which are in need of such assistance.

⇒ Measures needed to augment the Consolidated Fund of a State to supplement the resources of the Panchayats and Municipalities in the State on the basis of the recommendations made by the Finance Commission of the State.

Despite the changing fiscal environment and considerable expansion in its functions, the institution of the Finance Commission has ensured smooth functioning of Centre-State fiscal relations. Yet the demand to accord permanent status to the Finance Commission seems right on the following grounds-

⇒ There is a need for robust expenditure planning without compromising on fiscal consolidation as fiscal federalism gathers momentum in the era of uniform Goods and Services tax (GST).

⇒ There is a need to ensure consistency between Finance Commissions so that there is some certainty in the flow of funds to States.

⇒ During the intervening period, it can also address issues arising from implementation of the recommendation of the Commission.

⇒ This will also help add knowledge and capacities and boost fiscal prudence. The upcoming Finance Commission will be able to get a clear hearing on the challenges and rate of effectiveness of its likely recommendations.

⇒ The Commission can function as a leaner entity in the intervening period till the next Finance Commission is set up in a full-fledged manner.

There is considerable merit in having one apolitical body that provides stability and predictability primarily to share taxes that ensures fiscal balance and to refocus the scope of the Finance Commission to maintain the trust of all stakeholders in the institution.

THE ROLE THAT INTER STATE COUNCIL PLAY IN IMPROVING CENTRE STATE ADMINISTRATIVE RELATIONS.

Inter State council is a constitutional body set up on the basis of provisions in Article 263 of the Constitution of India by a Presidential Order in 1990 on recommendation of Sarkaria Commission. Inter-State Council is a recommendatory body and it investigates and discusses such subjects, in which some or all of the States or the Union have a common interest.

⇒ Inquiring into and advising upon disputes which may have arisen between/among States

⇒ Investigating and discussing subjects have a common interest

⇒ Making recommendations upon any such subject for the better coordination.

NEED

⇒ A rejuvenated Inter-State Council will have an important role to play in the coming years, especially since its members are the political leaders of their respective states.

⇒ Bridge trust deficit between center and states.

⇒ It can reach a consensus on role of Governor.

⇒ It can decide upon the use of article 356 and other such constitutional matters.

⇒ Increased accountability and enthusiasm, making executives proactive.

If the Inter-State Council is to emerge as the key institution to manage inter-state frictions, it first needs to have a regular meeting schedule. The council also has to have a permanent secretariat which will ensure that the periodic meetings are more fruitful. The council is as yet just a discussion group, but it should have a greater say in federal coordination in the future.

DIFFERENCES BETWEEN THE COOPERATIVE FEDERALISM AND COMPETITIVE FEDERALISM.

The concept of cooperative federalism professes a horizontal relationship between the Central and the State governments. where the Union as well as the State levels cooperate to serve the larger public interest.

⇒ Guided by the broader national concerns of using the available resources for the benefit of the people.

⇒ Encourages the Government at different levels to take advantage of a large resources and the potential of human capabilities in all parts of the country and from all sections of the society for building a prosperous nation.

⇒ To ensure a minimum bundle of basic services and a nationally acceptable level of living for all the people of the country.

In competitive federalism, the States share a vertical relationship with the Central government while competing amongst themselves.

- ⇒ States want more funds and perks from the state government for growth.
- ⇒ It follows the concept bottom-up approach as it will bring the change from the states.
- ⇒ It ensures inclusive development in the country.
- ⇒ It helps in reducing inter-states and intra-states inequalities through development.
- ⇒ It ensures that every limb of the whole country is developing.
- ⇒ It helps in instilling sense of responsibility in city administrations.

THE ISSUES OF COOPERATIVE FEDERALISM.

Cooperative federalism is the concept which reflects the relationship between centre and state where they both come together and resolve the common problems with each other's' cooperation. It is the horizontal relationship between
union and states and shows neither is above the other.

- ⇒ The Inter-State Council as mentioned in Article 263 is supposed to be a body for intergovernmental consultation and co-operation. But it has not been given the powers to inquire and advise on disputes between States.
- ⇒ Article 262 that provides for the resolution of inter-state water disputes which also failed to contain many disputes which reached it despite repeated hearings and decisions. Failure of this can be because of both structural and procedural inadequacies.
- ⇒ This has been the evident since long that as the political party gets changed in the centre the Governors appointed by the earlier party were asked to resign. Governor's appointment should not be politically motivated.
- ⇒ The 7th Schedule needs to be reformed to ensure greater empowerment of States in
- ⇒ accordance with increased financial transfers characteristic of cooperative federalism.
- ⇒ Equal representation of states in Rajya Sabha is another blow to the cooperative federalism. There should be equal representation as there is in United States of America.
- ⇒ State bills which are reserved for President assent should be disposed of as early as possible. This creates impediment in the growth of the country and ultimately it hits the cooperation between centre and state.
- ⇒ Though, Niti aayog is established with the aim to foster the cooperative federalism but if we look at the structure and function of it, it is flawed in many ways. The function and jurisdiction of Niti aayog is not specifically laid down.
- ⇒ International treaties which are greatly overlooked the involvement of the states, it should be strengthened as while negotiating the international treaties involvement of states should be there with greater extent as its implementing will surely going to impact on the states.

We have seen that through the above lacunas that implementation is the root cause of every problem in India which

is also a blow to cooperative federalism. These obstacles need to be taken care of as soon as possible if we really want to make the centre-state relationship strong.

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SERVICES UNDER THE UNION AND THE STATES

PART XIV
ARTICLE 308 - 323

ARTICLE 309

The appropriate Legislature may regulate the recruitment, and conditions of service of persons appointed, to public services and posts in connection with the affairs of the Union or of any State: The President or such person as he may direct in the case of services and posts in connection with the affairs of the Union, and for the Governor of a State or such person as he may direct in the case of services and posts in connection with the affairs of the State, to make rules regulating the recruitment, and the conditions of service of persons appointed, to such services and posts until provision

ARTICLE 310

(1) Every person who is a member of a defence service or of a civil service of the Union or of an all-India service or holds any post connected with defence or any civil post under the Union holds office during the pleasure of the President.

Every person who is a member of a civil service of a State or holds any civil post under a State holds office during the pleasure of the Governor of the State.

(2)If the President or the Governor, as the case may be, deems it necessary in order to secure the services of a person having special qualifications, provide for the payment to him of compensation, if before the expiration of an agreed period that post is abolished or he is, for reasons not connected with any misconduct on his part, required to vacate that post.

ARTICLE 311

(1) No person who is a member of a civil service of the Union or an all-India service or a civil service of a State or holds a civil post under the Union or a State shall be dismissed or removed by an authority subordinate to that by which he was appointed.

(2) No such person as aforesaid shall be dismissed or removed or reduced in rank except after an inquiry in which he has been informed of the charges against him and given a reasonable opportunity of being heard in respect of those charges

Provided that where it is proposed after such inquiry, to impose upon him any such penalty, such penalty may be imposed on the basis of the evidence adduced during such inquiry and it shall not be necessary to give such person any opportunity of making representation on the penalty proposed:

Provided further that this clause shall not apply—

(a) where a person is dismissed or removed or reduced in rank on the ground of conduct which has led to his conviction on a criminal charge; or

(b) where the authority empowered to dismiss or remove a person or to reduce him in rank is satisfied that for some reason, to be recorded by that authority in writing, it is not reasonably practicable to hold such inquiry; or

(c) where the President or the Governor, as the case may be, is satisfied that in the interest of the security of the State it is not expedient to hold such inquiry.

(3) If, in respect of any such person as aforesaid, a question arises whether it is reasonably particable to hold such inquiry as is referred to in clause (2), the decision thereon of the authority empowered to dismiss or remove such person or to reduce him in rank shall be final

ARTICLE 312

(1) If the Council of States has declared by resolution supported by not less than two-thirds of the members present and voting that it is necessary or expedient in the national interest so to do, Parliament may by law provide for the creation of one or more all-India services (including an all-India judicial service) common to the Union and the States, and, subject to the other provisions of this Chapter, regulate the recruitment, and the conditions of service of persons appointed, to any such service.

(2) The services known at the commencement of this Constitution as the Indian Administrative Service and the Indian Police Service shall be deemed to be services created by Parliament under this article.

(3) The all-India judicial service referred to in clause (1) shall not include any post inferior to that of a district judge as defined in article 236.

(4) The law providing for the creation of all-India judicial service aforesaid may contain such provisions for the amendment of Chapter VI of Part VI as may be necessary for giving effect to the provisions of that law and no such law shall be deemed to be an amendment of this Constitution for the purposes of article 368.

ARTICLE 312 A (Twenty-eighth Amendment) Act, 1972)

(1) Parliament may by law—

(a) vary or revoke, whether prospectively or retrospectively, the conditions of services as respects remuneration, leave and pension and the rights as respects disciplinary matters of persons who, having been appointed by the Secretary of State or Secretary of State in Council to a civil service of the Crown in India before the commencement of this Constitution, continue on and after the commencement of the Constitution (Twenty-eighth Amendment) Act, 1972, to serve under the Government of India or of a State in any service or post;

(b) vary or revoke, whether prospectively or retrospectively, the conditions of service as respects pension of persons who, having been appointed by the Secretary of State or Secretary of State in Council to a civil service of the Crown in India before the commencement of this Constitution, retired or otherwise ceased to be in service at any time before the commencement of the Constitution (Twenty-eighth Amendment) Act, 1972:

Provided that in the case of any such person who is holding or has held the office of the Chief Justice or other Judge of the Supreme Court or a High Court, the Comptroller and Auditor-General of India, the Chairman or other member of the Union or a State Public Service Commission or the Chief Election Commissioner, nothing in sub-clause (a) or sub-clause (b) shall be construed as empowering Parliament to vary or revoke, after his appointment to such post, the conditions of his service to his disadvantage except in so far as such conditions of service are applicable to him by reason of his being a person appointed by the Secretary of State or Secretary of State in Council to a civil service of the Crown in India.

(2) Except to the extent provided for by Parliament by law under this article, nothing in this article shall affect the power of any Legislature or other authority under any other provision of this Constitution to regulate the conditions of service of persons referred to in clause (1).

(3) Neither the Supreme Court nor any other court shall have jurisdiction in—

(a) any dispute arising out of any provision of, or any endorsement on, any covenant, agreement or other similar instrument which was entered into or executed by any person referred to in clause (1), or arising out of any letter issued to such person, in relation to his appointment to any civil service of the Crown in India or his continuance in service under the Government of the Dominion of India or a Province thereof;

(b) any dispute in respect of any right, liability or obligation under article 314 as originally enacted.

(4) The provisions of this article shall have effect notwithstanding anything in article 314 as originally enacted or in any other provision of this Constitution.

'THE TIME IS RIPE TO REPEAL ARTICLE 311'.

Article 311 provides security of tenure and protection against arbitrary dismissal by providing an enquiry process and dismissal by an authority not subordinate to him . However , it acted as a shield against corrupt officials while affecting the morale of honest . Thus , repeal of article 311 needs reconsideration.

Arguments for

- ⇒ Reduces corruption and complacency in decision making
- ⇒ Promotes discipline , efficiency and effectiveness of administration
- ⇒ Encourage administrative values like honesty , dedication and motivation
- ⇒ ARC report and National Commission for Review of Constitution has also recommended

Arguments against

⇒ Dismissal without inquiry is against the principles of natural justice of right to being heard before accused guilty .

⇒ Arbitrary dismissals driven by partisan interests affects neutrality and autonomy of administration

⇒ The inquiry process needs expedition than repeal

Thus , Article 311 should be amended and enquiry proceedings should be expedited in a fair , transparent and time bound manner , to encourage honest officials to act without fear or favour , while punishing the guilty , as envisaged by Sardar Patel .

PUBLIC SERVICE COMMISSIONS

The Public Service Commission's came into existence for the first time in 1926 when the Central Public Service Commission was established under the Government of India Act, 1919. It was renamed as the Federal Public Service Commission after 1st April, 1937, on the introduc-tion of Government of India Act, 1935.

ARTICLE 315

(1) Subject to the provisions of this article, there shall be a Public Service Commission for the Union and a Public Service Commission for each State.

(2) Two or more States may agree that there shall be one Public Service Commission for that group of States, and if a resolution to that effect is passed by the House or, where there are two Houses, by each House of the Legislature of each of those States, Parliament may by

law provide for the appointment of a Joint State Public Service Commission (referred to in this Chapter as Joint Commission) to serve the needs of those States.

The Public Service Commission is an independent statutory body

ARTICLE 316

(1) The Chairman and other members of a Public Service Commission shall be appointed, in the case of the Union Commission or a Joint Commission, by the President, and in the case of a State Commission, by the Governor of the State:

⇒ It has been further provided that one-half of the members of the Commission, Union or State, must have held office for at least ten years either under the Government of India or the Government of a State.

❖ The authorized strength of UPSC including chairman is 10.

A member holds office for six years or until he attains, in case of the UPSC, the age of 65 years and in the case of State Commission, the age of 60 years, whichever is earlier.

⇒ A member of a Public Service Commission may, by writing under his hand addressed, in the case of the Union Commission or a Joint Commission, to the President, and in the case of a State Commission, to the Governor of the State, resign his office.

⇒ A person who holds office as a member of a Public Service Commission shall, on the expiration of his term of office, be ineligible for re-appointment to that office. (ART. 319)

ARTICLE 317

(1) Subject to the provisions of clause (3), the Chairman or any other member of a Public Service Commission shall only be removed from his office by order of the President on the ground of misbehaviour after the Supreme Court, on reference being made to it by the President, has, on inquiry held in accordance with the procedure prescribed in that behalf under article 145, reported that the Chairman or such other member, as the case may be, ought on any such ground to be removed.

ARTICLE 318

In the case of the Union Commission or a Joint Commission, the President and, in the case of a State Commission, the Governor of the State may by regulations—

(a) determine the number of members of the Commission and their conditions of service; and

(b) make provision with respect to the number of members of the staff of the Commission and their conditions of service:

ARTICLE 321

An Act made by Parliament or, as the case may be, the Legislature of a State may provide for the exercise of additional functions by the Union Public Service Commission or the State Public Service Commission.

ARTICLE 322

The expenses of the Union or a State Public Service Commission, including any salaries, allowances and pensions payable to or in respect of the members or staff of the Commission, shall be charged on the Consolidated Fund of India or, as the case may be, the Consolidated Fund of the State.

ARTICLE 323

(1) It shall be the duty of the Union Commission to present annually report to the President.

(2) It shall be the duty of a State Commission to present annually report to the Governor of the State.

INDEPENDENCE OF THE PUBLIC SERVICE COMMISSION

⇒ To emphasize and ensure the independence of State Commission, the Constitution debars its Chairman for further employment either under the Government of India or the Government of a State.

⇒ A member other than the Chairman of the Union Commission, is, however, eligible for appointment as chairman in that Commission or of a State Public Service Commission, but for no other Government employment.

⇒ The conditions of the service of a member cannot be varied to his disadvantage after his appointment and his salary and other emoluments are charged on the Consolidated Fund of India

or the State as the case may be and they are not votable by the Parliament or the State legislature concerned.

⇒ The chairman or a member of a Commis-sion can be removed from office by the President on the ground of misbehavior only after the Supreme Court has on enquiry reported that the chairman or the member should be removed from office.

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TRIBUNALS

A tribunal is a quasi-judicial institution that deals with the resolution of disputes pertaining to administration, taxation, environment, securities, etc.

The original Constitution did not contain provisions with respect to tribunals. The 42nd Amendment Act of 1976 added a new Part XIV-A to the Constitution.

ARTICLE 323A

⇒ Empowers the Parliament to provide for the establishment of administrative tribunals for the adjudication of disputes relating to recruitment and conditions of service of persons appointed to public services of the Centre, the states, local bodies, public corporations, and other public authorities.

- ❖ The Parliament enacted the Administrative Tribunals Act in 1985, which empowers the Central government to establish the Central Administrative Tribunal and state-level administrative tribunals.

ARTICLE 323B

Empowers the Parliament and state legislatures to set up tribunals for various matters like Industrial and labour, Foreign exchange, import and export, Land reforms, Food, The ceiling on urban property, Elections to Parliament and state legislatures, Rent and tenancy rights, etc.

FEATURES

⇒ Tribunals the principle of natural justice, which requires that all parties to a legal proceeding be given a fair and impartial hearing and that no person should be a judge in their own cause.

⇒ Tribunals are not bound by the strict rules of procedure and evidence set out in the CPC.

⇒ It is comprised of members who have specialized expertise in the subject matter over which they have jurisdiction.

⇒ Tribunals can hear evidence, examine witnesses, make findings of fact, apply the law to the facts, and make binding decisions.

⇒ The decisions of tribunals can be appealed to a higher court.

⇒ Time-bound resolution.

SIGNIFICANCE

⇒ The Tribunals were set up to reduce the workload of courts, to expedite decisions and to provide a forum which would be manned by lawyers and experts in the areas falling under the jurisdiction of the Tribunal.

⇒ The tribunals perform an important and specialised role in justice mechanism. They take a load off the already overburdened courts. They hear disputes related to the environment, armed forces, tax and administrative issues.

⇒ To tackle the humongous pendency of cases in various Courts.

ADMINISTRATIVE TRIBUNALS

CENTRAL ADMINISTRATIVE TRIBUNAL (CAT)

⇒ Related to recruitment and all service matters of public servants covered by it.

⇒ Its jurisdiction extends to the All-India services, the Central civil services, civil posts under the Centre, and civilian employees of defense services.

⇒ However, the members of the defense forces, officers and servants of the Supreme Court, and the secretarial staff of the Parliament are not covered by it.

⇒ The chairman and the members of CAT are appointed by President after consultation with the Chief Justice of India.

STATE ADMINISTRATIVE TRIBUNALS (SATS)

⇒ The Administrative Tribunals Act of 1985 empowers the Central government to establish SATs at the specific request of the concerned state governments.

⇒ The SATs exercise original jurisdiction in relation to recruitment and all service matters of state government employees.

⇒ The chairman and members of the SATs are appointed by the President after consultation with the Governor of the state concerned.

JOINT ADMINISTRATIVE TRIBUNAL (JAT)

⇒ The Administrative Tribunals Act of 1985 also makes a provision for setting up Joint Administrative Tribunal (JAT) for two or more states.

⇒ A JAT exercises all the jurisdiction and powers exercisable by the administrative tribunals for such states.

⇒ The chairman and members of a JAT are appointed by the President after consultation with the Governors of the concerned states.

ELECTION COMMISSION

PART XV
ARTICLE 324 - 329

ARTICLE 324

Superintendence, direction and control of elections to be vested in an Election Commission.

⇒ All elections to Parliament

⇒ All elections to the Legislature of every State.

⇒ Elections to the offices of President and Vice-President

(2)Election Commission shall consist of the Chief Election Commissioner and two Election Commissioners,

(3) The Chief Election Commissioner shall act as the Chairman of the Election Commission.

(4)Before each general election to the House of the People and to the Legislative Assembly of each State, and each biennial election to the Legislative Council of each State having such Council, the President may also appoint after consultation with the Election Commission such Regional Commissioners as he may consider necessary to assist the Election Commission

(5)The Chief Election Commissioner shall not be removed from his office except in like manner and on the like grounds as a Judge of the Supreme Court and the conditions of service of the Chief Election Commissioner shall not be varied to his disadvantage after his appointment.

⇒ Election Commissioner or a Regional Commissioner shall not be removed from office except on the recommendation of the Chief Election Commissioner.

ARTICLE 325

There shall be one general electoral roll for every territorial constituency for election to either House of Parliament or to the House or either House of the Legislature of a State

No person to be ineligible for inclusion in, or to claim to be included in a special, electoral roll on grounds of religion, race, caste or sex.

ARTICLE 326

Elections to the House of the People and to the Legislative Assemblies of States to be on the basis of adult suffrage.

ARTICLE 327

Power of Parliament to make provision with respect to elections to Legislatures.

ARTICLE 328

Power of Legislature of a State to make provision with respect to elections to such Legislature.

ARTICLE 329

Bar to interference by courts in electoral matters.

STEPS

- ANNOUNCEMENT
- NOTIFICATION
- LAST DATE OF NOMINATION
- SCRUTINY OF NOMINATION
- WITHDRAWAL OF CANDIDATE

MODEL CODE OF CONDUCT

⇒ The MCC is a set of guidelines issued by the Election Commission to regulate political parties and candidates prior to elections, to ensure free and fair elections.

⇒ The MCC is operational from the date that the election schedule is announced till the date that results are announced.

⇒ The MCC was first introduced in the state assembly elections in Kerala in 1960.

⇒ In 2013, the Supreme Court directed the Election Commission to include guidelines regarding election manifestos.

⇒ The MCC has no statutory backing.

ELECTION SILENCE

⇒ Holding public meetings during the 48-hour period before the hour fixed for the closing of the poll is prohibited. The 48-hour period is known as election silence.

THE EXPENDITURE LIMIT

⇒ A candidate can spend between Rs 50 lakh and Rs 70 lakh, depending on the state they are contesting the Lok Sabha election from. For all states, except Arunachal Pradesh, Goa and Sikkim, a candidate can spend a maximum of Rs 70 lakh on canvassing. The cap for Arunachal Pradesh, Goa and Sikkim is Rs 54 lakh. And, it is Rs 70 lakh for Delhi and Rs 54 lakh for other Union territories.

⇒ For the assembly elections, the ceiling is between Rs 20 lakh and Rs 28 lakh.

INK

⇒ In the 1950s CSIR made it at National Physical Laboratory of India. The ink used contains SILVER NITRATE.

ELECTRONIC VOTING

BHAVIK (EVM) were first used in the 1997 election.

VOTER VERIFIABLE PAPER AUDIT TRAIL (VVPAT)

The VVPAT is an independent printer system attached with Electronic Voting Machine (EVM) that allows the voters to verify that their votes are cast as intended. It generates a paper slip every time a voter casts his vote, recording the party to whom the vote was made.

⇒ The VVPAT is visible for seven seconds

⇒ The slip contains the poll symbol and name of the candidate.

⇒ It allows the voter to verify his/her choice.

⇒ The VVPAT helps to detect potential election fraud or malfunction in the Electronic Voting Machine.

ELECTRONIC VOTING MACHINES (EVM)

⇒ It was introduced in India in 1982.

⇒ EVMs are electronic voting machines which enable the voter with a button for each choice of candidate. It is attached by a cable to an electronic ballot box.

⇒ It comprises two units – control unit and balloting unit.

⇒ The EVMs are manufactured by two central government undertakings viz. Bharat Electronics Limited and Electronics Corporation of India Limited..

⇒ Elections can be conducted through EVMs when the maximum number of candidates does not exceed 64.

POLITICAL PARTIES

India follows multi-party system and has the largest number of political parties in the world.

Registration of Political parties is governed by the provisions of Section 29A of the Representation of the People Act, 1951.

NATIONAL POLITICAL PARTY OF INDIA

⇒ It secures at least six percent of the valid votes polled in any four or more states, at a general election to the House of the People or, to the State Legislative Assembly.

⇒ In addition, it wins at least four seats in the House of the People from any State or States.

⇒ It wins at least two percent seats in the House of the People (i.e., 11 seats in the existing House having 543 members), and these members are elected from at least three different States.

Bahujan Samaj Party, Bhartiya Janta Party, Indian Natioanl Congress, Communist Party of India, , Communist Party of India (Marxist), National Congress Party.

STATE POLITICAL PARTY

⇒ It secures at least six percent of the valid votes polled in the State at a general election, either to the House of the People or to the Legislative Assembly of the State concerned

⇒ In addition, it wins at least two seats in the Legislative Assembly of the State concerned.

⇒ It wins at least three percent (3%) of the total number of seats in the Legislative Assembly of the State, or at least three seats in the Assembly, whichever is more.

THE ROLE PLAYED BY THE ELECTION COMMISSION OF INDIA HAS BESTOWED A VERY HIGH LEVEL OF CONFIDENCE IN THE MINDS OF INDIAN CITIZENS IN ENSURING THE PURITY OF THE ELECTED LEGISLATIVE BODIES IN THE COUNTRY.

The Supreme Court that it was "toothless", and did not have enough powers to deal with inflammatory or divisive speeches in the election campaign.

Election Commission is a permanent and an independent body established by the Constitution of India directly to ensure free and fair elections in the country.

⇒ It upholds the values enshrined in the Constitution viz, equality, equity, impartiality, independence; and rule of law in superintendence, direction and control over the electoral governance.

⇒ It conducts elections with the highest standard of credibility, freeness, fairness, transparency, integrity, accountability, autonomy and professionalism.

⇒ It ensures participation of all eligible citizens in the electoral process in an inclusive voter-centric and voter-friendly environment.

ISSUES

⇒ The government continues to appoint election commissioners on its own.

⇒ Removal of the Election Commissioners does not require such a process of impeachment.

⇒ It is still dependent on the Union Government for financial matters.

⇒ There is no clarity regarding the enforcing the Model Code of Conduct.

✓ MCC has not been given any legal backing.

⇒ EC cannot deregister political parties in any event, for the gravest of infringement.

⇒ The ECI has no power in enforcing inner-party democracy and regulation of party finances.

⇒ The EC does not have the power to disqualify candidates who commit electoral malpractices.

SUGGESTIONS

⇒ The CEC should be appointed by the President in consultation with the Chief Justice of India and the Leader of the Opposition in the Lok Sabha. (Goswami Committee)

⇒ There must be similar election and removal procedures for CEC and ECs, and they must exercise the same powers unless specifically prescribed by law.

⇒ The expenses of ECI must be charged on the Consolidated Fund of India.

⇒ Create a permanent, independent secretariat.

SPECIAL PROVISIONS RELATING TO CERTAIN CLASSES

PART XVI

ARTICLE 330

Reservation of seats for Scheduled Castes and Scheduled Tribes in the House of the People.

Scheduled Castes - 84 Scheduled Tribes - 47

ARTICLE 33I

Representation of the Anglo-Indian community in the House of the People. By President under article 81

No further increase

ARTICLE 332

Reservation of seats for Scheduled Castes and Scheduled Tribes in the Legislative Assemblies of the States.

ARTICLE 333

Representation of the Anglo-Indian community in the Legislative Assemblies of the States. By Governor under article 170

ARTICLE 334

Reservation of seats for SC &ST for 10 years. (Eighty years 126th amendment bill)

ARTICLE 335

The claims of the members of the Scheduled Castes and the Scheduled Tribes shall be taken into consideration, consistently with the maintenance of efficiency of administration, in the making of appointments to services and posts in connection with the affairs of the Union or of a State.

ARTICLE 336

Special provision for Anglo-Indian community in certain services.(railway, customs, postal and telegraph)

ARTICLE 337

Special provision with respect to educational grants for the benefit of Anglo-Indian community.

ARTICLE 338

(1) There shall be a Commission for the Scheduled Castes to be known as the National Commission for the Scheduled Castes.

NATIONAL COMMISSION FOR SCHEDULED CASTES

(2) Subject to the provisions of any law made in this behalf by Parliament, the Commission shall consist of a Chairperson, Vice-Chairperson and three other Members
and the conditions of service and tenure of office of the Chairperson, Vice-Chairperson and other Members so appointed shall be such as the President may by rule determine.

(3) The Chairperson, Vice-Chairperson and other Members of the Commission shall be appointed by the President by warrant under his hand and seal.

(4) The Commission shall have the power to regulate its own procedure.

(5) It shall be the DUTY of the Commission—

(a) to investigate and monitor all matters relating to the safeguards provided for the Scheduled Castes under this Constitution or under any other law for the time being in force or under any order of the Government and to evaluate the working of such safeguards;

(b) to inquire into specific complaints with respect to the deprivation of rights and safeguards of the Scheduled Castes

(c) to participate and advise on the planning process of socio-economic development of the
Scheduled Castes and to evaluate the progress of their development under the Union and any State;

(d) to present to the President, annually and at such other times as the Commission may deem fit, reports upon the working of those safeguards;

(e) to make in such reports recommendations as to the measures that should be taken by the Union or any State for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the Scheduled Castes; and

(f) to discharge such other functions in relation to the protection, welfare and development and advancement of the Scheduled Castes as the President may, subject to the provisions of any law made by Parliament, by rule specify.

(6) The President shall cause all such reports to be laid before each House of Parliament along with a memorandum explaining the action taken or proposed to be taken on the recommendations

relating to the Union and the reasons for the non-acceptance, if any, of any of such recommendations.

(7) Where any such report, or any part thereof, relates to any matter with which any State Government is concerned, a copy of such reports shall be forwarded to the Governor of the State who shall cause it to be laid before the Legislature of the State along with a memorandum explaining the action taken or proposed to be taken on the recommendations relating to the State and the reasons for the non-acceptance, if any, of any of such recommendations.

(8) The Commission shall, while investigating any matter referred to in sub-clause (a) or inquiring into any complaint referred to in sub-clause (b) of clause (5), have all the powers of a civil court trying a suit and in particular in respect of the following matters, namely:—

(a) summoning and enforcing the attendance of any person

b) requiring the discovery and production of any document;

(c) receiving evidence on affidavits;

(d) requisitioning any public record or copy thereof from any court or office;

(e) issuing commissions for the examination of witnesses and documents;

(f) any other matter which the President may, by rule, determine.

(9) The Union and every State Government shall consult the Commission on all major policy matters affecting Scheduled Castes.

(10) In this article, references to the Scheduled Castes shall be construed as including references to such other backward classes as the President may, on receipt of the report of a Commission appointed under clause (1) of article 340, by order specify and also to the Anglo-Indian community.

ARTICLE 338 A

(1) There shall be a Commission for the Scheduled Tribes to be known as the National Commission for the Scheduled Tribes.

NATIONAL COMMISSION FOR SCHEDULED TRIBES

(2) Subject to the provisions of any law made in this behalf by Parliament, the Commission shall consist of a Chairperson, Vice-Chairperson and three other Members and the conditions of service and tenure of office of the Chairperson, Vice-Chairperson and other Members so appointed shall be such as the President may by rule determine.

(3) The Chairperson, Vice-Chairperson and other Members of the Commission shall be appointed by the President by warrant under his hand and seal.

(4) The Commission shall have the power to regulate its own procedure.

(5) It shall be the duty of the Commission—

(a) to investigate and monitor all matters relating to the safeguards provided for the Scheduled Tribes under this Constitution or under any other law for the time being in force or under any order of the Government and to evaluate the working of such safeguards;

(b) to inquire into specific complaints with repsect to the deprivation of rights and safeguards of the Scheduled Tribes;

(c) to participate and advise on the planning process of socio-economic development of the Scheduled Tribes and to evaluate the progress of their development under the Union and any State;

(d) to present to the President, annually and at such other times as the Commission may deem fit, reports upon the working of those safeguards;

(e) to make in such reports recommendations as to the measures that should be taken by the Union or any State for the effective implementation of those safeguards and other measures for the protection, welfare and socio-economic development of the Scheduled Tribes; and

(f) to discharge such other functions in relation to the protection, welfare and development and advancement of the Scheduled Tribes as the President may, subject to the provisions of any law made by Parliament, by rule specify.

(6) The President shall cause all such reports to be laid before each House of Parliament along with a memorandum explaining the action taken or proposed to be taken on the recommendations relating to the Union and the reasons for the non-acceptance, if any, of any of such recommendations.

(7) Where any such report, or any part thereof, relates to any matter with which any State Government is concerned, a copy of such report shall be forwarded to the Governor of the State who shall cause it to be laid before the Legislature of the State along with a memorandum explaining the action taken or proposed to be taken on the recommendations relating to the State and the reasons for the non-acceptance, if any, of any of such recommendations.

(8) The Commission shall, while investigating any matter referred to in sub-clause (a) or inquiring into any complaint referred to in sub-clause (b) of clause (5), have all the powers of a civil court trying a suit and in particular in respect of the following matters, namely:—

(a) summoning and enforcing the attendance of any person from any part of India and examining him on oath;

(b) requiring the discovery and production of any document;

(c) receiving evidence on affidavits;

(d) requisitioning any public record or copy thereof from any court or office;

(e) issuing commissions for the examination of witnesses and documents;

(f) any other matter which the President may, by rule, determine.

(9) The Union and every State Government shall consult the Commission on all major policy matters affecting Scheduled Tribes.

ARTICLE 339

(1) The President may at any time and shall, at the expiration of ten years from the commencement of this Constitution by order appoint a Commission to report on the administration of the Sc.heduled Areas and the welfare of the Scheduled Tribes in the States.

The order may define the composition, powers and procedure of the Commission and may contain such incidental or ancillary provisions as the President may consider necessary or desirable.

(2) The executive power of the Union shall extend to the giving of directions to a State as to the drawing up and execution of schemes specified in the direction to be essential for the welfare of the Scheduled Tribes in the State.

ARTICLE 340

Appointment of a Commission to investigate the conditions of backward classes.

NATIONAL COMMISSION FOR BACKWARD CLASSES

ARTICLE 338 B

Inserted by 102nd Constitutional Amendment Act

Empowers NCBC to examine complaints and welfare measures regarding socially and educationally backward classes.

Composition of NCBC

- ⇒ 1 chairperson and 5 members with the term of 3 years.
- ⇒ Members are appointed and removed by President.
- ⇒ President also determines their conditions of service and office tenure.
- ⇒ Chairperson eligibility – Judge of SC/HC
- ⇒ Among the members,
- ⇒ There should be: at least 2 persons who have special knowledge in matters of backward classes,
- ⇒ At least 1 woman, a social scientist, a member secretary (rank of secretary to GOI).

NCBC submits reports upon the working of safeguards for socially and educationally backward classes to the President.

- ⇒ President lay those reports before the Parliament.
  - ❖ If such reports are related to the state, then a copy of the report shall be forwarded to the concerned state government.
- ⇒ NCBC has the power to investigate, monitor and evaluate the working of safeguards provided under the constitution for the socially and educationally backward classes.
- ⇒ NCBC participates and advises on the socio-economic development of the SEdBCs and also evaluates the progress of their development.
- ⇒ It has to perform such other functions as the President may by rule specify which is subject to the provision of any parliamentary law.

ARTICLE 341

(1) The President may with respect to any State or Union territory], and where it is a State , after consultation with the Governor thereof, by public notification, specify the castes, races or tribes or parts of or groups within castes, races or tribes which shall for the purposes of this Constitution be deemed to be Scheduled Castes in relation to that State or Union territory, as the case may be.

(2) Parliament may by law include in or exclude from the list of Schdeuled Castes specified in a notification issued under clause (1) any caste, race or tribe or part of or group within any caste, race or tribe, but save as aforesaid a notification issued under the said clause shall not be varied by any subsequent notification.

ARTICLE 342

(1) The President may with respect to any State or Union territory, and where it is a State after consultation with the Governor thereof, by public notification6, specify the tribes or tribal communities or parts of or groups within tribes or tribal communities which shall for the purposes of this Constitution be deemed to be Scheduled Tribes in relation to that State or Union territory, as the case may be.

(2) Parliament may by law include in or exclude from the list of Scheduled Tribes specified in a notification issued under clause (1) any tribe or tribal community or part of or group within any tribe or tribal community, but save as aforesaid a notification issued under the said clause shall not be varied by any subsequent notification.

SIGMA ACADEMY

OFFICIAL LANGUAGE

PART XVII

ARTICLE

343 TO 351

ARTICLE 343

(1) The official language of the Union shall be Hindi in Devanagari script. The form of numerals to be used for the official purposes of the Union shall be the international form of Indian numerals.

(2) Notwithstanding anything in clause (1), for a period of fifteen years from the commencement of this Constitution, the English language shall continue to be used for all the official purposes of the Union for which it was being used immediately before such commencement:

Provided that the President may, during the said period, by order1 authorise the use of the Hindi language in addition to the English language and of the Devanagari form of numerals in addition to the international form of Indian numerals for any of the official purposes of the Union.

(3) Notwithstanding anything in this article, Parliament may by law provide for the use, after the said period of fifteen years, of—

(a) the English language, or

(b) the Devanagari form of numerals,

for such purposes as may be specified in the law.

ARTICLE 344

(1) The President shall, at the expiration of five years from the commencement of this Constitution and thereafter at the expiration of ten years from such commencement, by order constitute a Commission which shall consist of a Chairman and such other members representing the different languages specified in the Eighth Schedule as the President may appoint, and the order shall define the procedure to be followed by the Commission.

(2) It shall be the duty of the Commission to make recommendations to the President as to—

(a) the progressive use of the Hindi language for the official purposes of the Union;

(b) restrictions on the use of the English language for all or any of the official purposes of the Union;

(c) the language to be used for all or any of the purposes mentioned in article 348;

(d) the form of numerals to be used for any one or more specified purposes of the Union;

(e) any other matter referred to the Commission by the President as regards the official language of the Union and the language for communication between the Union and a State or between one State and another and their use.

(3) In making their recommendations under clause (2), the Commission shall have due regard to the industrial, cultural and scientific advancement of India, and the just claims and the interests of persons belonging to the non-Hindi speaking areas in regard to the public services.

(4) There shall be constituted a Committee consisting of thirty members, of whom twenty shall be members of the House of the People and ten shall be members of the Council of States to be elected respectively by the members of the House of the People and the members of the Council of States in accordance with the system of proportional representation by means of the single transferable vote.

(5) It shall be the duty of the Committee to examine the recommendations of the Commission constituted under clause (1) and to report to the President their opinion thereon.

(6) Notwithstanding anything in article 343, the President may, after consideration of the report referred to in clause (5), issue directions in accordance with the whole or any part of that report.

ARTICLE 345

Subject to the provisions of articles 346 and 347, the Legislature of a State may by law adopt any one or more of the languages in use in the State or Hindi as the language or languages to be used for all or any of the official purposes of that State:

Provided that, until the Legislature of the State otherwise provides by law, the English language shall continue to be used for those official purposes within the State for which it was being used immediately before the commencement of this Constitution.

ARTICLE 346

The language for the time being authorised for use in the Union for official purposes shall be the official language for communication between one State and another State and between a State and the Union:

Provided that if two or more States agree that the Hindi language should be the official language for communication between such States, that language may be used for such communication.

ARTICLE 347

On a demand being made in that behalf the President may, if he is satisfied that a substantial proportion of the population of a State desire the use of any language spoken by them to be

recognised by that State, direct that such language shall also be officially recognised throughout that State or any part thereof for such purpose as he may specify.

ARTICLE 348

(1) Notwithstanding anything in the foregoing provisions of this Part, until Parliament by law otherwise

provides—

(a) all proceedings in the Supreme Court and in every High Court,

(b) the authoritative texts—

(i) of all Bills to be introduced or amendments thereto to be moved in either House of Parliament or in the House or either House of the Legislature of a State,

(ii) of all Acts passed by Parliament or the Legislature of a State and of all Ordinances promulgated by the President or the Governor of a State, and

(iii) of all orders, rules, regulations and byelaws issued under this Constitution or under any law made by Parliament or the Legislature of a State, shall be in the English language.

(2) Notwithstanding anything in sub-clause (a) of clause (1), the Governor 1*** of a State may, with the

previous consent of the President, authorise the use of the Hindi language, or any other language used for any official purposes of the State, in proceedings in the High Court having its principal seat in that State:

Provided that nothing in this clause shall apply to any judgment, decree or order passed or made by such

High Court.

(3) Notwithstanding anything in sub-clause (b) of clause (1), where the Legislature of a State has prescribed any language other than the English language for use in Bills introduced in, or Acts passed by, the Legislature of the State or in Ordinances promulgated by the Governor 1*** of the State or in any order, rule, regulation or bylaw referred to in paragraph (iii) of that sub-clause, a translation of the same in the English language published under the authority of the Governor 1*** of the State in the Official Gazette of that State shall be deemed to be the authoritative text thereof in the English language under this article.

ARTICLE 349

During the period of fifteen years from the commencement of this Constitution, no Bill or amendment

making provision for the language to be used for any of the purposes mentioned in clause (1) of article 348 shall be introduced or moved in either House of Parliament without the previous sanction of the President, and the President shall not give his sanction to the introduction of any

such Bill or the moving of any such amendment except after he has taken into consideration the recommendations of the Commission constituted under clause (1) of article 344 and the report of the Committee constituted under clause (4) of that article.

ARTICLE 350

Every person shall be entitled to submit a representation for the redress of any grievance to any officer or authority of the Union or a State in any of the languages used in the Union or in the State, as the case may be.

ARTICLE 350 A

It shall be the endeavour of every State and of every local authority within the State to provide adequate facilities for instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups; and the President may issue such directions to any State as he considers necessary or proper for securing the provision of such facilities.

ARTICLE 350 B

(1) There shall be a Special Officer for linguistic minorities to be appointed by the President.

(2) It shall be the duty of the Special Officer to investigate all matters relating to the safeguards provided for linguistic minorities under this Constitution and report to the President upon those matters at such intervals as the President may direct, and the President shall cause all such reports to be laid before each House of Parliament, and sent to the Governments of the States concerned.

ARTICLE 351

It shall be the duty of the Union to promote the spread of the Hindi language, to develop it so that it may serve as a medium of expression for all the elements of the composite culture of India and to secure its enrichment by assimilating without interfering with its genius, the forms, style and expressions used in Hindustani and in the other languages of India specified in the Eighth Schedule, and by drawing, wherever necessary or desirable, for its vocabulary, primarily on Sanskrit and secondarily on other languages.

SIGMA ACADEMY

EXTRACONSTITUTIONAL BODIES

LOKPAL

The idea of creating an anti corruption ombudsman, in the form of a Lokpal, was first conceptualized in 1968 in the fourth Lok Sabha.

Thereafter in 1971, 1977, 1985, 1989, 1996, 1998 and 2001 efforts were made to enact legislation to create the institution of Lokpal.

⇒ Retired Supreme Court judge Pinaki Chandra Ghose is appointed as the first Lokpal of India

PURPOSE

It is an institution that will inquire into allegations of corruption against certain public functionaries.

SELECTION

⇒ Under Rule 11 (2) of the Search Committee Rules, 2014, the search panel for lokpal recommends at least five names for chairperson and at least three times the number of vacancies in the case of members.

⇒ This recommendation has to be placed before the high-power selection committee led by the Prime Minister.

⇒ The selection committee comprises the Lok Sabha Speaker, the Leader of the Opposition, the Chief Justice of India and an eminent jurist as members.

The court has for the past several months been constantly urging the government to complete the Lokpal appointment.

⇒ Although passed in 2014, the Lokpal and Lokayukta Act of 2013 was not implemented all these years because there was no Leader of Opposition (LoP) in the 16th Lok Sabha.

⇒ The Supreme Court clarified that the Lokpal appointment process need not be stalled merely due to the absence of the LoP.

⇒ For this, the court points to sub-section (2) of Section 4 of the original 2013 Lokpal Act.

⇒ The section makes it clear that the appointment of the chairperson or members of Lokpal will not be invalidated merely because one of the members of the selection committee (the LoP) is missing.

- ⇒ In short, the available members of the Lokpal selection committee could very well recommend suitable persons to the President for appointment to Lokpal.
- ⇒ Thus, the Lokpal Act 2013 is deemed to be an eminently workable piece of legislation by the Supreme court.
- ⇒ Also, a Parliamentary Standing Committee submitted its report on December 3, 2015, fully supporting the amendment to replace the LoP with the single largest Opposition party leader in the Lok Sabha.

STRUCTURE

- ⇒ The institution of Lokpal is a statutory body without any constitutional backing.
- ⇒ Lokpal is a multi-member body, made up of one chairperson and maximum of 8 members.

The person who is to be appointed as the chairperson of the Lokpal should be either the former Chief Justice of India or a former Judge of the Supreme Court, or an eminent person with impeccable integrity and outstanding ability, having special knowledge and expertise of minimum 25 years in the matters relating to anti-corruption policy, public administration, vigilance, finance including insurance and banking, law and management.

Out of the maximum eight members, half will be judicial members.

- ⇒ Minimum fifty per cent of the Members will be from SC / ST / OBC / Minorities and women.
  - ❖ The JUDICIAL MEMBER of the Lokpal should be either a former Judge of the Supreme Court or a former Chief Justice of a High Court.
  - ❖ The NON-JUDICIAL member should be an eminent person with impeccable integrity and outstanding ability, having special knowledge and expertise of a minimum of 25 years in the matters relating to anti-corruption policy, public administration, vigilance, finance including insurance and banking, law and management.

The members are appointed by the president on the recommendation of a selection committee.

The selection committee is composed of the Prime Minister who is the Chairperson; Speaker of Lok Sabha, Leader of Opposition in Lok Sabha, Chief Justice of India or a Judge nominated by him/her, and one eminent jurist.

ROLE

- ⇒ The Lokpal is an anti-corruption Ombudsman.
- ⇒ The Lokpal will have its jurisdiction over top political executives, including the Prime Minister.
- ⇒ They have the powers to give directions to all the agencies in India, like the CBI, the CVC, etc.
- ⇒ They can suspend or transfer any officer who is coming in the way of an enquiry.
- ⇒ The Lokpal will work as an investigative agency, as well as a prosecuting agency.
- ⇒ They shall have special courts.

Even the 1966 Administrative Reforms Commission, headed by Morarji Desai had suggested various steps to check graft in political circles and official circles.

NEED

- ⇒ All executive institutions are losing credibility.
- ⇒ The judiciary has encroached.
- ⇒ The power and authority of the executive has been significantly eroded.
- ⇒ The irony is that the Lokpal doesn't have an investigating agency of its own; it would have to depend upon the CBI.

THE ISSUES INVOLVED IN THE FUNCTIONING OF LOKPAL AND METHODS TO MAKE LOKPAL EFFECTIVE.

The Lokpal, a multi-member body, made up of one chairperson and maximum of 8 members was enacted in 2013 and came into force in 2014. The Lokpal has attempted to make a positive change but still, there are loopholes and inconsistencies that need to be addressed.

- ⇒ The Lokpal selection process is skewed because there are no guidelines for deciding who is a "eminent jurist" or "a person of integrity."
- ⇒ In addition to appointing members from political parties, the Lokpal committee itself is subject to political influence.
- ⇒ The Act prohibits Lokpal inquiry if the allegations against the PM in certain circumstances. Thus, Lokpal do not have full authority to investigate PM.
  - ✓ Also, complaints against the PM are not to be probed unless the full Lokpal bench considers the initiation of an inquiry and at least two-thirds of the members approve it.
- ⇒ All the cases of corruption in which high officials are involved go to the CBI. Lokpal do not have complete control.

SUGGESTION

- ⇒ Need for a mechanism that provides for simple, independent, speedy means of delivering justice without succumbing to the clutches of the executive.
- ⇒ It must be strengthened in respect of functional autonomy and workforce availability.
- ⇒ The government should focus on eliminating the root causes because of which the general public is demanding a Lokpal.
- ⇒ There should be complete transparency when nominating a Lokpal as it will increase the chances for the right person to be appointed.

Lokpal shall function independently of any political influence so that a proper system of checks-and -balance is maintained in the federal and democratic system of India.

CENTRAL BUREAU OF INVESTIGATION

The Central Bureau of Investigation (CBI) is a premier investigating police agency in India, and is an elite force which plays a major role in preservation of values in public life and in ensuring the health of the national economy. The agency was established in 1941 as the Special Police Establishment, and was tasked

with simple domestic security outlining. The Central Bureau of Investigation was later established on 1 April 1963(Santhanam Committee). Its motto is "INDUSTRY, IMPARTIALITY, AND INTEGRITY". The CBI is not a statutory body. It derives its powers from the Delhi Special Police Establishment Act, 1946. It works under the overall superintendence of Central Vigilance Commission in matters related to the Prevention of Corruption Act, 1988.

COMPOSITION

⇒ The CBI is headed by a Director. He is assisted by a Special Director or an Additional Director. It has a number of joint directors, deputy inspector generals, superintendents of police and all other usual ranks of police personnel.

⇒ The Director of CBI as Inspector-General of Police. The Director of CBI has been provided security of two-year tenure in office by the CVC Act, 2003 (Vineet Narain Case). The CVC Act also provides the mechanism for the selection of the Director of CBI and other officers of the rank of SP and above in the CBI.

⇒ The Director of the CBI is appointed by the Central Government on the recommendation of a committee consisting of the Central Vigilance Commissioner as Chairperson, the Vigilance Commissioners, the Secretary to the Government of India in-charge of the Ministry of Home Affairs and the Secretary (Coordination and Public Grievances) in the Cabinet Secretariat.

ORGANIZATION

The CBI has the following divisions:

(a)Anti-Corruption Division
(b)Economic Offences Division
(c)Special Crimes Division
(d)Policy and International Police Cooperation Division
(e)Administration Division
(f)Directorate of Prosecution
(g)Central Forensic Science Laboratory

FUNCTIONS

CBI has grown into a multidisciplinary investigation agency over a period of time. Today it has the following three divisions for investigation of crime:-

(a) Investigation of cases under the Prevention of Corruption Act, 1988 against Public officials and the employees of Central Government, Public Sector Undertakings, Corporations or Bodies owned or controlled by the Government of India.

(b) Investigation of major financial scams and serious economic frauds, including crimes relating to Fake Indian Currency Notes, Bank Frauds and Cyber Crime.

(c) Investigation of serious, sensational and organized crime under the Indian Penal Code and other laws on the requests of State Governments or on the orders of the Supreme Court

and High Courts.The laws under which CBI can investigate Crime are notified by the Central Government under section 3 of the DSPE Act.

CBI take over the investigation of a criminal case registered by the State Police

(a) The concerned State Government makes a request to that effect and the Central Government agrees to it

(b) The State Government issues notification of consent under section 6 of the DSPE Act and the Central Government issues notification under section 5 of the DSPE Act

(c) The Supreme Court or High Courts orders CBI to take up such investigations.

As per section 2 of the DSPE Act, CBI can suo-moto take up investigation of offences notified in section 3 only in the Union Territories.

Taking up investigation by CBI in the boundaries of a State requires prior consent of that State as per Section 6 of the DSPE Act.

The Central Government can authorize CBI to investigate such a crime in a State but only with the consent of the concerned State Government.

Investigating serious crimes, having national and international ramifications, committed by organized gangs of professional criminals.

Maintaining crime statistics and disseminating criminal information.

The CBI acts as the "National Central Bureau" of Interpol in India. The Interpol Wing of the CBI coordinates requests for investigation-related activities originating from Indian law enforcement agencies and the member countries of the Interpol.

CBI-STILL CAGED PARROT.

Supreme Court of India has made several observation and comment against the inefficient functioning of the CBI and still this is continuing without much improving the situation. The Supreme Court of India has criticised the CBI by calling it a "caged parrot speaking in its master's voice".

⇒ It functions under the superintendence of the Deptt. of Personnel, Ministry of Personnel, Pension & Public Grievances, Government of India - which falls under the prime minister's office.

⇒ The CBI is not a statutory body but derives its power to investigate from the Delhi Special Police Establishment Act, 1946.

⇒ It has often been used by the government of the day to cover up wrongdoing, keep coalition allies in line and political opponents at bay.

⇒ Lack of enough financial and administrative autonomy in non-corruption cases has been often cited as major roadblocks in independent investigation by CBI.

⇒ Dependence on MHA for staffing, especially on deputations of IPS officers, which affects its functional autonomy.

⇒ CBI is exempted from the provisions of the Right to Information Act, thus, lacking public accountability.

⇒ Prior approval of Central Government to conduct inquiry or investigation on the employees of the Central Government, of the level of Joint Secretary and above is a big obstacle in combating corruption at higher levels of bureaucracy.

As long as the government of the day has the power to transfer and post officials of its choice in the CBI, the investigating agency will not enjoy autonomy and will be unable to investigate cases freely. Providing statutory status through legislation equivalent to that provided to the Comptroller & Auditor General and the Election Commission will help maintain the independence of the institution.

CENTRAL INFORMATION COMMISSION

The Central Information Commission set up under the Right to Information Act is the authorized quasi judicial body, established in 2005.

⇒ It has chief information commissioner and up to 10 information commissioners.

- ❖ All are appointed by the President on recommendation of Prime minister, union minister nominated by him and leader of opposition in Lok Sabha.

⇒ Qualification for membership to commission are People should person of eminence in public life with experience in field of law, science and technology, governance, social service, management, journalism, mass media or administration.

- ❖ They should not be MP / MLA's or connected to any political party, doing some business or holding office of profit.

⇒ They hold office till age of 65 or 5 years.

- ❖ The information commissioner is eligible for post of chief information commissioner but can be in office for maximum 5 years including his tenure of information commissioner.

⇒ Removal is done by president on grounds of bankruptcy, unsound mind, infirmity of body or mind, sentenced to imprisonment for a crime, or engages in paid employment.

- ❖ He can also be removed for proved misbehavior or incapacity if SC inquiry finds him guilty. They can resign by writing to president.

POWERS & FUNCTIONS

(a)It is the duty of the Commission to receive and inquire into a complaint from any person:

(b)The Commission can order inquiry into any matter if there are reasonable grounds (suo-moto power).

(c)While inquiring, the Commission has the powers of a civil court in respect of the following matters :

(d)During the inquiry of a complaint, the Commission may examine any record which is under the control of the public authority and no such record may be withheld from it on any grounds. In other words, all public records must be given to the Commission during inquiry for examination.

(e)The Commission has the power to secure compliance of its decisions from the public authority.

(f)The Commission submits an annual report to the Central Government on the implementation of the provisions of this Act.

QUASI JUDICIAL POWER

1,Summoning and enforcing attendance of persons, compelling them to give oral or written evidence on oath and to produce documents or things;

2,Requiring the discovery and inspection of documents;

3.Receiving evidence on affidavit ;

4.Requisitioning public records or copies from any court or office

5.Issuing summons for examination of witnesses or documents any other matter which may be prescribed.

The Central Government places this report before each House of Parliament.

The Central Information Commission/State Information Commission has a Quasi Judicial duty to receive complaints from any person –

1.Who has not been able to submit an information request because a PIO has not been appointed

2.Who has been refused information that was requested;

3.Who has received no response to his/her information request within the specified time limits ;

4.Who thinks the fees charged are unreasonable ;

5.Who thinks information given is incomplete or false or misleading ;and any other matter relating to obtaining information under this law.

CHALLENGES

1.The RTI act did not give adequate authority to IC to enforce their decisions. They can only direct authority to award compensation to an applicant, but no authority if such directions are neglected.

2.Commission can impose a maximum penalty of 25000 Rupees as a deterrent, but it works only when the institution involve in lower level and in ministerial and upper level, even this deterrent may not apply.

3.Although CIC enjoys complete financial and administrative powers of a Department of Government, they have to dependent upon the government for filling posts and therefore, presently, CIC has been functioning with less than their prescribed strength of 11 members.

4.It eventually leads to the delay in disposal of the cases, that is compounded by the backlogs in the High Courts, where the number of decisions of the commission are challenged.

⇒ The RTI Act is a gem for a Parliamentary democracy like India.

⇒ Moreover, it's a basic human right to get information that affect our life. CIC is an institution that acts like a watchdog in this act.

⇒ The very purpose of CIC and state information commissions is to have a look whether relevant information are provided to the people.

⇒ For that matter there is a need to empower the institution as it has to deal with all the level of officials in various departments.

⇒ There is a need to enhance the working efficiency of the institution and make CIC an autonomous and independent commission.

CENTRAL VIGILANCE COMMISSION

It is the apex vigilance institution, created on the recommendations of Santhanam committee in 1964 but was conferred with statutory status in 2003.

⇒ It must be informed that Central Vigilance Commission is not an investigating agency.

⇒ It operates in coalition with the CBI or the Departmental Chief Vigilance Officers. It submits its report to the President of India.

⇒ The Commission shall consist of -
A Central Vigilance Commissioner – Chairperson & Not more than two Vigilance Commissioners

⇒ They are appointed by the president on recommendations of a committee of PM + Home minister + leader of opposition Lok Sabha.

⇒ They occupy post till age of 65 yrs or 4 year term.

⇒ They are not eligible for any other govt appointment under centre or state after ceasing to hold office.

They are removed by President on grounds of bankruptcy, unsound mind, infirmity of body or mind, sentenced to imprisonment for a crime, or engages in paid employment or has acquired financial or other interest that might affect his judgment.

⇒ He can also be removed for proved misbehaviour or incapacity if SC inquiry finds him guilty.

⇒ They can resign by writing to president.

PURPOSE

⇒ The main purpose for which this important body had been established was to ensure all sorts of corruptions in government sector could be well prevented and addressed minutely.

⇒ It is an autonomous body, responsible for monitoring all vigilance activities under the union government.

⇒ Its major role is to recommend government agencies in "planning, executing, reviewing and reforming" their vigilance capability.

⇒ Central Government of India formed CVC in the year 1964 as an important body that could take into account the measures and steps to prevent all the corruptions especially the governmental ones for a better system and governance.

FUNCTIONS

⇒ To undertake an inquiry or cause an inquiry or investigation to be made into any transaction in which a public servant working in any organization, to which the executive control of the Government of India extends, is suspected or alleged to have acted for an improper purpose or in a corrupt manner;

⇒ To tender independent and impartial advice to the disciplinary and other authorities in disciplinary cases, involving vigilance angle at different stages i.e. investigation, inquiry, appeal, review etc.

⇒ To exercise a general check and supervision over vigilance and anti-corruption work in Ministries or Departments of the Government of India and other organizations to which the executive power of the Union extends; and

⇒ To undertake or cause an inquiry into complaints received under the Public Interest Disclosure and Protection of Informer and recommend appropriate action.

⇒ The Central Government is required to consult the CVC in making rules and regulations governing the vigilance and disciplinary matters relating to the members of Central Services and All India Services.

⇒ To exercise superintendence over the functioning of the Delhi Special Police Establishment with respect to investigation under the Prevention of Corruption Act, 1988; or offence under CrPC for certain categories of public servants.

⇒ To give directions and to review the progress of investigations conducted by the DSPE.

⇒ The Director of the CBI and Director of Enforcement should be appointed on the recommendations of a Committee headed by the Central Vigilance Commissioner, the Home Secretary and the Secretary in the Department of Personnel(Vineet Narain case).

LIMITATIONS

⇒ CVC is only an advisory body. Central Government Departments are free to either accept or reject CVC's advice in corruption cases.

⇒ CVC does not have adequate resources compared with number of complaints that it receives. It is a very small set up with sanctioned staff strength of 299. Whereas, it is supposed to check corruption in more than 1500 central government departments and ministries.

⇒ CVC cannot direct CBI to initiate inquiries against any officer of the level of Joint Secretary and above on its own. Such permission has to be obtained from the concerned department.

⇒ CVC does not have powers to register criminal case. It deals only with vigilance or disciplinary cases.

⇒ CVC has supervisory powers over CBI. However, CVC does not have the power to call for any file from CBI or to direct CBI to investigate any case in a particular manner. CBI is under administrative control of Department of Personnel and Training (DoPT). Which means that, the powers to appoint, transfer, suspend CBI officers lie with DoPT.

Appointments to CVC are indirectly under the control of Govt of India, though the leader of the Opposition (in Lok Sabha) is a member of the Committee to select CVC and VCs. But the Committee considers candidates put up before it. These candidates are decided by the Government.

As a result, although CVC is relatively independent in its functioning, it has neither resources nor powers to inquire and take action on complaints of corruption that may act as an effective deterrence against corruption.

NATIONAL HUMAN RIGHTS COMMISSION

The UN Commission on Human Rights framed the Universal Declaration of Human Rights (UDHR). UDHR was approved by the United Nations General Assembly in 1948.

⇒ Although the UDHR was a non-binding resolution, it is now reflected to have acquired the force of international customary which may be raised in appropriate circumstances by national and other judges.

⇒ The UDHR desires member nations to promote a number of human, civil, economic and social rights.

⇒ The implementation of the Universal Declaration is a significant international commemoration marked each year on 10 December, and is called Human Rights Day or International Human Rights Day.

⇒ The international community has acknowledged the mounting importance of strengthening national human rights institutions.

⇒ In this background, in the year 1991, a UN-sponsored meeting of representatives of national institutions held in Paris, a comprehensive set of principles on the status of national institutions was developed, these are commonly known as the Paris Principles.

These principles, became the basis for the establishment and operation of national human rights institutions.

⇒ The National Human Rights Commission, abbreviated as NHRC of India is an autonomous public body founded on 12 October 1993 under the Protection of Human Rights Ordinance of 28 September 1993.

⇒ It was given a statutory base by the Protection of Human Rights Act, 1993 (TPHRA).

NHRC has the powers of a civil court. It has authority to grant interim relief. It has authority to recommend payment of compensation or damages.

⇒ It has exclusive mechanism with which it also monitors implementation of its various recommendations.

EXECUTIVES

⇒ A Chairperson, retired Chief Justice of India.

⇒ One Member who is, or has been, a Judge of the Supreme Court of India.

⇒ One Member who is, or has been, the Chief Justice of a High Court.

⇒ Two Members to be appointed from among persons having knowledge of, or practical experience in, matters relating to human rights.

❖ Additionally, the Chairpersons of four National members (1.Minorities 2.SC and ST 3.Women), to serve as ex officio members.

⇒ The Chairperson and the Members of the Commission are appointed by the President on the recommendations of a Committee consisting of the Prime Minister as Chairperson.

⇒ The members are Speaker of the House of the People, Union Minister of Home Affairs, Leader of the Opposition in the House of the People, Leader of the Opposition in the Council of States, Deputy Chairman of the Council of States.

⇒ Term of the Chairman and members is 5 years or 70 years of age whichever is earlier.

⇒ After retirement they are not eligible for further appointment under the Government of India or under the Government of any State.

⇒ The Chairperson and members of NHRC can be removed only on grounds of proved misbehaviour or incapacity.

⇒ The President has to refer the matter to Supreme Court and if after inquiry Supreme Court finds that the charge is right; they can be removed by the President.

The headquarters of the commission is at New Delhi.

⇒ Though, with the permission from the government, it can establish offices at other places in India.

FUNCTIONS

⇒ To investigate grievances regarding the violation of human rights either suo moto or after receiving a petition.

⇒ To scrutinize the failure of duties on the part of any public official in preventing the violation of human rights.

⇒ To interfere in any judicial proceedings involving any allegation of violation of human rights.

⇒ To visit any jail or any other institution under the control of the State Government to see the living conditions of the inmates and to make recommendations thereon.

⇒ To review the safeguards provided under the constitution or any law for the protection of the human rights and to recommend appropriate remedial measures.

⇒ To study treaties and other international instruments on human rights and to make recommendations for their effective implementation.

⇒ To undertake and promote research in the field of human rights.

⇒ To encourage the efforts of the non-governmental organisations working in the field of human rights.

⇒ To spread human rights literacy among various sections of society and to promote awareness of the safeguards available for the protection of these rights through publications, the media, seminars and other means.

⇒ To review all facts related to the activities of the terrorists which obstruct the way of the protection of human rights and to make recommendations for their effective implementation.

⇒ To make an inquiry into the complaints submitted to it, the commission has the powers of a civil court.

The Protection of Human Rights Act, 1993, authorized the State Governments to establish their own commission for this aim. The chairman and the members of such State Commission are appointed by the Governor in consultation with the Chief Minister, Home Minister, Speaker and Leader of the Opposition in the State Legislative Assembly.

LIMITATIONS

⇒ National Human Rights Commission can only make recommendations, without the power to impose decisions. This lack of authority to ensure compliance can lead to outright denial of its decision too.

⇒ It is often visualized as a post-retirement destinations for judges, police officers and bureaucrats with political clout. Bureaucratic functioning, insufficiency of funds also hamper the working of the commission.

⇒ Under the Protection of Human Rights Act, 1993, human rights commissions cannot examine an event if the complaint was made more than one year after the incident. Therefore, a large number of genuine complaints go unaddressed.

To summarize, the Government of India did comprehend the need to establish an independent body to promote and protect human rights.

The establishment of an autonomous National Human Rights Commission by the Government of India mirrors its commitment for effective execution of human rights provisions under national and international instruments.

According to news reports, Human rights commissions are most active when their tasks are passably supported by other mechanisms that safeguard a government's accountability.

NATIONAL COMMISSION FOR WOMEN

⇒ The norm of gender equality is protected in the Indian Constitution.

⇒ The Preamble, promotes "Equality of status and of opportunity".

⇒ The Fundamental Rights enshrined in Part III of the Indian Constitution and Directive Principles enshrined in Part IV of the Constitution all promote gender equality.

⇒ The Constitution not only allows equality to women but has also made special provisions for safeguarding equality.

⇒ Thus in January 1992, the National Commission for Women was set up as a statutory body under the National Commission for Women Act, 1990 to perform the mandate set by the Act.

COMPOSITION

⇒ A Chairperson, committed to the cause of women, to be nominated by the Central Government.

⇒ Five Members to be nominated by the Central Government from amongst persons of ability, integrity and standing who have had experience in law or legislation, trade unionism, management of an industry potential of women, women's voluntary organizations (including women activist), administration, economic development, health, education or social welfare.

⇒ Provided that at least one Member each shall be from amongst persons belonging to the Scheduled Castes and Scheduled Tribes respectively.

- ❖ The tenure for each person in office is for a period of five years or till attains the age of seventy.
- ❖ At least one member each of the Commission must belong to a Scheduled Caste or Scheduled Tribe.
- ❖ In addition to the aforementioned members of the Commission, the Commission has the power to set up committees with members from outside the Commission.

The first head of the commission was Jayanti Patnaik.

FUNCTIONS

⇒ NCW work as the coordinating agency to receive and process all the complaints related to Indian Women deserted by their Overseas Indian husbands.

⇒ NCW shall render all possible assistance to the complaints including conciliation, mediation between the parties and advising the complainant on related issues.

⇒ Associating, networking with NGOs, community organizations in India and overseas and State women Commissions for wider area coverage, so as to assist easy access and provide support services.

⇒ NCW shall endeavour towards a coordinated response amongst various Government agencies/organizations such as State Governments, The National Human Rights Commission, Indian Embassies and Mission, concerned Ministries etc.

⇒ NCW provides assistance to the distressed woman in litigation and other issues pertaining to the complainant/case.

⇒ NCW shall maintain a data bank record of cases registered.

⇒ NCW seeks reports from the State Government and other authorities on the complaints filed and action taken thereon.

⇒ NCW shall advice and recommend the government on any policy or issue relating to the NRI marriages.

⇒ NCW investigates various legal treaties on the issue and advice the Government on the subject, wherever required.

⇒ NCW shall constitute an advisory committee panel of reputed advocates/NGOs, both in India as well as abroad, which shall intermittently review the functioning of the cell, cases filed and policy issues.

⇒ NCW shall constitute a panel of experts (All India) to support the aggrieved wife and rendering legal services and other assistance, including mediation and conciliation

⇒ Planning of training modules and conducting training on sensitisation on the subject to the various agencies entrusted with the task of providing justice, vig. Judiciary, police, administration, etc.

⇒ NCW shall organize awareness campaigns for the masses on the issue.

⇒ NCW has responsibility to encourage /support research and study in the related field like issues of grievances associated with dual citizenship, enactment of new legislation or signing of international treaties, marriage laws of other countries, etc.

⇒ NCW must look into complaints and take suo-moto notice on any issue brought to the notice of the NRI Cell in accordance with Section 10 (1)(f) of the National Commission for Women Act , 1990 read with sub-section 4 of Section 10 and Section 8 of the Act.

⇒ NCW shall control its own procedures in accordance with the National Commission for Women Act 1990.

⇒ NCW must perform any other function as assigned to it by the Commission/Central Government.

SIGNIFICANCE

⇒ Women. India has conventionally been a male-controlled society and therefore women are visualized as a weak entity in Indian society.

⇒ The Constitution does not contain any provision precisely made to favour women as such.

⇒ Though Art. 15 (3), Art. 21 and Art. 14 are in favour of women.

⇒ The Supreme Court through interpretive processes has tried to extend some protections to women. Through judgments in cases such as Bodhisattwa Gautam v. Subra Chakraborty and the Chairman Rly Board v. Chandrima Das case where rape was declared a monstrous crime, as well as the breakthrough judgment in Visakha v. State of Rajasthan.

⇒ The absence of constitutional mechanism, judicial capability and social interest formed the motivation and need for the creation of the National Commission for Women.

It is apparent from the prior mentioned conditions and problems that women in India, though in a better position than their ancestors, were handicapped to a great extent in the early 1990s and these handicaps and prejudices against Indian women prompted the Indian Government to establish the first National Commission for Women in 1992.

THE DIRECTORATE OF ENFORCEMENT

It is a multi-disciplinary organization mandated with investigation of offence of money laundering and violations of foreign exchange laws.

⇒ It functions under the Department of Revenue of the Ministry of Finance.

- ⇒ On 1st May, 1956, it was originated in the Department of Economic Affairs for handling Exchange Control Laws violations under Foreign Exchange Regulation Act (FERA), 1947.
- ⇒ The Directorate of Enforcement, with its headquarters at New Delhi, is headed by the Director of Enforcement.
  - ❖ Five regional offices at Mumbai, Chennai, Chandigarh, Kolkata and Delhi headed by Special Directors of Enforcement.
  - ❖ The Directorate has 10 Zonal offices each of which is headed by a Deputy Director and 11 sub Zonal Offices each of which is headed by an Assistant Director.

RECRUITMENT

- ⇒ Is done directly and by drawing officers from other investigation agencies.
- ⇒ It comprises officers of IRS, IPS and IAS.

TENURE

In November 2021, the President of India promulgated two ordinances allowing the Centre to extend the tenures of the directors of the Central Bureau of Investigation (CBI) and the Enforcement Directorate from two years to up to five years.

- ⇒ The Delhi Special Police Establishment (DSPE) Act, 1946 (for ED) and the Central Vigilance Commission (CVC) Act, 2003 (for CV Commissioners) have been amended to give the government the power to keep the two chiefs in their posts for one year after they have completed their two-year terms.

However, no further extension can be granted after the completion of a period of five years in total including the period mentioned in the initial appointment.

WHY TO FIX THE TENURE?

- ⇒ To ensure stability and continuity.
- ⇒ Essential for the effective investigation and prosecution of complex and transnational financial crimes.
- ⇒ Protect from political interference and pressure.
- ⇒ To enhance the credibility and reputation.

STATUTORY FUNCTIONS

THE PREVENTION OF MONEY LAUNDERING ACT, 2002 (PMLA)

- ⇒ It is a criminal law enacted to prevent money laundering and to provide for confiscation of property derived from, or involved in, money-laundering and for matters connected therewith or incidental thereto.
- ⇒ ED has been given the responsibility to enforce the provisions of the PMLA by conducting investigation to trace the assets derived from proceeds of crime, to provisionally attach the property and to ensure prosecution of the offenders and confiscation of the property by the Special court.

THE FOREIGN EXCHANGE MANAGEMENT ACT, 1999 (FEMA)

⇒ It is a civil law enacted to consolidate and amend the laws relating to facilitate external trade and payments and to promote the orderly development and maintenance of foreign exchange market in India.

⇒ ED has been given the responsibility to conduct investigation into suspected contraventions of foreign exchange laws and regulations, to adjudicate and impose penalties on those adjudged to have contravened the law.

THE FUGITIVE ECONOMIC OFFENDERS ACT, 2018 (FEOA)

⇒ This law was enacted to deter economic offenders from evading the process of Indian law by remaining outside the jurisdiction of Indian courts.

⇒ It is a law whereby Directorate is mandated to attach the properties of the fugitive economic offenders who have escaped from the India warranting arrest and provide for the confiscation of their properties to the Central Government.

THE FOREIGN EXCHANGE REGULATION ACT, 1973 (FERA)

⇒ The main functions under the repealed FERA are to adjudicate the Show Cause Notices issued under the the said Act upto 31.5.2002 for the alleged contraventions of the Act which may result in imposition of penalties and to pursue prosecutions launched under FERA in the concerned courts.

SPONSORING AGENCY UNDER COFEPOSA

⇒ Under the Conservation of Foreign Exchange and Prevention of Smuggling Activities Act, 1974 (COFEPOSA), this Directorate is empowered to sponsor cases of preventive detention with regard to contraventions of FEMA.

JURISDICTION

⇒ The ED can take action against any person on which FEMA or PMLA act applies.

⇒ Cases under FEMA may lie in civil courts where PMLA cases will lie in criminal courts.

⇒ All the public servants come under the jurisdiction of the agency if they are involved in any offence related to money laundering.

❖ ED can not take an action suo motu.

⇒ The ED will investigate the matter and may attach the property of an accused person and also make an arrest and start proceeding with the violation of the provisions of FEMA and PMLA act.

The matter will be resolved by way of adjudication by courts or PMLA courts.

CHALLENGES

⇒ It is often used as a political tool by the ruling party to target its opponents and critics.

⇒ The ED has been accused of selective and arbitrary enforcement of cases, harassment and intimidation of witnesses and accused, and leaking sensitive information to the media to influence public opinion.

- ⇒ It raised questions about the independence and impartiality of the ED and its susceptibility to political interference.
- ⇒ According to a report, out of 41,000 cases registered by the ED between 2009 and 2019, only 8,000 were charge-sheeted and only 3,000 resulted in a conviction.
- ⇒ The ED has a low success rate in proving its cases and securing justice for the victims of financial crimes.
- ⇒ It lacks adequate resources and manpower to deal with the increasing complexity and volume of economic offences.
- ⇒ The ED also faces challenges in obtaining cooperation from foreign jurisdictions, accessing digital evidence, and dealing with new forms of financial crimes such as cryptocurrency and cyber fraud.

WAY FORWARD

- ⇒ Strengthening the autonomy
- ⇒ Enhancing the Professionalism
- ⇒ Expanding the infrastructure
- ⇒ Improving the coordination and cooperation
- ⇒ Streamlining the legal framework

अज्ञानम् लभते ज्ञानम्
SIGMA ACADEMY

STATE EMBLEM

"a heraldic instrument or symbolic object as a unique insignia of a nation, organization, or family".

The State Emblem is an adaptation of the Lion Capital of Asoka at Sarnath. In the original, there are four lions, mounted back to back, on a circular abacus, which itself rests on a bell-shaped lotus. The frieze of the abacus has sculptures in high relief of an elephant, a galloping horse, a bull and a lion separated by intervening Dharma Chakras.

The profile of the Lion Capital showing three lions mounted on the abacus with a Dharma Chakra in the centre, a bull on the right and a galloping horse on the left, and outlines of Dharma Chakras on the extreme right and left was adopted as the State Emblem of India on January 26, 1950.

The bell-shaped lotus was omitted.

The motto Satyameva Jayate, which means 'Truth Alone Triumphs', written in Devanagari script below the profile of the Lion Capital is part of the State Emblem of India

- Four lions seated back to back which imply power, courage, confidence and pride.
- The elephant denotes Buddha's outset.
- The bull symbolizes Zodiac sign of Buddha- Taurus.
- The horse signifies Buddha's horse, which he rode at the time of departing from the citadel.
- The lion indicates enlightenment.
- Slogan 'Satyameva Jayate' is a quote from the Mundaka Upanishad.
- Dinanath Bhargava is believed to visit Alipore Zoo in Kolkata to see a lion before he depicts the same on paper.

NATIONAL ANTHEM

The 'Jana Gana Mana' was originally composed in Bengali by India's first Nobel laureate Rabindranath Tagore on December 11, 1911.

⇒ The parent song, 'Bharoto Bhagyo Bidhata' is a Brahmo hymn which has five verses and only the first verse has been adopted as National Anthem.

⇒ If put forwards succinctly, the National Anthem conveys the spirit of pluralism or in more popular term the concept of 'Unity in Diversity', which lies at the core of India's cultural heritage.

The idea of translating the song from Bengali to English came to Tagore while he was visiting the Besant Theosophical College on the invitation of Irish poet James H. Cousins.

⇒ He did the English translation during his stay at Madanapalle, in Chittoor of Andhra Pradesh.

⇒ The song 'Bharat Bhagya Bidhata' was first sung at the annual session of the Indian National Congress in Calcutta on December 27, 1911.

⇒ Song was performed by Sarala Devi Chowdhurani, Tagore's niece, along with a group of school students, in front of Bishan Narayan Dhar, Indian National Congress President and Ambika Charan Majumdar.

⇒ In 1912, the song was published under the title Bharat Bidhata in the Tatwabodhini Patrika, which was the official publication of the Brahmo Samaj and of which Tagore was the Editor.

⇒ Jana Gana Mana was officially proclaimed as India's National Anthem by the Constituent Assembly of India on January 24, 1950.

⇒ It was originally set in Raga Alhaiya Bilawal, still, it is sung with slight variations to the classical form of the raga.

Subhas Chandra Bose had authorized a free translation of the National Anthem from Sanskritized Bengali to a well-known form in Hindustani.

⇒ Captain Abid Ali of the Indian National Army (INA) had shaped the version called 'Subh Sukh chain'.

NATIONAL SONG

Bankim Chandra Chatterjee's poem Vande Maataram was written in highly sanskritized Bengali in his novel Anandamath in 1882 at Chinsura.

⇒ Rabindranath Tagore performed the poem for the first time before the Indian National Congress in 1896.

⇒ The Congress Working Committee selected the first two verses of the song as the National Song of India in October 1937.

⇒ The modern Vande Mataram composition is credited to V. D. Paluskar, the founder of the Gandharva Mahavidyalaya and Akhil Bharatiya Gandharva Mahavidyalaya Mandal.

⇒ The Vande Mataram was translated into English by Nares Chandra Sen-Gupta, in 1906.

⇒ In 1905, Sarala Devi Chaudurani sang the national song in the Benares Congress Session.

⇒ It was first published in Bankim's magazine Banga darshan to fill up a blank page.

NATIONAL CALENDAR

The Saka Samvat, a historic Hindu calendar that was eventually established as the 'Indian National Calendar' in 1957, began during the Saka Era.

⇒ The Saka Era is thought to have been founded by King Shalivanhana of the Shatavahana dynasty.

Chaitra, the first month of the Saka Samvat, begins on March 22, which corresponds to March 21 during the leap year.

It was chosen as India's National Calendar to harmonize the use of 30 various types of calendars in the country at the time.

Chaitra - Vaishakha – Jyeshtha – Ashadha – Shravana – Bhadra – Ashwin – Kartika – Agrahayana – Pausha – Magha - Phalguna

VIKRAM SAMVAT

⇒ The Vikram era began 56 years before the Christian era, in around 56 BC, and is still in effect in almost all of India except the Bengal region.

⇒ According to historians, King Vikramaditya of Ujjain established this era to commemorate his victory over the Saka rulers.

⇒ It is a lunar calendar based on the Hindu calendar of ancient times.

⇒ The new year begins on the first day following the new moon in the month of Chaitra, which corresponds to March–April in the Gregorian calendar.

⇒ Each month is divided into two halves (fortnights) – the bright and dark halves.

⇒ To compensate for the 11-day difference with the solar year, Vikram samvat has 13 months after a cycle of every 3 years and every 5 years, with an extra month added known as Adhik Masa.

SAKA SAMVAT

⇒ In 78 AD, King Shalivahan instituted this calendar form.

⇒ It was also known as the Saka era because Shalivahan belonged to this tribe.

⇒ The Saka Calendar is both solar and lunar, with lunar months and a solar year, and it has the same number of months as the Vikram epoch did.

⇒ The Saka Calendar begins on March 22nd every year, except in Gregorian leap years, when it begins on March 21st.

⇒ The Saka calendar has a fixed number of days in each month.

⇒ A saka year is made up of 365 days.

GREGORIAN CALENDAR

⇒ This calendar is based on the birthday of Christianity's founder, Jesus Christ.

⇒ In October 1582, the Gregorian calendar, which was devised as a corrective to the Julian Calendar, was implemented.

⇒ This calendar is named after Pope Gregory XIII.

⇒ It is a solar year that begins on January 1st and lasts 365 days, 5 hours, 48 minutes, and 46 seconds.

NATIONAL ANIMAL

Royal Bengal Tiger(Panthera Tigris) is the National Animal of India. It was conferred the status in April 1973.

⇒ Tiger was picked as the National animal of India because of its elegance, strength, agility, and colossal power.

⇒ It is one of the emblematic representatives of a country's natural wealth.

⇒ Tigers are the largest specimen in the cat family.

⇒ Nagpur is known as the 'Tiger Capital of India'

⇒ According to the IUCN Red list, the tiger is listed as an endangered animal.

⇒ To conserve the Tiger, the Indian Government launched Project Tiger in 1973.

NATIONAL BIRD

The peacock (Pavo cristatus [Linnaeus]) was named the National Bird of India in 1963 because it is the most auspicious animal that embodies our country's fauna and has a long history of religious and legendary significance in Indian culture.

⇒ The Peacock embodies the national spirit whose colours are connected with Indian identity.

⇒ Indian peacocks are the swan's size and are indigenous to Nepal, Sri Lanka, Bangladesh, Myanmar and India.

⇒ The peacock bird is found all over the country and is also well known to the common masses of India.

⇒ It is also used as an image of the god of rain, thunder and war in Hinduism.

⇒ It has been given complete protection under the Wildlife Protection Act 1972.

⇒ They are also considered sacred by the Hindus as it is also linked to Lord Murugan, the son of Lord Shiva.

⇒ Chandragupta Maurya, who was the founder of the Maurya dynasty, is also considered to be the son of peacock tamers or the 'Mayur Poshikas' in Sanskrit.

⇒ The peacocks are omnivorous and are usually found in low altitude grasslands, adjacent human habitats and forest plains.

⇒ The Red List of IUCN categorizes the peacocks under the least concerned category.

NATIONAL TREE

The national tree of India is the Banyan tree(Ficus benghalensis), known for its distinct hanging roots and excellent medicinal properties.

⇒ The banyan tree signifies strength and unity and is therefore considered the national tree of India.

⇒ In Hinduism, the Bargad (Banyan) tree is considered pious and is called 'Ashwath Vriksha.'

⇒ Its fruits are edible and nutritious and can relieve skin irritation and swelling.

⇒ Its bark and leaf extracts are used to stop bleeding.

⇒ Leaf bud infusion is used to treat chronic diarrhea/dysentery.

⇒ Banyan tree is known for making shellac, used as a surface abrasive and glue.

⇒ Its milky white sap is used to polish metals such as brass and copper.

NATIONAL FLAG

The first national flag in India is said to have been hoisted on August 7, 1906, in the Parsee Bagan Square (Green Park) in Calcutta now Kolkata on the anniversary of anti-partition movement.

⇒ The flag was designed by SACHINDRA PRASAD BOSE.

⇒ The flag was composed of three horizontal stripes of red, yellow and green.

⇒ Mrs Cama and her band of exiled revolutionaries hoisted the second flag in Paris in 1907 which was made by HEM CHANDRA DAS..

⇒ This was very similar to the first flag except that the top strip had only one lotus but the Saptarishi was denoted by seven stars.

⇒ The flag was also on display at a Berlin socialist conference.

⇒ During the Home Rule Movement in 1917 Bal Gangadhar Tilak and Mrs. Anne Besant also designed a flag.

⇒ This flag was arranged alternately with five red and four green horizontal stripes, with seven stars superimposed on them in the Saptarishi configuration.

⇒ The Union Jack stood in the top left-hand corner (the pole end). There was also a white crescent and star in one corner.

⇒ During the All India Congress Committee meeting in Bezwada Mr Pingley Venkayya design a national flag for Freedom Movement.

⇒ It was also called the Swaraj flag.

⇒ It consisted of two red and green colours reflecting the two main cultures, i.e. Hindus, and Muslims.

⇒ Gandhi suggested the addition of a white strip to represent the remaining communities of India and the spinning wheel to symbolise the progress of the Nation.

⇒ In 1931, a seven-member flag committee was established in Karachi to modify the flag and they had given a new design.

⇒ This flag, the present one's forebear, was saffron, white and green with the spinning wheel of Mahatma Gandhi in the middle.

⇒ An ad-hoc flag committee was headed by Dr. Rajendra Prasad to design the flag for free India.

⇒ The National Flag was adopted on 22 July, 1947.

⇒ Saffron colour > indicating the strength and courage of the country.

⇒ White colour > indicates peace and truth with Dharma Chakra.

⇒ Dharma Chakra depicted the "wheel of the law" in the Sarnath Lion Capital.

⇒ Appears on the abacus of the Sarnath Lion Capital of Ashoka.

⇒ The chakra intends to show that there is life in movement and death in stagnation.

⇒ Its diameter approximates to the width of the white band and it has 24 spokes.

⇒ Green colour > shows the fertility, growth and auspiciousness of the land.

According to Article 51A (a), it shall be the duty of every citizen of India to abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem.

A person who is convicted for the offences under the Prevention of Insults to National Honour Act of 1971 is disqualified to contest in the elections to the Parliament and state legislature for 6 years.

⇒ According to the law, the National Flag of India is to be made by 'Khadi' which is hand-spun wool/cotton/silk Khadi cloth. Karnataka Khadi Gramodyoga Samyukta Sangha is the only unit in India that is accredited to supply and manufacture the Flag of India.

⇒ The National Flag should be rectangular in shape with a length to width ratio of 3:2.

FLAG CODE OF INDIA 2022

⇒ National Flag can now be flown day and night if it has been hoisted in the open or on the house of a member of the public.

⇒ The Indian national flag can be made of polyester and with the help of machines.

⇒ The tricolour can be of nine standard dimensions — 6300 x 4200, 3600 x 2400, 2700 x 1800, 1800 x 1200, 1350 x 900, 900 x 600, 450 x 300, 225 x 150 and 150 x 100 (all sizes in mm).

⇒ The flags that conform to the specifications as laid down by the Bureau of Indian Standards and bearing their mark can only be used for official display

⇒ Har Ghar Tiranga is a campaign under the aegis of Azadi Ka Amrit Mahotsav to encourage people to bring the Tiranga home and to hoist it to mark the 75th year of India's independence.

PINGALI VENKAYYA

- ⇒ A fervent freedom fighter and the designer of the flag.
- ⇒ Born on 2 August, 1876 at Bhatlapenumarru, near Masulipatnam, in Andhra Pradesh.
- ⇒ He was an authority in geology, agriculture and also an educationist who set up an educational institution in Machilipatnam.
- ⇒ He, however, died in poverty in 1963.
- ⇒ He was honoured with a postage stamp in 2009 for his contribution towards Indian freedom struggle and in 2011 it was proposed that he be posthumously awarded the Bharat Ratna.

श्रद्धावानम् लभते ज्ञानम्
SIGMA ACADEMY